

Turkey:

Need for continued improvement in response to protracted displacement

A profile of the internal displacement situation

26 October, 2009

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Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

At the request of the United Nations, the Geneva-based Centre runs an online database providing comprehensive information and analysis on internal displacement in some 50 countries.

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OVERVIEW

Need for continued improvement in response to protracted displacement

Around one million internally displaced people (IDPs) in Turkey continue to face protracted displacement, with many obstacles still standing in the way of durable solutions. Prevailing insecurity in south-eastern Turkey, the continuing presence of village guard militias and of mines, and under-development continue to bar their return. Integration in urban areas is still fraught with difficulties in the absence of targeted assistance, as IDPs, most of them Kurdish, face socio-economic marginalisation and discrimination.

However the government has taken notable steps to address the internal displacement situation. In the last four years, it has commissioned a national survey on the number and conditions of IDPs; drafted a national IDP strategy; adopted a law on compensation; and put together a comprehensive pilot action plan in Van Province which addresses rural and urban situations of displacement.

The Van pilot is now to be replicated in 13 other provinces affected by displacement, and form the basis of national action plan that would provide a comprehensive response to displacement in south-eastern provinces. However gaps persist in the response, both for IDPs in the south-east and for those displaced in other parts of Turkey.

The issue of the place of Kurdish people in Turkey dominates the situation of displacement, and in recent years the government has taken limited but unprecedented steps to address the Kurdish question. These steps are still fraught with challenges, but this approach, if continued, has the potential to reconcile Turkish society and favourably affect the national response to displacement.

Background and main causes

Between 1984 and 1999, conflict between the Turkish army and Kurdish militants displaced around one million people, mainly Kurds, from their homes in south-eastern Turkey. The conflict, which is believed to have claimed tens of thousands of lives, originated to a large extent from government policies that for decades denied the existence of a distinctive Kurdish identity in Turkey. Beginning in the 1970s, a number of Kurdish political groups including the Kurdish Workers' Party (*Partiya Karkerên Kurdistan*, or PKK) began to actively protest against this policy. In 1984, the PKK launched attacks against the Turkish state, with the declared intention of establishing an independent Kurdish state (Kirisci, January 1998). In 1987, government security forces were granted exceptional powers under a state of emergency, which was declared in 14 provinces and led to a heavy military presence, the imposition of martial law and severe restrictions on civil and political rights.

Internal displacement was caused by the evacuation of villages by the government under the emergency rule, by the PKK when villagers refused to support it, and by the lack of security for those caught in the fighting (Kirisci, January 1998). The PKK and also the security forces (including paramilitaries of the government's village guard system) committed serious human rights violations including torture, arbitrary arrests, abductions, and the destruction of villages and crops. The 14 provinces most affected by internal displacement were Bingöl, Hakkari, Tunceli, Bitlis, Van, Mus, Elazığ, Adıyaman, Ağrı, Diyarbakır, Batman, Siirt, Mardin, and Şırnak.

After the arrest of PKK leader Abdullah Öcalan in June 1999, and his subsequent announcement of a unilateral cessation of armed activities by Kurdish armed groups, the level of violence in south-eastern Turkey sharply decreased, and the state of emergency was gradually lifted in all provinces.

However, despite renewed ceasefires by the PKK, violence has increased in recent years, although not to preceding levels. In June 2007 the government declared the provinces of Siirt, Sirnak and Hakkari, as “temporary security zones”, deployed more troops along the border with Iraq, and authorised provincial governors to extend the number of village guards (TESEV, August 2007). In the course of late 2007 and 2008, the Turkish armed forces repeatedly intervened in northern Iraq, targeting PKK military bases which were reported as the source of escalation. The interventions caused the displacement of close to a thousand Iraqis (IDMC, December 2008; ICG, December 2008).

At the same time the government has taken preliminary steps to address the Kurdish question, to which issues of internal displacement remain intricately intertwined. Steps such as a declared willingness to discuss the situation of the Kurds have however been tempered by continued vigilance and application of laws which restrict fundamental freedoms and human rights (ICG, December 2008).

Most IDPs in Turkey were displaced by the conflict in the 1980s and 1990s, but their movement has also been affected by a broader rural-to-urban migration, encouraged by both the violence and the socio-economic marginalisation of the region. Large-scale development projects within the South-Eastern Anatolia Project (GAP) have also raised concerns over the displacement they could cause; for example the planned construction of the Ilıyad dam project could displace between 50,000 and 78,000 people, mainly Kurds (KHRP, May 2009). Urbanisation projects in cities such as Istanbul and Ankara have also led to demolitions of Roma areas, adding these to the numbers of displaced (CoE, October 2009; MRG, March 2009; ERRC April 2008). Natural disasters also cause major displacements; in 1999, an earthquake in northern Turkey killed around 18,000 people and displaced over 675,000 (IFRC, 2004).

Displacement figures

For many years the numbers of IDPs has been contested, with estimates ranging from 350,000 to four million. A government estimate of 350,000 included only people evacuated by security forces, and not those who were forced to flee due to generalised violence or a combination of security and economic reasons. In 2004 the government commissioned a national IDP survey from the Hacettepe University Institute for Population Studies. The survey showed in December 2006 that between around 950,000 and 1.2 million people had been displaced for security-related reasons from the east and south-east of the country between 1986 and 2005 (HUNEE, December 2006). However, nearly three years on, these findings are yet to be clearly endorsed by all relevant government institutions (General Directorate, GoY, June 2009).

Nearly half of the IDP population remain in south-east Turkey close to their places of origin, while the other half have moved to western and northern Turkey to such cities as Ankara, Istanbul and Izmir (TESEV, May 2009).

The number of returnees has remained quite low, despite a series of government programmes such as the Return to Village and Rehabilitation Project (RVRP) launched in 1994. According to statistics collected in the 14 provinces in which the RVRP has been implemented, a little over 150,000 people had returned to their places of origin as of July 2009. The figure was the same in 2007 (GoT/UN Mission, June 2007; GoT October 2009), while the Hacettepe survey estimated 124,000 returnees in 2006. They represented only between ten and 13 per cent of those

displaced, although more than half of IDPs had reported a wish to return to their areas of origin (HUNEE, December 2006; GoT/UN Mission, June 2007). Many displaced villagers do reportedly return temporarily, usually in summer months, but no clear figures are available (HRW, March 2005; TESEV, August 2007).

Obstacles to return in south-eastern Turkey

Outstanding obstacles to sustainable return include the upsurge in violence between the Turkish army and Kurdish militants since 2004 in south-eastern provinces, the continuing presence of around 69,000 village guards and close to a million landmines in provinces bordering Syria and Iraq, and the under-development of the region.

Although security in the south-east has greatly improved since the 1990s, armed clashes between government forces and the PKK have increased since 2004, when the PKK announced the end of a five-year ceasefire, and particularly in the last three years, discouraging returns and even threatening new displacement (TESEV, May 2009). Meanwhile the government has continued since 2007 to renew “temporary security zones”. Since 2007, human rights activists have reported more restrictions of their freedom of movement, including road blocks and checkpoints during military operations, as well as arbitrary detentions and allegations of extrajudicial killings (KHRP, June 2008, and August 2009; HRA, September 2009; US DoS, March 2007).

The village guards system, whose members were often implicated in the original causes of displacement, remains a significant obstacle to return. Village guards have hindered return by denying displaced villagers access to their fields and by occupying people’s homes or land, while they have been responsible for killings and acts of intimidation (TESEV/IDMC, June 2006; HRW, June 2006). There are some 57,000 paid village guards, in addition to an estimated 12,000 volunteers (TESEV, May 2009). Although the government announced in 2005 that it was considering the gradual dissolution of the system, and recognised in its national IDP strategy the risk it posed to returnees, it has made no progress in abolishing the village guards (UN CHR, April 2005; GoT, August 2005). In May 2007, the government introduced a new law according to which governors may increase the number of village guards in their provinces.

The killing of 40 civilians by village guards in Mardin Province in early 2009 revealed the dangers of this paramilitary group to the Turkish public (Open Democracy, May 2009). Meanwhile, international bodies have continued to call for their disbandment (EC, November 2008; CoE, October 2009).

Landmines were widely deployed by all parties and they continue to present a security concern and a barrier to return. Landmines are reportedly present near evacuated villages and in particular along the borders with Iraq and Syria (TESEV August 2007; LMG July 2006). The government acknowledged the problem in the national IDP strategy framework in 2005, and in May 2006 estimated that there were just under a million mines in the country (GoT, 2005; LMG, July 2006). Estimates of the number of casualties they caused between 1993 and 2004 ranged from 1,600 to 2,900 (GoT, October 2009; LMG, May 2008). Though the government has undertaken demining activities, civil society organisations have called for much greater efforts in mine risk education, treatment for victims, and more systematic marking of mined areas (CoE, October 2009; IDMC/TESEV, June 2006). In July 2006, the PKK also committed itself to a ban on use of antipersonnel mines, but the government has since repeatedly accused it of continuing to use landmines (GoT, October 2009).

Social and economic obstacles to rural return

National and international researchers have reported that the lack of economic opportunities, social services and basic infrastructure in the rural areas of the south-east from which the majority of IDPs originate constitute a major obstacle to return. There has been an overall absence of development in former conflict areas suffering from inadequate basic infrastructure (HRW, March 2005; CoE, October 2009), and the “serious state of economic and social underdevelopment constitutes a serious obstacle to voluntary return” (CoE, October 2009). Access to education and levels of educational achievement in the south-east are reportedly far below the national average, unemployment rates are very high and livelihood opportunities limited, particularly for women (MRG, March 2009; CoE, October 2009).

Case studies have illustrated complex challenges facing returnees. Arable land and homes which have been destroyed in the conflict or else left unattended for nearly two decades must be rebuilt from scratch in areas which were already facing socio-economic difficulties prior to displacement (MRG, December 2006; Sonmez, September 2008). The existing infrastructure was often a small village consisting of isolated hamlets with limited facilities at best (Sonmez, September 2008). Despite the implementation of several projects to facilitate returns, the assistance provided has often been reported as insufficient. For instance, returnees in Aydinlik in Batman Province received unfinished housing upon return or were compelled to live in dilapidated housing (TESEV, August 2007). Reports suggest high levels of indebtedness among returnees resorting to daily labour and seasonal work while attempting to reconstruct their livelihoods (TESEV, August 2007).

Protracted displacement in urban areas

Most programmes have focused on return and the government has only recently acknowledged the situation of IDPs living in urban areas, many of whom remain unidentified (UN CHR, November 2002; MRG, March 2009; TESEV May 2009). The government has not assisted or facilitated their integration even though the national survey revealed that nearly half of IDPs did not wish to return, and that 17 per cent had had no land and 12 per cent had not owned a residence prior to their displacement (HUNEE, December 2006). Several studies have also indicated generational differences, with younger IDPs not intending to return to rural places of origin in which opportunities remain limited (Sonmez, September 2008; TESEV, August 2007).

Most displaced people have been living for nearly ten years on the peripheries of cities including Istanbul, Ankara, Izmir and Adana, as well as in cities in the south-east such as Batman, Diyarbakir, Hakkari and Van (Kirisici, January 1998; TESEV, August 2007). They share with other migrants the problems of poverty, but also face discrimination and limited access to housing, education and health facilities (EC, November 2008; TESEV August 2007; MRG, March 2009; Sonmez, September 2008). Problems particularly identified among forcibly displaced communities include prevalent trauma, low levels of education, and high levels of unemployment, particularly among displaced women. Child labour and domestic violence is reported to be an increasing problem in urban centres (MRG, March 2009; TESEV, August 2007).

A number of government programmes target the wider poorer population, but do not take into consideration the specific situation of the displaced community (MRG, March 2009). For instance, one criteria for determining poverty and eligibility for social assistance is not owning agricultural property. IDPs who own rural property would be disqualified even if they have been unable to access their property for nearly a decade (IDMC/TESEV, June 2006).

Towards a national action plan

While the government response in the 1990s was generally inadequate, there was a significant shift in national policy following the visit of the Representative of the UN Secretary-General on IDPs (the RSG on IDPs) in 2002, which coincided with Turkey's bid to meet the conditions of EU membership after being recognised in 1999 as an EU candidate country. The government has since made important progress towards improving the overall national policy and legal frameworks and identifying and facilitating durable solutions for IDPs.

The RVRP was launched in 1994 to establish the necessary social and economic infrastructure to provide sustainable livelihoods for returnees. Between 1999 and 2008 the government invested \$54 million on infrastructure, social projects and assistance to returnees. A further \$10 million was allocated to the RVRP for 2009 (GoT, October 2009).

Nevertheless the RVRP had been extensively criticised on many grounds, including an overall lack of transparency or clear strategy and a lack of consultation with IDPs. The return policy was also found to be inconsistent, underfinanced and discriminatory (HRW, January 2004; EC, November 2003; TESEV, May 2009). The national survey in 2005 revealed that 88 per cent of returnees surveyed had returned without assistance from the government and that nearly half of them were not aware of the assistance available (HUNEE, December 2006).

In 2004, the Law on Compensation was enacted, and in subsequent years amendments and procedural guidelines were adopted to improve its implementation. In 2005 the government adopted a national IDP strategy in which it committed to address the IDP situation in line with the international standards contained in the Guiding Principles on Internal Displacement. In September 2006, Van Province launched a pilot strategic policy framework for IDPs, the Van Action Plan (VAP), based on consultation with civil society (GoT, October 2006). The plan is to be replicated in all other 13 provinces affected by displacement in south-eastern Turkey, and form an integral part of a National Action Plan. The National Plan is to be completed by end of 2009 once all 13 provincial plans are finalised. Finally, a national legislative framework to address displacement is to be finalised in 2010 (UNDP, September 2009).

The VAP represents the latest response to calls by the international community for a more systematic approach to enabling durable solutions for IDPs. It recognises the need to address urban displacement as well as facilitate returns according to the Guiding Principles. Developed with UNDP technical support, it is a blueprint to be replicated subject to the requirements of each province, and complements rather than replaces the RVRP (TESEV, May 2009). As of December 2007, 84 planned projects (requiring funding of close to \$72 million) were submitted to relevant national ministries, 44 of which are still being negotiated in 2009 (GoT/UN Mission, July 2007; TESEV May 2009).

Despite the VAP's emphasis on a participatory approach, many civil society associations have criticised the discrepancy between the final Plan and the outcomes of initial consultations (TESEV, May 2009). It has also been criticised for failing to acknowledge the Kurdish issue, and the issues of landmines, ongoing violence, and the threat presented by the village guard system. Furthermore, the provincial action plans from which the National Action Plan is to be developed do not address the situation of urban displacement outside the south-east.

Though their relations with the government have improved, civil society associations have continued to call for wider transparency and cooperation, and the opportunity to participate more meaningfully and systematically in the development of national and provincial plans of action (IDMC/TESEV, June 2006; TESEV May 2009). Although the Ministry of the Interior in February 2007 designated its General Directorate of Provincial Administration as responsible for all IDP-related policies and programmes, civil society associations have continued to call for clear focal

points within the government to exclusively address displacement. The European Commission has echoed these calls in underlining the government's insufficient institutional capacity to address displacement (EC, November 2008).

Extension of the Compensation Law

In 2004, the government adopted Law 5233 on “the Compensation of Losses Resulting from Terrorist Acts and the Measures Taken Against Terrorism” in favour of those who had suffered loss or damage as a result of “action by terrorist organisations and measures taken by the government to combat it” since 1987 (GoT, July 2004). Compensation is provided for three types of damage: (i) loss of immovable and moveable properties; (ii) physical injuries, disabilities and death; (iii) access to property which has been restricted or hindered due to counter-terrorism measures. The law is implemented by 105 Damage Assessment Commissions (DACs) established in 75 provinces (GoT, October 2009; GoT/UN Mission, 2009). From 2004 to August 2009, slightly over 360,000 applications were made to the DACs, of which over 190,000 were decided, with 120,000 awarded compensation and the remaining 70,000 denied. Around \$1.4 billion of compensation had been awarded, of which nearly \$1.1 billion had been paid (GoT, October 2009).

Experts have drawn attention to a number of problems in the law and its implementation. These include the lack of independence of DACs; the absence of effective appeals procedures; the unwarranted burden of proof on applicants; the lack of a witness protection programme or of legal aid provision; and inconsistent and inequitable application of the law resulting in uneven results and levels of compensation (HRW, December 2006; IDMC/TESEV, June 2006; RSG on IDPs, March 2006). The law also does not address non-pecuniary damages and does not apply to people displaced prior to 1987 (HRW, March 2005; TESEV August 2007). Critics have also noted the failure of the government in raising awareness of the law – the 2006 survey revealed that close to half of IDPs were unaware of the law.

The government has made successive amendments to respond to some of these shortcomings (GoT, July and August 2005, and December 2006). The timescale for implementing the law has been extended annually, most recently in September 2009 for a period of one year to allow DACs to process remaining applications (GoT, October 2009). In September 2005 the government issued procedural guidelines to alleviate the burden of proof on applicants in line with the European Court of Human Rights (ECtHR) ruling in the case of *Dogan and others v. Turkey* (ECtHR, June 2004). In 2007, the Ministry of the Interior issued guidance on award levels to the DACs to address the problem of inequitable application of the law. The Ministry also sought legal advice from international experts, provided training to the DACs, and developed a database to standardise and harmonise their decisions (GoT/Mission, June 2007). A monitoring and oversight mechanism was established within the Ministry to oversee implementation of these measures.

However, difficulties persist in the implementation of the law. In 2006, the ECtHR ruled in *Içyer v. Turkey* that the existing law provided adequate domestic remedy, leading to the dismissal of 1,500 pending cases relevant to compensation (ECtHR, February 2006; EC, November 2006). A report by Human Rights Watch noted that the ECtHR's decision was followed by a noticeable deterioration in the implementation of the compensation law. The report found that the DAC increasingly appeared to apply “arbitrary and unjust” criteria in calculating compensation, resulting in low compensation awards in numerous cases (HRW, December 2006). In its annual progress report, the European Commission noted continued shortcomings in the law, in particular uneven and inequitable calculation of compensation between provinces, as well as delays in assessment and payment of compensation due to a lack of capacity of DACs (EC, November 2008).

Challenges of addressing the Kurdish question

The vast majority of IDPs are Kurdish, and their displacement and current situation is tied to the lack of recognition of the Kurdish identity. In the last few years, the government has taken a number of unprecedented steps towards a “democratic opening” to address the Kurdish issue which could have significant bearing on the response to displacement (Hürriyet, August 2009; ICG, December 2008). Tensions however persist. Following the electoral gains in March 2009 of the Kurdish Democratic Society Party (*Demokratik Toplum Partisi*, or DTP) in south-eastern Turkey, the harassment and arrest of party members and elected officials was reported (KHRP, August 2009). Human rights associations have also condemned continued discrimination, and the use of existing legislation in stifling freedoms. This includes disproportionate measures adopted to quell and prosecute pro-Kurdish demonstrators, including children, under anti-terror legislation (HRA, April and September 2009).

This is in a context of repeated calls from civil society to address the issue of past human rights violations against Kurds including IDPs, and to end the current impunity of state actors including village guards (IDMC/TESEV, June 2006; HRW, December 2008). In late 2008, several unprecedented, albeit limited, steps were taken at provincial level to investigate the remains of some of the many people who “disappeared” at the height of the conflict and bring to account those responsible (ICG, December 2008; KHRP, August 2009; BBC September 2009).

Response of the international community

The government’s progress in addressing internal displacement has been heavily influenced by regional and international actors. The 2002 visit of the RSG on IDPs brought national attention to the issue and resulted in a series of recommendations to the government (UN CHR, November 2002). The current RSG has maintained this dialogue, visiting Turkey on four occasions between 2005 and 2006; he has both applauded the progress made and called on the government to address outstanding gaps in the response.

Turkey was recognised as an EU candidate country in 1999. In successive reports assessing Turkey’s progress in fulfilling the Copenhagen criteria, the EU has called on the government to address the situation of IDPs, drawing attention to obstacles to return and calling for the improvement of socio-economic conditions in the south-east (EC, November 2008). The EU has also been pivotal in putting the issue of minority rights, including the rights of the Kurdish displaced population, on the political agenda (BBC, September 2004).

The ECtHR has drawn on the Guiding Principles to underline the government’s primary duty and responsibility to provide durable solutions (ECtHR, June 2004). It has ruled against the Turkish state in a large number of cases for its involvement in the forced displacement, particularly regarding property destruction and disappearances, including where perpetrated by village guards (HRW, June 2006; Juristras, Fall 2008). The Council of Europe’s Committee of Ministers and the EU have both repeated the call for Turkey to comply with the ECtHR judgments on a wide range of human rights abuses and have called for numerous steps to widen freedoms, particularly those of expression and minorities, in compliance with international standards (EC, November 2008, ICG, December 2008; CoE, June 2005; CoE, October 2009).

The Council of Europe’s Parliamentary Assembly has issued recommendations and reports relating specifically to internal displacement. Most recently, the Commissioner on Human Rights, following a visit in July 2009, underlined his concerns over the situation of large number of IDPs who remained trapped in a situation of protracted displacement, and urged Turkey to make more efforts to effectively protect and promote IDPs’ right to return to their homes or provide them with other durable solutions such as local integration or resettlement (CoE, October 2009). While noting Turkey’s efforts to date, the Commissioner underlined the need to accelerate the

implementation of action plans, and address key issues such as the village guard system, limitations of the compensation law, and social and economic needs.

The United Nations country team's response to displacement is represented by the United Nations Development Programme (UNDP) project entitled "Support to the development of an IDP programme in Turkey". The project originally ran from 2005 to 2006, but was subsequently extended to help the government formulate a coherent and comprehensive National Action Plan for IDPs and develop a national legislative framework (UNDP, August 2008 *and* September 2009). UNDP has provided technical advice to the government, and facilitated participatory consultation with IDPs and civil society in the development of the Van Action Plan. It is currently replicating this process for subsequent provincial action plans. Other UN agencies such as UNICEF address situations of displacement indirectly through general development programmes (UNICEF, October 2009).

Several non-governmental bodies address the situation of IDPs and attempt to facilitate durable solutions. However, Turkish civil society has struggled to operate in a highly charged political environment (IDMC interview, October 2009).

Civil society associations, while supporting the role of the UN in addressing displacement, have raised concerns that the UN has confined itself to a technical role and not sufficiently advocated on pivotal issues, undermining the effectiveness of the VAP and subsequent provincial plans (Interview IDMC, October 2009; TESEV, May 2009). Several NGOs have underlined that the role of UNDP should be rather in monitoring the effectiveness of the government's response and its compliance with international standards, and advocating on behalf of the displaced community (Interview IDMC, October 2009; TESEV, May 2009).

CAUSES AND BACKGROUND

Background

The Kurds: history and profile

- Kurds constitute the largest minority ethnic group in Turkey but there are no accurate figures available. They are traditionally organised in tribes with pastoral or agricultural activities. Kurds do not represent a cohesive ethnic minority
- Atatürk's secular state brutally prohibited any manifestation of Kurdish identity, including through mass killings and deportation (1925-1938) Kurds were not formally acknowledged as minorities under the 1923 Treaty of Lausanne and nationalist ideas within Kurdish society reappeared in intellectual circles in the 1950s
- During the 1970s many Kurds were attracted to the leftist revolutionary socialist groups and then created specifically Kurdish nationalist groups to challenge State denial. The most successful of these was the Kurdistan Workers' Party (PKK) which steadily widened its sphere of influence during the 1980s

MRG, 2001:

"The Kurds are the descendants of Indo-European tribes who settled among the inhabitants of the Zagros mountains in various epochs, but probably mainly during the second millennium BC. The first mention of Kurds, as 'Cyrtii', occurred in the second century BC. At the time of the Arab conquest in the seventh century AD, the term 'Kurd' was used to denote nomadic people. The Kurds today, numbering at least 26 million, struggle to obtain political recognition and rights as national communities within the state boundaries in which they find themselves. They form the largest ethnic community in the Middle East without a state of its own.

Country———	Total population	Kurds	%
Iran	61,000,000	6,100,000	10%
Iraq	19,300,000	4,400,000	23%
Syria	13,400,000	1,100,000	8%
Turkey	60,000,000	13,200,000	22%
Former Soviet Union		500,000	
Elsewhere		700,000	
Total		26,000,000	

(*Estimates are in rounded figures.) Where do the Kurds live?

Although Kurds are to be found in Syria, the Caucasian republics of Armenia and Azerbaijan, Khorasan (in eastern Iran), and in Lebanon, the main concentration lives today where the Kurdish people have always lived - in the mountains where Iran, Iraq and Turkey meet. Nevertheless no map of Kurdistan can be drawn without contention, and for this reason the demographic map is not a political statement, but a statement of where large numbers of Kurds are found."

UK Home Office April 2001, paras. 6.1-6.10:

"Estimates of the number of Kurds in Turkey vary considerably; there may be 12 - 15 million Kurds in Turkey out of a total population of 64.4 million, making Kurds the largest minority ethnic group in Turkey. The Kurdish birth rate is high and the proportion of Kurds in the national population of Turkey is likely to increase.

in the 19th century most Kurds were tribal pastoralists, but a significant minority were peasantry.Many Kurdish tribes supported Mustafa Kemal (Ataturk)'s war of independence in the expectation that they were repelling the infidel (Greeks, Armenians, and the Allies) to re-establish the Muslim Fatherland with its Sultan/Caliph. But Ataturk established an ethnic definition of the new Republic as "Turkish, secular and modern", and he set about suppressing all manifestations that contradicted that aim: tribal life, Kurdish language and culture, and the religious brotherhoods that were so strong in the Kurdish region. From 1925 to 1938 the Turkish Government ruthlessly suppressed Kurdish rebellions and resistance to the enforcement of this new ideology which denied their identity. Kurdish leaders tended to appeal to nationalist ideas, the rank and file probably simply wanted their old way of life back. Ataturk's measures involved mass killings, village destruction, and the forced deportation of hundreds of thousands of Kurds.

The end of one party politics in the 1940s led the new opposition to woo the old tribal chiefs and the new landlord class in the Kurdish region to deliver the peasant vote. This became a key feature of Turkish electoral politics. The landlord class benefited in material ways and obeyed the state ideology. It was young middle class intellectuals in the 1950s who reawakened nationalist ideas within Kurdish society, challenging the State's view that Kurds were mountain Turks. (Kurdish is a member of the Iranian branch of the Indo-European family of languages. Kurds have no ethnic connection with Turks, whose language is a member of the Altaic family).

During the 1970s many Kurds were attracted to the leftist revolutionary socialist groups which soon found themselves in armed conflict against right wing groups that frequently enjoyed the tacit support of the state. Counter insurgency operations routinely involved human rights violations against villagers in affected areas. With these disorders proliferating, the army intervened in September 1980. It is estimated that during the three years of military government probably over 100,000 Kurds were detained by the security forces. Many were tortured.

Many Kurds became disillusioned with Turkish leftist movements in the 1970s, and started to form specifically Kurdish nationalist groups to challenge State denial and repression. The most successful of these was the Kurdistan Workers' Party (PKK), which was given substantial help and facilities by Syria. The PKK matched Turkish Government ruthlessness, killing pro-government villagers and their families and also Turkish civil servants in rural areas, most notably teachers, who were suspected of being government informants. Thus both sides routinely violated the rules of war and other legal instruments for the protection of basic rights.

During the 1980s the PKK steadily widened its sphere of influence. Most Kurds were initially hostile to the PKK and hated its methods. But they had little time for a government that denied their identity and rights. When government forces made them choose sides, large numbers started to support the PKK, despite misgivings over its methods. Many were not interested in, or did not know about, its atrocities. They saw

government atrocities on a far more widespread scale, and saw the PKK as defending the Kurdish corner. [...] Kurds do not represent a cohesive ethnic minority and range from persons tranquilly integrated in the larger society through political activists to committed terrorists. A significant number of historically ethnic Kurds have been completely assimilated into Turkish society and no longer even speak Kurdish."

The Kurdish conflict (1984-2006)

- Kurdish insurgency erupted in 1984 with the PKK, mainly in south-eastern Turkey. In July 1987, ten provinces in the southeast were placed under emergency rule due to an increased level of fighting. The conflict led to the displacement of Kurds from exposed villages, forcible evacuation and the destruction of villages
- Official figures put the number of casualties to 30,000 people during the conflict consisted of military presence, martial law, maintenance of the village guard system and other restrictions to normal economic and social life. The emergency region governor had sweeping powers to restrict exercise of civil and political rights
- The arrest of Abdullah Ocalan, the PKK leader in 1999 and his appeal for a cease-fire was followed by a considerable reduction of violence in south-eastern Turkey. The state of emergency (oHAL) lifted in the last 2 provinces in November 2002
- PKK announced an end to the five-year ceasefire in 2004. In August 2005, the PKK/Kongra Gel called for a temporary ceasefire for a period of one month, after Turkish prime minister acknowledged the existence of a "Kurdish problem"

AFP, 1 October 2006:

"Turkey's rebel Kurdistan Workers' Party (PKK) has declared a unilateral cease-fire in operations against the Turkish military.

The pro-Kurdish Firat News agency has quoted a rebel statement saying the length of the truce, which takes effect on Sunday, will depend on steps taken and developments that occur.

Arms will not be used as long as the Turkish army launches no attacks aimed at wiping out the rebellion, Firat News says.

The declaration comes two days after jailed Kurdish leader Abdullah Ocalan appealed to the PKK to call a cease-fire.

The call was rejected by Turkish Prime Minister Recep Tayyip Erdogan, who demanded instead that Kurdish separatists lay down their arms.

"A cease-fire is done between states. It is not something for the terrorist organisation," he said.

The PKK took up arms for self-rule in Turkey's predominantly Kurdish south-east in 1984.

The conflict has claimed more than 37,000 lives.

The rebel group, classed as a terrorist organisation by Turkey, the European Union and the United States, called a truce immediately after Ocalan's 1999 arrest.

But it took up arms again in 2004 and has significantly increased its attacks since, particularly this year."

US DOS, 31 March 2003:

"At the beginning of the year, four provinces remained under a state of emergency; but the Government completed the phased lifting of the regime on November 30 [2002] and closed the State of Emergency Regional Governor's Office, which exercised authority

over the governors of the emergency provinces, as well as the adjacent provinces. The Regional Governor held certain quasi-martial law powers, including the authority to impose restrictions on the press, remove from the area persons whose activities were deemed detrimental to public order, and order village evacuations. The Government continued to maintain a heavy security presence in the region, including numerous roadway checkpoints. The level of violence has decreased substantially since 1999."

HRFT, December 2002:

"Due to a decision in the Grand National Assembly of Turkey (GNAT) of 19 June the state of emergency was lifted in the two remaining provinces of Diyarbakir and Sirnak. On 19 July 1987 the state of emergency had replaced martial law in the provinces of Bingol, Diyarbakir, Elazig, Hakkari, Mardin, Siirt, Tunceli and Van. The provinces of Adiyaman, Bitlis and Mus were included as neighboring provinces. When Batman and Sirnak became separate provinces they had been included in the region under a state of emergency (oHAL) on 6 May 1990. The whole time gross human rights violations were reported from the oHAL region. official figures put the number of casualties as high as 30,000 people, who were killed during the 15 years. ...Even though Article 2 of the Decree 285 with the Power of Law allowed the Governor for the Region under a State of Emergency (OHAL) to evacuate, resettle and exile whole settlement most of the 3,500 settlements, were evacuated under the pressure to become village guards and/or burning down or destruction of houses by the security forces. The Parliamentary Research Commission stated in its 1998 report that 905 villages and 2,523 hamlets had completely or partly been evacuated. The number of displaced people was put at 'only' 378,335. The US State Department put this figure in its 2001 report to be around one million. Human rights organizations estimated the number of displace people to be around 4 million people from some 4,000 settlements. Decree No. 430 with the Power of Law 'Regarding Additional Measures in the State of Emergency Governor's Office and during the State of Emergency Period' was introduced on 15 December 1990. Article 1 allowed the OHAL Governor to exile people from the region. The 'exiled' persons had no possibility to appeal against such a decision (Article 8). Article 3 of the Decree No. 430 allowed for prolonged periods of detention of 10 days each. Detentions of up to 40 days were reported in 2001 and 2002. Relying on the competences of Decree No. 430 the oHAL governor also banned some 30 newspapers and journals from entering and distribution in the region. on 4 April 1985 Law No. 3175 amended the village Law numbered 442 introducing the system of 'temporary village guards'. The system was introduced with 40 village guards in Eruh district (siirt) and became systematic with the introduction of oHAL. Throughout the 1990s the village guards became known for kidnapping, killing, torture and rape. The Inspection Committee of the Prime Ministry stated in its Susurluk Report in January 1998 that the village guards were the part of society that had most intensely been involved in "dirty jobs". Even though the number of human rights violations in the OHAL region decreased after the armed clashes went down, the HRFT received information on 11 killings committed by the village guards in 2002."

BBC, 2 September 2003:

"The Kurdish paramilitary group Kongra-Gel - once known as the PKK - has declared that its five-year unilateral ceasefire will end in three days' time. The PKK declared a ceasefire in 1999 following the capture of its leader, Abdullah Ocalan, by the Turkish security forces. For 15 years the PKK fought the Turkish state in a conflict which claimed more than 30,000 lives. Its successor has now said it will target Turkish security forces

again. The statement by Kongra-Gel (Kurdistan People's Congress) came through a channel often used by the PKK, the Mesopotamian News Agency. It said that the ceasefire had become meaningless following what it called annihilation operations carried out against its fighters over the past few months. Tourists, the statement said, should not choose Turkey and those considering investing should think again. It is difficult to know how seriously to take the threat of renewed military action by Kongra-Gel. For several months, deep divisions have been reported within the organisation, which is thought to have around 5,000 fighters in the far north of Iraq.

It is believed that a sizeable faction wants to renounce the armed struggle once and for all. There has been an increase recently in activity in the south-east of Turkey which borders northern Iraq. Some believe that this may have come about as a result of the American military presence in Iraq. Turkey has been pressing the US to take action against Kongra-Gel, something which it has promised but, so far, failed to do."

UK Home Office, April 2001, para. 3.3

"On 12 September 1980 the armed forces, led by General Kenan Evren, Chief of the General Staff, seized power in a bloodless coup. Martial law was declared throughout the country and the new government succeeded in reducing the level of political violence and in restoring law and order, but at the expense of compromising or suspending many democratic freedoms. A new constitution was adopted in 1982.... Four years after the 12 September 1980 coup, which crushed the activities of urban insurgents and fundamentalists, Turkey faced a different threat from a similar source - rural insurgency, initially concentrated in the south east region along the borders with Iran, Iraq and Syria. Almost all the rural insurgent groups had their origins in the student groups based in the cities, one particular case in point being Abdullah Ocalan's PKK (Kurdistan Workers' Party). The separatist activities soon spread to the cities. In July 1987, ten provinces in the southeast were placed under emergency rule due to an increased level of fighting; Van, Bitlis, Tunceli, Diyarbakir, Siirt, Bingol, Batman, Hakkari, Sirnak, Mardin. The state of emergency was lifted in Mardin in November 1996, in Batman, Bingol and Bitlis in October 1997, in Siirt in November 1999, and in Van in July 2000. It continues in Diyarbakir, Hakkari, Sirnak, and Tunceli provinces. In a speech in December 1998, President Demirel stated that, since 1984, 23,638 PKK members, 5,555 security force members, and 5,302 civilians had lost their lives in the fighting between the security forces and the PKK, which fought, initially, for Kurdish self-rule in the southeast. The conflict has led to the migration of Kurds from exposed villages to district and provincial centres, or out of the southeast altogether. Forcible evacuations by the Turkish security forces are reported to have led to the destruction of 3500 villages in the region and the displacement of between 330,000 and 3 million people. As so many villages have now been evacuated and because the fighting has now moved to the mountains, the rate of evacuations has decreased in recent years, with 30 villages being evacuated in 1998. The Human Rights Association states that, as of October 2000, no village clearances took place during the year. In 1999 Abdullah Ocalan, the PKK leader, was captured and brought to trial by a Turkish court. In June he was found guilty of treason, and was sentenced to death. In early August the PKK indicated its willingness to comply with Ocalan's request for a cease-fire in south-eastern Turkey. In a written statement from prison, Ocalan said that the Government's decision was a step towards democracy. He pledged that the PKK would not exploit the move, and said that he now believed that the **PKK's** war for a Kurdish state was a 'historic mistake'.

COE, 13 June 2001, para. 141

"This state of emergency implies military presence in full operation [endnote 23], martial law, maintenance of the village guard system [Endnote 24], regular roadblock, curfews, identity controls and many other impediments of a normal economic and social life. The Turkish authorities recalled that the source of the present difficulties of the region is the security problem resulting from the PKK terror since the 1980's rather than the present state of emergency. Should the decline of the PKK terror prove to be permanent, the state of emergency will also be abolished in the remaining four provinces. "[Endnote 23]: During their trip to Sirnak the co-rapporteurs did not see any potentially strategic mountain pass or hilltop without the presence of security forces. [Endnote 24:] in March 2000, the number of village guards was said to be 65,000, with about 335 000 - 400 000 family members, who are paid by the state.

HRW, 30 September 2000, p. 326

"In 1999 the Kurdistan Workers' Party (PKK) declared that it would abandon armed activities in Turkey, thus reducing the armed turbulence, particularly in the southeast, although some units of the PKK continued sporadic attacks, and there were some clashes between security forces and PKK groups withdrawing to Northern Iraq. Other illegal organizations, including the Workers and Peasants' Army of Turkey (TIKKO), the Islamic Raiders of the Big East-Front (IBDA-C) and the Revolutionary People's Liberation Party/Front (DHKP/C), continued their armed activities. Nevertheless, the number of clashes diminished considerably. The Anatolia New Agency reported in May [2000] that armed incidents had decreased from 3,300 in 1994, to 1,436 in 1995, to 488 in 1999, to eighteen in the first five months of 2000."

Turkey's southeast emerges poor and devastated (2004)

- Rural depopulation is an inevitable phenomenon in Turkey, yet the regions of the east and south-east have also become depopulated for security reasons, as well as because of economic factors
- The ban on pasturing herds on the high plateaux, considered to be PKK strongholds, the first Gulf War that interrupted trade and trafficking with Iraq, and under-development of a region which lacks investment due to insecurity are also important factors
- Most NGOs consider that improving economic and social conditions is a primary condition for the return of the population. Destruction of infrastructure, crops, houses and other resources made the majority of the region uninhabitable
- The conflict also paralysed the infrastructure of the rural economy and destroyed the culture of a constitutional state. Death of bread-winners, lack of education of children and displacement have undermined the recovery potential of Turkish Southeast

COE, PA Monitoring Committee, March 2004, pp.44-45:

"Rural depopulation is an inevitable phenomenon in Turkey as elsewhere, but the regions of the east and south-east have also become depopulated for security reasons, as well as because of economic factors. The co-rapporteurs were told that the ban on pasturing herds on the high plateaux, considered to be PKK strongholds, the first Gulf War, which totally interrupted trade and trafficking with Iraq, and the under-development of a region where insecurity means that no one wants to invest are just as significant as the destruction of villages and the enforced displacements imposed by the security forces. Most NGOs consider that improving economic and social conditions is a sine qua non for the return of the population, whether it left under compulsion or voluntarily."

CoE, 22 March 2002:

"The armed conflict has disrupted the region, which even before had been one of the poorest and least economically developed regions of Turkey with rates of illiteracy, poverty etc. much higher than in the rest of the country. Systematic destruction of the infrastructure, economic resources, livestock, crops, houses, and farming machinery has made large areas of the region uninhabitable. The infrastructure of the rural economy has been paralysed. The cultivable land and the irrigation channels have fallen into disuse, numerous landmines add to the problem. Deprived of a market economy and industry, the region has also lost its more traditional forms of economic activity, namely livestock rearing and agriculture. Leaving their homes the peasants had to abandon all farming machinery and sell off their livestock at very low prices (if their animals had not been killed or taken away by the PKK beforehand). Unemployment in overcrowded cities and towns is disastrous."

Info-Turk, June 2002:

"But it is unlikely that they will get the opportunity for a decent life. After 15 years of war and 25 years without rule of the law, the region is economically, socially and morally in ruin. It is also still highly questionable whether an official lifting of the states of emergency can in practice effect a quick return to a normal life under a constitutional state. There will certainly be many gains with the lifting of the war-like rule by the authorities. Under state of emergency regulations, governors can clear whole villages, ban undesirable persons from the region, censor the media, authorize house searches without court permission, and to issue decrees without requiring any scrutiny by the Turkish courts. What cannot be restored by the security council's resolution is the culture of a constitutional state, something which has been completely destroyed. Because state and security authorities in state of emergency regions cannot have legal action taken against them, state despotism has established deep roots for itself. Even when the special authorities have been disbanded, an immense tragedy will still be left behind. Villages have been devastated, the land has gone to waste, animals have been slaughtered. There are no opportunities in the regions devastated by war: in the province of Hakkari only 16,600 people are employed out 200,000 inhabitants. Loans, funding and aid are needed for rebuilding the regions and this is where the problems begin: Tens of thousands of people have lost their bread-winners in the war, hundreds of thousands of children have not received any education, millions have fled to Istanbul, Izmir and Europe - all of these require support for a new beginning."

Turkish reforms and European Union accession discussions (1999-2009)

- Turkey was recognised as an EU candidate country in 1999. The EU has been pivotal in putting the issue of human rights including minority rights and the rights of the Kurdish displaced population, on the political agenda. The EU in annual progress reports has been assessing Turkey's progress in fulfilling the Copenhagen criteria. The most recent report in October 2008.
- In Parliamentary elections in 2002, OSCE would attest to the vibrancy of Turkish democracy noting that it demonstrated constitutional and legal reforms that were taking place. The end of hostilities in the southeast led to a less charged political atmosphere, though this was countered by persistent restrictions in non-violent expression of political views by a variety of laws
- In October 2005, EU commissioner for Enlargement warned that efforts to improve democracy would now be under even closer scrutiny, calling upon Turkey to do its share by implementing reforms in the areas of the rule of law, human rights, women's rights, the rights of religious communities and the rights of trade unions. Turkey must fully implement the political criteria of the EU, which means opening a clean sheet in terms of human rights and the rule of law

- In the last few years, as reported by ICG in December 2008, Turkey's pace of reform to the EU *aquis communautaire* has shown signs of slowing down. This is in an atmosphere of significant opposition by important EU leaders to Turkish membership, as well as heated domestic political crisis in 2007-2008 between ultra-nationalist trends and existing government in power.

ICG, December 2008

Turkey is entering a critical year, in which its prospects for European Union (EU) membership are at make or break stage. Domestic crises over the past two years have slowed national reform, betrayed the promise of a new constitution and undermined the political will needed to pursue accession negotiations. Its leaders show scant sign of changing course, at least before the March 2009 local elections, and EU states are applying little pressure to reinvigorate reform. ...

Paradoxically, the reform program went off course in 2005 concurrently with the launch of EU membership negotiations. A first reason was bitterness that the Republic of Cyprus was allowed to enter in 2004, even though it was Turkish Cypriots, with Ankara's support, who voted for the reunification deal (the Annan Plan) backed by the UN, the U.S. and the EU itself, while the Greek Cypriots voted it down. Then the AKP (Adalet ve Kalkınma Partisi – Justice and Development Party) government lost motivation as France and Germany worked to block Turkey's EU ambitions. It was disappointed by the failure of the European Court of Human Rights to overturn the Constitutional Court's rejection of a hard-fought amendment to allow women university students to wear headscarves. It was also distracted by need to concentrate on other Constitutional Court cases brought by the secularist establishment that narrowly failed to block the AKP's choice of president and to ban the party but deepened the polarisation of domestic politics and institutions. Simultaneously an upsurge in attacks by the Kurdistan Workers' Party (PKK) focused attention increasingly on security issues.

Turkey now pledges to relaunch reforms with a new National Program for Adopting the EU Body of Law (the *aquis communautaire*). The draft text focuses on anti-corruption measures through regulation of state tenders and state incentives, judicial reform and more democratic laws governing political parties and elections. ...However, such plans are years late and fall short of EU expectations expressed in a 2007 Accession Partnership document and the European Commission's annual progress reports. While the EU seeks many changes within a one- or two-year timeframe, Turkey envisages longer horizons. Above all, implementation has lagged: despite brave talk that it would replace the Copenhagen Criteria the EU has used since the early 1990s to assess a candidate's status with its own "Ankara Criteria", Turkey has passed only one sixth of a self-developed list of 119 legal reform measures announced in April 2007. Most disappointingly, the AKP has also dropped its prime promise in that year's election campaign of a new, truly democratic constitution.

EC, 4 October 2005:

"Today is a milestone in the relationship between the European union and Turkey. A stable, modern and democratic Turkey is an objective we should support actively in the European union and in Turkey. This is why we are starting negotiations. Of course the road towards Turkey's accession will be long and difficult. Accession, as for every country, is neither guaranteed nor automatic. The negotiations must be fair and rigorous. On behalf of the European Union I can guarantee this will be the case. Turkey must be

treated in the same way as all other candidates. And it must strictly respect the requirements for democracy, human rights and rule of law if it is to join the club. Europe must learn more about Turkey. And Turkey must win the hearts and minds of European citizens. They are the ones who at the end of the day will decide about Turkey's membership. Turkey must be given a fair chance to demonstrate that it is capable of meeting all conditions for accession. i hope it will; an open dynamic Turkey is in the interest of a European union capable of assuming fully its responsibilities in the world."

Turkish Daily News, 7 October 2005:

"Turkey must concentrate its energy on reforms to fully align itself with standards of the European Union after it opened accession negotiations with the bloc, EU Commissioner for Enlargement Olli Rehn said, warning that efforts to improve democracy would now be under even closer scrutiny. 'We have now started a new phase in EU-Turkey relations,' Rehn said after talks with Foreign Minister Abdullah Gul in his first visit to Turkey after a landmark decision on Monday to formally launch accession negotiations. 'This means that Turkey will be under even closer scrutiny by the EU and, especially, the public and member states' governments and parliaments.'

Public skepticism over Turkey's membership is high in Europe, and European officials have said in remarks in the wake of the Monday deal that Turkey must win the hearts and minds of the people of Europe to proceed on to full membership. ... 'This means vigorously implementing political reforms in the areas of the rule of law, human rights, women's rights, the rights of religious communities and the rights of trade unions,' the commissioner said. 'In order to conclude the negotiations and become a member of the union, Turkey must fully implement the political criteria (of the EU), which means opening a clean sheet in terms of human rights and the rule of law.'

OSCE, 4 December 2002:

"The 3 November elections for the Turkish Grand National Assembly (TGNA) demonstrated the vibrancy of Turkey's democracy. A large number of parties campaigned actively throughout the country, offering the electorate a broad and varied choice. The sweeping victory of opposition parties showed the power of the Turkish electorate to institute governmental change. The elections were held under election laws that establish a framework for democratic elections in line with international standards. significant constitutional and legal reforms instituted over the past two years have further improved the overall legal framework under which the elections were carried out. At the same time, the broader legal framework and its implementation establish strict limits on the scope of political debate in Turkey. Non-violent expression of political views beyond these limits is still restricted by a variety of laws and is rigorously enforced. several parties faced action aimed at closing them down during the current elections, notably the Justice and Development Party (AK), the winner of the elections.

Many candidates were also banned from running, including AK's leader and leaders of several other parties, generally as a result of past convictions for non-violent political speech. These restrictions on free speech and the practice of dissolving political parties and banning candidates stand in stark contrast to the otherwise pluralist election system in Turkey, as well as its international commitments..... The elections took place in a period of significant constitutional and legal reform in Turkey, during which human rights and fundamental freedoms have been substantially strengthened. since the last elections in 1999, the government adopted a major constitutional reform package in october 2001, a new civil code in November 2001, and three additional legal reform packages in February, March, and August 2002. The adoption of these reforms was to a

large extent in the context of the government's efforts to meet the Copenhagen political criteria for future membership in the European union. several other factors also set the political framework for the elections. since the previous elections, Turkey underwent a serious economic downturn, which continues to affect many sectors of the population.

Many laws include restrictions on free expression. For example, Article 159 of the Penal Code provides possible prison sentences for 'insult to the State and to State institutions and threats to the indivisible unity of the Turkish Republic'. Article 312 of the Penal Code, mentioned above, was used to bar candidates for incitement of religious hatred. Articles 7 and 8 of the Anti-Terrorism Law include penalties for separatist propaganda or 'propaganda in connection with' a terrorist organization that can encourage the use of terrorist methods. Article 169 of the Penal Code, 'support for illegal organizations', has also been used in recent months to prosecute individuals for non-violent speech. Recent amendments to some of these laws as a result of the reform process may result in improvements in conditions for freedom of expression. Nevertheless, continuing restrictions and prosecutions had an effect on the election campaign, limiting the parameters of allowable legal debate.....Under Article 58 of the Law on Basic Provisions on Elections and Voter Registers, it is strictly forbidden to use any language other than Turkish in electioneering. As part of its reform process, a number of previous prohibitions on the use of other languages have been eliminated, and in August 2002 laws were changed to allow broadcasting and education in languages other than Turkish. The lifting of restrictions on the use of other languages than Turkish in the field of broadcasting and education should be extended to political campaigning....

Developments in Iraq and their impact on Turkey (2001-2009)

- In 1998, following factional fighting between Kurdish Iraqi factions, Turkey, asked to monitor the ceasefire established with United States support, and deployed a small contingent of troops deep inside the region - as of 2009 a residual force of 2,000 remain in Dohuk governorate, Iraq.
- This allowed it to gather intelligence against the PKK and contain the Iraqi Kurds' political ambitions. Throughout the 1990s Turkish troops conducted cross-border operations against the PKK almost at will, including one involving more than 20,000 troops in May 1997.
- In July 2007, Turkey's armed forces chief said the army was prepared to start cross-border action to halt attacks inside Turkey by the PKK from Iraq. The Turkish army deployed additional tanks and troops to the border area. The last big cross-border operation was 10 years ago when 40,000 Turkish troops entered Iraq. Kurds in north Iraq and south-east Turkey say Ankara is to blame for a conflict that has claimed an estimated 37,000 lives since 1984.
- On October 2007, parliament voted to authorise cross-border operations against PKK bases along the Turkish-Iraqi border as well as in the Qandil mountain range. Such operations were approved in 2008 and renewed in mid 2009.
- On February 2008, Turkish military launched ground operation attack against PKK forward bases along the border under Operation Güne(Sun). The intervention caused the displacement of close to a thousand Iraqis fleeing the conflict. There have been repeated military targeting by Turkish forces.
- Turkey's policy toward Iraq is based on preserving Iraq's territorial integrity and fighting the PKK, whose rebels use remote mountain areas on the border as sanctuary and staging ground for attacks inside Turkey.

ICG, November 2008

At a time when rising Arab-Kurdish tensions again threaten Iraq's stability, neighbouring Turkey has begun to cast a large shadow over Iraqi Kurdistan. It has been a study in contrasts: Turkish jets periodically bomb suspected hideouts of the banned Kurdistan Workers Party (Partiya Karkerên Kurdistan, PKK) in northern Iraq, and Ankara expresses alarm at the prospect of Kurdish independence, yet at the same time has significantly deepened its ties to the Iraqi Kurdish region.... Ankara's policy toward Iraq is based on two core national interests: preserving that country's territorial integrity and fighting the PKK, whose rebels use remote mountain areas on the border as sanctuary and staging ground for attacks inside Turkey. From Turkey's perspective, Iraq's disintegration would remove a critical counterweight to Iranian influence and, more ominously, herald the birth of an independent Kurdish state in northern Iraq, thus threatening to inflame Kurdish nationalist passions inside Turkey. As a result, it has sought to prevent the sectarian conflict in Iraq's centre from escalating, Iraqi Kurds from seceding and the PKK from prospering.

The Guardian, June 2007:

"A Turkish military build-up on the northern Iraq border is fuelling fears of a confrontation between Ankara and Kurdistan's semi-independent government that could further destabilise the region as us forces begin to pull back. Turkey's armed forces chief said yesterday the army was prepared at any time to start cross-border action to halt attacks inside Turkey by the separatist Kurdistan Workers' party, which has bases in Iraq. As soldiers, we are ready," General Yasar Buyukanit said. But the general said Turkey's parliament must first agree the aims of any intervention. "The political authorities need to decide this. We can't know whether we will go there and fight only the PKK [Kurdistan Workers' party] or deal with [Iraqi Kurdish president Massoud] Barzani as well." The Turkish army has deployed additional tanks and troops to the border area this week for "spring manoeuvres". But the military moves, although apparently limited so far, have been accompanied by a rising crescendo of public and political demands for action to curb PKK attacks. The government of the prime minister, Recep Tayyip Erdogan, is under pressure, following a suicide bombing, blamed on the PKK, which killed six people in an Ankara shopping mall last week. Officials said the bombing marked an escalation in the separatists' campaign. Mr Erdogan's comment, after the Ankara blast, that he saw "eye to eye" with the army over future military action has raised expectations that an operation is imminent.... "The military build-up has been going on for the past month," a Turkish diplomat said. "We are trying to get Iraq, the US, and the Kurdish regional government to act more responsibly. But unfortunately so far we have not had enough cooperation. We are trying to act with restraint. But public opinion is really boiling after the suicide bombing last week." The diplomat said Mr Barzani's "irredentist rhetoric", appearing to assert a political and territorial claim to ethnic Kurdish areas of south-east Turkey, was exacerbating the situation. Media allegations that Kurdish authorities in northern Iraq were aiding the PKK and, like US forces, turning a "blind eye" to its activities, were widely believed, he said... Several internal factors are stoking the pressure on Mr Erdogan, who may see limited military action as a way of distracting attention from home: these include the general election in July, an impasse over the next president, controversial constitutional reforms, and debate on preserving Turkey's secular character. The last big cross-border operation was 10 years ago, in Saddam Hussein's regime, when 40,000 Turkish troops entered Iraq. But some Turkish observers said that action was not a success and predict any new incursion would also be of limited utility."

ICG, 26 January 2005:

"in northern Iraq, largely unnoticed, a conflict is brewing that, if allowed to boil over, could precipitate civil war, break-up of the country and in a worst-case scenario Turkish intervention. Tensions in the oil-rich Kirkuk region, where the political ambitions, historical claims and economic interests of the principal communities -- Kurds, Arabs, Turkomans and Chaldo-Assyrians -- clash, have been escalating since U.S. forces toppled the Baathist regime in April 2003. Violence is assuming a troubling pattern. Turkey, with its own large Kurdish population, is watching with growing anxiety. The U.S. and EU need to do more to resolve the Kirkuk question and help Ankara protect its vital interests without resort to increasingly hollow but destabilising threats of military intervention. The situation has been aggravated by the worsening state of affairs in Iraq and by political actors, especially Kurds, who are seeking to undo the grave injustices that flowed from the ousted regime's policy of Arabisation, returning in numbers and laying claim to Kirkuk as the capital of a future Kurdish region -- or state.At the mercy of forces beyond its control, Turkey is anchoring its strategy in commitment to the political process in Baghdad and, as part of that, a peaceful solution to the Kirkuk question. It also is banking on progress in accession talks with the European union to reduce any appetite for secession its Kurdish population might still harbour.

U.S.DOS, February 2001, sect. 1g:

"During the year [2000], Turkish ground forces with air support conducted several operations in northern Iraq against the PKK. The Kurdistan Democratic Party and the Patriotic Union of Kurdistan cooperated with the Turkish Government in shutting down certain PKK facilities in northern Iraq. Turkish government policy is to target only PKK fighters in northern Iraq; however, Turkish planes accidentally killed 38 civilians in Sedakan, northern Iraq, during an operation in August against the PKK. The Government is taking steps to compensate the victims' families. At the end of the year, an operation against the PKK involving hundreds of Turkish soldiers continued in northern Iraq, according to press reports.

See also a [report by the International Crisis Group](#) on relations between northern Iraq and Ankara, 2005

Causes of displacement

Summary of the main causes of internal displacement in Turkey

- Up to 3500 villages in south-eastern Turkey have been forcibly evacuated, mostly by the Turkish army (1984-1999) The authorities' objective was to deprive the PKK of any logistical support. The evacuation of villages often took place following the refusal of villagers to join the village guard system
- Evacuations were carried out with extreme brutality, with reports of severe human rights violations, such as rape, property destruction, beatings and extrajudicial executions
- The responsibility of the Turkish authorities for the evacuation of most villages has been confirmed by national and international institutions. The majority of villages and hamlets in the region were forcibly emptied between 1992 and 1995

- Main causes relate to eviction, local violence, food embargoes, mines, village raids, human rights violations, village guards, guerrilla groups, and expelling by the authorities
- The PKK bears also responsibility for the burning of villages, in particular those run by village guards or refusing to support the PKK. The Council of Europe has underlined that the PKK and the Turkish armed forces on the other, should be viewed in appropriate proportions.
- In a study in Van province identified evacuations as primary cause of displacement The evacuation of the villages for security reasons was listed as the primary reason 66.6% whereas terror and violence comes second at 38%
- Goc-Der migration survey undertaken in January 2002 listed the actions of security forces, the village guard system, fear of death, evacuation, the ban on mountain pastures, food embargoes, and living conditions as the main reasons for displacement Turkish authorities maintained that internal displacement is part of a larger migratory phenomenon, gradually recognizing the situation of internal displacement due to evacuations and PKK involvement in mid 1990s.

B. Peker, in Turkey and Refugees, Förderverein Niedersächsischer Flüchtlingsrat e.V., April 2002, p.35:

"Furthermore, a majority of the people who should be included in this category of displacement (conflict-related Kurdish IDPs) are those affected by: partial or total eviction and destruction of human settlements (towns, e.g. Lice, Diyarbakir and Cukurca, Sirnak, and villages and sub-villages) by security authorities, mainly the Jandarmy or paramilitary forces, including the village guards, in connection with 'internal security operations' or as punitive measures in retaliation to the guerilla attacks against security or paramilitary groups; generalized local violence and constant threat to safety due to armed clashes between the two sides; effects of the preventive or punitive practices of the Government on daily life such as food embargoes (which affected the entire region of Tunceli/Dersim between 1991 and 2000, road blocks, village raids, creating forbidden zones in areas of production (e.g. pastures), and the implantation of land mines around the habitats; gross human rights violations connected with the above points, including disappearances, punitive detention, torture, sexual abuse, deprivation of health services; enforcement of the village guard scheme which carries the threat of gross human rights violations and other punitive measures; and attacks or threats by guerilla groups, mainly by the PKK, on people accused of joining the village guards scheme or for rejecting provisions of food and shelter to these groups. Many of these cases occurred in combination with each other. However, this category includes also the people or families expelled from their villages, sub-villages or towns (including big towns such as Diyarbakir), people individually expelled from their habitats by the orders of regional, provincial or district governors, or local security forces or the village guards through written or oral instructions. This groups includes pro-Kurdish political activists, local trade unionists, well-known professionals or other public people. Moreover, considering the destructive effects of the conflict on the regional economy, including in particular, practices such as the destruction of forests, grazing areas, live stock, or the imposition of production quotas (as in Batman in 1997 and 1998), and the associated destruction of the regional economic networks or the general effects of the conflict on small-scale industries and commercial activities, we should also include in this category a large number of the ostensibly economic migrants in the affected areas.

COE, 22 March 2002:

"The Turkish authorities on their part maintain the position that internal displacement as a result of conflict and fear is only a part of a larger migratory phenomenon occurring throughout Turkey which has resulted in the dramatic growth of urban populations in

recent years. Moreover, during the visit numerous interlocutors drew the Rapporteur's attention to the fact that the displacement of the population in south-eastern Turkey concerns not only Turkish citizens of Kurdish origin but also other ethnicities, in particular Turks and Arabs. For that reason, the Turkish authorities have expressed their conviction that the word 'Kurdish' should be taken away from the title of this report. However, despite the Rapporteur's repeated requests, no concrete statistics supporting this information have been provided. The findings of his visit have not confirmed the fact that other ethnicities have been concerned by the displacement. In the Rapporteur's opinion undoubtedly, economic factors account for some of the migration, and even persons fleeing mainly because of the conflict often have a mixture of motives difficult to distinguish, including seeking of employment. However, there is no doubt that a major displacement and migration to towns concerns those caught in the crossfire of the conflict: on one hand the Turkish security forces have targeted villages suspected of supporting the Kurdish Workers' Party (PKK). On the other hand the PKK has assassinated inhabitants of the villages 'collaborating' with state authorities (i.e. belonging to the village guard system) or refusing to support the PKK. This vicious circle of violence forced many people to flee their homes."

Emin Yasar Demirci, Places of displaceds, July-August 2006, p. 30-32:

"As the term displaced suggests the primary reason of migration among the displaced persons is known to be evacuation of the villages for safety and/or security. in addition to that very basic reason we added our questioner some secondary reasons besides evacuation and asked participants mark them as multiple choices. The result is illustrated in the table below.

TABLE 35: REASON OF MSGRATJON

Reason of Migration_Frequency_£i

Terror and violence 2X i 8 fi

Hopes for better life 46 8.7

Unemployment 83 : b,9

Better education for children ;; 2.:

Forced evaaiRtbn of the villages- i51 66,6

Total l'espou.ses 697 lil^i

As seen on the table, the evacuation of the villages for security reason takes the first place with %66.6 whereas terror and violence comes second with %38. Cumulative percentage of other three reason, that is, hopes for better life, unemployment and better education for children, makes up %27,7 besides the most important two reasons. What this figure may suggest is that despite the trauma the process of displacement caused, %27,7 displaced persons gave credit to other reasons besides the primary cause, an indication that there were still some other reasons at work for migration even that this dreadful event would not happen. In other words, there are reasons to believe the strong trends of migration in the region, which was triggered by terror and related security issues and intensified within a short time period. This claim, however, should not be taken to belittle the burdens and the sufferings of displaced persons, which should never be forgotten if a lasting solution to their problems to be found. We should also look at the issue from wider perspectives giving us clues in developing more appropriate policies towards displaced persons and their problems. in search of those clues we asked displaced persons if they ever visit their villages after they fled."

U.S. DOS, 26 February 2000, sect. 1g:

"The Government's states purposes for the evacuations were to protect civilians or prevent PKK guerrillas from obtaining logistical support from the inhabitants. Villagers and other observers alleged that the security forces evacuated them for refusing to participate in the paramilitary village guard program."

COE, 3 June 1998, paras. 8-17:

"The evacuation of villages refusing to join the village guard system is carried out by the army with extreme brutality and no civilian supervision. It is frequently accompanied by the destruction of property and further violation of human rights such as sexual assault and humiliation, beatings and extrajudicial executions. The Turkish authorities until recently have denied responsibility for these operations, claiming that the PKK was to blame for the destruction of villages and that individuals had left voluntarily, or under pressure from the PKK. However the complicity of the Turkish authorities was confirmed in two recent rulings of the European Court of Human Rights: on 16 September 1996 in the case of Akdivar and others vs Turkey, and on 28 November 1997 in the case of Menten and others vs Turkey, in which Turkish security forces were found guilty of burning houses in villages in south-eastern Turkey, causing the villagers to flee. Undoubtedly, the PKK has some responsibility for the burning of villages, in particular those run by village guards or refusing to support the PKK. [...] However, the responsibility of both parties, the PKK on the one hand, and the Turkish armed forces on the other, should be viewed in appropriate proportions. In the Rapporteur's opinion the Turkish authorities bear more blame for the uncontrolled escalation of violence in the region, first because the provocative nature of their suppression of the rights of the Kurdish minority lies at the origin of the conflict, and secondly because they have at their disposal the whole machinery of the state, which they use abusively against the Kurdish population in the region.

A step towards the clarification of this important question has been undertaken by the Turkish Parliament. At the request of one of its members, Mr Algan Hacaloglu of the Republican People's Party (CHP), a former state minister for human rights, the Turkish Parliament set up a Committee on Migration in 1997 to investigate the causes of displacement and to provide aid to the displaced. On 28 July 1997, the Chairman of this Committee, Mr Seyit Hasim Hasimi, held a press conference in Diyarbakir. He announced that forced evacuation of villages and hamlets by the Turkish armed forces in the region had resulted in large numbers of displaced people and potential refugees. He confirmed that 364 742 inhabitants of 3 185 villages and hamlets had been forced out since 1990 in the framework of the fight against terrorism. These figures were publicly confirmed later by Mr Bulent Ecevit, Deputy Prime Minister, who said that the villages had been emptied 'for security reasons'. The US State Department cited 560 000 as 'a credible estimate' of the number of people deprived of their homes as a result of the evacuations. "According to Human Rights Watch the majority of villages and hamlets in the region were forcibly emptied between 1993 and 1995. After that the large-scale evacuations ceased, but smaller operations by the Turkish armed forces continued in 1996 and 1997. The most probable reason for the lower rate of evacuations is that there are now very few 'frontline' villages left outside the village guard system and the process of depopulation is virtually complete."

USCR, 1999, pp. 13-16:

"Independent observers confirm that most displacement in the 1990s has been caused by government army and security forces, including the village guards. In its 1994 report, Turkey: Forced Displacement of Ethnic Kurds from Southeastern Turkey, Human Rights

Watch concludes, 'According to our research, the vast majority of those displaced in south-eastern Turkey is largely the result of actions by Turkish security forces. Forced displacement usually comes as collective punishment for refusal to join the village guard system or for supporting the PKK, usually for giving food and a place to sleep (yardim ve yataklik), or for suspicion of committing such acts'. The U.S. Department of State has reached the same conclusion, characterizing forced displacement as a 'systematic process of evacuating and often burning villages throughout the southeast. The scale of evacuations and their continuance suggest that they are part of the Government of Turkey strategy designed to deprive the PKK of any logistical base in the southeast.'

UK Home Office, April 2001, para. 6.8:

"From 1997 the rate of evacuation declined. By 1999 most human rights organisations reckoned there were in excess of 3500 villages evacuated and between 2.5 and 3 million people rendered homeless. These were not confined to the State of Emergency provinces; neighbouring provinces such as K. Maras, Sivas, Erzurum and Kangol were also affected....As so many villages have now been evacuated and because the fighting has now moved to the mountains, the rate of evacuations has decreased in recent years, with 30 villages being evacuated in 1998. The Human Rights Association states that, as of October 2000, no village clearances took place during the year."

See also Human Rights Watch "Weapons Transfers and Violations of the Laws of War in Turkey", November 1995

Göç-Der, 2002, pp.48-49-I:

"One of the most important factors in shaping the migration under investigation is found to be The Emergency State Rule and the activities of the security forces (83.7 %). In the narratives told by the immigrants it is clearly observed that the events taking place between the security forces and the villagers after armed-conflicts is a significant factor giving rise to migration. The findings in this research indicate that the five most important reasons for migration in their order of significance are the following: Practices of Security Forces and Emergency State Rule, Insistence on the village-guard system, Fear of Death, Evacuation of Villages and Hamlets, Ban on Mountain Pastures. The results of our first level analysis point to the fact that the tension and the armed conflict based on the Kurdish problem which shaped the last 15 years of Turkey, the destruction caused by the armed-conflicts and the policies of the state imposed on the Kurdish citizens living in the Eastern and southeastern regions gave rise to a forced mass-displacement. At the second level analysis, the unified effect of the factors leading to migration has been calculated in the computer environment. The findings indicate that, Practices of Security Forces and Emergency State Rule, Insistence on Village-guard System, Fear of Death, Evacuation of Villages and Hamlets, Ban on Mountain Pastures, Food Embargo are the most significant factors giving rise to migration, and Bad straits, Lack of Educational Opportunities and Lack of Health services is the facilitating factor in the migration under investigation."

The Turkish authorities and the PKK are responsible for internal displacement (1984-2000)

- The authorities' objective was to deprive the PKK of any logistical support. The evacuation of villages often took place following the refusal of villagers to join the village guard system.

Evacuations were carried out with extreme brutality, with reports of severe human rights violations, such as rape, property destruction, beatings and extrajudicial executions

- The responsibility of the Turkish authorities for the evacuation of most villages has been confirmed by national and international institutions. The majority of villages and hamlets in the region were forcibly emptied between 1992 and 1995. The rate of evacuations decreased considerably in recent years.
- The Kurdish armed group also has civilians among its targets, in particular village guards and their families. The number of civilians whom the PKK arbitrarily killed declined after it announced that it would respect the Geneva Conventions.
- Amnesty International continued to receive reports of indiscriminate killings of civilians even after the PKK declared to respect Article 3 of the Geneva Conventions.
- Since 1984, Police, Jandarma, village guards, and the armed forces have conducted an intense campaign to suppress PKK terrorism. 4,460 civilians have lost their lives in the fighting since 1987.
- Civilians have also been victims of forced disappearance, torture, extrajudicial executions. Indiscriminate attacks on civilian populations by the armed forces have also been reported.
- Provincial governors have also had the authority to remove citizens from the region for reasons of general security and public order. Teachers, party officials and trade unionists have been affected by this practice. U.S.DOS February 2001.
- Turkish authorities have imposed food embargos on several villages (1991-2001) objective was to deny logistical support to the PKK. Access to high pastures have been recently restored and the food embargo has been lifted by governors in several provinces.

HRW, 30 October 2002:

"security forces forcibly displaced peasants in the 1980s and 1990s as a tactic to combat PKK insurgency. Founded by its leader Abdullah Ocalan in Diyarbakir province in 1978, the PKK drew its membership and logistical support from the local Kurdish peasantry. In its early years, the PKK mainly fought rival leftist and Kurdish organizations, but in August 1984 it attacked a gendarmerie post in Eruh, siirt province, part of the mainly Kurdish southeast that had been a closed military zone since the 1920s. As the PKK stepped up its actions, the gendarmerie (soldiers carrying out police duties under the authority of the Interior Ministry) responded with widespread village raids and mass detentions. Detention almost invariably meant torture by beating, electric shocks, and sexual assault, as well as deprivation of food and water. Most of the nearly five hundred detainees who died in Turkey between 1980 and 2000 were villagers under interrogation in police stations and gendarmeries in the southeast. The security forces' repressive methods merely provoked ever larger numbers of disaffected youth to join the PKK, and within a few years the organization had grown to a substantial force, recruiting more than 30,000 between 1984 and 1999. Turkish security forces failed to distinguish the armed militants they were pursuing from the civilian population they were supposed to be protecting, but whom they knew included people who were supplying and hiding the militants, willingly or unwillingly. The government resorted to a solution used by other states faced with similar adversaries in other parts of the world: they required the local populace to show their loyalty by bearing arms against the insurgents. After 1987, rural communities were expected to put up a sufficient number of men to form a platoon of 'provisional village guards,' armed, paid, and supervised by the local gendarmerie post. Communities could refuse to join the village guard system, but from then on the security forces would view them as PKK sympathizers. Villages that did opt to join the system were angry when neighboring settlements refused, because this left their flank exposed to PKK attacks. The village guard corps was well armed, but they had no formal chain of command and usually wore no uniforms or means of identification. Where tribal bonds

were strong, clan leaders used village guards as a private army to reinforce their local supremacy. In response, the PKK declared Kurds who joined the village guard system to be traitors. When they caught them, they often executed them. The PKK also carried out massacres of village guards' noncombatant families, including women and children. When the PKK melted away into the mountains after such attacks, the state military's counter-operations routinely started by rounding up the inhabitants of any nearby non-village guard communities and torturing them in order to extract information about PKK movements, and government forces sometimes committed massacres in reprisal for PKK attacks and abuses. [...] The resort to outright lawlessness was reflected in the methods of the gendarmes in rural areas. Armed PKK members had been using the guerrilla tactic of swimming 'like fishes in the sea of the people,' as Mao Zedong had described, and the security forces used the counter-guerrilla tactic of 'draining the sea.' Rather than simply harass and threaten villagers who refused to join the village guard system, they methodically destroyed recalcitrant settlements. Helicopters, armored vehicles, troops, and village guards surrounded village after village. They burned stored produce, agricultural equipment, crops, orchards, forests, and livestock. They set fire to houses, often giving the inhabitants no opportunity to retrieve their possessions. During the course of such operations, security forces frequently abused and humiliated villagers, stole their property and cash, and ill-treated or tortured them before herding them onto the roads and away from their former homes. There were many 'disappearances' and extrajudicial executions. By 1994, more than 3,000 villages had been virtually wiped from the map and more than a quarter of a million peasants had been made homeless. Most of the displacements were from the ten southeastern provinces then under a state of emergency."

U.S. DOS, February 2001, sect. 1g:

"Although the armed conflict in the southeast lessened in intensity, both government forces and the PKK continued to commit serious human rights violations. Village guards - ethnic Kurdish villagers who function as government-appointed civil guards in remote areas of the southeast - continued to be implicated in many abuses, and civilians remained particularly vulnerable in the region. During a parliamentary human rights commission hearing in February, the governor of Batman was reported to have said that 'methods beyond the accepted norms' were often used to convince villagers that they should not assist the PKK. Victims who petitioned the parliamentary commission described methods such as forcing villagers to walk on mine fields or torturing family members and neighbors. Several village guards stood trial during 1998 for crimes such as rape and the execution of civilians. In addition to the village guards, Jandarma and police 'special teams' are viewed as those most responsible for abuses. However, the incidence of credible allegations of serious abuses by security forces, in the course of operations against the PKK, is significantly lower than in the past.... Although there is no legal internal exile, since 1990 the state of emergency region's governor in the southeast has had the authority to 'remove from the region,' for a period not to exceed the duration of the state of emergency (in place for 15 years), citizens under his administration whose activities 'give an impression that they are prone to disturb general security and public order.' Teachers, party officials, and trade unionists have been affected by this provision in the past, and dozens of unionists were kept out of the southeast this year, according to press reports. In July security officials in Batman took the passports of two visiting British parliamentarians who were looking into the issue of the Ilisu dam, and also took documents of a Republican People's Party (CHP) official and some accompanying journalists."

U.S. DOS, 26 February 2000, sect. 1g:

"In an effort to deny the PKK logistical support, the Jandarma during the year occasionally rationed food and other essentials in some rural areas in the emergency region. security forces returned to evacuated villages and burned homes, to deny the PKK, and have shot livestock, burned forests and orchards, or denied villagers permission to harvest fields."

USCR, 1999, pp. 27-28:

"Although smaller armed opposition groups have operated in Turkey, the PKK has been the most significant, and most violent of them [110]. Although the numbers it is responsible for displacing is hard to quantify, the PKK is undoubtedly directly responsible for significant internal displacement that has occurred in Turkey. Among its civilian targets have been local political figures, such as mayors, and teachers, who teach the Turkish language [111]. The PKK's principal target appears to have been the village guards and their families." [Endnote 110: Other violent opposition groups reportedly include the Revolutionary Left (Dev Sol/DHKP-C) and the Turkish Workers's and Peasants' Liberation Army (TIKKO).] [Endnote 111: in the 1998, the PKK abducted three mayors in the southeast, killing one. (HRW, World Report 1999, p. 295)]

AI, 1 October 1996, sect. 3 "Abuses by armed opposition groups":

"Armed opposition groups responsible for human rights abuses include the PKK, the DHKP-C, the Turkish Revolutionary Communist Party (TIKB), the Turkish Liberation Army of Peasants and Workers (TIKKO) and the Islamic Raiders of the Big East-Front (IBDA-C). Of these, the PKK is responsible for most deliberate and arbitrary killings. it is a bitter irony that during the 12 years in which the PKK has pursued its military objectives most victims of its deliberate and arbitrary killings have been Kurdish villagers. Reports from various sources show that armed PKK members killed at least 400 prisoners and civilians between 1993 and 1995. Most were killed because they had joined the government-armed village guard forces. Male village guards are frequently killed after being taken prisoner during PKK raids. Village guards Ramazan Baran and Habib Kaya were apparently abducted by PKK members on 11 September 1995. They were found dead near Saribalta village, Tunceli province, the following morning.

Armed opposition groups have an obligation to respect basic humanitarian principles. Yet they knowingly put civilians at risk and have murdered others who took no part in the conflict. Since the conflict began, both sides have treated villagers in southeast Turkey as a soft target. In the 1980s the PKK frequently massacred whole families. Many women and children are caught in the cross-fire and killed in the course of armed clashes when the PKK attacks village guards in their villages, but relatives of village guards are also sometimes deliberately and arbitrarily killed. Eleven children were apparently deliberately killed when PKK members attacked the village of Daltepe, near Siirt, in October 1993. In the same month PKK members abducted 32 males, including six juveniles, from Yavi, in the Cat district of Erzurum, and killed them. In August 1995 the PKK reportedly returned to the Cat district, and abducted and killed Zulkuf Kilic and his two young brothers, Kadir, aged 16, and Halim, aged 13, from the village of Aga.

In August 1994 a representative of the PKK told Amnesty International in a meeting in London that the organization had committed itself to abide by common Article 3 of the 1949 Geneva Conventions. This stipulates that people taking no active part in the hostilities, including members of the armed forces who have laid down their arms or who are out of action because of sickness, wounds, detention, or any other cause, must be

treated humanely in all circumstances and should not be ill-treated or killed. common Article 3 applies to all parties to an internal armed conflict, including armed opposition groups. The number of deliberate and arbitrary killings by the PKK fell after August 1994. However, Amnesty International continues to receive reports of such killings; there were 50 in 1995 and at least 16 in the first half of 1996. Some individuals have been abducted and killed because they were suspected of being collaborators or informers. [...] The PKK have also claimed responsibility for acts of indiscriminate violence in which civilians, including children, were killed and maimed. [...] The PKK have also planted bombs in public places, posing an indiscriminate threat to civilians. [...]

.... While claiming to respect common Article 3 of the Geneva Conventions, the PKK has continued to execute captured village guards, while its declared intention to attack civilian targets suggests that, contrary to the assurances given to Amnesty International, the PKK would be prepared to resume indiscriminate killings of civilians. [...]The PKK has treated teachers as a military target on the pretext that state education is delivered only in Turkish and that education in Kurdish is forbidden. Ninety teachers have been killed by the PKK since 1984. in late 1994 armed PKK members abducted and killed 19 teachers, most of whom were working in small villages in southeast Turkey."

"A state of insecurity"

"Turkey is situated in a politically unstable region and has experienced two decades of intense political violence by armed opposition groups, principally the Kurdish Workers Party (PKK), which have attacked and killed civilians. The state has responded with a wide range of security measures which, by violating basic human rights, have further endangered the persona security of individual citizens. Despite all the promises of reform, Turkish citizens can still be swept off the streets and into a police station or gendarmerie post, where they may be held for up to a month. There they will be unprotected by even the most basic safeguards against torture, still a standard method of interrogation. since 1980 more than 400 people have died in police custody, apparently as a result of torture. The exact status of security forces allegedly responsible for violations is sometimes hard to establish, particularly in the southeast, where security forces do not always wear standard uniform or insignia. in most reports of torture, the detainee was interrogated by plainclothes police officers of the Criminal Investigation or Anti-Terror branches or by gendarmes. Gendarmes are soldiers who carry out police duties in rural Turkey. Many allegations of extrajudicial execution have been made against members of special operations Teams. These are technically police officers under the authority of the Interior Ministry, heavily armed for close combat with the PKK. special operations Team members frequently accompany members of the paramilitary village guard force and gendarmes in security raids on villages. Regular army and air forces also participate in large operations in the southeast."

"Disappearances - how to torture a whole family"

"Ten years ago people did not disappear in custody in Turkey. in 1991 there were a handful of reports, and several more in 1992. in 1993 there were at least 26. in 1994 there were more than 50 reported disappearances, the highest number in any country reported that year to the UN Working Group in Enforced Disappearances, which expressed particular concern at this considerable increase. At least 35 people disappeared in 1995.

Most of the disappeared are Kurdish villagers with no history of political activity, detained during the course of security raids on suspicion of giving food or shelter to PKK members. Many families of the disappeared fear their relatives have died under torture,

or that they were arbitrarily killed in reprisal of the deaths of soldiers in clashes with the PKK."

Extrajudicial execution in the southeast

"Repression has long been the response to security problems in Turkey, but in 1991 certain elements in the security forces went even further. They stepped outside the law and began to wage a full-scale dirty war. An unprecedented wave of political murder swept through the southeast but continued onto the streets of Ankara and Istanbul. In the late 1980s Amnesty International had received occasional allegations of extrajudicial execution, but in the spring of 1991 the organization began to receive a large number of reports of death squad style killings of Kurdish villagers in the Midyat area of Sirnak province. The security forces were clearly involved in the killings. The perpetrators were able to pass through military check-points and were sometimes moved around using military vehicles and helicopters.

in mid-1999 Kurdish leaders began to be targeted and by early 1992 scores of people were being gunned down in the first of hundreds of street killings by small groups of assassins in the cities in the southeast. in most cases the killers were never identified but there is evidence that the security forces were orchestrating the killings by arming and paying the assassins. Most of the victims were perceived by the security forces as potential enemies of the state. They were people who worked for left-wing or Kurdish nationalist publications, and people who had previously been detained or imprisoned on suspicion of membership of the PKK or other illegal Kurdish groups. More than 1,000 people have died in these political street killings since 1991."

Graham Brown, April 1998, sect. 3.1:

"in Tunceli province, a food embargo imposed by the army was reportedly in effect in 1991. Sporadic food blockades have also been reported in parts of Bingol and in the village of Tepe, near Lice in Diyarbakir province. These have allegedly caused severe shortages and hardship among the inhabitants. The usual aim was to limit the amount of staple foods which villagers could obtain, and therefore reduce supplies available to the PKK, though in the case of Tepe, a two-month blockade was imposed in reprisal for the PKK murder of a village guard."

See HRFT, February 2001, sect. 1

Paramilitary militia "village guards" and role in displacement (1984-2001)

- More than 65,000 civilians in south-eastern Turkey were to join, and in many instances pressured, "village guards", paramilitary militias set up to fight the PKK
- Villagers faced danger from both the PKK and the Government when choosing whether or not to join the guard force
- Village guards have been accused repeatedly of drug trafficking, rape, corruption, theft, and human rights abuses No steps have been taken to disband the village militia which remain an obstacle to the return of the displaced
- In 2001, a report on 19 villages and rural settlements stated that village guards were serving local landlords The report also said that because the village guards were very familiar with the difficult terrain, they played an important role in the anti-terrorism drive of the state

UK Home Office, April 2001, para. 6.19:

"The 'village guards' are armed and paid by the authorities to defend their villages against attack by the PKK and to deny them logistical support from the villages in the area. Although recruitment into the village guard corps is voluntary (indeed, some Kurdish tribes are pro-government and enthusiastic in their participation) refusal by individuals or entire villages to participate in the system is usually considered by the local forces as an indication of active or passive support for the guerrillas. The evacuation of the village, and its subsequent complete or partial destruction on security grounds, can follow a refusal to join."

U.S. DOS, February 2001, sect. 1g:

"The Government organizes, arms, and pays a civil defense force in the region of more than 65,000 persons, which is known as the village guards. Participation in this paramilitary militia is mainly voluntary, but villagers faced danger from both the PKK and the Government when choosing whether or not to join the guard force. Village guards have a reputation for being the least disciplined of the Government's security forces and have been accused repeatedly of drug trafficking, rape, corruption, theft, and human rights abuses. Inadequate oversight and compensation contribute to this problem, and in some cases Jandarma allegedly have protected village guards from prosecution."

Atreya, N.; McDowall, D.; Ozbolat, P., 28 February 2001, pp. 45-46:

"It might be assumed that with the apparent end of the guerilla war, the village guard is in the process of disbandment. By 2000 there were probably in the order of 80,000 village guards under arms. This poses a major problem for the State, since they have become reliant on their village guard salaries. If they are disbanded it is feared this could unleash massive criminal activity, backed with firearms. Not only, therefore, has the government taken no steps to disband them, but it has considered recruitment of 'penitent' PKK guerillas into the village guard there have been cases in 2000 of displaced villagers being refused permission to return to their villages unless they enrol in the village guard. in other words the current evidence indicates that the village guard militia may have become a long-term feature of the region." See also: "Les gardiens de village restent maTtres dans le sud-est", AFP 4 Juillet 2000 (published in info-Turk)

Turkish Daily News, 21 December 2001:

"A report prepared by the Yuzuncu Yil University and Van Gendarmerie Command underlined that village guards, once instrumental in fighting separatist Kurdistan Workers's Party (PKK) terrorism, were serving local landlords rather than the state. Associate Professor Cahit Bagci, who administered the research into the subject by Yuzuncu Yil Science Faculty students, said during the study, 19 villages and rural settlements where village guards existed in the van region were surveyed and the results were analysed. The report, which was presented to local administration executives, underlined that the village guard system was instrumental in fighting separatist terrorism in an area where, because of rough geographical terrain, strong state tradition could not be developed. [...] The report stated that with the village guards system the central administration had tried to make best use of the pro-government local population in fighting separatist terrorism. stressing that the majority of local people were loyal to the state, the report stressed that that was a major factor in establishing and maintaining the village guard system, as well as utilizing it effectively in combatting terrorism. Because the village guards were very familiar with the difficult terrain of the region, they undertook a very important role in the anti-terrorism drive of the state, the report said. Besides this, the report said, the village guards system helped the state cut links between the local

population and the separatist gang, provide effective security to local people and thus helped greatly with the consolidation of state rule in the troubled region. On the other hand, the report said, while the income of the local people had suffered seriously because of separatist terrorism -- as they could not use their lands or continue raising animals because of the terrorist threat -- the paid village guard system provided an opportunity to keep the economic activity of the area. However, the report said as separatist terrorism had subsided in the region, the village guard system had lost its importance, and now the village guards were serving their landlords rather than the state."

Turkish Daily News, 8 November 2001:

"Diyarbakir State Security Court (DGM) has finished work on an indictment against 31 suspects of whom 30 are village guards all accused of aiding and abetting the Kurdistan Workers Party (PKK) separatist terrorist organization, the Anatolia news agency reported yesterday. Of the 31 suspects, 28 are in remand. The indictment accuses 13 of the suspects of setting a trap for the security forces in the district of Beytussebap in which one soldier was martyred and five maimed in two separate landmine explosions. Other suspects are accused of passing on intelligence to the PKK while working as temporary village guards, while others are accused of providing rations to the PKK and of hiding PKK weapons from the security forces. Other guards are accused of donating part of their wages to the PKK and of planting and growing marijuana in order to provide the PKK with funds. The trial against the suspects will start this month with sentences being asked ranging from five years for five of them to death for 16 more."

See also: "[Les gardiens de village restent maîtres dans le sud-est](#)", AFP 4 Juillet 2000 (published in Info-Turk)

Returning refugees join ranks of the internally displaced (2002)

- Although the government has not extended an amnesty to the Kurdish refugees who fled in 1994, it has said that it would not prosecute them for illegal departure from Turkey.
- Some Kurds have been arrested upon return, mostly charged with membership in (or support of) an illegal organization.
- Turkish authorities have long wished for the closure of Makhmour camp located in province of Musil, northern Iraq. Established in 1998, it is now home to approximately 10,000-12,000 Kurdish refugees.
- Turkish, Iraqi and US authorities have had a series of discussions on the fate of the Makhmour camp, and there are concerns that such discussions do not take heed of protection concerns of refugees.

USCR, 2002:

"Although the government has not extended an amnesty to the Kurdish refugees who fled in 1994, it has said that it would not prosecute them for illegal departure from Turkey. Some Kurds have been arrested upon return, mostly charged with membership in (or support of) an illegal organization. Upon arrival, the Turkish authorities bring the returnees to the 'Haji' camp in Silopi where they are registered and undergo security clearances. Nearly 90 percent of the returnees originate in the war-torn southeastern provinces of Sirnak and Hakkari, where many former villages are destroyed or still sealed off for security reasons. If unable to return to their places of origin, the returnees join the ranks of the internally displaced, usually living with relatives.

Because of the war devastation and economic stagnation in the southeast, few returnees were able to find work upon return."

Evacuations of villages and new displacements (August 2001-2004)

- Four villages were forcefully evacuated and many villagers were detained, following a raid on villages in Baskale district at the end of August 2001 Four villages were raided following the death of one soldier and the injury of two others in Beytussebap district Ortali and Asat villages were evacuated
- The majority of the persons evacuated from Asat and Ortakli villages stayed for two months in 80 tents with no assistance. The national media totally ignored the events in Betussebap
- Tivor, Ilicak and Hisarkapi villages were under siege with villagers close to starvation because of a food embargo. The weekly paper "Yedinci Gundem" published a document confirming the application of a food embargo in Dagalti and Ilicak villages in August 2001
- In 2003, NGOs' reported cases of ongoing displacement in the south-east provinces. In September 2003, it was reported that Turkish soldiers raided the village of Cigli and informed villagers not to return. Villagers' food and livestock was confiscated
- In the Cemisgezdek District of Tunceli, soldiers told villagers to evacuate the highlands for 'military operations' although the villagers rely on food supplies from the highlands
- In July 2004, Human Rights organisations reported a case of village evacuation in the village of Ilicak (Sirnak province) The local governor responded that the villagers had left their homes voluntarily after attacks by Kongra-Gel (PKK) The villagers were returned to their homes with military assistance end August

IHF, 27 June 2005:

In August, it was reported that 343 villagers from a village in Beytussebap, Sirnak, were evicted and forced to live in tents and in destitution." [Footnote 14] Press statement of 24 August 2004[...] and "Report of Investigation Concerning Allegations of Pressures on Villagers Living in Tasnacak (Xrabedar) Hamlet of Oguldami Village, Gulpinar District, Van, to Join Village Guards" (in Turkish), dated 16 December 2004 [...]

Kurdistan Observer, 24 August 2004:

"Turkey's main human rights watchdog on Tuesday accused security forces of forcibly evacuating a village in the southeast of the country, a practice widely used in the past in the fight against armed Kurdish rebels. Paramilitary troops swooped down on the village of ilicak, near Beytussebap in sirnak province last month, and ordered villagers to leave their homes on security grounds, the Human Rights Association (IHD) said in a statement after sending a team to investigate the incident. 'The soldiers said that if the villagers stayed in their homes they might give supplies to the rebels,' the IHD's Reyhan Yalcindag, who was on the mission, told AFP.

The 343 village residents were now living in squalid conditions in tents set up a short distance away from the village, the iHD said. Yalcindag said villagers, after being driven from their homes, were slowly being forced to move further and further away from their properties."

HRW, 4 October 2004, p.5:

"Villagers who have established a toehold in the cities are unlikely to risk an expensive and dangerous return to their former homes while there is a risk that they may be displaced a second time. A number of villages have been evacuated in recent years, including one during 2004. Villagers expelled in the 1990s from Ilicak village, near

Beytussebab, in Sirnak province, who returned in 2001, told the Diyarbakir branch of the Turkish Human Rights Association (HRA) that they were again forcibly expelled by gendarmes in July 2004. In response to protests by the Turkish Human Rights Association the local governor responded that the villagers had left their homes voluntarily after attacks by Kongra-Gel. The villagers were returned to their homes with military assistance in late August." "The HRA, Mazlum-Der and Goc-Der reported that village evacuations or other operations by the security forces compelling villagers to leave their homes restarted in 2003 in connection with a limited resurge in the activities of the PKK. [14]"

HRFT, August 2004:

Ilicak (Germav) village of Beytussebab district (Sirnak) was reportedly forcibly evacuated. HRA chair for Diyarbakir selahattin Demirtas made a statement regarding the subject and told that it was the first incident of the evacuation of a village in the last three years. "Villagers from Ilicak (Germav) village applied to HRA by fax and telephone and stated that at the end of July commander of regiment headquarters came to their village and gathered everyone at village square. He threatened villages that they may not be able to enter their houses again and told that 30-40 houses located at the other side of the brook should be evacuated for security reasons. Those villagers had to leave their houses." Demirtas added that Beytussebab Mayor Faik Dursun also verified the incident on the phone and he stated that those villagers who were trying to survive in tents and nylon sheds were forced to leave their houses. On the other hand Sirnak Governor stated on 17 August that Ilicak village was not evacuated by the security forces but, "the villagers moved to a safer place due to the pressures of the terrorist organization".

KHRP/Gog-Der/HRA, September 2003, p.25:

"Gbc-Der reported in a press release on 16th september 2003 that more villagers had recently been displaced from their villages. On 7th and 8th september 2003, Turkish soldiers raided a village called Cigli, in the Curkurca District of Hakkari. The villagers were taken to a gendarme station and told not to return to their village. Food and livestock were confiscated, as the soldiers claimed they had been illegally 'smuggled' into the country.

Similarly, in the Cemisgezdek District of Tunceli, soldiers told villagers to evacuate the highlands for 'military operations' and return to their homes. This was done despite the fact that there was little food in the villages and the community relies on food supplies from the highlands for 7 months of the year.

it is evident therefore, that despite some reforms, very recent cases show that village evacuations are still taking place in the southeast."

CoE, 22 March 2002:

"The majority of the persons evacuated from Asat and Ortakli villages stayed for two months in 80 tents with no assistance. A number of male villagers were arrested and allegedly tortured."

HRFT, August 2001:

"The evacuation of villages and forced migration that slowed down after 1999 came back to the agenda by evacuation of some villages in the province of Sirnak, Hakkari and Van. It was reported that on 3 August the villages Sirangel (Tokagac), Memiste (Ikizli), Segizan (Cevizli) and Glort (Bostanici) in Yuksekova district of Hakkari province were raided by soldiers and that the population had been forced to leave the settlements.

Info-Turk, August 2001:

"Les quotidiens nationaux ont totalement ignore les evenements de Betussebab, les observateurs des organisations de defense des droits de l'homme ont ete, au cours de leur enquete, bouscules et brutalises par les autorites sur place. Les villageois, peu loquaces du fait des pressions, ont par l'intermediaire de leur maire declare qu'ils avaient quitte leur terre par leur propre volonte, les seuls dont Cafer Aslan et Rasim Acar, qui se sont risques a parler ouvertement avec les observateurs se trouvent toujours en detention, accuses d'"incitation de la population a la colere'. Apres le temoignage de Rasim Acar, les avocats composant la delegation d'observateurs ayant peur pour sa vie l'avaient pourtant pris sous leur protection mais les gendarmes pretextant que ses papiers d'identite etaient susceptibles d'etre des faux, ont reussi a l'arreter et le placer en garde-a-vue."

Other causes of displacement

Development and & Natural disaster induced displacement

- The construction of dams and pipelines has also been a significant source land expropriation and displacement in Turkey. It is difficult to estimate how many people have been displaced for development projects. The Baku-Ceyhan Campaign website and The KHRP website provides regular updates on the dam and pipeline projects affecting Kurdish populations in Turkey
- Several NGOs have advocated against the construction of the Iliyd dam project, one of the largest hydroelectric power projects under South-Eastern Anatolia Project (GAP) which if built would displace between 50-78,000 people, mainly Kurds; and flood the ancient Kurdish town of Hasankeyf.
- Covering 9 provinces including Adiyaman, Batman, Diyarbakir, Gaziantep, Kilis, Mardin, Siirt, Sanliurfa and Sirnak, the GAP includes the construction of 22 dams and 19 hydraulic power plants and irrigation of 1.82 million hectares of land.
- NGOs have criticised the project on number of accounts for failing to ensure meaningful participation and consultation with inhabitants, or providing an adequate resettlement plan to those affected by displacement
- Urbanisation projects in cities such as Istanbul, and Ankara have also led to demolitions of traditional Roma areas adding these to the numbers of displaced. This also includes displaced and marginalised communities residing in peripheries of urban centres.
- Natural disasters have also been of high concern. Turkey is situated across three tectonic plates which creates a high potential risk of earthquakes. Government statistics indicate that between 1995 and 1999 over 800,000 people were displaced by earthquakes and floods

IFRC, 1 January 2004:

"Turkey is in a region that is politically vulnerable and prone to natural disasters [1]. It is at risk from a range of complex emergencies. Statistically, a large-scale disaster happens every seven to eight years. Earthquakes account for 97 per cent of deaths and injuries caused by natural disasters. In 1999, two earthquakes killed 19,000 people and caused massive destruction. Seismic activity frequently causes panic among the population. Floods occur regularly too. Government statistics on damage caused by disasters (see table below) demonstrate how vulnerable the country is.

Turkey's disaster toll 1995-1999:

Year \	Type disaster	of No. people killed	of No. people Injured	of No. people Displaced	of No. people affected	of Economic Damage USD
1995	Earthquake	231	403	2,000	10,000	65 million
	Floods					
1996	Earthquake	0	6	9,000	17,000	30 million
1998	Earthquake	155	1,647	128,000	1,500,000	500 million
	Floods					
1999	Earthquake	18,243	48,901	675,000	15,000,000	20 billion

[Footnote 1] Turkey is situated in the cross line of three tectonic plates - Eurasian, Arabic and African - which creates a potential risk of earthquakes."

For more information on natural disaster induced displacement, see the website of the IFRC which provides assistance to victims of natural disasters and maintains regular and updated information on natural disasters in the country. See the [website of the IFRC](#)

The [UN Office for the Coordination of Humanitarian Affairs \(OCHA\)](#) also provides regular updates and situation reports on natural disaster related emergencies in Turkey

For background information, news and relevant links on development induced displacements see: See for example, "[Turkey Dam Project back to haunt Kurds](#)", BBC, August 2006

[The Ilisu Dam Campaign website](#) which provides background information and news updates

[The Baku-Ceyhan Campaign website](#) which provides background information

[The Kurdish Human Rights Project website](#) provides regular updates on the dam and pipeline projects affecting Kurdish populations

POPULATION FIGURES AND PROFILE

Global figures

Estimates that 953,680 - 1,201,200 people were displaced between 1986-2005 (2009)

- The Hacettepe University was commissioned by the Turkish government in 2005 to provide quantitative and qualitative data on displaced. The findings of the survey were publicly released in December 2006, reported that 953,680-1,201,200 were displaced by conflict between 1986-2005.
- The results of the survey nearly 3 years after its publication, however are yet to be clearly endorsed by all relevant Turkish government institutions. In Conference on Van Action Plan held in May 2009, representative of the General Directorate underlined operational figure of 350,000.
- According to official statistics collected in the 14 provinces in which the RVRP is implemented, as of July 2009 an estimated 151,469 people had returned to their places of origin. This is identical to figures dated 2007. The figures closely similar to that of the survey in 2006 which had determined 120,000 returnees.
- The scale of displacement in Turkey was prior to the survey extremely controversial and figures range from hundreds of thousands of people to millions of displaced people. HRW has revealed inconsistencies in the manner at which figures were defined.
- It has been stated that the official figure of 378,000 displaced persons includes only those displaced as a result of village and hamlets evacuations
- Previous reports indicated range from 378,000 as the official government figure and 1 to 3 million IDPs according to various NGOs
- The Council of Europe and US Department of State has cited "independent credible" estimates at 1 million in its report yet underlined that the figures concerning displacement are subject to controversy
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IDMC Note on figures: The quantitative findings of the Hacettepe Survey commissioned by government is publicly released on 7 December 2006, and estimate that 953,680-1,201,200 people were displaced by conflict in the south east between 1986-2005. Click here for more information on how the survey was carried out.

Permanent Mission of Turkey to the UN, 17 September 2009:

The RVRP has been implemented in 14 Eastern and Southeastern provinces, namely Adıyaman, Ağrı, Batman, Bingöl, Bitlis, Diyarbakır, Elazığ, Hakkari, Mardin, Mus, Siirt, Sırnak, Tunceli, Van. As of July 2009, the offices of the Governors in the aforementioned 14 provinces reported that 151,469 citizens from 25,001 households returned to their former places of residence.

Official figure: 355,807 (end August 2005) Permanent Mission of Turkey to the UN, 27 September 2005:

"The official number of IDPs as of the end of August 2005 is 355, 807. Of these, 127,050 have returned under the Return to Village and Rehabilitation Project"

Ayata Bilgin and Yukseker, Deniz, December 2005:

The "official" numbers were based on the 1990 general population census figures for villages and hamlets whose residents were subsequently completely evicted. NGOs, on the other hand, consider as forced migrants all people forced or compelled to leave their homes because of feelings of insecurity, armed clashes, military imposed food embargoes as well as threats by the security forces, the PKK and government-employed village guards

HRW, March 2005, pp. 14-17:

"Nobody knows for sure how many people were displaced in the 1990s. In 1998, the governor of the south eastern provinces—then under state of emergency—stated that 378,335 villagers had been displaced from 820 villages and 2,345 smaller settlements. [...] The Turkish government rounded this down to 350,000 in the figures supplied to the European Commission for the 2004 Regular Report. The U.S. State Department report for 1998 considered 560,000 a credible estimate. [...] The Diyarbakir Bar Association suggests that as many as two million may have been displaced. [...] At any rate, the estimate of 377,882 derived from provincial displacement figures is almost certainly too low. In almost every case, inhabitants of villages and village muhtars interviewed by Human Rights gave a much higher figure for the number of inhabitants at the time of displacement than was indicated in the government list. [...] The following are some examples of such discrepancies:

Caliskan village in Gercus, Batman province, is recorded in the government list with twenty-two households prior to displacement, whereas local sources assert that there were one hundred and forty households.[.]63

Dereli village in Gercus, Batman province. According to the government list: twenty-two households; according to local sources: one hundred and forty households.

Gunduz village in Kozluk, Batman province. According to the government list: eighteen households; according to local sources: forty-six households.

..... Other examples of villages that were forcibly evacuated but which do not appear on the list include: Erenkoy village, near Erüh in Siirt province, where there were approximately one hundred households prior to displacement, and Colko'y village, near Erüh in Siirt province, where there were approximately fifty households prior to displacement. Both villages are now reportedly occupied by village guards. [...] The failure to correctly record settlements on government records as having been evacuated was identified as a problem as early as 1998. Some villages are recorded as having had no inhabitants at all prior to displacement. In the case of Siirt province, the underrecording of the original population seriously distorts the picture for the province as a whole. Siirt suffered heavy displacement. Local sources indicate that the rate of permanent return has been low. Yet according to the government figures, 53.36 percent of the inhabitants have returned. The illusion of a respectable return rate derives from inaccurate government statistics. When this error is discounted, the average return rate for Siirt falls to 29.76 percent even before other patterns of inaccuracy noted in this evaluation are taken into account."

US DOS, 25 February 2004, Sect.2d:

"During the height of the PKK conflict from 1984 to 1990, the Government forcibly displaced a large number of residents from villages in the southeast. Many others left the region on their own. The Government reported that 378,000 residents 'migrated' from the southeast during the conflict, with many others departing before the fighting. Various NGOs estimated that there were from 1 to 3 million IDPs."

HRW, 30 October 2002:

"Estimates of the numbers of displaced people vary widely. some government officials deny that any people in Turkey are internally displaced. some local nongovernmental organizations put the number of displaced persons as high as three million. In its human rights report for 2000, the U.S. Department of State said that 'credible estimates' of internally displaced people in Turkey range as high as one million. By year's end, the government appeared not to have updated its official figure for 'evacuated persons' of about 336,000 at the end of 1999.

COE, 22 March 2002:

"There is no official statistics on the total number of Turkish citizens of Kurdish origin living in Turkey. (The last population census in Turkey was carried out in 1997...). ... According to the 1997 population census approximately 8 million people lived in the provinces under emergency rule [and...] round 7 million Turkish citizens of Kurdish origin live outside this area (including over 1 million in Istanbul). These two figures correspond to a widely accepted estimate of 15-16 million Turks of Kurdish origin constituting up to 26 % of the total population living in Turkey. Figures concerning the displacement are much more subject to controversy. Turkish authorities' official figure for 'evacuated persons' amounts to 378 000 originating from 3 165 villages at the end of 1999 The independent sources claim that the official figure of 378 000 displaced persons includes only those displaced as a result of village and hamlets evacuations. it does not include those who have felt compelled to flee, for example, because of the conflict with 'the village guards' even if the village itself had not been evacuated."

Previous Official figures indicated between 362,000-560,000 are forcibly displaced (1998-1999)

- In 1999, the Government reported that through 1999, the total number of those displaced was 362,915 persons from 3,236 villages and hamlets The Government claimed 26,481 IDPs had been resettled with government assistance in 176 villages and hamlets and 61,987 had applied to return by 1999
- In June 1998, the Parliamentary Commission released figures, reporting that 401,328 people were displaced from 3,428 areas, of which 905 villages and 2,523 hamlets According to the 1998 report, 22,993 of IDPs have returned to their places of origin, 6 percent of the total, leaving 378,335 still displaced
- The USCR found the figures to be unreliable as the Commission's does not include people who fled from towns or cities in the southeast, or villagers compelled to flee, because of conflict with village guards, even if their village itself was not evacuated. The Commission's own parliamentary members however disputed the figures of the 1998 Parliamentary Commission report
- According to the Kurdish Institute in Paris, the number of persons displaced within south-east Turkey over the last 20 years amounts to 2.5-3 million

U.S. DOS, February 2000, sect. 1g:

"The exact number of persons forcibly displaced from villages in the southeast since 1984 is unknown. Human rights NGO's tend to attribute most rural-urban migration to evacuations, whereas some persons move to escape the violence or conflict-caused economic depression, or to pursue opportunities in western cities. Government statistics tend to minimize the number of persons who left against their will. Observers agree that

3,000 to 4,000 villages and hamlets have been depopulated. The Government reported that through 1999 the total number of those evacuated was 362,915 persons, from 3,236 villages and hamlets, of whom 26,481 have been resettled with government assistance in 176 villages and hamlets. Another 61,987 have applied to return. A figure given by a former Member of Parliament from the region--560,000--appears to be the most credible estimate of those forcibly evacuated. However, observers in the region estimate that the total number of displaced persons is approximately 800,000, and a few NGO's put the number as high as 2 million."

USCR, 1999, p. 6:

"The most recent figure for internal displacement in Turkey comes from the report of the Parliamentary Commission, released in June 1998. All of the statistics used in the report originate with the State of Emergency Region (OHAL) governor's office, so these should be regarded as the official government count. It reports that 401,328 people were forced to migrate from 3,428 residential areas, of which 905 were villages and 2,523 hamlets. Of these, 517 villages and 1,614 hamlets were evacuated in the State of Emergency region, resulting in the displacement of 251,366 persons. Another 126,969 persons were displaced outside the OHAL region, having been evacuated from 303 villages and 2,345 hamlets. According to the report, 22,993 of these displaced persons have returned to their places of origin, 6 percent of the total, leaving 378,335 still displaced.

The Commission's own parliamentary colleagues dispute these figures, however. Deputy Orhan Yildirim, the MP from Tunceli, voiced his dissent to the Commission's findings (noted in the Commission report), saying, 'the number of evacuated villages given in the official statistics is wrong. For example, Balik Village is my village; it is entirely empty of people. It is listed as not evacuate.'

Even if the Commission's count of evacuated villages were accurate, by limiting that count to persons displaced as a result of village and hamlet evacuations, the Commission's figure does not include people [...] who fled from towns or cities in the southeast, or of villagers who felt compelled to flee, for example, because of conflict with village guards, even if their village itself was not evacuated. As such, the figure based solely on evacuations must be regarded as the minimum baseline for an estimate of the number of internally displaced persons in Turkey."

COE, 3 June 1998, para. 17:

"On 28 July 1997, the Chairman of this Committee, Mr Seyit Hasim Hasimi, held a press conference in Diyarbakir. He announced that forced evacuation of villages and hamlets by the Turkish armed forces in the region had resulted in large numbers of displaced people and potential refugees. He confirmed that 364 742 inhabitants of 3 185 villages and hamlets had been forced out since 1990 in the framework of the fight against terrorism. These figures were publicly confirmed later by Mr Bulent Ecevit, Deputy Prime Minister, who said that the villages had been emptied 'for security reasons'. The US State Department cited 560 000 as 'a credible estimate' of the number of people deprived of their homes as a result of the evacuations....According to Mr Nezan, President of the Kurdish Institute in Paris, the number of persons displaced within south-east Turkey over the last 20 years amounts to 2.5-3 million. The population of Diyarbakir, for example, rose from 380 000 in 1990 to 1 million in 1996. Concerning displacement throughout the rest of Turkey, the figure is approximately 8 million, of whom some 3 million are in Istanbul alone."

Geographical Distribution

Estimated geographical distribution of internally displaced communities.

- There are no clear figures on the geographical distribution of displaced in Turkey. It is generally estimated that nearly half of the IDP population remain in southeast Turkey in proximity to places of origin whilst the other half have migrated to western and northern Turkey to such cities as Ankara, Istanbul and Izmir.
- According to the quantitative data of the Hacettepe Survey undertaken in 2005, 80% of internal displacement between 1986-2005 is rural originated and 20% is urban originated.
- The majority of IDPs are presently located in urban areas whether this be in south eastern or north western Turkey. IDPs are located in peripheral areas of urban cities generally with limited access to basic services. Many displaced villagers do reportedly return temporarily, usually in summer months.
- Official figures and statistics on figures are not easily available – human rights organisations and civil society associations have been very critical of government advanced figures and the lack of transparency.

Hacettepe University, 4 May 2005:

Ministry
statistics

of

Interior

February

2005

PROVINCE	DISTRICT	VILLAGE	HAMLET	BEFORE RETURN TO					
				VILLAGE				GENERAL TOTAL	
				VILLAGE		HAMLET		HOUSE HOLD	POPULATION
				HOUSE HOLD	POPULATION	HOUSE HOLD	POPULATION		
ADIYAMAN	4	0	0					0	0
AĞRI	8	8	0					0	0
BİNGÖL	7	137	299	4.914	15.617	2.743	12.127	7.657	27.744
BİTLİS	6	125	127	3.752	27.615	0	0	3.752	27.615
HAKKARİ	4	45	177	3.538	30.155	2.355	16.611	5.893	46.766
MUŞ	6	31	54	277	1.965	379	3.543	656	5.508
TUNCELİ	8	100	470	6.944	25.824	0	0	6.944	25.824
VAN	5	33	137	1.059	10.043	1.757	14.316	2.816	24.359
ELAZIĞ	5	3	3	64	464	23	124	87	588
BATMAN	6	36	136	1.178	8.064	1.335	10.594	2.513	18.658
DİYARBAKIR	12	134	304	4.789	26.966	2.775	16.698	7.564	43.664
MARDİN	11	129	140	5.553	32.158	565	2.427	6.118	34.585
SİİRT	6	96	45	3.251	20.592	1.508	10.127	4.759	30.719
ŞIRNAK	7	61	126	6.474	43.912	3.165	26.036	9.639	69.948
TOPLAM	95	938	2018	41.793	243.375	16.605	112.603	58.398	355.978

PATTERNS OF DISPLACEMENT

General

General Patterns of displacement

- According to the Hacettepe Survey 80% of security-related migration between 1986-2005 is rural originated and 20 urban originated.
- Approximately 100,000 security-related migrants may have returned to their places of origin. Among security-related migration in the last twenty years, 87% occurred without migrants' will.
- Migratory movements to urban areas have also been caused by the conflict-caused economic depression in south-eastern areas
- Many of the displaced have crowded into the south-eastern provincial cities, such as Diyarbakir and Batman, more than doubling their populations.
- It is estimated that as many as 3.5 million Kurds have left south-east Turkey since 1984 and have settled mainly in large cities in the west

Hacettepe University, 30 November 2006, pp.1-2:

"If previous migrations are generally evaluated in the context of Turkey's total population, it is seen that about 1.8 percent of Turkey's population has migrated due to security reasons. The share of security related migration originating from the 14 provinces in Turkey's population is 1.53 percent [14 provinces: Adiyaman, Agri, Batman, Bingol, Bitlis, Diyarbakir, Elazig, Hakkari, Mardin, Mus, Siirt, Sirnak, Tunceli and Van]. This proportion for security related migration is found to be 1.19 percent for the rural areas of these 14 provinces. These findings show that a significant part of the security related migration is originated from the 14 provinces, and especially the rural areas of these provinces. When the estimates of the numerical size of migrants originating from the urban areas of the 14 provinces are taken into account as well, it is seen that the size of the migrant population originating from the 14 provinces due to security related reasons may be between 953,680 and 1,201,200. These results indicate that 80 percent of the security related migration that took place in twenty years between 1986-2005 is rural originated, and 20 percent is urban originated. Among the security related migration originated from the rural areas of the 14 provinces in the last twenty years, 61.3 percent has taken place between 1991-1995 period when terrorist acts were most frequent, and 31.6 percent between 1986-1990 period, 5.0 percent between 1996-2000 period and the remaining 2.1 percent between 2001-2005 period, which is the five year period before TMIDPS. TMIDPS's data show that at least 91,000 and at most 101,200 of the security related migrants of the last twenty years originating from the 14 provinces may have returned to their origins. When the migrants originating from the urbans are taken into account as well, the estimation of the numerical size of the return migrants increases to the interval 112,000-124,000. The numerical size of the return migrant population is estimated to be between 10.9 and 12.1 percent of the population migrated from the 14 provinces in the last twenty years due to security reasons. In Turkey, 10.7 percent of the population at the age group of 18-69 have a tendency to migrate in the future. The share

of those stated they do not wish to migrate in the future is 84.5 percent, and the share of those undecided is 4.7 percent."

USCR, 1999, pp. 4-6:

"Internal displacement as a result of conflict and fear in part of a larger migratory phenomenon occurring throughout Turkey that has resulted in the dramatic growth of urban populations in recent years. Undoubtedly, economic factors account for some of the urbanization, and even persons fleeing for political reasons often have a mix of motives, including seeking employment, or even, reportedly, food. Rural to urban movement has often been the first step in a migratory pattern that has taken large numbers of Kurds from the east to the west. Diyarbakir, the unofficial capital of Turkish Kurdistan, grew from 30,000 in the 1930s to 65,000 by 1956, to 140,000 by 1970, to 400,000 by 1990, and swelled to about 1.5 million by 1997. Most Turkish cities have developed impoverished, overcrowded, ramshackle slums on their outskirts, *gecekondular*, 'huts built in one night'.

Many of the displaced Kurds in provincial cities and towns crowd into homes of relatives, sometimes with more than thirty people residing in dwellings intended for a single family. Although the desire for economic betterment has motivated some to migrate, it is not clear that migrants have responded to the pull of opportunity in western cities as much as to the push of conflict-caused economic depression in the rural southeast. While some of the displacement has been spontaneous, the Turkish military systematically expelled Kurdish villagers in the country's southeast between 1993 and 1995. The Turkish army's campaign to evacuate villages suspected of supporting the PKK began in February 1993. Army and security forces have depopulated mountainous, rural areas, and pushed the village populations into urban centers, creating economic hardship for large numbers of displaced persons, most of whom had been herders or otherwise tied to the pastoral economy. Many of the displaced have crowded into the provincial cities, such as Diyarbakir, mentioned above, and Batman, more than doubling their populations."

UK Home Office, April, 2001, para. 7.27:

"The ongoing conflict between the Turkish armed forces and the PKK guerrillas, and the poor economic situation in the southeast, have caused considerable migration away from the rural areas in the southeast. Many have remained in the southeast and moved to cities such as Diyarbakir, Siirt, Tunceli and Cizre, whose populations have doubled or trebled as a result of the migration. The large cities in the west have also been major recipients of this migration. It is estimated that as many as 3.5 million Kurds have left southeast Turkey since 1984. Istanbul, Izmir and Ankara have received the most migrants, with Istanbul accommodating almost 1.5 million new immigrants. Between one-half and almost two-thirds of the Kurdish population now live in peaceful assimilation in western Turkey and on the southern coast (3 million in the Istanbul conurbation, 2 - 3 million on the southern coast, 1 million on the Aegean coast, 1 million in central Anatolia and the remaining 6 million in east and southeast Turkey)."

Kirisçi, June 1998, pp. 198-199:

"Three patterns of migration can be identified: The majority of internally displaced people from the rural areas have moved into the nearest urban centres. Provincial capitals such as Batman, Diyarbakir, Hakkari, Sanliurfa and Van have been particularly affected; Those internally displaced people with greater economic resources and the right contacts have moved further away to cities such as Adana, Gaziantep, Kahramanmaraş

and Mersin, outside the emergency law provinces; and Many members of the middle class in the provincial cities have moved to western cities in Turkey such as Ankara, Antalya, Bursa, Istanbul and Ismir. [...] The short-term economic and humanitarian consequences of this massive migration have been disastrous. The already depressed regional economy has deteriorated even further. The cities have become overwhelmed with people swelling the ranks of the unemployed and stretching municipal services. starvation is reported among the poorest of the internally displaced living in makeshift housing in the cities of eastern and southeastern Turkey. Villagers have been forced to slaughter their herds to finance their move into urban centres. The tourist industry has virtually disappeared from this locality. Furthermore, there has also been a flight of capital from the region as the relatively well-off have closed their businesses and small factories before moving to the west of Turkey. inevitably, these developments have aggravated the employment situation and resulted in further pressure for groups to migrate out of eastern and southeastern cities."

See also [Statement of the RSG at the Launch of Migration and Internally Displaced Population Survey](#) and [Survey: IDP numbers triple those acknowledged by the state](#) and [Research reveals huge population of IDPs](#).

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Physical security

Continued violations of human rights (2001-2009)

- Security situation still poses risks especially in the east and south-east provinces, with the resumption of violence temporary security zones of Siirt, Sirnak and Hakkari KHRP in 2009 reported increase in violations of human rights.
- There were continued prosecutions of people expressing their peacefully held opinions In spite of a general decrease in allegations of torture or ill-treatment, there were reports that such abuses were widespread in police custody against those detained during the protests.
- In 2008, Human Rights Watch and Amnesty International have reported human rights violations in and the problem of impunity remain of concern. Though in first half of 2009 a series of unprecedented steps at provincial levels have also been taken to investigate remains of some of many who'disappeared' at the height of the conflict and bring to account those responsible.
- In June 2007 the government declared the provinces of Siirt, Sirnak and Hakkari, as 'temporarily security zones' and increased the number of troops deployed along the border with northern Iraq.
- In 2006, Amnesty International and the US Department of State note continued reports of torture and ill treatment by security enforcement officials in 2006 Courts rarely convicted security officials accused of torture and generally issued light sentences when they did convict. Detainees alleged that they had been beaten, threatened with death, deprived of food, water and sleep during detention
- The government continued to investigate some reported cases of enforced disappearances, however most cases had not been resolved. In 2001, the UN Special Rapporteur for Missing and Disappeared Persons expressed her view that the security forces were responsible for some cases of disappearances (2001)
- Most cases of enforced disappearances concern persons of Kurdish ethnic origin and occurred in the provinces of Diyarbakir and Siirt in south-east Anatolia. Most were allegedly arrested and mistreated by the police on charges of belonging to the PKK. Members of the security forces have rarely been prosecuted for these acts. Abductions by PKK of local villagers and state officials has virtually ended since the capture of the PKK leader Ocalan (1999)
- There continued to be reports that a number of NGOs faced government obstruction and restrictive laws regarding their operations, particularly in the southeast. On April 2007, a Human Rights Watch researcher conducting research in the southeast was detained by authorities and subsequently deported.

HRA, September 2009

Human Rights Situation in some Rights Categories between 1999 and 2009

Violation	1999	2000	2001	2002	2003	2004	2005	2006	2007	2008
Right of life										
Unknown killings	212	146	160	76	60	47	1	20	42	29
Doubtful deaths/deaths in custody because of extra judicial execution/torture paid guard village	306	173	55	40	44	47	89	130	66	65
Deaths in clashes	867	147	92	30	104	240	426	345	434	492
Torture and ill-treatment	694	594	862	876	1202	1040	525	708	672	1040
People, who taken into custody	60315	35007	44193	31217	12406	2711	2702	5560	7197	11002
ArrestsPublic/Political/Publishing Institutes and Culture Centre that closed down	2106	1237	2256	1149	1186	774	521	1546	1440	2367
Freedom of Opinion/Expression/ Association/Belief and Meeting-Demonstration										
Public/Political/Publishing Institutes and Culture Centre that closed down	169	130	145	127	47	13	5	6	13	11
Raided Public/Political/Publishing Institutes	266	156	215	83	88	35	7	48	36 raids by police forces 169 attacks	103 (64 political party offices, 36 association offices and 4 trade union and chamber offices)

Violation	1999	2000	2001	2002	2003	2004	2005	2006	2007	2008
Banned-Seized Publications	283	244	341	169	285	814 books, 4 magazines and 1 newspaper	29	21	48	109 (13 newspapers, 11 magazines, 7 posters, 4 books, 1 calendar and 2 statements were confiscated, 38 newspapers, 7 magazines and 1 TV channels were suspended, 3 posters, 3 banners, 3 books, 2 songs, 1 leaflet, 1 magazine, 1 statement and 1 album were prohibited)
Demand Imprisonment Sentence (launched trials)	526 years 23 months against 166 people	7736 years 11 months against 418 people	5583 years 2 months against 3473 people	6155 years 8 months imprisonment sentence and	6373 years imprisonment sentence against 1706 people	1567 years 2 months imprisonment sentence and 350 millions money penalties against	192 People	1013 people are still being judged in 120 cases	190 court cases against 1232 people	140 court cases against 450 people, 1722 people were freed on ongoing

HRW, January 2007:

"The government of Prime Minister Recep Tayyip Erdogan failed during 2006 to implement key reforms necessary to consolidate the human rights progress of the past years. Entrenched state forces, including the military, continued to resist reform. Illegal armed groups, as well as rogue elements of the security forces, conducted violent attacks that threaten the reform process, although clashes decreased after the Kurdistan Workers' Party (PKK) declared a ceasefire in October."

AI, 23 May 2007:

"There were continued reports of torture and ill-treatment by law enforcement officials, although fewer than in previous years. Detainees alleged that they had been beaten, threatened with death, deprived of food, water and sleep during detention. Some of the torture and ill-treatment took place in unofficial places of detention...After the introduction of new legislation in previous years, there was little evidence of progress in the implementation of reforms. There were continued prosecutions of people expressing their peacefully held opinions. Human rights further deteriorated in the eastern and south-eastern provinces in the context of an increase in fighting between the security forces and the armed Kurdistan Workers' Party (PKK); there was an increase in attacks on civilians in other areas by armed groups. There were reports of excessive use of force against demonstrators by law enforcement officers during violent protests in the city of Diyarbakir in the south-east of the country. In spite of a general decrease in allegations of torture or ill-treatment, there were reports that such abuses were widespread in police custody against those detained during the protests. There were continued concerns about unfair trials and conditions in "F-type" prisons. Little progress was made in creating shelters for women victims of violence."

HRW, 8 June 2006:

"In March 2006 our researcher Jonathan Sugden travelled to Karlyova, Bingöl province, in order to seek further information concerning allegations of abuses by village guards and gendarmerie officers in that district. He immediately went to Karlyova Gendarmerie, gave them details of the allegations and said that he would like to learn their views about the alleged episode. The gendarmes took him immediately to the Police Headquarters where he was told that he would not be permitted to conduct any research in Karlyova because he had not received permission from the local governor. See also, HRW Researcher Detained in Southeast (12 April 2006)

EC, 8 November 2006:

"As regards *torture and inhuman or degrading treatment or punishment*, the implementation of the legislative framework has continued. Reports of torture and ill-treatment have diminished compared to the previous year. However, cases are still reported outside detention centres. Further, human rights violations in the Southeast and the problem of impunity remain of concern. The First Optional Protocol to the ICCPR, signed in 2004, and the Optional Protocol to the UN Convention against Torture (OPCAT), signed in September 2005, still await ratification."

US DOS, 6 March 2007:

"The constitution and law prohibit such practices; however, members of the security forces continued to torture, beat, and otherwise abuse persons. Incidents of torture and abuse declined during the year but remained a problem. There was a decline in the severe ill-treatment that prisoners encountered in prior years, but incidents of ill-treatment during police/gendarmerie custody continued, according to the Council of

Europe's September 6 report on the European Committee for the Prevention of Torture and Inhuman or Degrading Treatment or Punishment (CPT). Courts rarely convicted security officials accused of torture and tended to issue light sentences when they did convict [...]. "A number of domestic and international human rights groups operated in many regions but faced government obstruction and restrictive laws regarding their operations, particularly in the southeast. Government officials were generally not cooperative and responsive to their views. [...] Human rights organizations and monitors, as well as lawyers and doctors involved in documenting human rights violations, continued to face detention, prosecution, intimidation, harassment, and formal closure orders for their legitimate activities. [...] The government generally cooperated with international governmental organizations such as the CPT, the UNHCR, and the International Organization for Migration (IOM); however, some international human rights workers reported that the government purposefully harassed them or raised artificial bureaucratic obstacles to prevent their work. Unlike the previous year, police did not harass or intimidate human rights activists in the southeast after they met with foreign diplomats. On April 12, a HRW researcher conducting research in the southeast was detained by authorities and subsequently deported. The researcher, Jonathen Sugden, had been documenting abuses by police, jandarma, and the village guards. Authorities claimed that Sugden did not have valid authorization to be carrying out human rights work in the country; however, HRW stated that Sugden was present in the country on a three-month visa, which authorities had confirmed provided a legitimate basis for him to carry out such research."

IDMC, October 2006:

"One essential condition for a more efficient engagement of NGOs is the existence of an adequate legal framework protecting their right to freedom of expression and association. In recent years, legal reforms in Turkey undertaken in the context of Turkey's preparation to EU accession have ended decades of arbitrary restrictions imposed on Turkish civil society actors. Although these reforms have been undertaken to satisfy EU democracy and rule of law principles, there continue to be gaps in the protection of NGOs. However, March 2005 regulations continue to restrict the registration of associations whose names and/or objectives are considered to be contrary to the Turkish Constitution. These restrictions are seen to particularly affect associations promoting a certain cultural identity, including the Kurdish culture. Furthermore, NGOs in Turkey seem to be continuously subject to close surveillance, if not harassment, from the authorities

UK Home Office, October 2003, paras.6.21-6.24:

"[T]he government continued to make efforts to investigate and explain some reported cases of disappearance. [...] However, many cases of disappearances in Turkey are not resolved. The majority of these cases reportedly occurred in south-east Turkey, in areas where the state of Emergency was in force. [...] In February 2001 the U.N. Special Rapporteur for Missing and Disappeared Persons, Asma Jihangir, visited Turkey and met with government officials and non-governmental contacts. She expressed her view that the security forces appeared to be responsible for the disappearances of two HADEP officials [...], but she did not have sufficient information to comment on other alleged cases. She stated publicly that conditions regarding disappearances had improved greatly, but that security force impunity continued. [...] Although members of the security forces are said to be responsible for most cases of enforced disappearances, they are rarely brought to trial or prosecuted for these acts. Although arrests of police and other law enforcement personnel increased in cases of extrajudicial killings, the

number of arrests remained low, and punishment for those persons convicted remained insufficient. The PKK's practice of kidnapping young men or threatening their families as part of its recruiting effort, and of abductions by PKK terrorists of local villagers and state officials, has virtually ended, due to reduced PKK capabilities in the south-east and calls by its captured leader Ocalan for the PKK to withdraw from its former operating areas in the country.[...]"

UK Home Office, April 2001, paras. 5.16-5.23:

Most of the disappearances concerned persons of Kurdish ethnic origin and occurred in the provinces of Diyarbakir and Siirt in south-east Anatolia. There were some disappearances in Antalya, Izmir and Istanbul. Most of the cases followed the same pattern: the missing persons had allegedly been arrested at their homes on charges of belonging to the PKK and taken to the police station, but their detention was later denied by the authorities, in most cases police officers or state prosecutors. In many cases, torture or ill-treatment at the hands of the security forces was reported or feared. Some of the disappearances occurred during raids conducted by gendarmes accompanied, at times, by village guards.

U.S. DOS, February 2001, sect. 1b:

"The PKK's practice of kidnapping young men or threatening their families as part of its recruiting effort and abductions by PKK terrorists of local villagers and state officials has virtually ended, due to reduced PKK capabilities in the southeast and calls by its captured leader Ocalan for the PKK to withdraw from its former operating areas in the country."

Clashes between PKK and Turkish army resurface in southeast (2004-2009)

- There have been major improvements in the security situation during the last five years, but an increase in clashes between Turkish military and Kongra-Gel/PKK militants have been reported since June 2004
- Through 2008 and 2009 activists have reported increase human rights violations and restrictions particularly in areas such as the temporary security zones.
- According to the KHRP, this has included freedom of movement including road blocks and checkpoints particularly during military operations, as well as arbitrary detentions, and allegations of extrajudicial killings
- Civil associations have continued to call for parties to the conflict to arrive at a peace. In September 2009, tens of thousands of Kurds in a rally in Diyarbakir would urge the Government to reach a peace deal with PKK. Several thousand would also march in Istanbul.
- Intermittent clashes would continue in 2009 between both parties. In late 2007 to early 2008, Turkish government would subsequently intervene in northern Iraq targeting PKK bases, and causing the displacement near thousands of Iraqi civilians.
- In June 2007, the government would declare temporary security zones in Siirt, Sirnak and Hakkari deploy significant number of troops along the Iraqi border in order to prevent infiltration by PKK terrorist from Northern Iraq
- The Human Rights Association's Diyarbakir office reported that 294 persons died in such clashes and 303 were injured during 2007
- The situation in 2005 to 2006 in the South-East has deteriorated since the resumption of violence by the PKK. There were 774 terrorist attacks reported. A series of bomb attacks in Turkey's major cities as well as in parts of the east/south east were reported

HRA, August 2009

The conflict in the Kurdish region of Turkey waned in September 1999 when the PKK declared a unilateral ceasefire following the arrest of the organisation's leader in February of that year. According to Turkish government figures, by the end of the conflict 353,000 people had been displaced from their homes. International observers and Turkish non-governmental organisations (NGOs) estimate that the total number may be as high as 1 to 4.5 million.

Since that time, violence and repression of identity remained an everyday feature in the Kurdish regions, and within a few years the PKK had resumed its offensive with attacks on police, government workers and the military. The reason cited by the PKK for this renewed violence was that the government had not taken sufficient steps to improve the freedoms and rights of the Kurdish people.¹⁰ Clashes between the PKK and the Turkish security forces have continued, increasing significantly over the past two years. In response to escalating tensions, the Turkish authorities declared the imposition of a High Security Zone in the south-eastern provinces of Siirt, ^airnak, and Hakkari, in June 2007.

AI, 23 May 2007:

"Bomb attacks targeting civilians increased. An armed group, the Kurdistan Freedom Falcons, claimed responsibility for bomb attacks including in Istanbul, Manavgat, Marmaris and Antalya, in which nine people died and scores were injured. In March, in the city of Van in the east of the country, a bomb exploded next to a minibus, leaving two civilians and the bomber, a PKK member, dead. The PKK announced a unilateral ceasefire with effect from 1 October, and there was a subsequent decrease in armed clashes.

US DOS, 6 March 2007:

" According to the government, 32 civilians, 93 members of the security forces, and 118 terrorists were killed in armed clashes through October. The Human Rights Association's (HRA) Diyarbakir office reported that 294 persons died in such clashes and 303 were injured during the year. Most of the clashes occurred in the southeast."

EC, 8 November 2006:

"The situation in the South-East has deteriorated since the resumption of violence by the PKK, which is on the EU list of terrorist organisations. During the period between November 2005 and June 2006, there were 774 terrorist attacks reported, which led to 44 military, 5 police and 13 civilian casualties....Turkey has taken concrete initiatives to promote stability in Iraq by facilitating dialogue between US authorities and Sunni Arabs. Turkey argues that there is a direct link between the recent escalation of violence in the Southeast of Turkey and increased clashes between Turkish Armed Forces and the PKK and "infiltration of PKK members" from the Iraqi border. A significant number of troops were deployed along the Iraqi border in order to prevent infiltration by PKK terrorist from Northern Iraq."

HRW, 4 October 2004, p.6:

"Political violence resumed in the countryside after Kongra-Gel called off its ceasefire in June, creating a further obstacle for those attempting to return to the region. Clashes between security forces and armed militants, though at a lower level than in the early 1990s, risk damaging the increasing sense of stability in the region which had facilitated

reform generally, and poses a threat that earlier brutal and widespread security operations against villages may be resumed."

EC, 10 October 2004, p. 19:

"The security situation in the Southeast has considerably improved since 1999, although there have recently been a number of incidents which resulted in casualties....Despite a general improvement in the situation in the Southeast, the security threat has increased since the Kongra-Gel (formerly PKK) announced the end of the ceasefire in June 2004. Terrorist activities and clashes between Kongra-Gel militants and the Turkish military have been reported."

See for example ["Turmoil revisiting southeastern Turkey"](#), Aljazeera, 17 July 2005; ["Turkey kills 21 Kurdish fighters"](#), BBC News, 15 April 2005; and ["Turks attack Kurdish rebels"](#), The Guardian, 1 September 2004. See for example [Lethal clashes continue in Turkey](#), and [Two injured in Instabul explosion](#), and [Kurd unrest escalates in Turkey](#), and [Turkish press laments Kurd unrest](#). Further reports included in sources below.

Access to justice and investigations into violations by the security forces and village guards continued to be flawed (2002-2008)

- Investigations into violations by members of the security forces continue to be deeply flawed and there was a general unwillingness among elements of the judiciary to bring those responsible to justice. In late 2008, Human Rights Watch lamented continued impunity by state actors to human rights violations.
- Recently as ICG has reported in late 2008 there have been however a series of unprecedented steps, albeit limited in scope, to bring to account those responsible in the apparent death squads during the conflict in the 1980s and 1990s
- In first half of 2009, KHRP reported excavations by order of provincial prosecutors were taking place of locations alleged to contain the remains of some of the many who 'disappeared' at the height of the conflict in the region in the 1990s.
- In 2007, US Department of state reported that the security forces killed a number of persons during the year. The Government continued to organize, arm, and pay a civil defence force mostly in the southeast region, known as the "village guards"
- Village guards continued to be accused repeatedly of corruption and human rights abuses including rape, corruption, and theft. In the period from 1985 to April 2006, in excess of 5,000 village guards were reportedly involved in various crimes as cited by TESEV.
- The village guards, Jandarma, and police special forces are viewed as those most responsible for abuses. In October 2003, a petition containing over 30 000 signatures protesting against the village guard system was registered with the Petitions Committee in the Parliament
- In 2002, international NGOs reported that Turkey has actively intimidated internally displaced people to prevent them from testifying about their situation. The European Court of Human Rights has established in several cases that displaced persons had been discouraged by Turkish authorities to exercise their right to justice. 1,125 cases were brought to the ECtHR in 2002, including the right to fair trial and destruction and loss of property

HRW, December 2008

Turkey's well documented endemic problems of torture and its notoriously violent policing culture ought to be a thing of the past. Motivated to meet conditions attached to its prospective European Union accession, within the past five years Turkey has made

important changes in law and in detention regulations, providing better safeguards for those held in places of detention. Over that period there was a recorded decrease in allegations of torture or ill-treatment of detainees held in the anti-terror departments of police stations. There are, however, signs of continuing problems of police violence, and a reported rise in overall complaints of torture and police violence since the beginning of 2007. At the core of the persistence of these phenomena is the culture of impunity. Historically, law enforcement officials were rarely if ever held to account, and still less often in a manner that reflected the gravity of the violations committed. Today, despite increased legal safeguards, law enforcement officers who flout them can still enjoy effective impunity when they are alleged to have abused or even unlawfully killed victims.

AI, 23 May 2007:

"investigations into violations by members of the security forces continued to be deeply flawed and there was a general unwillingness among elements of the judiciary to bring those responsible to justice.

US DOS, 6 March 2007:

"The government or its agents did not commit any politically motivated killings; however, security forces killed a number of persons during the year. The Human Rights Foundation (HRF) reported that, in late March and early April, the police and military killed 14 persons, including five children, when they fired into crowds of demonstrators during rioting in the southeastern city of Diyarbakir [...]. A civil defense force known as the village guards was less professional and disciplined than other security forces and was concentrated in the southeast. The village guards were accused repeatedly of drug trafficking, rape, corruption, theft, and other human rights abuses. inadequate oversight and compensation contributed to this problem, and in many cases Jandarma allegedly protected village guards from prosecution. Although the security forces were generally considered effective, the village guards, Jandarma, and police special forces were viewed as those most responsible for abuses. Corruption and impunity from prosecution were serious problems. Courts investigated many allegations of abuse and torture by security forces during the year; however, they rarely convicted or punished offenders [...]. When courts did convict offenders, punishment generally was minimal and sentences were often suspended. Authorities typically allowed officers accused of abuse to remain on duty and, in occasional cases, promoted them during their trials, which often took years.

US DOS, 28 February 2005:

"The Turkish National Police (TNP), under Interior Ministry control, are responsible for security in large urban areas. The Jandarma, paramilitary forces under joint Interior Ministry and military control, are responsible for policing rural areas. The Jandarma are also responsible for specific border sectors where smuggling is common; however, the military has overall responsibility for border control. There were allegations of police corruption.

[.] Courts investigated many allegations of ill-treatment and torture by security forces; however, they rarely convicted or punished offenders. When courts did convict offenders, punishment generally was minimal; monetary fines did not keep pace with the rate of inflation, and sentences were sometimes suspended. The rarity of convictions and generally light sentences in torture cases contradicted the Government's official policy of zero tolerance for torture. Authorities typically also allowed officers accused of abuse to remain on duty and, in some cases, promoted them during their trial, which

often took years." The Government, as well as the PKK/KADEK/KHK, continued to commit human rights abuses against noncombatants in the southeast. According to the military, 18 civilians, 62 members of the security forces, and 79 terrorists died between January 1 and October 7 as a result of armed clashes. The Government continued to organize, arm, and pay a civil defense force of approximately 58,000, mostly in the southeast region. This force, known as the village guards, was reputed to be the least disciplined of the security forces and continued to be accused repeatedly of drug trafficking, rape, corruption, theft, and other human rights abuses. Inadequate oversight and compensation contributed to this problem, and in some cases Jandarma allegedly protected village guards from prosecution. In addition to the village guards, Jandarma and police special teams were viewed as those most responsible for abuses."

HRW, 15 December 2004:

"Human Rights Watch recommends that the Turkish government ensure that the recent attacks on civilians in return areas are thoroughly and independently investigated, that the methods and findings of that investigation are made public, and that any members of the security forces found to be responsible for the killings are prosecuted and punished."

EC, 6 October 2004, p.51:

"The issue of the village guards remains unresolved. Notwithstanding the judicial procedures against village guards involved in murders, official figures state that 58 416 village guards are still on duty (as opposed to 58 551 last year). Moreover, although the Turkish authorities state that no village guards have been appointed since 2000, NGOs suggest that new village guards have been recruited in response to the increasing number of clashes between security forces and illegal armed groups. In many cases, authorisation to return to villages is reportedly conditional on the willingness of the returnees to serve as village guards. A petition containing over 30 000 signatures protesting against the village guard system was registered with the Petitions Committee in the Parliament in October 2003."

AI, 12 February 2004:

"There has been a notable failure to address the legacy of human rights violations from the past -including torture, 'disappearances', extrajudicial executions, unfair trials, destruction of property and forcible evacuation from villages in the southeast of the country - as the number of cases against Turkey in the European Court of Human Rights bears out. Focus on Turkey entering a new era in the protection of human rights should not mean that this legacy remains unaddressed and forgotten by the Turkish authorities. The introduction of a draft bill in January 2004 intended to offer the possibility of compensation for those who lost property and livelihoods as a result of the forcible emptying of villages during the conflict in southeast and eastern provinces of Turkey in the late 1980s and 1990s is one step, but the authorities should not ignore their responsibility to bring the perpetrators of such violations to justice. Laws recently adopted have aimed to combat some aspects of impunity by removing some of the obstacles to the investigation of claims of torture and ill-treatment, by requiring that trials of those charged with such crimes are given priority and that hearings take place at no more than 30-day intervals, and by stipulating that prison sentences for such crimes cannot be converted to fines, suspended or postponed."

HRW, 30 October 2002:

"Most displaced villagers are reluctant to seek judicial remedies, since they believe that there is no chance of a result in their favor. They find it extremely difficult to find a

foothold for legal action, since the whole process of displacement has been kept off the record. Few villagers have received any documentary evidence to show that they are unable to return to their property. It is a curious paradox that for years the displaced farmers, most of whom are only semi-literate, have been diligently petitioning government and judicial authorities in writing, while the state bureaucracy has preferred to do business by word of mouth. Local governors generally give or withhold permission to return verbally, and thereby avoid committing administrative acts that might subsequently be challenged in court. Moreover, villagers fear that legal action may simply aggravate the security forces' disfavor and further distance their main goal of reoccupying their homes. The persecution and violence experienced by the few who sought a remedy through the law justifies such trepidation. Armed hostilities are over in the southeast, but those who were internally displaced are still infected with profound fear. Most informants would only speak to Human Rights Watch on condition that their identity would be withheld."

USCR 1999, p. 10:

"The USCR researcher found most Kurds he encountered in the southeast to be fearful of being discovered speaking to him about their situation. Finding internally displaced persons willing to talk was not easy. Often, assessing whether or not they were speaking forthrightly was even more difficult. In a few instances, where USCR was able to visit the displaced in private quarters where they felt secure, they sharply criticized the government, blaming it (soldiers and police) for their displacement, and expressed discontent with their current situation. ... Turkey has actively intimidated internally displaced people to prevent them from testifying about the causes and consequences of their displacement. In particular, the European Court of Human Rights has determined that the Turkish government has sought to prevent displaced persons from testifying before the European Commission of Human Rights (ECHR) regarding allegations that Turkey violated the European Convention for the Protection of Human Rights and Fundamental Freedoms.

See also following judgements of the European Court of Human Rights regarding violations of the individual right of petition:

- Akdivar et al. v. Turkey (Application no. 21983/93), 16 September 1996 [Internet]
- Dula v. Turkey (Application no. 25801/95), 30 January 2001 [Internet]

See also:

The section on "Police Abuses" in "[Overview of Human Rights Issues in Turkey](#)", Human Rights Watch 26 January 2004

["Turkey Still Represses Kurds, Despite EU-Oriented Reforms: Rights Group"](#), Kurdistan Observer, 30 July 2003

["From Paper to Practice: Making Change Real: Memorandum to the Turkish Prime Minister on the occasion of the visit to Turkey of a delegation led by Irene Khan, Amnesty International's Secretary General, February 2004"](#), 12 February 2004

["Turkey: Human Rights in the Kurdish Southeast: Alarming Situation despite extensive reforms"](#) FIDH International Investigative Mission, July 2003

["Concerns in Europe and Central Asia: January to June 2003: Turkey"](#), AI, 1 October 2003

Landmines in the southeast provinces pose threat to physical security (2003-2009)

- Landmines laid by the government along the borders, and by both sides in the conflict between the security forces and the PKK, continue to cause injuries. In May 2006, Turkey

reported a total of just under one million mines within the country. These continue to cause civilian casualties with number of casualties, civilian and military, reported ranging between 1,600 to 2,900 victims between 1993 to 2004. (GoY, October 2009; LMG, May 2008)

- Turkey is party to international agreements relating to landmines and recently ratified in May 2009 the Convention on the Rights of the Persons with Disabilities. On 18 July 2006, the Kurdistan Workers' Party committed to a ban on antipersonnel mines by signing the Geneva Call Deed of Commitment
- The problem of landmines is acknowledged in the national IDP strategy framework adopted in 2005, and remains an obstacle to return and security of civilians. Civil society organisations have called for much more vigorous commitment of the state to ensure mine risk education, treatment for victims, and more systematic marking of mined areas
- Human Rights Association, a Turkish human rights NGO reported increases in casualties in last few years. 138 deaths and injuries from landmines and unexploded ordnance in 2006. There were at least 220 new landmine/UXO casualties in 2005, a significant increase from 168 in 2004 and 67 in 2003.
- The process of demining as reported by the state has been slow. A total of 2,171 mines were cleared from 300,000 square meters of land in 2005. Allegations were reported in Diyarbakir and Mardin in the southeast of the country that security forces sometimes purposefully leave unexploded debris in areas endangering civilians

HRA, 27 February 2007:

INCIDENTS of LANDMINE and UNIDENTIFIED ORDNANCE

	Death	Injured
Children	5	32
Women	1	5
Men	34	101
TOTAL	40	138

Landmine Monitor Report, 2006:

"Turkey is affected by landmines and unexploded ordnance (UXO). The problem derives mainly from antipersonnel mines laid by government forces on Turkey's border with Syria in 1956-1959, as well as around security installations and on some sections of the borders with Armenia, Iran and Iraq to prevent illegal border crossings. Landmines were also laid by government forces in the east and southeast of the country during and after internal armed conflict in 1984-1999, with "the purpose of hindering terrorists from moving into central regions." During the same period and subsequently, PKK/Kongra-Gel and associated armed groups also used mines in these areas.[...] In May 2006, Turkey reported that a total of 984,313 mines, of which 164,497 were antivehicle mines emplaced on the Syrian border and 819,816 were antipersonnel mines emplaced in an unspecified number of areas within the country and along the border with Syria.[...] In its Article 7 report submitted in May 2005, Turkey had reported a total of 919,855 mines in known mined areas across its territory, and at least 687 mines in locations suspected to be mine-contaminated.[...] Turkey explained that the increase in the numbers reported in 2006 was due to the fact that, "fields which were suspected of being minefields, indeed, turned out to be minefields." [...] Turkey reported previously that it had laid 936,663 antipersonnel landmines between 1957 and 1998.[...]"

"Key developments since May 2005: Turkey declared a stockpile of 2,979,165 antipersonnel mines, a larger figure than reported before; for the first time it included 22,788 artillery-delivered ADAM mines in the total. Turkey reported that in December 2005, the NATO Maintenance and Supply Agency and a company signed an agreement

to establish a new facility to destroy stockpiled mines. In May 2006, Turkey said that the victim-activation components of M18 Claymore mines will be destroyed. On 18 July 2006, the Kurdistan Workers' Party committed to a ban on antipersonnel mines by signing the Geneva Call Deed of Commitment. There were at least 220 new landmine/UXO casualties in 2005, a significant increase from 168 in 2004 and 67 in 2003. A total of 2,171 mines were cleared from 300,000 square meters of land in 2005. The process of inviting national and international companies to tender for clearance of mined areas, in return for their free use of the land, was contested in parliament.

US DOS, 28 February 2005:

"According to the HRF [NGO Human Rights Foundation], landmines and unattended explosives killed 31 civilians and injured 78 during the year. Both security forces and the Kurdistan Workers Party (PKK)--a terrorist organization that in 2003 changed its name to the Kurdistan Freedom and Democracy Congress (KADEK) and later to the Kurdistan People's Congress (KHK, or Kongra-Gel)--used landmines; it was not possible to verify which side was responsible for the mines involved in the incidents."

Turkish MFA, 15 March 2002:

"In view of the human sufferings and casualties caused by anti-personnel land mines, the international community has long been endeavoring to take effective measures in order to prevent their use. The resolutions of the United Nations General Assembly calling on Member States to implement a moratorium on the export of anti-personnel land mines constituted an important part of these efforts since 1993. In light of these resolutions, Turkey unilaterally declared on 17 January 1996 a comprehensive moratorium on all anti-personnel land mine exports and transfers for a renewable term of three years. Moratoriums on the export of anti-personnel land mines were superseded on 1 March 1999 by the entry into force of the Ottawa Convention, which provides for the total prohibition of the use, stockpiling, production and transfer of the said mines as well as their destruction.After careful consideration, Turkey has now decided to accede to the Ottawa Convention. Moreover, Turkey and Greece have agreed to concurrently start the procedures that will make both countries parties to the Ottawa Convention. Turkey has come to the stage of submitting the Convention to the Turkish Grand National Assembly for finalization of the accession procedures. In the meantime, the duration of Turkey's national moratorium on the export and transfer of anti-personnel land mines expired in January 2002. Turkey has decided to extend once again her moratorium on the export and transfer of anti-personnel land mines, this time indefinitely, as an expression of her sincere commitment to becoming party to the Ottawa Convention."

Women

Multiple vulnerabilities of displaced Kurdish women (2001-2009)

- Socially attributed gender roles make an additional impact on displaced Kurdish women. A group of problems concern survival and reconstruction of the social fabric in the place of displacement, especially language and health problems, and poverty have affected the situation of women.

- In 2009, Human Rights Commissioner underlined concerns on situation of displaced women. Access to education and education levels in the southeast are reported far below the national average, and there remains considerable limitations to women's access to livelihoods.
- Destruction of lives, possession and social life cause isolation, despair and hopelessness, destruction of social fabric and vulnerability to violence. Studies have revealed high levels of trauma associated with displacement which has been left unaddressed.
- Employment necessity puts displaced women under moral pressure, whereas cultural and language barriers keep them from labour market. Language problems make access to social services for Kurdish women more difficult as underlined in KHRP reports.
- Women's rights groups report that there remained dozens of honour killings every year, mainly in Kurdish families in the southeast or among migrants, and displaced, from the southeast living in large cities. There are also reported high rates of domestic violence, and high rate of suicides among young girls, particularly in the southeast and east.
- The Batman Bar Association identified forced displacement as one of the main reasons for the increasing suicide rates among women in south-eastern Turkey. Displaced men have more opportunity to socialize with other people and have more freedom while women faced more difficulties in adapting to urban life. High rates of suicide are reported in areas affected by internal displacement

KHRP, August 2009

Despite some positive reforms in this area, the mission heard that women in the Kurdish regions face an array of barriers that seriously hamper their access to the justice system. Women are often discouraged from filing complaints against perpetrators of domestic violence and other offences because of a lack of awareness of their rights. Even when women do file complaints with the authorities, officials routinely refuse to take their case seriously and fail to implement the protective measures that are theoretically available to them. The mission heard that further obstacles include language barriers, severe failings in the provision of legal aid and serious shortcomings in medical examinations of alleged victims of abuse....

More generally, the mission heard that women's access to justice in the Kurdish region, and the willingness and ability of women to take advantage of the protection that are available to them, is severely hampered by a widespread lack of awareness of their rights. It was reported that this lack of awareness is particularly common for women living in rural areas because of the particular dominance of patriarchal values in such areas.⁹³ This lack of awareness is exacerbated by restricted access to education and high levels of illiteracy amongst women in the Kurdish region. The rate of illiteracy amongst women in south-eastern Turkey is around 40 per cent, far higher than the national average of about 20 per cent. The mission heard that the majority of women who apply to the Women's Rights Centre of the Diyarbakır Bar Association for legal advice and legal aid have either never been to school, or else left school without completing their primary education.

Demirler, Derya, Gender Dimensions of Internal Displacement in Turkey, January 5-7, 2007:

"Comprising the 50 percent of IDPs, women suffer from a bunch of interrelated problems, including poverty and joblessness, inadequate access to education, health care, and psychosocial care. Those problems are similar with the experiences of IDP men. However, the "gender roles" attributed to women and men socially, make the difference. When we give up thinking about the internal displacement issue for a while, we see that the experience of being a Kurd is not same for Kurdish men and women in

access to public sphere (education 4, justice, social services, healthcare etc.). All of those can be evaluated as a consequence of the ethnicity and gender-differentiated practice of citizenship which allows Kurdish men to become breadwinners and to be more accustomed to use public services while confining women to the households as primary caretakers. Hence we can say that Kurdish women are doubly marginalized, first because they are of Kurdish origin, second they are women. The combination of the burden of ethnic identity and gender roles make women more vulnerable in the course and aftermath of the internal displacement process.

US DOS, March 2007:

"The government undertook a major campaign during the year to end the practice of honor killings--the killing by immediate family members of women suspected of being unchaste; however, the practice remained a problem. The government reported that there were 1,806 honor killings between 2001 and 2006. During the same period, 5,375 women committed suicide. After the government increased penalties for honor killings, family members increasingly pressured girls to kill themselves in order to preserve the family's honor, according to women's rights groups. Broaching the formerly taboo topic, Prime Minister Erdogan condemned the practice of honor killings at the Organization of the Islamic Conference in November. In July the Prime Ministry issued to all ministries and provincial governments a circular that reminded each government institution of its responsibility to prevent domestic violence, including honor killings. In December the interior ministry issued a circular to provincial governors instructing them to form special committees to prevent honor killings. Turkish imams joined pop music stars and soccer celebrities to produce television and billboard ads declaring honor killing a sin and condemning all forms of violence against women. The State Ministry for Women began a prevention of violence against women educational program for all soldiers doing their mandatory military service. Government officials worked with advocacy groups such as KAMER, the leading women's organization in the southeast, to hold town hall meetings and set up rescue teams and hotlines for endangered women and girls. Under the Penal Code, honor killings require punishment of life imprisonment. Women's rights groups reported that there remained dozens of such killings every year, mainly in conservative Kurdish families in the southeast or among migrants from the southeast living in large cities. Because of sentence reductions for juvenile offenders, observers noted that young male relatives often were designated to perform the killing."

EC, 6 November 2006:

"Crimes in the name of honour and suicides committed by women due to the influence of the family continue to occur, especially in the regions of the East and Southeast. Nonetheless, there is still a lack of reliable data on such events as well as on domestic violence more generally. According to the preliminary results of the UN Special Rapporteur on Violence against Women, causes of suicides are early and forced marriages, domestic violence and denial of reproductive rights. Poverty, urbanisation, displacement and internal migration, and thus changing socioeconomic situation of women are the contexts within which suicides occur. Women's suicides are not always properly investigated, especially in the Southeast, In parts of the South East it still occurs that girls are not registered at birth. This hampers the fight against forced marriage and crimes in the name of honour since these girls and women cannot be properly traced. There is still a need to further increase the provision of shelters for women subjected to domestic violence. The provision in the Law on Municipalities, adopted by Parliament in July 2004 is not yet fully implemented. All municipalities with a population greater than 50 000 should provide a shelter. Women remain vulnerable to discriminatory practices,

due largely to a lack of education and a high illiteracy rate. The girls' education campaign conducted by the Ministry of National Education and UNICEF ensured the enrolment in primary schools of 62 000 girls in 2005, which would otherwise have been out of school. In 2006 the campaign was extended to all 81 provinces.

UNIFEM, 2005:

The UN Committee on the Elimination of all forms of discrimination against women (CEDAW) issued its concluding comments regarding Turkey's obligations under the CEDAW treaty in February 2005. While the Committee does not specify issues related to internally displaced women in particular, the Committee calls upon the national authorities to undertake a number of measures to ensure equality and access to basic services for all women. See CEDAWS Concluding Comments.

KHRP, November 2004:

"Saadet Becerikli, Chair of the Batman branch of IHD and representative of the Women's Platform underscored the plight of displaced women. She spoke of their inability to adjust to urban life, their problems of identity, lack of language and their vulnerability to sexual violence and exploitation.[.] She also referred to the high incidence of depression, which can result in attempted or actual suicide and/or mental illness. [...] Many displaced Kurdish women are either widowed or wives of "disappeared" or "missing" men. During the 1990s, thousands of men were killed or 'disappeared'; others are in prison or have migrated to Europe. The resulting destitution forces many women into prostitution. They are also vulnerable to sexual trafficking, which operates in the region, forcing young women and girls to work in the sex-trade in Europe and the Gulf States....Although Kurdish families are typically close-knit, years of oppression have weakened the family unit. Many women now find themselves victims of domestic violence from male relatives. Women in the southeast are in need of specialised support to aid their return to their villages and to enable them to take up their traditional livelihoods. They require guarantees of individual security, compensation, repair or reconstruction of their houses, and gender-sensitive agricultural extension services Often Kurdish women do not have adequate knowledge of the Turkish language and are thus prevented from communicating with health care professionals. Consequently, displaced Kurdish women have poor reproductive and gynaecological health. Their conditions are exacerbated by inadequate nutrition, housing and sanitation.

Human Rights Foundation of Turkey, March 2001, sect. 2:

"The finding of a research carried out by Batman Bar Association in March, asserted forced displacement [as] one of the main reasons for the suicide acts that have been intensified in the region for a while. In the research it was found out that, most of the people who committed suicide were those who have been forced to migrate to Batman since 1985."

EC, 8 November 2006:

"Poverty, urbanisation, displacement and internal migration, and thus changing socioeconomic situation of women are the contexts within which suicides occur. Women's suicides are not always properly investigated, especially in the Southeast."

UN, 31 May 2006:

The causes of a suicide are hard to understand, not least because the victim cannot be asked about her motives. Typically, personal, family and societal factors interlink. I have found that the patriarchal order and the human rights violations that go along with it - for

example, forced and early marriages, domestic violence, and denial of reproductive rights - are often key contributing factors to suicides of women and girls in Southeast and Eastern Turkey. Additional pressures result from the fact that women have to navigate between the multiple demands imposed by the traditional order and rapid socioeconomic change in the context of urbanization and internal migration as well as having to cope with poverty, displacement and the ambiguities created by the political tensions often experienced in the region. Reportedly, in some suicide cases, child sexual abuse in the family circle also appears to be a major factor. Therefore, there is an urgent need to overcome social taboos and openly discuss study and address this problem."

Children and adolescents

Child Protection concerns amongst displaced community (2001-2009)

- Kurdish children face numerous protection concerns. Kurdish children including displaced have access to education limited on various grounds. As the Minority Report in 2009 underlined, there persists to be stringent obstacles to Kurdish children to have access to appropriate education facing problems of discrimination, lack of facilities and poverty.
- In recent years, human rights associations such as the HRA and KHRP in 2009 have widely condemned the trials of Kurdish children arrested in civil demonstrations on grounds of supporting the PKK and tried as adults under anti-terror legislation. Human rights organisations have raised concern that the state fails to address child rights.
- Survey in Van province in 2006 revealed that IDP children in cities display lower rates of schooling in comparison to IDP children living in villages. There is extensive use of child labour as a survival strategy of IDPs living in the city. Child labour linked to the culture of poverty reproduced on the blueprints of traditional rural culture within the settings of squatter life
- Displaced children have suffered greatly due to the conflict in the south-east. Data from the Human Rights Association of Turkey in 2003 indicates that 43.4% of displaced children have cut formal relations with schools and are forced to work in inadequate conditions
- The UN Committee on the Rights of the Child recommended in 2001 that Turkey assess the situation of displaced children in more detail in particular, the Committee called for the collection of data and statistics on displaced children

MRG, January 2009:

Today, many members of minority communities feel that the Turkish education system works to assimilate them. Turkish identity and nationalism are promoted as fundamental values while distinct minority cultures, history and religions are ignored. Because Turkey recognizes only Armenians, Jews and Rums as minorities, no other minorities have the right to open their own schools. No minority language can be used at public schools as the language of instruction; and none of these languages can be taught at public or private schools as a selective language course. Minority students face discrimination within the education system.... A survey of Kurdish families displaced by conflict in the 1990s showed that in areas such as Diyarbakir and Istanbul, more than half of the displaced children did not attend any schools, mainly due to poverty and the need to work. These factors also affect the thousands of children forced to undertake seasonal agricultural work in Turkey, a large proportion of who come from predominantly Kurdish

areas. Due to spending months away from home, these girls and boys, some of whom are as young as 11 years old, have severe difficulty continuing with their education.

US DOS, 25 February 2004:

“There were reports of abuse of children. Children have suffered greatly from the cycle of violence in the southeast. In the past, the migration--forced or voluntary--of many families, past terrorism against teachers, and school closings uprooted children and moved them to cities that were hard pressed to find the resources to provide basic, mandatory services such as schooling.”

HRA/OMCT, May 2003, Sect.IV:

“According to HRA data, 43.4 % of the displaced children have cut their formal relations with the schools and had to work under very bad conditions. For instance, a lot of children, as their parents cannot afford to send them to school (paying school books and clothes), end up in working in textile shops, in the construction sector, as shoe shiners or as street sellers.”

Committee on the Rights of the Child, 8 June 2001, paras. 59-60:

"The Committee expresses its concern at the higher number of internally displaced children in Turkey, who were forced to leave their homes towns in the 1990s owing to the high level of violence in the south-east region. The Committee is also concerned about their limited access to housing, health services and education.

In line with the Guiding Principles on Internal Displacement (E/CN.4/1998/53/Add.2), the Committee recommends that the State Party ensure that internally displaced children and their families have access to appropriate health and education services and adequate housing. Further, it invites the State party to collect data and statistics in order to know how many children are displaced and what their needs are with a view to developing adequate policies and programmes."

[UNICEF Turkey](#) does not focus its work specifically on displaced children, but provides broader information on children in Turkey

See also, [Concluding Observations from the UN Committee on the Rights of the Child](#), with regard to the Optional Protocols on the sale of children, prostitution and pornography (June 2006)

Freedom of movement

Some restrictions in freedom of movement in parts of the southeast (2004-2009)

- KHRP in 2009 reported the presence of restrictions in movements in three provinces affected by 'temporary security zones' particularly during military operations, including checkpoints, and access to fields and property.
- Some restrictions reported in 2007, including heavy security presence in southeast (in response to increasing "terrorism") and villagers denied access to fields and pastures for grazing.

- In June 2007 the government declared the provinces of Siirt, Sirnak and Hakkari, as 'temporarily security zones' and increased the number of troops deployed along the border with northern Iraq.
- Civil society organizations reported that movement to villages in the southeast depended on official permission, bans on going to mountains, villagers are subjected to ID controls at police check points (2004)
- The International Federation for Human Rights, following a mission to the country in May 2003, reported numerous checkpoints in the South eastern provinces and restricted circulation
- Although the Government lifted the State of Emergency (OHAL) in the southeast in 2002, it has continues to retain a heavy security presence in the region. Provincial authorities in the southeast denied some villagers access to their fields and high pastures for grazing, citing "security reasons"

US DOS, 6 March 2007

"The law provides for these rights; however, at times the government limited them in practice. The law provides that a citizen's freedom to leave the country could be restricted only in the case of a national emergency, civic obligations (military service, for example), or criminal investigation or prosecution. The government maintained a heavy security presence in the southeast, including numerous roadway checkpoints. Provincial authorities in the southeast, citing security concerns, denied some villagers access to their fields and high pastures for grazing."

EC, 8 November 2006

"A number of security measures have been reinstated as a response to the escalation of terrorism, such as road blocks and checkpoints in some provinces of the Southeast. On the legislative side, amendments to the anti-terror law were adopted in June 2006."

HRFT, August 2004

"The report titled 'Return to Village After Forced Internal Migration' by the Turkish Economic and Social Studies Foundation (TESEV) was made public at the end of August. The report, prepared by Prof. Fusun Ustel emphasized that the return to villages should be carried out while respecting human dignity. Civil society organizations that were consulted during the preparation reportedly stated that a permanent solution for migration was only possible with bringing a general solution for the Kurdish question. These organizations reportedly alleged that a normalization was not realized wholly on the grounds that departures from and arrival to the villages were subjected to official permissions, there were still bans on going to mountains, villagers are subjected to ID controls at police check points although two years passed after the lifting the OHAL."

COE PA Monitoring Committee "Report of the Co-Rapporteurs" March 2004, para.217

"The co-rapporteurs were relieved to learn that the state of emergency had finally been lifted in Hakkari and Tunceli provinces on 30 July 2002 and in the last two, Diyarbakir and sirnak, on 30 November 2002. However there were still gendarmerie road blocks and check points, as the co-rapporteurs saw when they travelled from Diyarbakir to Bingol in May 2003."

US DOS 25 February 2004, Sect.2d

"Although the Government lifted the state of emergency in the southeast in 2002, it maintained a heavy security presence in the region, including numerous roadway

checkpoints. The Government estimated there were 4,500 to 5,000 armed PKK/KADEK/KHK militants across the border in northern Iraq, and another 1,000 in the southeast of the country."

FIDH July 2003, p.15

"Despite the lifting of OHAL (State of Emergency Rule), numerous checkpoints are still in place. They make circulation in the region considerably difficult, and sometimes hazardous with apparent discretionary power left to the security forces. FIDH's delegation itself faced numerous checkpoints during the mission in May, and in particular on the road from Diyarbakir to Bingol and sirnak."

A fact-finding mission by the Kurdish Human Rights Project, together with the Bar Human Rights Committee of England and Wales and Human Rights Association Diyarbakir branch in August 2002 and June 2003 found a general failure to secure the safe return of displaced villagers; an effective police state dominating all aspects of daily life; and an increase in human rights violations. See ["In the Wake of Lifting of State of Emergency Rule-Report of a Fact-Finding Mission to Southeast Turkey"](#) KHRP

SUBSISTENCE NEEDS

General

IDPs' enjoyment of economic and social rights (2003-2009)

- In November 2009, the European Commissioner for Human Rights reiterated concerns on socio economic conditions facing IDPs and returnees underlining serious challenges with very high rates of unemployment, and limited livelihood opportunities. Reiterating concerns that had been voiced repeatedly by the European Commission.
- MRG and IDMC/TESEV in 2006 would underline that housing and basic physical needs of IDPs not met. IDPs in cities face economic, social and cultural problems and limited access to services. Lack of adequate programmes and language barrier an impediment to social relations leading to social exclusion and discrimination
- In 2006, the Representative of SG on Human Rights underlined precarity of socio-economic conditions facing IDPs. Large numbers of displaced persons live in extremely poor conditions on the periphery of cities and in larger villages. IDPs face severe social and economic problems and unemployment rates amongst the IDP population is high
- Displaced women and children face difficulties in accessing educational and health facilities and psychosocial care. Displaced children are particularly exposed to physical, sexual and drug abuse, as well as police brutality
- Decrease in child education and increase in child labour amongst displaced children Large numbers of displaced persons live in extremely poor conditions on the periphery of cities and in larger villages

CoE, November 2009

121. The Commissioner has noted and remains deeply concerned at reports indicating that the eastern and south-eastern parts of Turkey, from which the majority of the IDPs originate, remain in a serious state of economic and social underdevelopment, a fact that constitutes one more, serious stumbling block to the voluntary return of the IDPs, especially of those who now find themselves established with families in areas far away from their original home. In late 2008 the Commissioner was informed of the publication of a report by the Union of Southeastern Municipalities (GABB) indicating, inter alia, that the gross national product per person in 21 provinces in the above areas was 12% of the EU average while 46% of the holders of green cards, provided to persons with low income to benefit from free health and social services, lived in the 21 provinces of eastern and south-eastern Turkey that were covered by the GABB report.

122. Serious human rights challenges regarding especially children and women are posed in these areas. In 2000 the literacy rate was reported to be 73.3% in the southeast and 76.1% in the central-eastern region, while the national average had been reported to be 87.4%. Women's literacy rates in the aforementioned areas were reported to be considerably lower: 60.3% and 63.6% respectively.⁹⁸ The Commissioner is worried by data of the International Labour Organisation (ILO) showing that in 2006 there were 945 000 children in Turkey aged 6 to 14 who did not study for financial reasons and by a recent special report noting that many of these children, coming in particular from southeast and centraleastern Turkey, work as seasonal workers in the

south or in the north of the country. The Commissioner has noted with satisfaction the authorities' efforts aimed at increasing these children's enrolment at schools.

UN GA, 16 November 2006:

"Interlocutors both within Government and from the non-governmental sector voiced concern over the numerous obstacles for IDPs in the enjoyment of their economic and social rights. Many work in the informal sector or are unemployed, which means that they are often excluded from social security, which in turn excludes them from most forms of health care, although IDPs frequently have increased health-care needs, e.g. because of malnutrition. These circumstances render IDPs particularly vulnerable to child labour. Access to education is a problem for many IDP children. Non-governmental actors underlined the grave psychological consequences of the violence and displacement: many IDPs still suffer from post-traumatic stress syndrome and depression, and do not receive adequate treatment."

IDMC/TESEV, June 2006:

"The majority of the IDP population in Turkey has been living in urban centres for nearly ten years. Since there are no programmes specifically addressing the current conditions of the displaced, they have had to face enormous problems such as endemic unemployment, abuse of child labour, lack of access to education and health care services, and almost no psychosocial care for women and children. The government, UNDP and civil society organisations urgently need to cooperate in order to develop projects that would specifically target the problems of urban IDPs. These projects should address children's education, adult literacy and skills training as well as employment creation and preferential loans for small business startups. The numbers of community, women's and children's centres should be increased and they should be given capacity building training to serve the particular needs of the displaced."

MRG, 2006, pp.10-11:

The basic physical needs of IDPs have never been met, either at the time of their displacement or in the following years. The IDPs did not migrate in an organized and orderly manner, and were not provided with appropriate or adequate shelter. In order to meet the cost of renting accommodation, displaced people have had to endure extreme overcrowding. There have been frequent reports of large groups living in insanitary conditions in single rooms.[...] Because IDPs were forced to use their own resources to migrate to towns and the suburbs of major cities, they began to experience serious problems in accessing healthcare, education, transport, employment and, above all, housing. This in turn triggered other problems, including the inability of the youth living in impoverished districts, most of whom were migrants, to access education, and subsequently criminality arising from unemployment experienced by the same group. The extremely harsh conditions in which IDPs have subsisted persists.[...] Local authorities and central government were also caught off-guard by this wave of migration and failed to provide IDPs with the assistance they needed. The only social assistance programmes were assistance funds intended for the poor, and the 'green card' system, which entitles the bearer to free medical care operated by the Social Solidarity and Assistance Foundation. IDPs certainly had poverty related problems, but because the few programmes available were not designed with them in mind, did not meet their needs. For example, during the displacement, home owners were forced to abandon their property owing to armed clashes, but because they remained property owners albeit of property they had no access to they were not eligible for a green card.[.] Under the existing assistance programmes, grants to people living in poverty can only be given

once; they are not ongoing. For this reason such grants are not an appropriate solution to the economic problems of IDPs.[.]

Meanwhile, burdened by economic difficulties, some families cannot afford to send their children to school and have to send them out to work. This in turn has resulted in a sharp increase in child labour.[.] Due to their dire economic circumstances, many families are finding it more or less impossible to participate in social and cultural life. Many displaced people especially women do not speak Turkish well or do not speak it at all, because it is not their mother tongue. This was not a serious problem when they were living in their home villages, but the language problem becomes a serious disadvantage in their social relations, and in their relationship with the authorities, when they are attempting to establish a new life in the towns, and can give rise to discrimination. sometimes, for example, IDPs who do not speak Turkish are unable to communicate their own or their children's needs when shopping or dealing with hospitals or other institutions. This can result in social exclusion or discrimination against IDPs in social life. it can even lead to them being labelled 'terrorists'.[.] The problem also has psychological impacts since displaced people suffer a sense of alienation arising from the long-term obstacles to integration. The mental and physical trauma which began with the migration becomes an endemic condition in the locations to which they have fled.[.]” See also MRG Press Release, International support needed to help Turkey's displaced people.

EC, 8 November 2006:

"The situation of internally displaced persons (IDPs) remains an issue of concern." **EC, 9 November 2005**

EC, 9 November 2005:

The situation of *internally displaced persons (IDPs)* remains critical, with many living in precarious conditions."

EC, 10 October 2004, p.50:

"The situation of internally displaced persons (IDPs) is still critical, with many living in precarious conditions."

HRW 26 January 2004:

"The majority of the displaced are still living in poverty and hardship in urban areas throughout the country"

EC 5 November 2003, p.40:

"The situation of internally displaced persons is still critical. A large number of those displaced live in extremely poor conditions on the periphery of cities and larger villages. Social and economic problems remain acute and unemployment rates are very high. Other concerns include the improvement of housing conditions, greater access to educational and health facilities and psychosocial care for women and children. Children are particularly exposed to physical, sexual and drug abuse as well as to police brutality. It is estimated that there are 10000 'street children' in the Diyarbakyr area."

See also, "Section IV The Current Situation of the victims: destitution, poverty and precarious living conditions" and Annex II of "[House Demolitions and Forced Evictions Perpetrated by the Turkish Security Forces: A Form of Cruel, Inhuman or Degrading](#)"

Health

Health problems and trauma amongst displaced (2002-2006)

- Almost all the displaced entitled to free health care, though of questionable quality. Additional social aid - "conditional cash payments" - available to mothers, but the benefit not commonly known
- High blood pressure, respiratory problems and epidemic diseases related to hygiene identified as three major health problems among IDPs IDPs suffer from less vaccination and nutrition, acute respiratory infection, fever, and less antenatal care compared to overall population
- Children of IDPs likely to suffer from changing conditions and many health indicators reflect that they are disadvantaged compared to overall population. The level of women's access to health services is very low
- Research by Turkish Economic and Social Studies Foundation (TESEV) indicates "serious trauma" among displaced residents of the east and southeast In the Batman province and found that displaced women were the most affected suffering from emotional problems, depression and psychosomatic disorders, as well as suicidal tendencies
- IDPs face unhealthy conditions in new settlement areas, increasing their risk of contracting diseases such as tuberculosis and malaria or mental illnesses. Reasons for limited access include economic problems, lack of health and social insurance and cultural differences.
- Lack of adequate infrastructure and shortage of medical personnel, in particular Kurdish-speaking personnel also make it difficult to combat the health problems linked with poverty. The displaced have also been denied green-cards which would entitle them to get free health consultation and hospital accommodation

Emin Yasar Demirci, Places of displaceds, July-August 2006, p.16-17:

% 91,2 of displaced persons seems to have access to basic health services, although its quality is rather questionable. Adding that figure %7 of those who have full time employment as public sector workers, civil servants and village guards which automatically entitle them to free health care the rate of displaced persons covered by free health care rose to %98,2. in other words, as far as free health care concern virtually almost every displaced are entitled to free health care except for those who were not qualified because of the level of income and/or for those who were not applied for green card "in the survey participants were asked about three health problems as multiple choices most frequently encountered in the family. According to their answers high blood pressure and prolonged headache occupies the first place with 36.2%. The second most frequently encountered health problem among the displaced is related with respiratory system with 35.8% Epidemic disease related to hygiene, particularly food hygiene, and poor living conditions such as typhoid, hepatitis, diarrhea and Brusella occupies the third place with 24%. Cardiovascular problems takes the fourth place with 23.8%, followed by 20.8% of gynecological complaints, of ulcers, 8.1% of diabetes, 7.9% of cancer, 6.5% of ophthalmic disease, 6.3% of rheumatism, 5.5% of orthopedic problems and 3.2% of physical and mental handicapped."

Koç and Unalan, July 2005, pp.16-17:

“In different parts of the world, the experiences and circumstances of children in conflict situations and in forced migration are diverse and cannot be easily generalized. In many situations the health of children may be endangered through malnutrition, poor housing, hygiene and sanitation, and lack of access to basic health care. In order to assess the effect of displacement on children in Turkey context, information collected for children under age five in the woman’s questionnaire was analyzed. As presented in Table 10, IDPs suffer from less vaccination, less nutrition, acute respiratory infection, fever, and less antenatal care compared to overall population. Although IDPs are not very different from Kurdish speaking population with respect to the vaccination indicators, they are slightly better with respect to some other indicators. Another important but indirect indicator of the wellbeing of children is the coverage of birth registration. The findings also indicate that Kurdish speaking population and IDPs are disadvantaged.

Table 10. Basic Health Outcomes of Under-5 Children

Health outcomes	Turkey	Kurdish	IDPs
Vaccination			
BCG	87,7	65,5	52,3
DBT-3	64,4	40,5	36,4
Polio-3	69,1	49,3	40,9
Measles	79,4	47,2	43,5
Full vaccination	54,2	29,2	25,8
Never vaccinated	2,8	7,9	8,2
Nutritional status			
Height-for-age	12,2	22,0	31,1
Weight-for-age	3,9	7,5	11,1
Symptoms of ARI			
Fever	28,8	33,0	33,8
	40,1	47,7	50,2
Antenatal care			
Antenatal visits	81,4	51,6	41,3
Place of delivery: Health facility	78,2	49,4	41,5
Assistance during delivery: Health staff	83,0	55,8	48,0
Coverage of birth registration (Under-5)	84,3	70,4	68,6

Regarding early age mortality indicators, the findings in Table 11 presents the disadvantaged condition of Kurdish speaking population and IDPs. Except for child mortality rate, Kurdish speaking population has higher rates compared to overall population and IDPs have higher rates compared to all other groups. Expectation of life at birth and at age 5 (in years) present a disadvantage of 3-4 years for both groups compared to overall population.”

Table 11. Early Age Mortality Rates, TDHS-2003

Early Age Mortality Indicators	Turkey	Kurdish	IDPs
Neonatal Mortality Rate	17	28	30
Post-neonatal Mortality Rate	12	18	17
Infant Mortality Rate	29	46	47
Child Mortality Rate	9	8	11
Under-5 Mortality Rate	37	54	58
e_0	71,5	67,7	67,5
e_5	72,6	69,9	69,8

(*) Life expectation at birth and at five were based on the infant mortality rates calculated from TDHS-2003 and East model life tables.

p.18:

"Children and women IDPs are especially more vulnerable to changing circumstances during displacement and improved access to, and utilization of, community-based primary and reproductive health care services for them is always vital. This study indicated that children of IDPs are likely to suffer from changing conditions and many health indicators reflect that they are disadvantaged compared to overall population."

Turkish Daily News, 29 June 2005

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"Kocaeli University Faculty of Medicine Emotional Trauma Center psychologist Ozgur Acicbe said displaced residents of the impoverished East and southeast are under serious trauma. He was referring to a Turkish Economic and Social Studies Foundation (TESEV) research project in Batman on the re-establishment of rights as a citizen and social rehabilitation after being internally displaced.... Acicbe, speaking to the Dogan News Agency, said negative developments in the region affect women the most and that they are experiencing serious psychological problems. "The study in Batman is continuing. According to our analysis, the region's people are under severe trauma because of emotional and psychological problems. The emotional problems are mainly depression and psychosomatic disorders. Depression usually results in anger, fear about the present and future and, occasionally, suicidal tendencies and withdrawal from society," said Acicbe.....Acicbe said most psychosomatic symptoms are seen among women, noting a high incidence of complaints about aches and pains in the back, neck, head and gastrointestinal system..... As tension increases in the region from time to time, they said their pains increase. We believe the complaints are attributable to worsening economic and living conditions. Their social fabric has been damaged and they encountered more problems after migrating from their homes."

HRW, March 2005, pp.31-32

"That IDPs have suffered psychological trauma is well documented. A 1998 medical study carried out on a group of internally displaced found that 66 percent were suffering from post-traumatic stress disorder, with 29.3 percent showing profound depression. [74] Another survey recorded that 9.5 percent of displaced were suffering from mental illness arising during or after displacement. [75]"

Footnotes

HRA/OMCT May 2003, Annex II

Statistical survey carried out by Gbc-der on 2,139 families (17,845 people) indicates health problems after forced displacement

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Health Migration	After Forced	No Families	of %
Yes		1,762	82.4
No		377	17.6
Total		2,139	100.0

statistical survey carried out by Gbc-der on 2,139 families (17,845 people) indicates psychological problems due to forced displacement

Psychological Damages^	Number	of %
Families		
Yes	1,208	79.9
No	431	20.1
Total	2,139	100.0

Gbc-Der 2002, p.68-II

"The analysis reveals that the unhealthy conditions in the new settlement areas lead to the spread of many different diseases within the migrant population. Existence of diseases such as tuberculosis and malaria, which are in a continuous trend of decrease both in Turkey in general and in the world, and the spread of mental diseases should be taken into close consideration and serious and permanent measures have be taken to prevent them, since these contagious and mental diseases not only affect the migrants but also threaten the health conditions in the social environment and wider society. The data presented about the pregnancy and parturition periods of women together with the data on whether they apply to a doctor for gynecological diseases or not uncover the fact that the level of women's access to health services is very low."

Gbc-Der 2002, p.79-II

"The low rate of migrants' access to health services can largely be accounted for by economic problems, lack of health and other social insurance, the difficulties encountered due to linguistic and cultural differences and faith in traditional and religious values. On the other hand, there exist several factors that have particular effects on the increase in health problems, such as infra-structural insufficiencies, non-hygienic conditions of the new living areas, nutrition problems, the pressure the migrants have been subjected to both during and after the migration, fear, psychological uneasiness and anxiety stemming from living in a alien environment."

COE, 22 March 2002

"inadequate health care is a big problem for the displaced persons. The region is far behind the rest of the country in several important indicators of health care. Lack of adequate infrastructure, and shortage of doctors and nurses (in particular those speaking Kurdish) make it extremely difficult to efficiently combat health problems resulting from poor living conditions. Moreover, prescribed medicines are usually unaffordable for the displaced. A number of communicable diseases such as typhoid, para-typhoid, trachoma, brucellosis and amoebic dysentery are endemic throughout the region."

HRW, 30 October 2002

"The very poor can apply for a 'green card' that enables them to get free consultation and hospital accommodation, although it does not cover the cost of medication. According to the Emergency Region governor, 26 percent of the population in the region qualifies for a green card. However, displaced people have difficulty in getting their green cards. since only indigent people can receive a green card, villagers who own substantial property may not qualify in spite of the fact that they are denied access to that property, which could otherwise provide them with income to finance their own health care. if they do qualify, the security forces can still obstruct their application, because a series of officials, including the local security force chief, must sign the application. This necessitates an anxious journey back to their village in order to obtain a signature from the nearest gendarmerie commander. A villager told Human Rights Watch that a gendarmerie commander had written on his green card application form: 'PKK member but not on the wanted list.' Another was unable to obtain a green card after soldiers tore up his application file and ejected him from the gendarmerie station. Older villagers spoke of deep depression, a sense of alienation due to their changed circumstances, and listlessness arising from long periods of unemployment. The violence of their original uprooting frequently aggravated these symptoms. A 1998 medical study carried out on a group of internally displaced found that 66 percent were suffering from post-traumatic stress disorder, with 29.3 percent showing profound depression."

See also: "The Wall of Denial: Internal Displacement in Turkey," US Committee for Refugees (USCR), 1999, p.21 "Humanitarian Situation of the Kurdish Refugees and Displaced Persons in South-East Turkey and North Iraq," Doc 8131, Council of Europe (COE), Parliamentary Assembly, Committee on Migration, Refugees and Demography, 3 June 1998

Shelter

Shelter: Displaced live in precarious and crowded housing conditions (2002-2009)

- Post displacement housing conditions for displaced Kurds includes squatting in settlements, homelessness. Overcrowding is also reported to be common among internally displaced families who are forced to live together due to economic problems
- A Council of Europe report in 2002 indicates that the government has generally failed to provide emergency assistance to those displaced in the southeast, including provision of shelter. Many iDPs fled from rural areas to provincial cities, crowding into homes of relatives, resulting in single family dwellings housing up to thirty people
- The majority of the displaced rural population of Kurdish origin live in urban centres in extreme poverty, with inadequate heating, sanitation and general infrastructure. The displaced have often concentrated in slums in outskirts without adequate infrastructure and services
- Extended kinship relations of Kurds in south-eastern Turkey have allowed the displaced to find a shelter with extended family members
- Construction plans rarely benefit the displaced population. In 2002 in some areas, authorities have provided housing to displaced villagers. Most initiatives however have been intended for former village guards. Evicted villagers were rarely provided with emergency shelters by authorities

Turkish Daily News, 10 July 2005:

"For the second time in 30 years, the Kekilik brood are rebuilding their family home in this village in southeast Turkey -- it was first destroyed by an earthquake in 1975, then burned down by the army in 1995 during the 15-year war with Kurdish separatist militants. Now, in 2005 and six years after Ankara allowed evacuated villagers to return home following a lull in fighting, much of the settlement still looks like an archaeological dig and some families live in sheds made of nylon sheet, plastic and tin plates.[...]The four sons live and work in Diyarbakir, the central city of the region, to feed the crowded household whose farmland and fruit trees also perished when soldiers set Tuzla on fire one night in 1995 and herded its dwellers away. 'This is our home. We want to live here,' said Feride Kekilik as her daughters washed pans in a makeshift kitchen made of nylon sheets with branches for cover outside their roofless two-room house."

HRA/OMCT, May 2003, Sect. IV:

"Post displacement housing conditions indicate that the life style of the victims is often transformed from, one based on detached private housing to one based on squatter settlements or homelessness. In general, squatter settlements lack basic infrastructure and basic household equipment. Moreover, after the forced displacement, most of the families have begun to live together in the same house because of economic problems."

"I am unemployed. I don't know how to survive with my 6 children and wife. We are not used to concrete streets. This is not the place to live for us. If I can find a job and earn money for bus tickets and if the conditions in the village are improved we will return to our village' Extract from the testimony of Mehmet Hadi Karakaya'*In 1996 we also moved to Istanbul. We lived in a humid basement floor for a long time. Now, we live in an apartment in Kocamustafapasa. We even don't have enough bread to eat. Now my two sons work as porterbut since we cannot survive with that money, my two daughters, who are only 11 and 15 years old started to work in a textile shop. In case one child gets ill, we do not have enough money to pay for his/her medical care, because we don't have a social coverage or health insurance.'* Extract from the testimony of Neriman Cicek"

HRA/OMCT, May 2003, Annex II:

Statistical survey carried out by Göç-der on 2,139 families (17,845 people), shows number of IDP families who have faced housing problems after forced displacement

Shelter Problem After Forced Migration	No of Families	%
Yes	1,162	54.3
No	977	45.7
Total	2,139	100.0

COE, 22 March 2002:

"It has to be made clear that generally, the Turkish Government has failed to provide emergency assistance to people forcibly displaced in the south-east, including persons displaced directly as a result of the actions of Turkish military and security forces. These people have not been provided with any shelter or food in the immediate aftermath of the displacement. The Government has not arranged for any temporary accommodation in tents or collective facilities and the displaced persons could count only on their relatives or scarce assistance from humanitarian organisations. As a result, the majority of the displaced persons have flooded the provincial cities (mainly Diyarbakir, Batman, Sirta, Hakkari) crowding into homes of relatives, sometimes with more than thirty people residing in dwellings intended for a single family and setting up shanty towns in the outskirts. The absence of affordable housing for people who have been rendered homeless by the conflict and for different reasons cannot return is still a critical problem. Although the Government has constructed some housing in the towns, the numbers are far from sufficient. At the end of 1997, the OHAL governor stated that 5 524 houses had been built to accommodate displaced

persons, including 693 in Diyarbakir, 932 in Hakkari, 2 767 in Sirnak, 175 in Tunceli, 152 in Van. The majority of the displaced rural population of Kurdish origin live in urban centres in dramatic conditions and extreme poverty, creating specific integration problems for local communities. Overcrowded places have usually inadequate heating, no sanitation and inadequate infrastructure. Malnutrition, insufficient and dirty drinking water, improper disposal of sewage and garbage are common problems. On average, all regional cities in the south-east have doubled or tripled in size in the past decade without a commensurate increase in services such as schools or hospitals. Diyarbakir, the main city of the region, grew from 400 000 in 1990 to about 1,5 million in 1997. Many people from the area have left for the west parts of the country. Istanbul hosts a big number of Kurdish Turks (estimates vary from 1 to 3 millions)."

HRW, 30 October 2002:

"When gendarmes destroyed their homes and drove them from their lands, villagers sold off whatever livestock they had managed to save from the fires and shooting and went in search of shelter. Some camped by highways near enough to their villages to tend their crops. Others went to the nearest town or city and put up makeshift dwellings of tarpaulins and packing cases on vacant ground. Villagers crowded in with relatives or into rented accommodation, agricultural buildings, or construction sites with neighbors from the same village. If displaced villagers had remained clearly visible in tent settlements, the authorities might have felt under more pressure to remedy their plight. But the displaced are resourceful and have turned to extended family and community structures to pool resources and find work and housing. According to a 2002 survey carried out by the Migrants' Association for Social Cooperation and Culture (Goc-Der), a Turkish nongovernmental organization, more than half of the displaced villagers had found accommodation in *gecekondu*, or shantytown dwellings but, ten years after the worst of the displacements, some 5.7 percent of respondents were still living in tents or sheds. Language problems exacerbated the difficulty of finding accommodation and integrating in the cities of the west. Goc-Der's study among the displaced found that 17.6 percent of the sample reported that their poor command of Turkish had created problems in finding housing. Only 11.4 percent of adult males spoke Turkish as their mother tongue, and 60.9 percent of displaced women spoke no Turkish at all."

HRW, June 1996:

"[T]he forced migration connected with the conflict in southeastern Turkey has been chaotic and unorganized. Only the extended kinship relations of Kurds in southeastern Turkey have prevented a larger crisis, allowing the displaced to find a shelter with extended family members. Individuals who flee or are forced out of their villages in southeastern Turkey haphazardly sought refuge in already overburdened provincial towns and cities within the region or in Turkey's teeming western urban centres."

USCR, 1999, pp. 19-20:

"Along with unemployment, the absence of affordable housing is a critical problem. A Kurdish lawyer commented, 'There is no public housing in Turkey; there are no housing rights here. The migrants are forbidden to live in the slums, but if someone has no money, he has no choice. They cannot build houses on state property.' *According to Minister [of Interior Nahit] Mentele's statement in parliament, the government had in 1993 supplied 500 families with substitute housing. He was probably referring to the pre-fabricated emergency dwellings that are commonly sent to the region following earthquakes (which occur frequently in eastern Turkey). We are not aware of any group of evicted villagers before the autumn of 1994 being given such dwellings, nor other forms of compensation. Virtually all evacuees of whom we are aware had to find a new*

place to stay by themselves. (In this respect, the village evacuations in Tunceli were exceptional, for here the government did provide some of the evacuees with shelter and even compensation...).... Some families were reported living in tents around the town of Ovacyk, others were lodged in a few public buildings. The government erected emergency dwellings for some of the homeless near Ovacyk, but it was doubted whether these simple structures would be able to withstand the severe winter.⁷⁰

Emergency shelter per se—or even more permanent dwellings—is only part of the problem. Since the displaced congregate in the *gecekondular* ['huts built in one night', in slums in the outskirts of cities], which, by their very nature, the government seems to consider a blight unworthy of efforts to improve them, a host of infrastructural needs go unmet. In the quarter of Mersin where the displaced live, USCR heard complaints of uncollected garbage, potholes, and mosquito infestations. In April 1996, the Habitat International Coalition (HIC) sent a fact-finding mission to Turkey to assess housing conditions for the displaced. The report found: *The urban areas to which the displaced Kurds have fled are completely neglected by the Turkish authorities. In both Diyarbakyr and Istanbul, HIC found neighborhoods without access to potable water, adequate sanitation facilities, and electrical connections.* The 1997 Turkish Parliamentary Commission report includes a letter from the OHAL governor, dated November 11, 1997, stating that 5,524 houses were built to accommodate displaced persons, including 693 in central Diyarbakyr, 932 in Hakkari, 2,767 in Sirnak, 175 in Tunceli, 152 in Van, 258 in Bingol, 62 in Bitlis, 465 in Mardin, and 465 in Mufl. Although the government has constructed some housing, displaced persons and others told USCR that occupancy is part of the reward system tied to the village guard structure. A man in Diyarbakyr told USCR that in his city 'the government built 500 cottage houses for migrants, but they gave them all to village guards. Some flats were built that were supposed to be for poor people, but now professionals who can afford the rents are living in them. Rents are astronomical.' USCR observed a construction boom in areas on the periphery of the conflict zone, particularly in Sanliurfa, on the outskirts of Mersin, and in Mersin itself. USCR noted scores of apartment buildings in various stages of construction. Although the city is overcrowded and has a teeming slum of Kurdish migrants, it is unclear whether the construction boom will benefit the displaced population. Mersin, located on the Mediterranean coast, is establishing itself as a tourist center, attracting busloads of Syrians."

Göc-Der, 2002, pp.72-74-I:

Kinds of residences before and after migration (January 2002) based on a survey by Göc-Der amongst 17,845 displaced Kurds

Table 91: The Kinds of Residences Before Migration

The Kinds of Residences Before Migration	N	%
Slum	45	2.1
Shed	27	1.3
Detached Village House	1682	78.6
Rented Appartment Flat	19	0.9
Appartment Flat Owned by Himself/Herself	117	5.5
Detached House	228	10.7
Other	21	1.0
Total	2139	100.0

Table 93: The Kinds of Residences After Migration

The Kinds of Residences After Migration	N	%
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Rented Slum	621	29.0
Slum Owned by Himself/Herself	610	28.5
Shed	93	4.3
Tent	30	1.4
Rented Appartment Flat	386	18.0
Owner Appartment Flat	232	10.8
Basement Floor	30	1.4
Other	137	6.4
Total	2139	100.0

ACCESS TO EDUCATION

General

Limited Access to Education (2005-2009)

- MRG in its report in 2009 extensive obstacles to Kurdish communities, including displaced children to education. This refers to continuous discrimination in the education system as well as socio-economic marginalisation, wherein significant percentage of IDP children have limited access or absent from school.
- In 2006, the EC underlined that children whose mother tongue is not Turkish cannot learn their mother tongue in the public school system
- Study undertaken in Van in 2006 shows significant percentage of illiteracy and miniscule percentage of university qualifications of IDPs in Van
- The study also revealed that education-related problems one of major issues for IDPs, particularly children. Illiteracy among women is also more prevalent than among men, with educational level worse in the city than in the villages
- Low levels of school attendance particularly among girls in parts of the Southeast (2006) There persists to be high levels of illiteracy among women and girls in rural areas is reported and low levels of school attendance, in particular in rural areas of the South East
- In 2005, reports indicated that school attendance of Kurdish speaking population and IDPs consistently lower compared to overall population. The difference is bigger in university ages and these trends more alarming for females
- Considerable resources and sustained commitment by governments and donors are necessary to ensure full and equal participation of women and girls in educational programs
- In 2002, survey of school absenteeism revealed that reasons of school absence are mainly poverty, work, absence of school, gender, cultural differences, family
-

MRG, March 2009

Though the European Union (EU) accession process has had some positive impact on the education rights of minorities in Turkey, much remains to be done. The EU should put more emphasis on minorities in Turkey in its accession progress reports, especially in light of the fact that Turkey's most disadvantaged communities, such as displaced Kurds and Roma, remain extremely marginalized, including in education. Demolitions of Roma areas for 'urbanization' projects have left many Roma displaced and hundreds of children unable to go to school. A survey of Kurdish families displaced by conflict in the 1990s showed that in areas such as Diyarbakır and Istanbul, more than half of the displaced children did not attend any schools, mainly due to poverty and the need to work. These factors also affect the thousands of children forced to undertake seasonal agricultural work in Turkey, a large proportion of who come from predominantly Kurdish areas. Due to spending months away from home, these girls and boys, some of whom are as young as 11 years old, have severe difficulty continuing with their education. Poverty prevents many Roma children in Istanbul, for example, from accessing school beyond third grade.

EC, 6 November 2006:

"There has been limited progress as concerns education. The 2005 recommendations of the European Commission against Racism and Intolerance (ECRI) on school curricula and textbooks as well as on the functioning of minority schools remain valid. Further efforts are needed to remove discriminatory language from textbooks. [...] Children whose mother tongue is not Turkish cannot learn their mother tongue in the Turkish public schooling system. Such education can only be made by private education institutions. As concerns Kurdish all such courses were closed down in 2004. Therefore, there are no possibilities to learn Kurdish today in the public or private schooling system. Furthermore, there are no measures taken to facilitate access to public services for those who do not speak Turkish."

Emin Yasar Demirci, Place of displaceds, July-August 2006, pp.5-7:

"The educational situation of the participants is shown in tables 4, 5 and 6 [sic 7,8,9]. As in the tables %53,5 of the participants are illiterate, %9,1 are only literate, %25,3 are primary school, %6,5 secondary school, %4,5 are high school and only 3 participants, %0, 5 are university graduates. Another 3 participants left this question unanswered. In other words, the problem of educational level, illiteracy, schooling rate of age population and school attendance, not to mention the quality of education they received, occupies foremost important place concerning the problems of displaced people.% 53,8 of general illiteracy rate rises to %69,2 for women, in consistent with the general situation of women in society reflecting their low status, impoverishments and second class, dependent position. Low educational level with high illiteracy rate and low status are both cause and consequence of each other. In other words, low status generated low educational level and this, in return, deprived women of the skills and the qualifications to improve their situation. As we go further in analysis and compare the educational level with the place of living we get a striking result not in favor of city, as common sense knowledge suggests, but that of the village."

Koc and Unalan, July 2005, pp.13-15:

"Basic education is essential for all population and especially in the case of IDPs, children and youth could easily find themselves deprived of education opportunities due to change of residence and poorer social and economic conditions following the displacement. Figures 1 and 2 present the school attendance ratios for different population groups and by sex. Figure 1 implies that the school attendance ratios of Kurdish speaking population and IDPs are very similar across different ages and at the same time consistently lower compared to overall population. The difference becomes slightly larger in university ages."

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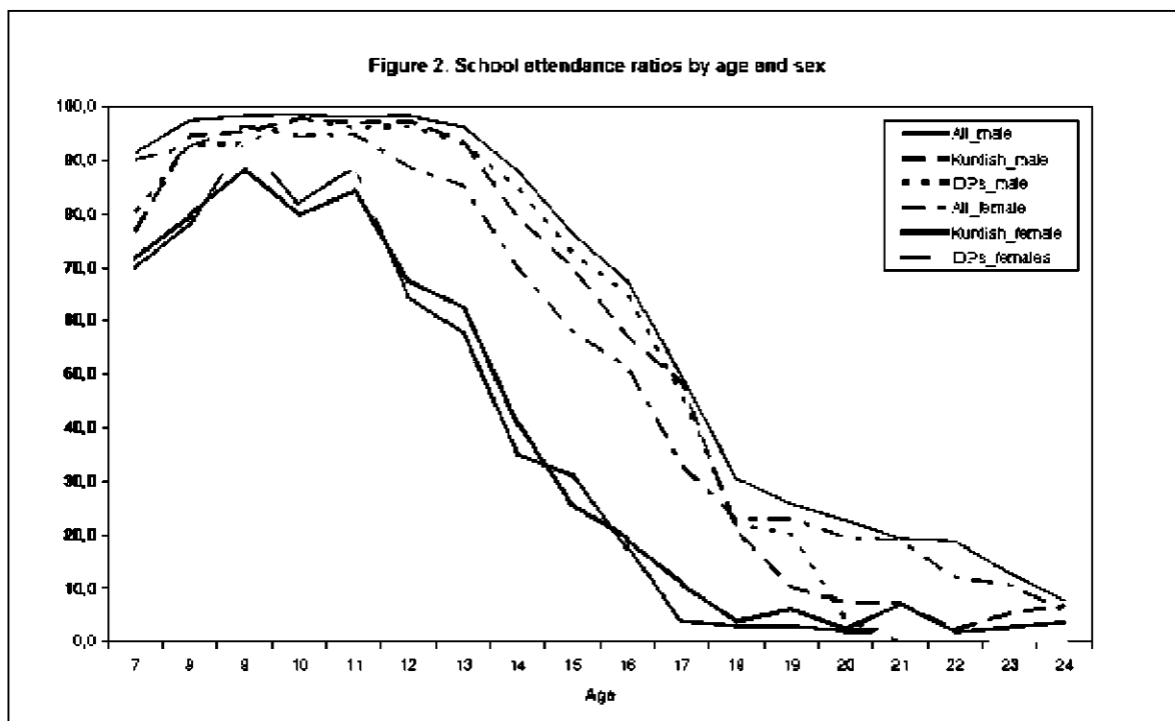
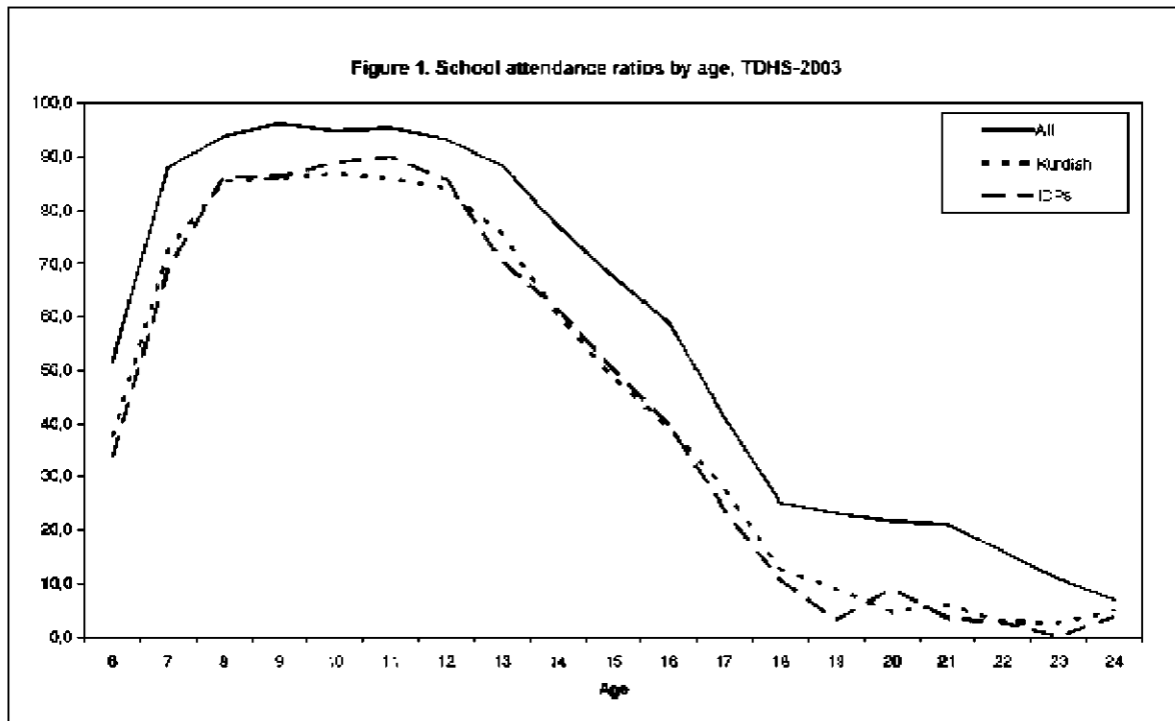


Table 9. Basic Educational Outcomes of Children

Educational outcomes	Turkey	Kurdish	IDPs
Net school attendance ratio (Primary)			
Male	90,6	85,6	86,9
Female	87,0	71,2	70,3
Total	88,8	78,6	78,6
Net school attendance ratio (Secondary)			
Male	53,0	29,1	28,6
Female	46,9	13,3	9,3
Total	50,0	21,6	19,6
Gross school attendance ratio (Primary)			
Male	100,4	99,8	100,8
Female	92,2	76,3	74,2
Total	96,3	88,2	88,5
Gender Disparity Index	0,92	0,77	0,74
Gross school attendance ratio (Secondary)			
Male	80,4	48,7	47,7
Female	63,0	19,6	10,3
Total	71,8	34,9	30,3
Gender Disparity Index	0,78	0,40	0,22
Grade repetition rates			
1	3,1	6,1	7,9
2	1,8	1,1	2,5
3	0,8	1,7	3,5
4	1,4	1,0	2,2
5	0,9	1,6	4,4
Mean years of schooling (age 6+)	5,7	3,6	3,1
Median years of schooling (age 6+)	5,2	3,7	2,5

A closer examination of school attendance ratios by sex reflects more alarming trends for females. Even though the overall school attendance ratios are lower for females compared to males, the difference deepens for Kurdish speaking population and IDPs. It is also interesting to note that being an IDP does not worsen the school attendance ratios of females compared to Kurdish speaking females. Among males, on the other hand, the differentiation between different population groups is not evident. Table 9 presents some of the important indicators of education for different population groups and by gender. Even though the primary school net and gross attendance ratios implies relatively smaller differences owing to differences among females, the secondary school net and gross attendance ratios clearly reflect that Kurdish speaking population and IDPs are disadvantaged; the ratios decline severely in secondary education and especially among females.

HRW, 30 October 2002:

"Children are frequently not sent to school because the family cannot afford the fairly minimal cost of books and school clothing or the loss of income that children bring in to the family by working on the streets or as "apprentices" in workshops and textile

sweatshops. The Migration and Humanitarian Assistance Foundation (GIYAV), a nongovernmental organization, offers support to internally displaced people in the large coastal city of Mersin. It runs a mother and child group, evening activities for young people, and meets the educational costs of thirty children." See also report by USCR and Goc Der in sources below

EC, 6 November 2006:

"With respect to **children's rights**, the right to education for children, particularly girls, remains a problem in some areas. The newly initiated 'conditional cash transfer' programme implemented by the Social Support and Solidarity Fund provides incentives and compensation to targeted families by offering cash transfers on the condition that they send their children to school if they are of school age. Enrolment campaigns need to be sustained and consolidated to address the low level of school attendance, in particular in rural areas of the South East.

US DOS, 28 February 2005:

"Government-provided education through age 14 or the eighth grade is compulsory. Traditional family values in rural areas placed a greater emphasis on education for sons than for daughters. According to the Ministry of Education, 95.7 percent of girls and 100 percent of boys in the country attended primary school; however, a UNICEF report released during the year indicated that, in the rural areas of some provinces, over 50 percent of girls between 7 and 13 and over 60 percent of girls between 11 and 15 did not attend school."

EC, 6 October 2004, p.46:

"Women remain vulnerable to discriminatory practices, due largely to a lack of education and high illiteracy rate (19% of women in Turkey are illiterate and in the Southeast this figure is considerably higher). In some provinces of the Southeast, 62% of girls are reportedly enrolling in primary education and 50% in secondary. The widespread practice of the non-registration of girls in some parts of the Southeast contributes to this situation. Moreover, the portrayal of women in school text books reinforces such discrimination."

HRW, 29 June 2004, pp.22-23:

"The CEDAW committee expressed deep concern at the high level of illiteracy among women and girls (especially in rural areas), the drop-out rates of girls in schools owing to family practices, the impact on girls of early marriages and the prioritization of boys in school enrollment, and other gender discriminatory practices in education.[...] 22.4 percent of girls and women more than twelve years old are illiterate, as compared to 5.9 percent of boys and men.[...] Even this striking figure understates the problem of access to education by women in less developed regions. In its study of women in east and southeast Turkey, and a district of Istanbul that is largely populated by migrants from those regions, WWHR found that 62.2 percent of the sample had never been to school or had not been permitted to complete primary education. Only 9.8 percent had completed middle school."

Gbc-Der, 2002, pp.22-23-III:

"When the unified effects of such variables are analyzed, the reason of not attending the school

after migration can be counted as the following:

75.4 %; Poverty

6.7 %; Children's Working

5.4 %; Absence of Any School in the Neighboring Area

3.6 %; Being Female

1.2 %; Linguistic and Cultural Problems

3.1 %; Pressures on Family After Migration

1.2 %; Being Unable to Afford the Educational Expenses (Gbc-Der 2002, p.14-15-III)

When unified effects of these problems are analyzed, the basic problems for the families and children can be ordered as the following: Being unable to speak mother tongue is a problem for 36.5 % of the children Not knowing Turkish is a problem for 30 % of them Both working and attending school at the same time is a problem for 9.2 % of the children Being abused because of ethnic origins is a problem for 6.4 % of them The absence of any school in the neighboring area is a problem for 5.6 % of them Being unable to afford educational expenses is a problem for 2.5 % of the families"

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-reliance

Poverty and rates of unemployment high among displaced (1998-2009)

- The displaced have often joined the ranks of the urban poor in south-eastern cities as well as western metropolises. Urban IDPs suffer from a host of interrelated problems, including poverty and joblessness; inadequate access to education for school-age children; use of child labour as a coping strategy; poor housing; and insufficient access to health and psychosocial care
- The European Commissioner for Human Rights in 2009 reiterated that the 'serious state of economic and social underdevelopment constitutes a serious obstacle to voluntary return. There remain serious challenges with very high rates of unemployment, and limited livelihood opportunities. Access to education and education levels in the southeast are reported far below the national average, and there remains considerable limitations to women's access to livelihoods.
- Various surveys conducted among IDPs in Diyarbakir and other cities reveal unemployment ratios between 60 and 80 percent. Research of IDPs in Van in 2006 find that 45% of IDPs declared themselves as unemployed, 7% as employed with regular income and 31% as living on 'free occupation'
- High level of unemployment also reflects expectations from employment with part-time jobs not considered as such. There is concern that expectations from officials and NGOs make people display their situation worse off than it is
- Study undertaken in 2006 suggest 40 per cent live below poverty line in rural areas. According to the same study, the child poverty rate (below 6 years of age) is 34% and almost 40% in rural areas. Other reports suggest that Turkey's unemployment rate is about 10 percent, but in the southeast the figure is closer to 60 per cent
- In 2003, HRA/OMCT survey reveals high rates of unemployment among IDPs. Statistical data indicates that the majority of household heads have found themselves unemployed or performing jobs in the informal sector, such as street-sellers
- Unemployment is often aggravated by lack of social insurance, restricted access to health services, cultural problems due to cultural/linguistic conflict. Prior to their forcible displacement, around 87% of household heads based their survival on agriculture no longer accessible. The government has provided very limited services
- In 2002 GocDer survey would highlight difficult socio economic conditions for displaced. Displaced earn significantly less than other Turks and often have temporal employment without social insurance or are unemployed. These problems make integration and participation in society difficult
- After displacement, the household has often been transformed in a unit of consumption rather than production. Difficulties in social adaptation are linked to unemployment, shelter problems, children's educational problems, health problems, environmental pollution, cultural differences, and feelings of exclusion

TESEV/IDMC Special Report, June 2006:

"IDPs received almost no aid during the initial years of displacement from the authorities for resettlement in other areas in terms of assistance for housing, food, cash, access to education, health care, and employment opportunities.[121] Therefore, the displaced

have often joined the ranks of the urban poor in south-eastern cities (such as Diyarbakir, Batman, Hakkari and Van) as well as western metropolises (such as Istanbul and Ankara).[...] Urban IDPs suffer from a host of interrelated problems, including poverty and joblessness; inadequate access to education for school-age children; use of child labour as a coping strategy; poor housing; and insufficient access to health and psychosocial care. [...] Coming from agricultural backgrounds and hence lacking skills for urban employment, the majority of displaced adult men and women are unemployed. [124] Household demands on their labour, inability to speak Turkish and cultural barriers often keep displaced women away from the labour market. The available types of work for both men (such as construction and street vending) and women (for example childcare and piecework at home) are sporadic, informal and therefore lack social security benefits. Adult unemployment forces displaced families to send their children to work, either on the street as peddlers or in sweatshops (such as small, informal garment workshops in Istanbul). Having to contribute to household income keeps many children away from school, although some of them have been enrolled in the past few years, partly as a result of the conditional cash transfers mentioned below. Working on streets and in sweatshops also puts children's health and safety at risk and hampers their physical and psychological development.

Lack of access to education is a broader problem for IDPs irrespective of child labour. Especially in the early years of displacement, many families could not send their children to school due to financial problems. Many displaced children grew up without any formal education, and cannot find jobs in the urban labour market. Furthermore, lack of access to education is also a problem for returnees and those considering return, as many rural settlements where returns are taking place do not have operating schools. [...] Lastly, the trauma of displacement and ensuing poverty in cities has triggered psychological and other health problems. Most families the TESEV Working Group visited lived in unhealthy, inadequate, overcrowded and small living spaces. These living conditions facilitate the outbreak of disease and make recovery difficult. Children suffer from malnutrition. Despite the existence of a free health care programme for the poor (see the section below) and also because most urban displaced do not have social security, [126] they do not have adequate access to public health institutions and services. Furthermore, there are no services specifically designed for psychosocial care for displaced women and children. In some women's and children's support centres in the districts of Istanbul, Batman, Hakkari and Diyarbakir, where IDPs are concentrated, there was awareness of their specific conditions; however there were no particular services designed to help them."

Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, pp. 24-25:

"Displaced Kurds also believe they face economic and social discrimination. They are identifiable by their speech and by their demeanour. We repeatedly heard that displaced families were turned down by Turkish landlords or employers, and were dependent on Kurds for lodging or employment. We met approximately 20 displaced villagers. Most of these displaced villagers expressed either extreme difficulty in finding work, or in several cases they reported discrimination whereby employers/landlords preferred to employ or rent to Turks rather than Kurds. The upshot was that several reported that they were street vendors (of whom there is already a serious glut) or that they sifted through rubbish to find something recyclable. Or that they finally were only able to rent a dwelling (all too frequently simply a shanty) through someone also 'from the East'. We saw examples of wood and plastic shanty dwellings. Research reportedly carried out by IHD Istanbul in 1994 or 1995 indicated that barely 5 per cent of those displaced by war acquire an income above or on a level with subsistence. We greatly doubt that the

situation for the displaced has improved since then. [...] It goes without saying that those forcibly displaced from the countryside are among the worst-off economically in Turkey. They are often reduced to penury, particularly since they lack the skills for urban life. An IHD delegate from Iskenderun informed us that many displaced persons had been driven out of the city by a prohibition on unlicensed street vendors some four or five years ago. They simply could not survive, so they moved to Adana, Mersin and similar places. The 20,000 or so displaced persons still in Iskenderun remain closely watched by the security forces. 'They cannot say they are Kurdish, they do not dare say who they are, or that their villages are burnt.' "

USCR, 1999, pp. 18-19:

"Most of the displaced persons USCR encountered had been engaged in husbandry and small-plot agriculture before their displacement, but are now living in urban settings. USCR visited slum areas in several cities that were comprised almost entirely of Kurdish migrants. Although some migrants have adapted and found work in construction, transportation, or other urban pursuits, many others, particularly among those who were adults when they were displaced, have not been able to adapt. The conflict has disrupted the region's economy. Agriculture and husbandry served the region's cities, and city dwellers commented on high prices and shortages of meat and other staples that once were plentiful. One man told USCR, 'Old people are especially poor. No charities help them. There are no private organizations that work on their behalf. We have no money to eat meat. We never eat meat.' Meat is central to the diet in this region, but the husbandry sector has been decimated.

No welfare system appears to operate on behalf of destitute internally displaced persons and other vulnerable, unemployed people."

EC, 6 November 2006:

"According to the results of a poverty study conducted by TURKSTAT, 1.29% of the population live below the hunger line, while 25.6% live below the poverty line. The percentage of the latter increased to 40% in the rural areas. According to the same study, the child poverty rate (below 6 years of age) is 34%, while this rate reaches almost 40% in rural areas."

COE, 3 June 1998, para. 37:

"Another serious problem results from the disastrous economic and social situation of the whole region. Systematic destruction of the infrastructure, economic resources, livestock, crops, houses, tractors etc. have made large areas of the region uninhabitable. The region has always suffered from a lower level of economic and social development than other parts of Turkey; the conflict has much increased this gap. The rate of illiteracy is 35 % in the Kurdish regions, whereas at the national level it is 19,3%; over 60% of the Kurdish population in the south-east region live below the poverty line compared to approximately 30 % in other regions, and the mortality rate is 50% higher than in other parts of the country. Before mass return could be foreseen, measures to revive the local economy would have to be undertaken."

Demirci, Place of displaceds, July-August 2006, pp.12-13:

"Of the 581 participants of the research 45.1% declared themselves as unemployed. The rate of those who works on a regular basis that entitles them to regular monthly incomes such as working in public sector as laborer or civil servant is 2.5%. Another 4.5% of the participants defined their job as village guards. Although it is termed as "temporary village guards" the job seems to become permanent since its inauguration in

1980s securing its holders a minimum but a regular monthly income around the year. In other words, with that category of job the rate of employment based on regular income and job security makes up 7% of the total workforce of the displaced people. 31% of the displaced used the vague term of free occupation to define their mostly temporary, irregular, seasonal work ranging from street peddlers to small shop keepers to construction workers. It should be noted that temporary, low status seasonal jobs were consciously included within this category. In fact, only a few portion of the jobs in this category deserved the term "free occupation". A total 32 person, 5,5%, fell into the category of student whereas another 5,5% left this question un answered. The breakdown of the answers is given in the table below.

TABLE 14: OCCUPATION

	Frequency	%	Valid %	Cumulative %
Unemployed	262	45.1	47.7	47,7
Worker	S	1:0	1.1	48,8
Unskilled Worker		4,8	5.1	53,9
Seasonal Worker	S	1:0	1.1	55,0
Civil Servant	9	1.5	1.6	56,6
Free Occupation	160	31,0	32,5	59,4
Student	32	5.5	5.6	65,0
Village Guard	26	4,5	4.7	69,7
Total	549	94.5	100,0	
Missing	32	5.5		
Total	561	100,0		

Notice that there is no category in the table as farmers or farming related economic activities although nearly 40% of the Questionnaires conducted in villages and majority of participants in the city has short term relations with farming and related activities People in general, and displaced persons in particular, describe job and employment in terms of regular income it provides, social security it entitles its holders including job security during the working period and retirement in the old age. Part time, seasonal jobs, jobs without social security, including job security, self employments including farming are not considered as jobs and employment. This is the most important reason that explains the high level of unemployment among the displaced persons.

HRA/OMCT, May 2003, Sect. IV:

"[F]ollowing the destruction of their houses and forced evictions, the victims had often no other solution than to leave and resettle somewhere else, notably in urban centres where they are living in destitution, precarious conditions and extreme poverty, a situation that particularly affects women, children and the elderly.

Overall, most of the victims are confronted, in their resettlement place, to high levels of unemployment, lack of income to provide for themselves and their families, poor housing conditions, restricted access to health services, restricted access to education for the children, increased health and nutrition problems, epidemic diseases, as well as to cultural problems caused by cultural and linguistic conflict. The inadequate rate of social security coverage among the victims reinforces this situation, as the most important problem encountered is decreasing levels of income due to unemployment without social insurance. Such a situation has led to a serious state of hopelessness among the victims and makes it difficult for them to become integrated with and participate in the public

sphere in urban social settings. In general, the authorities' answer to this situation has been unsatisfactory and often limited to the provision of services, such as housing, to former village guards. The statistical data released by the Immigrants Association for Social Cooperation and Culture highlights that following the forced displacement, the majority of household heads either found themselves unemployed or performing jobs in the informal sector such as street-sellers. These figures sharply contrast with the fact that the 87.1 % of the household heads based their survival on agriculture before forcible displacement.""

HRA/OMCT, May 2003, Annex II:

Statistical survey carried out by Gbc-der on 2,139 families (17,845 people) indicates employment of household heads after forced Displacement

Employment of Household Head Aflei Forced Displacement	No Families	of %
Land owner farmer	2	0.1
Wealthy farmer	2	0.1
Wealthy peasant	1	0
Middle-size peasant	2	0.1
Petite peasant	8	0.4
Poor peasant	31	1.4
Agricultural labourer	64	3.0
Rentier	25	1.2
Unemployed	623	29.1
Retired	35	1.6
Skilled wage-earner	1	0.0
Civil servant	16	0.7
Unskilled servant	203	9.5
Blue collar worker	10	0.5
Artisan	62	2.9
Petite employer	14	0.7
Average-grand employer	3	0.1
Peddler, seller-workman	451	21.1
Others	553	25.9
No response	33	1.5
Total	2,139	100.0

Statistical survey carried out by Gbc-der on 2,139 families (17,845 people) indicates loss of employment due to Forced Displacement

LossOfJ ob..^	Number Families	of %
Yes	1,514	66.1
No	725	33.9
Total	2,139	100.0

Statistical survey carried out by Gbc-der on 2,139 families (17,845 people) indicates employment of household head before forced displacement

Employment of Household Head Before No of %		
Forced Migration	Families	
Land owner farmer	12	0.6
Wealthy farmer	87	4.1
Wealthy peasant	149	7.0
Middle-size peasant	619	28.9
Petite peasant	301	14.1
Poor peasant	316	14.8
Agricultural labourer	377	17.6
Rentier	10	-
Unemployed	31	1.4
Retired	9	0.4
Skilled wage-earner	3	0.1
Civil servant	13	0.6
Unskilled servant	20	0.9
Blue collar worker	3	0.1
Artisan	41	1.9
Petite employer	15	0.7
Average-grand employer	4	0.2
Peddler, seller-workman	37	1.7
Others	91	4.3
No response	10	0.5
Total	2,139	100.0

Gbc-Der, 2002, p.34-l:

"52.7 % of the respondents earn less than 100 million TL, 29.5 % of them earn between 101-200 million TL, 4.6 % of them earn between 201-300 million TL per month. 13.3 % of the respondents do not have a regular income. Considering the general income standards in Turkey, the data reveals that the forcibly displaced Kurdish population has to survive under very difficult conditions. [...] After migration the most important problem encountered is decreasing levels of income due to temporal employment without social insurance and unemployment. This leads to a serious state of hopelessness among the migrants that makes it difficult for them to become integrated with and participate in the public sphere in urban social settings.[...] One of the most significant conclusions arrived in this research indicates that the experience of migration has resulted in the decrease of production within the household. In the period following the migration many members in the household ceased to participate in income generating public activities. In other words, the household has been transformed from a unit of production to a unit of consumption. The figures pertaining to employment within the households (18.1 % employed, 82.9 % unemployed) reveal the economic difficulties faced by them after migration. Any type of social security covers only 4.9 % of the people living within these households. Most of the employed work in unsecured, temporary and irregular jobs. [...] The data reveals that the number of people who received help in finding a job is proportionally very small. According to the data provided by the State Statistics ...

DOCUMENTATION NEEDS AND CITIZENSHIP

Documentation needs

Documentation needs (2001-2004)

- There are various forms of documentation needs. In 2005, some people faced difficulties registering their newborn babies with Kurdish names, though the number of complaints seemed fewer than in 2004.
- In 2003-2004, numerous citizens reported being prevented from registering their newborn children with Kurdish names, and in some cases, charges were filed against the parents (2003-2004)
- In July 2004 Parliament amended an article to the Census Law that had been used to prevent the use of Kurdish names. The amended article removed the restriction which had prevented the use of names contrary to national culture, customs and traditions
- The new article places a prohibition on names contrary to "moral norms" or names that "offend the public" While the revised wording was intended to ease restrictions, human rights advocates claimed local authorities failed to adjust their practices
- In 2000, it was reported that high proportion of Kurds who moved to cities were not registered. The procedure to obtain ID cards exposes the displaced to security forces which remained a source of fear. Remaining unregistered however means having no access to health or education services

US DOS, 28 February 2005:

"During the year, the IRF recorded fewer complaints that authorities prevented parents from registering their children under traditional Kurdish names."

US DOS, 25 February 2004, Sect.5:

"There were numerous reports of citizens of Kurdish origin being prevented from registering their newborn children with Kurdish names. In some cases, charges were filed against the parents. In August, authorities in Mersin reportedly refused to allow Ali Aksan to register his children with the names 'Mihriyan,' 'Zozan,' and 'Berivan.' In September, authorities in Istanbul reportedly prevented Sevkett Gaspar from naming his son 'Deral.'

In July, Parliament amended an article of the Census Law that had been used to prevent the use of Kurdish names. The amendment removed language that had prohibited the use of names contrary to the 'national culture' or 'customs and traditions,' instead prohibiting names contrary to 'moral norms' or names that 'offend the public.' The revised wording was intended to ease the restrictions; however, human rights advocates claimed local authorities failed to adjust their practices. In September, the Interior Ministry issued a circular notifying local officials of the new regulations. However, the circular prohibited the use of letters used in Kurdish but not found in Turkish. In December, the Diyarbakir Province Jandarma commander asked the Diyarbakir chief prosecutor's office to provide a list of persons who had applied to change their names under the amended law. The prosecutor's office reportedly complied. The Diyarbakir Bar Association protested the request."

Atreya, N.; McDowall, D.; Ozbolat, P., February 2001, pp. 16-17:

"Registration of residence All Turkish citizens are required by law to register with the neighbourhood *muhtar* or headman immediately on arrival in a new neighbourhood. We were struck by the number of informants in Istanbul, Adana and Gaziantep who told us either that they were unregistered, or that they had registered in one location but actually lived incognito elsewhere [.]. In other words they sought to be invisible. It is an offence not to carry one's ID card, rendering one liable to three days' detention. If it is lost, another one must be obtained immediately from the ID office. A chit from the *muhtar* is necessary for this. According to a *muhtar* (see paragraph below), the ID office has a list of 'wanted' persons, supplied by the police. If a name comes up as 'wanted' the police are informed. Notification is also passed to the police or gendarmes at the place of birth. It is not only the officially 'wanted' category that is liable to detention. Many others are detained on suspicion. *Not* being on the 'wanted' list in no way implies one is safe. Gaziosmanpasa is a well-known area of Istanbul with an Alevi and Kurdish concentration. We met Nevzet Altun, the *muhtar* [...]. He informed us that the registered population is approximately 80,000, but he reckoned the real population was in the order of 100,000, with 20 per cent of the population unregistered. He reckoned that the Alevi proportion of the population is between 40 and 50 per cent, while the Kurdish population is between 30-40 per cent. Presumably there is a large overlap between the two categories. Bearing in mind that it is those who *fear* the police who choose to remain unregistered and that these are most likely to be those displaced by the exigencies of war and have already seen plenty of police excesses, the unregistered population is like to be overwhelmingly Kurdish, with a minority of leftists, probably Alevi Turks also. One may conjecture therefore that the proportion of *Kurds* who are unregistered is well in excess of the *muhtar*'s 20 per cent overall estimate, and may even exceed 40 per cent. It is not the role of the *muhtar* to submit registration rolls to the police. Rather, the police scrutinise these rolls whether the *muhtar* desires it or not. We received anecdotal confirmation of this in the offices of Goc-Der (The Migrants' Social and Solidarity Association). One staff member said of her arrival in Istanbul as a displaced person 'When I came to Istanbul I registered with the *muhtar* and gave my address. Then the police came and told me to sign every month at the police station.' Another said, 'I am here [Istanbul] eight years. I am still not registered with the *muhtar*. I cannot register as they will get my address and torture me. My family are military service evaders in Germany.'

People do not take the decision to remain unregistered lightly. Failure to register is not simply a means of remaining 'off the record', excluded from the population census, nor merely a matter simply of remaining excluded from the electoral roll. Remaining unregistered means having no access to health or education services. That price may not seem high for a bachelor in rude health. We repeatedly met families where children were not in school because the parents felt unable to take the risk of registration. If there was a health problem they had to find the money to go to a private clinic. The loss of education for one's children is a very high price indeed to pay, and it is not logical to think that displaced people would take this course of action unless they had real grounds for fear."

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

General

Kurds lack of recognition as an ethnic minority and implications (2002-2009)

- In 2009, Kurds were still not recognised as an ethnic minority. Kurds who publicly or politically asserted their Kurdish identity or publicly espoused using Kurdish in the public domain risked censure, harassment, or prosecution
- Turkey signed the Additional Protocol No. 12 to the European Convention of Human Rights on prohibition of discrimination by public authorities but has not yet ratified the Protocol. Turkey has ratified the UN Covenant on Civil and Political Rights with a reservation regarding the rights of minorities
- Limited broadcasting in Kurdish was allowed in 2007, but other restrictions on minority languages in public arena remain. The government maintained restrictions on the use of Kurdish and other minority languages in radio and television broadcasts
- European Commission has repeatedly called on Turkey to significantly improve minority rights in its progress reports (2006, 2008). The European Commission found that little progress was made in respect for and protection of minorities though recognized that number of reforms were adopted since 2002. This was also reiterated by the Council of Europe most recently in 2009.
- For displaced Kurds, the lack of acceptance of the Kurdish identity makes integration difficult. After displacement, the formation of ethnic groupings is encouraged by several factors which increases ethnic tensions. Social exclusion has created a new multi-structural urban space

US DOS, February 2007:

"The law provides a single nationality designation for all citizens and does not recognize ethnic groups as national, racial, or ethnic minorities. Citizens of Kurdish origin constituted a large ethnic and linguistic group. Millions of the country's citizens identified themselves as Kurds and spoke Kurdish. Kurds who publicly or politically asserted their Kurdish identity or publicly espoused using Kurdish in the public domain risked censure, harassment, or prosecution..... The government maintained significant restrictions on the use of Kurdish and other minority languages in radio and television broadcasts. RTUK regulations limited minority-language news broadcasts to 45 minutes per day; however, RTUK ended time restrictions for minority-language cultural shows or films. Previously such broadcasting was limited to 45 minutes per day and four hours per week for television broadcasting, and 60 minutes per day and five hours per week for radio. RTUK maintained that its regulations require non Turkish radio programs be followed by the same program in Turkish and that non-Turkish television programs have Turkish subtitles. Start-up Kurdish broadcasters reported that these were onerous financial obligations that prevented their entry into the market. The state-owned TRT broadcasting company provided limited national programming in Kurdish and three other minority languages."

HRW, January 2007:

"The Supreme Council for Radio and Television finally took the important step of permitting television and radio broadcasting in Kurdish, although only for one hour a day.

Other restraints on minority languages in the public arena remain. In April, for example, a Diyarbakir court closed the Kurdish Democracy Culture and Solidarity Association (Kurt-Der) for infringing the Associations' Law by conducting its internal business in Kurdish."

EC, 6 November 2006:

"Overall, Turkey made little progress on ensuring cultural diversity and promoting respect for and protection of minorities in accordance with international standards. [...] As regards *fundamental rights*, limited legislative progress was made, while implementation of reforms of previous years continued. Turkey needs to significantly improve the situation of fundamental rights in a number of areas and address the problems that minorities are facing..... Turkey's approach to minority rights remains unchanged. According to the Turkish authorities, under the 1923 Treaty of Lausanne, minorities in Turkey consist exclusively of non-Muslim religious communities. The minorities associated in practice by the authorities with the Treaty of Lausanne are Jews, Armenians and Greeks. However, there are other communities in Turkey which, in the light of the relevant international and European standards, could qualify as minorities. The February 2005 visit of the OSCE High Commissioner on National Minorities (ICNM) to Ankara has not been followed up and no progress has been made in starting a dialogue on the situation of national minorities in Turkey. The deepening of such a dialogue between Turkey and the ICNM is necessary. It needs to include relevant areas such as minority education, minority languages, the participation of minorities in public life and broadcasting in minority languages. This would facilitate Turkey's further alignment with international standards and best practice in EU Member States to ensure cultural diversity and to promote respect for and protection of minorities. Turkey's reservation towards the UN Covenant on Civil and Political Rights (ICCPR), regarding the rights of minorities - to which a number of EU Member States objected as being incompatible with the object and purpose of this Covenant - and its reservation to the UN Covenant on Economic, Social and Cultural Rights (ICESCR), regarding the right to education, are of concern. Turkey has not signed the Council of Europe Framework Convention for the Protection of National Minorities or the European Charter for Regional or Minority Languages."

Gbc-Der, 2002, p.26-III:

"The forcibly displaced Kurdish citizens of Turkish Republic are perceived and treated as 'potential criminals' in certain times and places by public and local administrators, security forces and the police. In their new environment, there exist several reasons that encourage the formation of ethnic groupings and increase ethnic tensions. Among these reasons are the negative effects of the armed conflicts and ethnic tension on the psychology of urban masses, nationalistic prejudice that dates back to the foundation of the Turkish Republic, the problems in establishing relationships between these people and other settled groups of the urban space. It is known that even the Kurdish citizens who had migrated to such places voluntarily long before the emergence of armed conflicts in the region and integrated with the urban social life have fears to get into contact with these forcibly displaced migrants. Obviously, they do not want to become the target of national prejudices."

Gbc-Der, 2002, pp.32-33-III:

"Being unable to integrate with the settled groups of the cities or public and local administrators's failure in estimating the extent of such a mass-displacement and its consequences, not employing any settlement policy for the large migrant population are important factors leading the migrants use their own possibilities and kinship relations in

settling in their new living environments. This resulted in considerable destruction in the urban structure and brought about a 'multi-structural' urban space. In many places, except for agricultural activities, migrants tend to maintain their former ways of life and this divided the urban space into different parts by 'unseen borders'. The migrant population concentrated in certain regions of the cities; the settled population could not absorb the huge migrant population. Thus, rather than an integration with the settled population, new divisions and segregation emerged within the urban space.

See also, "Turkey: Treatment by Turkish authorities of Kurds who assert their Kurdish identity..." Immigration and Refugee Board, Canada, May 2003

EC, 5 November 2003, pp. 37-38:

"With regard to cultural rights, the sixth reform package introduced a number of changes. As previously indicated [...] it provided for radio and television broadcasting in languages and dialects traditionally used by Turkish citizens in private stations, as well as by the public broadcaster. The Civil Registry Law was amended to permit parents to name their children as they desire, provided that such names are considered to comply with 'moral values' and do not offend the public. The reference to 'politically' offensive names, has been removed from the law. However, a circular was issued in September 2003 restricting the scope of this amendment by banning the use of names including the letters q, w and x, commonly used in Kurdish. The fourth reform package amended Article 6 of the Law on Associations by giving associations the possibility of using foreign languages in their non-official correspondence [...]. The use of languages and dialects other than Turkish in the areas of film, the arts, festivals, cultural events and radio broadcasts is nevertheless still subject to legal restrictions and judicial prosecution. However, there has been a degree of relaxation: judicial procedures and administrative sanctions against petitioners for optional Kurdish language courses at university level have been dropped; various cultural festivals with the participation of Kurdish music groups have taken place and a wide range of religious books and cassettes in Kurdish have been provided by publishing companies. No progress was made on the implementation of the August 2002 reform package on the learning of the different languages and dialects traditionally used by Turkish citizens in their daily lives. When ratifying the UN Covenant on Economic, Social and Cultural Rights, Turkey issued a reservation to Article 13 paragraph 3 and paragraph 4 concerning the right to education. As a result, the scope of parents' right to choose schools for their children (other than those established by the public authorities) and to ensure the religious and moral education of their children (in conformity with their own convictions) has been limited."

PROPERTY ISSUES

General

Overview of Law on Compensation for Damage Arising from Terror and Combating Terror (Law 5233)

- The Law on Compensation for Damage Arising from Terror and Combating Terror (Law 5233) was passed by the Turkish parliament on July 17, 2004. The law is intended to provide compensation to displaced people for material damage caused between 1987 - 2004 by armed opposition groups and government security forces
- Compensation is provided for three types of damage: (i) loss of immovable and moveable properties, animals, trees and agricultural products; (ii) physical injuries, disabilities and death; (iii) access to property which has been restricted or hindered due to measures taken in the framework of the "fight against terrorism".
- Damage Assessment Commissions have been established at provincial level to investigate deaths, physical injury, damage to property and stock, and loss of income arising from inability of the owner to access their property between July 19, 1987, and July 17, 2004
- As of October 2009, the law is implemented by 105 Damage Assessment Commissions (DAC) made up of civil servants and established in 75 provinces. The commissions comprise of: a deputy provincial governor, five civil servants and a board member of the local bar association. These will propose a figure for compensation on the basis of principles laid down in tables of compensation levels and, for damage to property, levels established in laws on compulsory purchase.
- The commission will deduct any state payments or benefits already received in respect of the losses, and produce a detailed account with a proposed figure for compensation. A deadline of 20 days is imposed on applicants who wish to reject the Commission's proposal, upon which the claim will be counted as void.
- Claimants have one year from the introduction of the law to submit their claims, and commissions must process claims within nine months. Claimants can challenge the ruling in the courts if they regard the sum offered by the commission as insufficient
- The Turkish government has on several occasions extended the time period for filing claims to Damage Assessment Commissions, and undertaken several amendments to address some of the identified gaps in the law. This was extended annually in since 2006, and most recently in September 2009 for a period of one year to allow DACs to finalise assessments.
- In September 2005 it issued procedural guidelines to improve its implementation alleviating the evidentiary burden of proof on applicants. In 2007, the Ministry of Interior issued standardised guidance on award levels to the DACs to address the problem of inequitable application of the law. The Ministry has also sought legal advice from international experts, provided training to the DACs, and developed a database to standardise and harmonise their decisions
- In 2005 one year following the application of the law, the Commission had only been able to review 1,500 of 69,832 applications, and of these, only 342 have been approved. By 2007 the number of applications to compensation law reach 269,938 applications
- As of October 2009, from 2004 to August 2009, slightly over 360,000 applications have been made to the DACs, of which over 190,000 have been finalised, 120,000 of which received compensation with the remaining denied. The total amount of compensation awarded to date is of \$1, 400 million of which close to 1,070 million has been paid to the beneficiaries

Government of Turkey, 27 June 2007:

"To date, a total of 269,938 persons have claimed redress under the Compensation Law"

US DOS, 6 March 2007:

"The interior ministry reported that the review commissions had received a total of 255,339 applications for compensation under the law through December. The commissions have processed 48,723, approving 25,628, rejecting 16,837, and ruling that compensation had already been provided in 6,258."

EC, 8 November 2006:

"The process of compensation is ongoing. The Damage Assessment Commissions established to process the compensation claims have so far received around 215 981 applications. Approximately 33 299 have been processed as of September 2006."

TEROR VE TERORLE MUCADELEDEN DOGAN ZARARLARIN KARSILANMASI HAKKINDA KANUNDA DEGISIKLIK YAPILMASINA DAIR KANUN

Kanun No.

5666 Kabul Tarihi:

24/5/2007

MADDE 1 - 17/7/2004 tarihli ve 5233 sayili Terbr ve Terbrle Mucadeleden Dogan Zararlarin Karsilanmasi Hakkinda Kanuna asagidaki gegici madde eklenmistir.

"GECICI MADDE 4 - Bu Kanunun yururluge girdigi tarihten itibaren bir yil iginde ilgili valilik ve kaymakamliklara basvurmaları halinde, 19/7/1987 tarihi ile bu Kanunun yururluge girdigi tarih arasında islenen 3713 sayili Terbrle Mucadele Kanununun 1 inci, 3 uncu ve 4 uncu maddeleri kapsamına giren eylemler veya anılan tarihler arasında terbrle mucadele kapsamında yurutulen faaliyetler nedeniyle zarar gbren gercek kisiler ile bzel hukuk tuzel kisilerinin maddT zararları hakkında da bu Kanun hukumleri uygulanir.

Bu maddeye gbre yapılan basvurular, basvuru tarihinden itibaren iki yil iginde sonuglandirilir. Bu surenin de bitmesi ve basvurularin sonuglandirilamamis olmasi halinde, Bakanlar Kurulu bu sureyi her defasında bir yili asmamak uzere uzatabilir."

MADDE 2 - Bu Kanun yayimi tarihinde yururluge girer.

MADDE 3 - Bu Kanun hukumlerini Bakanlar Kurulu yurutur.

29/5/2007

"THE LAW AMENDING THE LAW ON COMPENSATION OF LOSSES RESULTING FROM TERRORIST ACTS AND MEASURES TAKEN AGAINST TERRORISM

Law No. 5562 Adoption Date: 13/12/2006

ARTICLE 1 - The following interim article is inserted to the Law No.: 5233 on Compensation of Losses Resulting from Terrorist Acts and Measures Taken against Terrorism of 17.07.2004.

"INTERIM ARTICLE 3 - The term for the resolution of the application filed pursuant to interim article 1 hereof and to interim article 1 inserted to this Law with the Law No. 5442 dated 28/12/2005 , has been extended one year beginning from the end of the term fort the resolution of the applications stipulated in the said articles. The Council of Ministers may extend this term further by not more than one year in each year should the applications have not been resolved by the end of that term."

ARTICLE 2 - This Law shall become effective on the date of promulgation of the same.

ARTICLE 3 - The Council of Ministers shall execute provisions of this Law."

15/12/2006

HRW, March 2005, pp.27-28:

"The Turkish government's implementation during 2005 of its new Compensation Law will be a key test of its commitment to a new approach toward IDPs. Introduced as a reform to meet the political requirements for E.U. candidacy, the law is intended to provide compensation to displaced persons for material damage caused between 1987 and 2004 by armed opposition groups as well as by government security forces. The Law on Compensation for Damage Arising from Terror and Combatting Terror (Law 5233) was passed by the Turkish parliament on July 17, 2004. Regulations for implementing the law were published in the Official Gazette on October 20, 2004. Villagers interviewed by Human Rights Watch view the Compensation Law with a mixture of hope and trepidation. On the one hand, it offers the possibility of full compensation for material losses in the context of the displacement, potentially a far more powerful and effective mechanism for restitution than anything previously offered. On the other hand, the law and regulations provide ample scope for claims and payments to be avoided, minimised, and delayed.

The Compensation Law compensates for material damage inflicted by armed opposition groups and security forces combatting those groups. Damage assessment commissions established on a provincial level will investigate deaths, physical injury, damage to property and stock, and loss of income arising from inability of the owner to access their property between July 19, 1987, and July 17, 2004. The commissions comprise of: a deputy provincial governor, five civil servants responsible for finance, housing, village affairs, health, and commerce, and a board member of the local bar association. Damage assessment commissions will propose a figure for compensation on the basis of principles laid down in tables of compensation levels and, for damage to property, levels established in laws on compulsory purchase. The commission will deduct any state payments or benefits already received in respect of the losses, and produce a detailed account with a proposed figure for compensation. The claimant may accept or reject the proposal. If the claimant rejects or fails to respond within twenty days, the proposal will be counted as void. Claimants have one year from the introduction of the law to submit their claims, and commissions must process claims within nine months. Although the mechanism lacks any internal appeals procedure, claimants can challenge the ruling in the courts if they regard the sum offered by the commission as insufficient."

Permanent Mission of Turkey to the United Nations Geneva, 27 September 2005:

"A decision has been taken to extend the deadline for application under this Law. This decision is expected to be incorporated into the Law by the Parliament in the next legislative session."

Turkish Daily News, 18 June 2005:

"The extension is considered necessary because a commission tasked to oversee administration is far behind in processing claims. Within almost one year, the commission could only review 1,500 of 69,832 applications, deciding to approve only 342. CNN said these numbers could be regarded as low by Europe's top human rights court."

Turkish Daily News, 27 July 2005:

The application deadline amendment was passed by parliament on 28 December 2005 and came into effect in January 2006.

COE Office of the Commissioner for Human Rights, 19 December 2003, pp.31-32:

"I should also like to emphasise the importance I attach to the declared commitment of the Turkish authorities to compensating the population for harm suffered during anti-terrorism operations. I fully understood the need for this during my conversations with representatives of civil society as well as with the representatives of the local authorities in Diyarbakir since it is local authorities that carry the heavy burden of caring for those who have had to leave their villages or lost their property during the state of emergency.

[Click here to read the english version of the Law on Compensation](#) (14 July 2004)

Background information:

[Click here for presentation outlining the terms of the law, presented by a representative of the Directorate General of Provincial Administration](#)

[Click here to access presentation by an international property expert on international standards and Law 5233](#) (July 2006)

[See also another background paper: Observations on Turkey's Compensation Law in an International Context](#) (February 2006)

Main Concerns related to the Compensation Law and its implementation (2004-2006)

- There is concern that the commissions assessing claims lack independence—they are composed of five state employees and one NGO representative. The Interior Ministry the state will be giving the compensation, yet most displacement occurred at the hands of state forces who work within the Interior Ministry
- There is further no system of protection for witnesses who provide information, many of whom may fear reprisals if they implicate security forces or village guards in house destruction and forced evacuation
- Limitations in who may receive compensation may unfairly exclude certain IDPs Damage assessments made so far have been conditional on contemporary documentary, particularly official documents, leaving most IDPs automatically ineligible for compensation
- The law excludes payment of compensation for suffering and distress. The law contains no provision for legal aid to assist applicants in preparing their claims, or assessing an amount of compensation proposed by a commission
- The Commission does not have the capacity to address the expected volume of claims. There is concern that no allocation has been made in the government budget for payments under the Compensation Law, and that the law provided no time limit for the government to settle agreed claims
- No appeals mechanism has been included in the law to challenge the amount of compensation awarded or for those who miss the deadline for applications

IDMC/TESEV Special Report, June 2006:

"The shortcomings in the Compensation Law and the problems in its implementation undermine its significance. The time-scale and scope of the law should be extended so as to cover all IDPs who were forcibly evicted or were obliged to flee due to the armed conflict. The law should be amended to provide non-pecuniary damages in accordance with European Court of Human Rights (ECtHR) case law, in order to compensate the pain and suffering of IDPs whose rights to life, liberty and security, and property have been violated. The government should initiate a public information campaign on the law in Turkish and Kurdish, in collaboration with NGOs and local administrations. The Turkish Bar Association and local bar associations should advise their members on

codes of professional conduct and monitor their implementation of the law. The commissions should be allowed to determine all types of damages on a case-by-case basis, taking into account the subjective circumstances of each case. The two-year period for evaluating petitions should be extended to a more realistic timeframe. To ensure unity in implementation, the government should develop a clear position on the law; send the commissions binding implementing guidelines and instruct them not to abide by strict formal evidentiary rules in processing claims; and cooperate with civil society to provide training not just to the governors and their deputies, but to all members of the commissions. As a first step, the government should publicly express its political support for the effective and just implementation of the law. The Commissions should not attribute evidentiary weight to the information provided by the *jandarma* (security forces). An administrative appeal body should be set up to evaluate the decisions of the commissions within a time limit of two-three months. To ensure their access to courts, IDPs should be exempted from legal fees in administrative courts and be provided with legal aid upon need. The structure of the commissions should be changed in favour of a balanced representation of civil society and the public sector. The commissions should be professionalised, their numbers should be increased, and their working conditions should be improved."

TOHAV, February 2006:

Law 5233 is not effective in meeting the needs of Turkey's internally displaced. • Obstacles and limitations in the law and associated regulations exclude a substantial number of victims from compensation. For example, village evacuations before 1987 are not covered by the law. • The law does not provide mechanisms to tackle return issues such as lack of infrastructure, the village guard system, removal of mines etc. • The law contains no provisions for non-pecuniary compensation contrary to established precedent at the ECtHR. The structure and working methods of damage assessment commissions prevent them from providing just compensation. Out-of-court settlements are imposed on the injured parties"

[Click here for the full report](#)

EC, 10 October 2004, p.50:

"A Law on Compensation of Losses Resulting from Terrorist Acts was adopted in July 2004. This represents recognition of the need to compensate those in the Southeast who have suffered material damages since the beginning of the Emergency Rule period (19 July 1987). Although the criteria on which applications will be accepted and assessed may allow for the possibility of restricting considerably the scope of the law, provision is made for judicial recourse."

HRW, March 2005, pp.28-34:

Lack of independence in assessment commissions: The ability of assessment commissions to reach fair conclusions depends very much on whether they are principally motivated to award compensation to people who suffered damage during the relevant period or concerned more with reducing state liability for such claims. Clearly, with a membership of six state employees and just one nongovernmental representative, independence will be a problem. ... This conflict of interest may encourage assessment commissions to underestimate the extent of a loss or to suppress information about security force responsibility for damage during the displacement.

Automatic exclusions from compensation

The law prohibits the provision of compensation to those who damaged their own property; for damage arising from offences under the Anti-Terror Law committed by the claimant; and for 'damage arising from economic or social factors not connected with terrorism.' [...] In some cases, these ostensibly justifiable reservations may result in unfair exclusions. If there were any official records of the destruction of villages, they would have been kept by local gendarmerie units who were in most cases responsible for the displacement. In some cases, gendarmes forced villagers to destroy their own property. ... The destruction of a village generally followed frequent large scale security operations in which the males of the village were detained and interrogated under torture, and then tried in state security courts for 'sheltering members of an armed organization.' The pattern of torture and unfair trial was extensively documented by nongovernmental organizations and in judgments at the European Court of Human Rights. As a consequence of these judgments, state security courts were abolished in June 2004. Automatic exclusion of an applicant simply on the grounds of a conviction in a state security court for 'sheltering' would be unfair. bAfter the Return to Village and Rehabilitation Project was established in 1999, villagers who wanted to apply for assistance were required to sign a special printed form, and tick a box indicating the reason for their original migration... branch of the Human Rights Association, believes that some villagers may have checked boxes indicating social or economic reasons simply to regain access to their property. [...] Automatic exclusion on the basis of these unreliable documents would be unfair.

Inappropriate limitations on acceptable forms of evidence

The implementing regulation for the Compensation Law requires that information about the extent of damage should be collected from 'public bodies and organizations,' [...] 'the declaration of the person who has suffered the loss, and information from judicial, administrative and military bodies.' [...] It also states that, in cases of property damage, assessment commissions will work on the basis of 'incident reports describing how the damage occurred and its extent. and all forms of document relating to the assessment of damage.' [...]

Since the testimony of fellow villagers who were eye-witnesses to the destruction is potentially excluded from this list because such evidence is not mentioned explicitly in the regulation, the

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testimony of the muhtar (the government representative elected in all villages) will be critical. There is, however, a long history of muhtars being subjected to various forms of pressure by gendarmerie and governors. Commissions should offer appropriate protective measures for witnesses, and investigate thoroughly any allegations of intimidation. The regulation requires assessment commissions to use documentary evidence to establish the nature and extent of damage. Making damage assessments entirely conditional on contemporary documentary evidence, particularly if the preference is for official documents, will leave the vast majority of IDPs automatically ineligible for compensation.

No compensation for suffering and distress

In judgments against Turkey for house destruction, the European Court of Human Rights has ordered what it describes as non-pecuniary damages as compensation for the suffering and distress of the plaintiff and their family in consequence of the violation. In *Akdivar v Turkey*, for example, it awarded £8,000 in non-pecuniary damages to each plaintiff. [...] The Compensation Law excludes the payment of compensation for suffering and distress. This distress was substantial for IDPs who saw their homes and crops

burned and their livestock machine-gunned, quite aside from the ill-treatment, torture, and 'disappearances' which often accompanied the clearances.

Lack of legal support for applicants

The Compensation Law contains no provision for legal aid to assist applicants in preparing their claims, or assessing an amount of compensation proposed by a commission. It expects poorly educated farmers from a region with 35 percent illiteracy to assemble comprehensive and complex documentation in order to establish their eligibility for compensation. [...] Unsurprisingly, the standard of applications is poor. ...

Limited capacity to process claims

It seems likely that the commissions—if they take their work seriously—will be overwhelmed by the volume of work. By November 2004, for example, the Bingol assessment commission had received 3,000 applications, and expected up to 10,000. It had completed four meetings and looked at (but not necessarily resolved) 150 cases. [...] The Compensation Law requires the commission to complete its work on each application within nine months. At this rate, it will take five years to examine the full 10,000 claims made in Bingol. This situation is likely to be mirrored elsewhere, particularly since commission members who have other jobs can only work part-time.

Lack of clarity regarding payments

The Diyarbakir and Bingol bar presidents have both expressed unease that, to their knowledge, no allocation has been made in the central government budget for possible payments under the Compensation Law, and that the law provided no time limit for the government to settle agreed claims. [...] They also raised concerns as to whether the requirement in the legislation that payments of more than 20,000 YTL (\$15,000) require Interior Ministry approval is likely to cause delays or obstruct payments, particularly since most claims are likely to exceed that figure.

Inadequate appeals mechanism

There is no appeals mechanism built into the Compensation Law, either to challenge the amount of compensation awarded or for those who miss the deadline for applications. However, it is open to an internally displaced family to bring an action directly against the government through the courts. In order to find for a claimant, the court must be satisfied that the state is criminally liable for the damage suffered, and that the sum proposed by the commission is insufficient to cover that damage. However, it is unlikely that assessment commission rulings will conclude any criminal liability on the part of the state, and villagers will therefore have to prove such liability in court, as well as demonstrate the need for a higher level of compensation. Moreover, villagers will have to pay a substantial sum to pursue their court challenge, a factor likely to discourage many from going to court.

Violations to rights of property and possessions continued through 2001-2003

- In most cases, evacuations of villages were followed by destruction of houses, crops and livestock by the security forces. House demolitions and forced evictions have been reported as late as 2001 in the Sirnak province in south-eastern Turkey
- A report prepared by the Parliamentary Commission on Migration (1997) indicated that 3,423 rural residential units had been evacuated. The Human Rights Association, a Turkish NGO, monitoring the situation has documented over 4000 evacuations.

- Settlements of Turkish citizens of Kurdish origin were primarily targeted, ranking from individual dwellings to small villages. In addition to destruction of houses, basic infrastructural facilities such as roads, irrigation networks, and electricity were destroyed. The European Human Rights Court in Strasbourg released several judgements against Turkey regarding village destruction

HRA/OMCT, May 2003, Sect.VI:

"While the policy of house demolitions and forced evictions stopped in 1999, villages forced evictions were reported, in 2001, in the Sirnak province, South Eastern part of Turkey. The resurgence of new forced evictions following 1999, along with harassment and implementation of measures such as food embargoes, restriction on freedom of movement to go in and out of villages is of particular concern to HRA and OMCT.

A population of 600-700 villagers living in the villages of Asat (15 households) and Ortakli (30 households), located in the Sirnak province, have been evicted by the Turkish Security Forces on 20 July 2001. An investigation carried out by HRA in August 2001 highlighted that the forced eviction of the Asat and Ortaki villages could be related to a mine explosion that caused deaths and wounds of some soldiers during a military operation in July 2001. Interviews with villagers of Asat and Ortakli underlined that they had no relation with the mine explosion and that the whole area has been mined for some time, with mines being located at 25 or 40 kilometres from their villages. The mission conducted by HRA in August 2001 reported that the 600-700 evicted villagers, whose majority are women, children and elderly people, were living nearby the Beytussebab municipality borders in about 80 tents in destitute conditions characterised by poverty, deprivation, uncertainty and fear. HRA reported that the victims did not receive any health care service and that they were subjected to serious health problems. Testimonies from the victims recorded that about 600 animals, beehives, orchards and garden were destroyed due to a lack of maintenance following their forced eviction, cutting the villagers' production veins."

HRA/OMCT, May 2003, Sect.II:

"The practice of house demolitions and forced evictions, resulting in massive forced displacement and destruction of villages, gained momentum during the 1990s and lasted until the end of 1999. They occurred on a large scale and were mostly carried out by the Turkish Security Forces and administrative authorities against the rural Kurdish population living in the South Eastern and Eastern region of Turkey. According to the 1997 report prepared by the Parliamentary Commission on Migration, 3428 rural residential units were evacuated. The Human Rights Association (HRA), which continued to monitor the situation until today, received many other applications by victims following 1997, allowing saying that around 4000 places of settlement were evacuated.

According to the annual balance sheets published by the Human Rights Association (HRA) (years 1994 to 1999), 1500 villages have been burned down and evacuated in 1994, 243 in 1995, 68 in 1996, 23 in 1997, 30 in 1998 and 30 in 1999. The statistical data released by the Immigrant's Association for Social Cooperation and Culture highlights that on a period running from 1970 to 2000, the bulk of forced displacement took place between 1990 and 1995 (71,6%), with the highest number of forcible displaced families (258) recorded for the year 1994. The same statistical data show that 98.8% of the locations where forcible displaced families come from have been located in the Eastern and South Eastern regions of Turkey. Overall, these figures clearly indicate that the demolition of houses and forced evictions are directly related to a massive forcible displacement of the Kurdish people out of their homelands. During the period

running from 1989 to 1999, besides the demolitions of houses, forced evictions and burning of villages, the use of highlands were banned and thousands acres of forestry were set on fire. Basic infrastructural facilities such as roads, irrigation networks, and electricity were destroyed in the evacuated villages. Gardens were destroyed, trees were cut down and most of the arable fields are no longer in use. The ban on the use of highlands caused the destruction of animal husbandry. Fields and possessions in the evacuated villages were seized by the village guards, or were destroyed. People whose houses and villages were destroyed had to migrate to city centres in the region or to metropolitan areas in the West on their own without any support from the authorities. Besides the loss of all their belongings, property and pecuniary resources, these people were often deprived of basic welfare facilities like shelter, job, health, and education in their new place of settlement, living under the level of poverty. Because of their identities, they were subject to many attacks and pressures in their new living surroundings."

HRW, September 2000, "Contributing to Stability in the Southeast":

"According to the Turkish Parliament's Commission on Migration, 401,328 villagers have been displaced since 1984. Many other observers claim a much higher figure. The population of Diyarbakir, the regional capital, increased by 600,000 during the 1990s. In most cases, these villagers were not evacuated in an orderly fashion, resettled, or compensated. Rather, they were driven from their homes by security forces who left burned houses and destroyed crops and livestock in their wake. A large number of petitions have been filed with the European Court of Human Rights in respect of village destruction, and three important judgment have already been reached against Turkey. [1] The findings of the European Commission on Human Rights in the Mentes case eloquently describe the officially sanctioned lawlessness that broke out all over southeast Turkey in the 1990s: 'The Commission considered that the burning of the first three applicants' homes constituted an act of violence and deliberate destruction in utter disregard of the safety and welfare of the applicants and their children who were left without shelter and assistance and in circumstances which caused them anguish and suffering. It noted in particular the traumatic circumstances in which the applicants were prevented from saving their personal belongings and the dire personal situation in which they subsequently found themselves, being deprived of their own homes in their village and the livelihood which they had been able to derive from their gardens and fields.' [2]"

See Also:

COE 13 June 2001, para. 144

Experts raise concerns on the law of compensation and its implementation (2006-2009)

- Human Rights Watch in report issued in 2006, underlined the concern in the implementation of the compensation law since ECtHR decision Icyer decision which noted existence of right to remedy. ECHR's finding that Compensation Law is effective domestic remedy causes dismissal of 1,500 cases and brings about deterioration in the implementation of the Law
- The HRW report took note of arbitrary reductions and/or denial of compensation to the displaced and urged the Turkish government to suspend the commission and revise operating methods. Its report outlines methods used by damage assessment commissions to reduce or avoid payment

- In 2006, MRG also raise serious concerns on the implementation of the compensation law, and noted concerns with regards to the law and its implementation.
- In 2006, UN Expert commended Compensation Law, but points to concerns related to its implementation. The inclusion of victims of counter-terrorism measures in the scope of Compensation Law commendable, however inconsistencies in the implementation of the law carry risks of discrimination against certain applicants. Further vulnerable groups without access to information risk being omitted by the compensation process.
- The EU in its progress reports on Turkey has addressed the compensation law. In 2006, it would note of the divergence in methods used by compensation commissions, slowness of compensation payments, level of compensation, conditions on eligibility, and heavy burden of proof on applicants
- In its annual report in 2008, European Commission noted continued shortcomings in the law in particular as regards to uneven and inequitable calculation of compensation between provinces, as well as noting the lack of capacity and heavy work load of DACs leading to delays in assessment and payment of compensation.
- NGOs such as Goc-Der as early as 2004 were critical of the compensation law particularly with regards as to period it was to cover; composition of Damage Commission members, and failure to address non-material damages.

UN, 16 November 2006:

The Special Rapporteur commends the inclusion of victims of counter-terrorism measures in the scope of the beneficiaries of the Compensation Act. However, there have been complaints about inconsistent implementation of the Act: official statistics show that, with 181,147 applications filed under the Compensation Act in the whole country, by April 2006, 18,612 cases had been concluded. Among the concluded cases, there were 11,123 rejections. In Diyarbakir Province, where a large number of cases has been decided since autumn 2005, there were many fewer rejections and the sums awarded were more than double the average, which suggests that better use of the potential of the act might have been made than other provinces. However, there were also indications that the sums awarded in different provinces varied widely and that some provinces paid out larger sums than Diyarbakir. The above demonstrates the lack of consistency in implementing the act, which means that the chances of victims in different parts of the country of receiving compensation are unequal. Such inconsistent implementation not only carries the risk of discriminating against certain applicants, it also means that IDPs might perceive the process as being biased. Similarly, the Special Rapporteur received allegations of inconsistencies with regard to the admissibility of claims.[...] A related issue of concern is that there is no appeal for decisions of inadmissibility. Composition of the loss assessment commissions and the appeal process

The loss assessment commissions are chaired by Deputy Governors and mainly consist of officials from government authorities (six out of seven members). The members may include representatives of the Ministry of the Interior, whose officers may have been involved in the acts for which compensation is being awarded. The only non-governmental representative is an attorney appointed by the local bar association. The Commissions work in the premises of the Governor, which reinforces the impression that they are part of the executive. The loss assessment commissions as such do not have an appeal instance. However, in cases of disagreement, a case can be brought before the administrative court, and appeals can be made to the Council of State. These legal proceedings constitute an entirely new process, which - as officials admit - is extremely slow and few people want to wait so long for the money to be paid out. If an applicant accepts an offer from the loss assessment commission for compensation, this means

that no other remedies can be pursued.[...] The mechanism under the Compensation Act offers pecuniary compensation, including for damage to the life and body of the person.[...] An innovative aspect is that article 7 (c) provides for compensation for the time during which displaced persons were unable to access their homes and lands (including lost revenues). The act does not foresee any compensation for the "moral damages", contrary to the jurisprudence of the European Court on Human Rights.⁷ Many victims may feel that this means that the State does not acknowledge the trauma experienced by them. Whereas the Special Rapporteur is aware of the fact that, in legal terms, the compensation procedure in no way precludes criminal liability, some of his interlocutors voiced the concern that the ultimate aim of the Compensation Act is to "replace" the process of bringing to justice the State actors who committed human rights violations while evacuating or even destroying villages and settlements. Reports indicate that some vulnerable groups who do not have constant access to sources of information through broadcast and print media risk being omitted by the compensation process. This may include women, single mothers, children, the elderly and handicapped, if information on the act and how to file claims is not widely available and conscious efforts are not made to reach out to such groups."

EC, 8 November 2006, p. 22:

"In spite of the ECtHR ruling in the *Icyer vs. Turkey* case of January 2006, the implementation of the Law on Compensation of Losses Resulting from Terrorist Acts raises several concerns. Overall, there seems to be divergences in the methods used by the compensation commissions. They have large discretionary powers and procedures are often cumbersome. As a result, the payment of the amounts due is slow. There are concerns about the level of compensation. Furthermore, the conditions attached to the eligibility for compensation could leave a large number of potential beneficiaries outside the scope of the Law. There is also a heavy burden of proof on applicants to provide documentation, including property titles, which in many cases have never existed."

HRW, 14 December, 2006:

"Although a compensation law aimed at providing fair and appropriate redress to the displaced was adopted by the Turkish parliament in 2004, provincial assessment commissions have arbitrarily and unjustly reduced compensation amounts or denied compensation altogether to those displaced during counterinsurgency operations in the 1980s and 1990s. Human Rights Watch urged the Turkish government to suspend the commissions until their operating methods can be revised. 'Turkey's compensation law offered hope that the government would finally compensate hundreds of thousands of displaced people for their losses at the hands of the military,' said Holly Cartner, Europe and Central Asia director at Human Rights Watch. 'Now these displaced villagers have been victimized yet again by the arbitrariness of a compensation process that was supposedly established to help them.' [...] Provincial assessment commissions travel to remote villages to evaluate families' loss by examining the rubble of torched homes and scarce paperwork. The sums proposed by assessment commissions had never fully compensated displaced persons for the losses they had suffered. But until this year, the sums in some cases were comparable with compensation sums for displaced families ordered by the European Court for Human Rights. This all changed in January, when the court rejected the application of a Tunceli villager in *Igyer v. Turkey* on the grounds that the Compensation Law was an effective domestic remedy. Thereafter, the more than 1,500 cases pending before the court were dismissed on the grounds that the applicants had not exhausted the effective domestic remedy provided by the Compensation Law."

Since the European Court for Human Rights announced its decision in the Icyer case, there has been a noticeable deterioration in the implementation of the Compensation Law. Increasingly, damage assessment commissions appear to apply arbitrary and unjust criteria in calculating compensation, resulting in absurdly low compensation amounts in many cases. These calculations consistently seem to favor the government and appear to be biased against the victims of government abuse....

The report outlines methods used by damage assessment commissions to reduce or avoid payment, including

- o House price scales manipulated to reduce property values
- o Arbitrary reductions in valuations
- o Underestimation of land holdings
- o Insufficient compensation for orchards
- o Exclusion of stock and stockkeeping
- o Exaggeration of compensation or assistance already received
- o The single-person "rule"
- o The "rule" concerning children born away from the village
- o Exclusion of applicants displaced prior to July 1987
- o 1999 closure of conflict "rule"
- o Exclusion of rent from conciliation payments

MRG, 2006, pp.12-14:

"Statute 5233 was unquestionably an important and positive step righting patterns of grave injustice, but NGOs nevertheless had some criticisms of it, which they raised while the law was in draft form.[.] After partial amendments in response to these criticisms, the law entered into force with serious defects in its text and subsequent implementation.[.] In addition to problems in the actual text of the law, current implementation is proving unsatisfactory in a number of respects:

- The level of compensation proposed by the Commissions in most cases does not correspond to the damages actually suffered.[...] In some cases, there are wide discrepancies in levels of compensation ruled by different Commissions for comparable losses.[.]
- Some Commissions are acting arbitrarily in their assessment of applications. This has become more pronounced since the Icyer judgment. On 12 January 2006 the Third Chamber of the ECtHR gave an inadmissibility judgment in the application of Aydin Iyer v. Turkey.[.] It has been clearly noted that the Icyer judgment has had a negative effect on the operation of the Commissions.[.]
- It has been frequently observed that while Damage Assessment Commissions go to great lengths to procure, from various sources, documents that challenge displaced people's claims, they do not show the same diligence in collecting evidence that supports such claims.
- Applicants are sometimes coerced into accepting compensation figures on the basis that if they do so, their application will be dealt with sooner.
- Displaced people represented by an attorney are sometimes encouraged by Commission officials to dismiss their legal counsel.
- The Commissions often operate in a partial manner. Conciliation proposals are prepared unilaterally by the Commissions, and neither displaced people nor their legal counsel are included in the preparatory stages.
- Lawyers are prevented from inspecting the files. Commissions do not respond to written statements and requests submitted applicants or their attorneys.
- Conciliation 'proposals' are presented to the applicant or their attorney as a fait accompli and amendments are not accepted. When counterproposals are suggested, the Commission treats these as a de facto rejection and the file may then be subject to

endless delays and postponements. Site surveys are usually carried out in an irregular manner, contrary to proper procedures. [.]

- When conducting surveys, the Commissions frequently make no effort to establish the circumstances in which the damage took place. Lawyers are frequently not notified that surveys are to take place.

- Applicants are sometimes not notified of surveys, and it has been reported that in some cases Commission staff carrying out surveys ignore applicants' statements.

- Experts serving on Commissions are given unduly broad powers of discretion, and in some cases these powers have led to arbitrary practices.

- The issue of ownership and land registration has been a significant difficulty. In villages where the Land Registry Office has carried out a cadastral (i.e. land registry) survey after the date of application and before the Commission's site survey, lands which the villagers have used, cultivated and harvested, have reportedly been recorded as Treasury land or national forest. During site surveys Commission officials ignore the disputed status of the landholding and rely exclusively on the cadastral map. Where land is marked as Treasury land or national forest on such maps, villagers' statements are flatly ignored and a substantial further loss of property is inflicted.[.] This practice is in breach of ECtHR precedents to the effect that land registry records cannot be regarded as the sole test in assessing ownership."

EC, 8 November 2006:

"In relation to the situation in the Southeast, the ECtHR found in the *Icyer v. Turkey* [5] case that the Law on Compensation and Losses Resulting from Terrorist Acts provides adequate redress to the extent that it is undisputed that the applicant could today return freely to his village. Approximately 1 500 cases relating to the possibility to return to villages have been declared inadmissible by the Court following this decision. The reforms undertaken by Turkey in 2004 and 2005 have had positive consequences on the execution of judgments of the ECtHR. However, Turkish cases still represent 14.4% of the cases pending before the Committee of Ministers for execution control. [.] As regards **the** situation in the East and Southeast, progress has been made with regard to the compensation of losses resulting from terrorist acts. The ECtHR ruled that the compensation law allowed for the provision of adequate redress for persons who were denied access to their possessions in their place of residence." [5] Case of *Icyer v. Turkey* (Application no 18888/02).

UNDP, Rhodri Williams presentation, July 2006:

"In the *Icyer* decision, when Law 5233 had been passed but not yet implemented in very many cases, the law was deemed to provide an effective remedy. This meant that applicants would have to try to pursue their rights using Law 5233 before the Court would consider the merits of their claims."

HRF, January 2004:

"In January the Justice Ministry forwarded the draft law on Compensation of Damages as a Result of Terror or the Fight against Terrorism to the Prime Ministry. The draft provides for compensation of damages of individuals and institutions stemming from actiony described in Articles 1, 3 and 4 of the Law to Fight Terrorism and the fight against terrorism. The draft foresees the establishment of a commission to determine the amount of damages. Lawyer Mahmut Vefa, board member of Diyarbakir Bar Association, pointed out that the draft would only cover events over the past 10 years and in particular the villages that were destroyed between 1989 and 1994 remained outside the regulation. Mahmut Vefa also criticized that only officials would be in the commissions

and no representatives of the victims and NGOs were included. The damages would only be restricted to material damages and not account for traumas and rehabilitation. GOC-DER chairwoman Sefika Gurbuz also demanded that the draft should at least cover the last 15 years. Under the current form mainly village guards and soldiers would benefit from the law. She added that the destruction of villages had never been admitted and the victims had been put under pressure to sign declarations that the PKK or bad weather conditions were responsible for the destruction of their houses. Mrs. Gurbuz reminded of a large number of cases at the ECHR and stated that her association had prepared an alternative draft that they would present to the Ministry, if she got an appointment."

ECtHR crucial role in addressing compensation for displaced (1996-2006)

- ECtHR judgements put displacement and property evacuations on the European agenda. ECtHR judgements in house destruction cases have since 1996 drawn national and international attention to the issue of forced displacement (in 2005 25 per cent of all cases pending against Turkey)
- ECtHR assumed a crucial role given that there was no effective and accessible domestic remedy at the national level. The Turkish Constitution and other domestic legal provisions require compensation for government actions causing loss of property or injury. However no proceedings could be brought against governors within the state of emergency area.
- In *Icyer v. Turkey* in 2006, ECtHR would rule that compensation law allows for provision of adequate redress (2006) which in effect ended the ECtHR adjudication over issues linked to compensation.
- Approximately 1 500 cases relating to the possibility to return to villages have been declared inadmissible by the Court following *Icyer v. Turkey*
- ECtHR rulings have played a crucial role in addressing a number of issues affecting displacement. In *Ipek v Turkey*, in February 2004 the ECtHR found the Turkish State responsible for disappearance, torture and village destruction
- In *Dogan* case the Court found Turkey's failures to allow the applicants access to their homes to represent an interference with their rights and established possession of land and property in the absence of title deeds (2005); in *Ybyler v. Turkey* July 2003, the Court found the Turkish State, among other violations, to be responsible for village destruction.

EC, 8 November 2006:

"In relation to the situation in the Southeast, the ECtHR found in the *Icyer v. Turkey* [5] case that the Law on Compensation and Losses Resulting from Terrorist Acts provides adequate redress to the extent that it is undisputed that the applicant could today return freely to his village. Approximately 1 500 cases relating to the possibility to return to villages have been declared inadmissible by the Court following this decision. The reforms undertaken by Turkey in 2004 and 2005 have had positive consequences on the execution of judgments of the ECtHR. However, Turkish cases still represent 14.4% of the cases pending before the Committee of Ministers for execution control. [...] As regards the **situation in the East and Southeast**, progress has been made with regard to the compensation of losses resulting from terrorist acts. The ECtHR ruled that the compensation law allowed for the provision of adequate redress for persons who were denied access to their possessions in their place of residence." [5] Case of *Icyer v. Turkey* (Application no 18888/02).

UNDP, Rhodri Williams presentation, July 2006:

"In the Dogan decision, before Law 5233 was passed, the Court found Turkey's failures to allow the applicants access to their homes to represent an *interference* with their rights. Because Turkey had not yet passed measures allowing compensation for these interferences, they were found not to be proportional to a legitimate aim, meaning that they were *violations*.... In the Icyer decision, when Law 5233 had been passed but not yet implemented in very many cases, the law was deemed to provide an effective remedy. This meant that applicants would have to try to pursue their rights using Law 5233 before the Court would consider the merits of their claims."

EC, 9 November 2005:

"In 2005 the Council of Europe also began to consider the case of Dogan and Others v. Turkey, [7] which concerns the issue of the return to villages in the Southeast. In June 2004 the ECtHR ruled in favour of the applicants, who had been expelled from villages in the Southeast in the mid-1990s. The ruling established possession of land and property in the absence of title deeds, which many displaced individuals from the Southeast do not have. A large number of similar applications against Turkey are currently pending before the Court." [7] Dogan v. Turkey (Application nos. 8803-8811/02, 8813/02 and 8815-8819/02)....There are approximately 1,500 applications pending to the ECtHR regarding displaced persons, which account for approximately 25% of all cases pending against Turkey."

KHRP, 17 February 2004:

"In one of its strongest judgments for many years, the European Court of Human Rights (ECtHR) has today unanimously found that two men must be presumed dead following their unacknowledged detention by Turkish state security forces, in violation of the European Convention on Human Rights (ECHR). The Court also ruled that soldiers had destroyed villagers' homes, belongings and livestock, in addition to further ECHR violations (*Ipek v. Turkey*). The case was brought by KHRP on behalf of the applicant, Abdurrezak Ipek, concerning the disappearance of his two sons, Ikram and Servet Ipek, as well as the destruction of his family home and property by security forces. The incidents had occurred in the course of an operation conducted in his hamlet of Dahlezeri, near Lice, on 18 May 1994. He also maintained that no effective investigation was carried out concerning either his sons' disappearance or the destruction of his property. The European Court held unanimously that Turkey had multiply violated the right to life, prohibition of torture and ill-treatment, right to liberty and security, right to an effective remedy and right to respect for the protection of property under the ECHR (Articles 2, 3, 5, 13 and 38(1)(a) of the ECHR and Article 1 of Protocol No. 1).....Kerim Yildiz, Executive Director of the KHRP, says, 'This is one of the strongest condemnations yet of the actions of the Turkish state security forces and the Government's responsibility for disappearances, torture and village destruction. We believe the fact-finding hearing and the European Court procedure has provided crucial and much needed investigation of these serious human rights violations, as well as providing answers to the relatives of the 'disappeared'. KHRP will continue to monitor the case to ensure the Government now accepts its obligation to execute the judgment.'"

KHRP, 24 July 2003:

"The European Court of Human Rights has today ruled that Turkish security forces deliberately destroyed a man's house and possessions, thus forcing his family to leave the village, in violation of the European Convention on Human Rights (*Ybyler v. Turkey*). The applicant, Celatettin Yoyler, was the imam (religious leader) of Dirimpinar, attached to the Malazgirt district in the province of Mus. Gendarmes raided his village and burned

down his house on 18 September 1994, prompting Mr Yoyler to leave the village with his wife and children. The house and possessions of a further six villagers around him were also destroyed. Over 3 million people were forced from their homes and over 3,500 settlements destroyed during a campaign by Turkish security forces that peaked in severity in the mid-1990s. The ECHR has condemned the practice in a series of cases brought on behalf of displaced villagers by KHRP. The Court noted that his home had been burned down in front of members of his family, depriving them of shelter and support and obliging them to leave their home and family friends. This was held to have constituted a violation of the prohibition on inhuman and degrading treatment (Article 3). The Court also held that there was no doubt that the acts also constituted grave and unjustified interference with the applicant's rights to respect for his private and family life and home, and to the peaceful enjoyment of his possessions, in violation of Article 8 and Article 1 of Protocol No. 1 of the Convention. The Court concluded that the authorities had failed to conduct a thorough and effective investigation into the applicant's allegations. Furthermore, access to any other available remedy, including a claim for compensation, had also been denied to him, in violation of the right to an effective remedy (Article 13)."

See also : Dogan and Others v. Turkey

HRW, 30 October 2002:

"Principle 7(3)(f) of the U.N. Guiding Principles states that the right of displaced persons 'to an effective remedy, including the review of such decisions by appropriate judicial authorities, shall be respected.' Villagers burned out of their homes should be able to seek a remedy under Turkish domestic law. Article 125 of the Constitution provides that 'All acts or decisions of the Administration are subject to judicial review.. The Administration shall be liable for damage caused by its own acts and measures.' However, Decree with the Force of Law No. 430 exempts the administration of the state of emergency governor from legal action concerning acts in the state of emergency region (and provinces neighboring the state of emergency region) where almost all displacements occurred. An exception is made for acts of destruction 'without justification' but given the reluctance of the judiciary to investigate abuses committed by the security forces, identified by the European Court of Human Rights, it would be easy for the state to use this defense, simultaneously branding villagers as 'terrorists' and leaving them in a worse position than if they had not gone to court in the first place. In addition, under the Law on the Prosecution of Civil Servants and other Administrative Officials, no prosecution can be opened against an officer of the state unless it has been authorized by the office of the local governor (who is also the security forces' chief within the province).

A further difficulty in opening litigation is that, as indicated above, officials avoid committing administrative acts to paper that might later form the basis of a court action. None of the villagers Human Rights Watch interviewed had received written documents stating that they could not return to their homes, and the few who had been told that they could return for short periods in order to cultivate their fields had received only verbal permission from the governor and gendarmes. [...] As for creating the basis for a legal action relating to property rights and establishing the fact that the authorities are not permitting people access to their property, this is simple: it can be done by sending a registered letter. [...] A small number of displaced peasants have successfully sought international justice as a remedy, through the European Court of Human Rights (ECHR). This has not yet opened their path homeward, but there is no question that the series of

shock decisions in the ECHR were key factors in forcing the military to halt its program of destruction. In its 1996 ruling in *Akdivar and Others v Turkey*, the ECHR corroborated the open secret and confirmed that Turkish security forces were indeed guilty of house destruction. From that moment on, gendarmes knew that bullying indigent villagers might not be costfree. The European Court is considering how to cope with its growing burden of work.

HRW, June 1996, Turkey's legal obligations:

"Turkish domestic law provides that citizens must be compensated for government actions that cause them loss of property or injury. In proceedings before the European Commission of Human Rights regarding a case of alleged forced evacuation and burning of a village by government security forces, the Turkish government submitted as relevant law Article 125 of the Turkish Constitution, which states, 'The administration shall be liable for damage caused by its own acts and measures.' This is not restricted by any state of emergency or war, and does not necessarily require proof of a fault on the part of the administration. Article 1 of Law 2953 of October 25, 1983, states, moreover, that, 'actions for compensation in relation to the exercise of the powers conferred by this law are to be brought against the Administration before the administrative courts....If these laws were enacted effectively, the number of petitions to the European Commission of Human Rights would be greatly reduced.'

ECHR, 30 January 2001, paras. 37-39:

"Provisions on emergency measures

1. Extensive powers have been granted to the Regional Governor of the State of Emergency by decrees enacted under Law no. 2935 on the State of Emergency (25 October 1983), especially Decree no. 285, as amended by Decrees nos. 424 and 425, and Decree no. 430.

2. Decree no. 285 modifies the application of Law no. 3713, the Anti-Terror Law (1981), in those areas which are subject to the state of emergency, with the effect that the decision to prosecute members of the security forces is removed from the public prosecutor and conferred on local administrative councils. These councils are made up of civil servants and are under the authority of the provincial governors who also head the security forces.

3. Article 8 of Decree no. 430 of 16 December 1990 provides as follows:

'No criminal, financial or legal responsibility may be claimed against the State of Emergency Regional Governor or a Provincial Governor within a state of emergency region in respect of their decisions or acts connected with the exercise of the powers entrusted to them by this decree, and no application shall be made to any judicial authority to this end. This is without prejudice to the rights of individuals to claim indemnity from the State for damage suffered by them without justification.' According to the applicant, this Article grants impunity to the Governors and reinforces the powers of the Regional Governor to order the permanent or temporary evacuation of villages, to impose residence restrictions and to enforce the transfer of people to other areas. Damage caused in the context of the fight against terrorism would be 'with justification' and therefore immune from suit."

ECHR, 16 September 1996, para. 70:

"As regards the application of Article 26 to the facts of the present case, the Court notes at the outset that the situation existing in South-East Turkey at the time of the applicants' complaints was - and continues to be - characterised by significant civil strife due to the campaign of terrorist violence waged by the PKK and the counter-insurgency measures

taken by the Government in response to it. In such, a situation it must be recognised that there may be obstacles to the proper functioning of the system of administration of justice. In particular, the difficulties in securing probative evidence for the purposes of domestic legal proceedings, inherent in such a trouble situation, may make the pursuit of judicial remedies futile and the administrative inquiries on which such remedies depend may be prevented from taking place."

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Other judgements are available on the [website of the European Court of Human Rights](#)

IDP accounts of compensation paid to some displaced under Compensation Law (2005-2006)

- According to the Turkish government as of October 2009, the law is implemented by 105 Damage Assessment Commissions (DAC) made up of civil servants and established in 75 provinces.
- From 2004 to August 2009, slightly over 360,000 applications have been made to the DACs, of which over 190,000 have been finalised, 120,000 of which received compensation with the remaining denied.
- The total amount of compensation awarded to date is of \$1, 400 million of which close to 1,070 million has been paid to the beneficiaries.
- The illustrations below are cases of compensation reported in the media. Turkish Daily News reports the first instances of compensation being paid under the new Compensation Law. KHRP, HRW as well as TOSAV should be consulted.

BBC News, 31 March 2006:

"Ahmet is one of a growing number of villagers helped to return home by a new law on compensation.

The law was passed by the Turkish parliament two years ago, but the residents of Saklat are among the first to receive payouts. The legislation was enacted after the European Court of Human Rights was flooded with claims from Kurds in the south-east who lost their homes and their livelihoods in the fighting. Those applications have now been shelved, while the court watches to see how Turkey's own law is implemented. Anxious to leave city life behind, Cuma Yalcin borrowed money to rebuild his house in Saklat a couple of years ago. He could not afford to replace the same rustic stones, so the new house is concrete, painted salmon pink. Builders are currently putting the finishing touches to a large barn for his cattle beside it. "Without the compensation money I would never have been able to build this barn," Mr Yalcin says. "The money really helped. It felt like dressing on a wound." There are grumblings of discontent even here. Mr Yalcin says his cattle alone was worth three times the compensation he received for his property. Another neighbour is so furious at the low value placed on his home by the state assessment team that he has refused the cash. But the villagers are worried about more than bricks and mortar. [...] Almost every man here has a tale to tell of repeat arrests, interrogation and torture during the conflict. They were accused of supporting the PKK - though no charges were ever brought. Then torn from their land and their livestock, they were crammed into slums in nearby Diyarbakir. Everyday survival became a struggle.

The European Court paid compensation for moral and psychological losses. The Turkish law does not. "We will fight for damages for all the losses we suffered," Mr Yalcin says, sipping tea on the floor of his pink house. "After everything we went through in the village, our children started sniffing glue in the city; people became prostitutes out of poverty. The moral damage we suffered is so much more than our physical losses." There are dozens of piles of rocks dotted around Saklat, marking the spots where families plan to rebuild their homes once their payments come through. They could have a long wait. Thirty-two thousand people have filed claims in Diyarbakir region alone: only 10% have been processed; other regions are far slower still. "We expect to have finished processing all applications by the end of May and complete all payments by August," explains the governor of Diyarbakir, Efsan Ala. He hopes the compensation will be seen as a positive gesture by the state. "We've only been slow so far because we've been working very carefully to avoid mistakes." [...] Local lawyers call his estimate too optimistic. They say the law has improved greatly on paper - removing the need for claimants to provide detailed proof of damage, for example. But they still have serious concerns about its implementation. "The commission dealing with the claims is not neutral," argues Mahsun Karaman of Diyarbakir Bar Association. "It is staffed by civil servants who work directly for the governor - and includes several members of the counter-terror department. These are the very people who inflicted damage on my clients in the first place."

Turkish Daily News, 27 August 2005:

"Mardin Governor Temel Kocaklar expressed hope yesterday that residents will be able to lead peaceful and prosperous lives far from terrorism, the Anatolia news agency reported. The governor attended a ceremony held to provide the residents of the city with compensation for damages sustained as a result of terrorism. Nine people applied for compensation and received a total YTL 49,041. Speaking at the ceremony Kocaklar said the Governor's Office had received 14,404 applications and that two commissions had examined all the files.

He said the commissions have made decisions on 478 claims, 62 of which were accepted, while 416 were rejected. Kocaklar said the commissions were examining the remaining applications."

Turkish Daily News, 28 June 2005:

"Diyarbakir Governor Efsan Ala has made the first compensation payments to victims of terrorism and an anti-terrorist campaign to five individuals whose gardens were damaged during a military operation against terrorist Kurdistan Workers' Party (PKK) members last year. Speaking at the ceremony, Ala said they had received 17,000 applications for compensation since the law came into effect on July 27, 2004, noting that four commissions had assessed 350 of the cases and had awarded YTL 335,000 in 85 of them. Metin Tekin, one of those being compensated, said he was prevented from entering his garden during the operation and as a result his vegetables had dried up. 'I have received YTL 300 for the damages I incurred, even though it was much more. The figure was calculated by an expert. There's nothing else I can do,' he said."

Turkish Daily News, 28 July 2005:

"Inhabitants of the village of Gbmeg in Hani have decided to withdraw their lawsuit at the European Court of Human Rights because they were awarded TL 1.6 trillion in damages by the local compensation assessment committee. [...] Deputy Governor Erol Ozer told the Dogan News Agency they were about to come to an agreement with the inhabitants of

another village, Saklat in Kocakby. Ozer said that 23,000 people had applied to the court on grounds that they had suffered from terrorism and anti-terrorism measures. He added that after evaluating 662 files, the court decided to pay 338 people TL 4.6 trillion in compensation... "

PATTERNS OF RETURN AND RESETTLEMENT

Figures on Return

Figures of displacement and returns (2001 to 2009)

- More than half of the displaced wish to return to their areas of origin/ The others would prefer to remain and reintegrate according to Hattecepe Study which was government commissioned survey.
- Estimated 100,000 to 124,000 have returned to places of origin. The numerical size of the return migrant population is estimated to be between 10,9 and 12,1 percent of the population migrated from the 14 provinces in the last twenty years due to security reasons
- The government estimated that some 151,470 people had returned, as of October 2009. This is similar figure as of April 2007. This shows a progression over the last 5 years but remains a small percentage of total displaced.
- According to study undertaken in Van in 2006 safety and security primary reasons for migration/displacement. Findings suggest there are strong trends of migration in the region, which was triggered by terror and related security issues and intensified within a short time period
- The Van study underlined that half of responds indicated their wish to return, on certain conditions Developing alternative resettlement policies towards IDPs based on their differentiated choices and preferences necessary. Over a half of respondents indicated their wish to return, on certain conditions
- According to HRW study in 2005, many internally displaced people stay temporarily in their villages during the summer holiday, and return to urban areas the rest of the year. Villages report that villages lack access to electricity and telephone and other basic services like schools, and are unable to reconstruct their houses in order to live in it during the winter, though many reported that they would rather stay permanently in their villages

Brookings-Bern Project on Internal Displacement, December 2006, pp.3-4:

"The Survey also demonstrates that more than half of the displaced citizens now wish to return to their communities. The others would prefer to remain and reintegrate into society in the place where they have been living for the past years. In accordance with the Guiding Principles, it is essential that Turkish citizens can make this choice freely, and that they receive the necessary support for their decisions. Finally, it becomes clear from the results that tens of thousands have already gone back to their communities of origin. According to the Survey, most returnees who were asked said that they were happy with the conditions they found back home. Yet the concerns of those who were not need to be taken seriously and to be addressed to the extent possible, so that they, too, are able to rebuild their lives."

See also academic papers on resettlements in Turkey by Joost Jongerden From Productive Power to Blunt Control: Theses on the technology of (re)settlements in Turkey and the Kurds and Contested spaces in landscapes of violence. Displacement and return in Diyarbakir at the turn of the 21st century.

Study in Van province finds that a majority of IDPs assessed wish to return (2006)

TABLE S& FREQUINCY OF VISITING OF THE VILLAGES SINCE MIGRATION

TABLE 36: FREQUENCY OF VISITING OF THE VILLAGES SINCE MIGRATION

	Frequency	%	Valid %	Cumulative %
Never visited	160	27,5	43,5	43,5
Not visited because it is not permitted	20	3,4	5,4	48,9
Not visited because of security	3	,5	,8	49,7
Not visited because it is run down	11	1,9	3,0	52,7
Visited few times	136	23,4	37,0	89,7
Visited each summer	38	6,5	10,3	100,0
Total	368	63,3	100,0	
Not applicable	161	27,7		
Missing	52	9,0		
Total	213	36,7		
Total	581	100,0		

According to the table %52,7 of the displaced have never visited their villages since they fled and %37 have visited only a few times where as those who visit their villages on regular basis makes up only %10,3. Off the %52,7 that have never visited their villages %5,4 claimed that their visits were not permitted, %08 marked the security as their reasons and %3 gave the reason that their villages were run down after they fled. The majority of %43,5 gave no reason although they were given options in advance. This supports our claim that displaced persons were actually potential immigrants before their displacements. This claim is important to develop alternative resettlement policies towards displaced persons based on their differentiated choices and preferences. In this context, let us have a close look at seemingly the most preferred "*back to village*" choice. The responses to the question "*if they wish or not to wish to return back to their villages they left*" are shown in the table below.

TABLE 37: WISH TO RETURN OR NOT TO RETURN TO THE VILLAGE LEFT

TABLE 37: WISH TO RETURN OR NOT TO RETURN TO THE VILLAGE LEFT

	Frequency	%	Valid %	Cumulative %
Wish to return if economic support provided	116	20,0	33,9	33,9
Wish to return provided that the village rebuilt	80	13,8	23,4	57,3
Never wish to return	146	25,1	42,7	100,0
Total	342	58,9	100,0	
Inapplicable	170	29,3		
Missing	69	11,9		
Total	239	41,1		
Total	581	100,0		

As seen in the table, %42,7 of the participants never want to return back to their villages whereas %33,9 wish to return on condition that economic support is provided and %23,4 wish to return provided that their villages are rebuilt. In other words, those wishing to return their villages on certain conditions make up %57,3 of total responses. As we checked this responses with question "if they still wish to return should any support not provided" %57,9 changed their mind in favor of not to return whereas %42,1 insisted on their decision of return."

HRW, March 2005, pp. 21-22:

"Many IDPs now stay temporarily in their village during the long summer school holiday and return to urban areas during the winter, leaving a much smaller number of permanent residents. Villagers reported that the main reason for the winter exodus was not that they could not resist the attractions of city life, but that winter in an unrehabilitated village is unsustainable and dangerous. Many villages lack access to electricity and telephone services, water and sanitation systems, and are inaccessible by road for up to three months a year. They also lack medical facilities and, most importantly, schools. The fact that any villagers choose to remain in such villages over the winter reflects just how miserable conditions are for the displaced in urban areas. Some argue that wide seasonal fluctuations indicate that villagers are abandoning village life in line with the general process of urbanization since 1950, and that villages are becoming mere summer residences. The individual motivations of villagers are difficult to assess, but many reported to Human Rights Watch that they had no choice but to return to the city at the end of the summer because they wanted to put the children in school. Furthermore, they could not afford to reconstruct their ruined houses in order to make them habitable during the extremely harsh winter months. The *muhtar* of Saggoze village, near Genc, in Bingol province said 'I cannot speak for others, but I know that if our village was provided with water, a road, and a school, it would be completely full.' [46]"

Turkish Daily News, 6 July 2005:

"Interior Minister Abdulkadir Aksu, in a move likely to please the European Union, has ordered the governors of 14 eastern and southeastern provinces to actively involve nongovernmental organizations in a project that aims to help internally displaced people

return home. In a circular sent to the governors, Aksu said about one-third of internally displaced people had returned home under the Return to Villages and Rehabilitation project, which was launched in 1994.... He said as of the beginning of June, 125,539 out of an estimated 360,000 displaced persons in 14 provinces were safely returned to their villages.

Permanent Mission of Turkey to the UN, 18 March 2004:

Official figure for December 2003: 94,029 returnees

"Within the framework of 'Back to Village and Rehabilitation Project', 94,029 people have returned to their villages by the end of December 2003. This number represents more than 25% of the total number of displaced persons. The experience in Turkey and in other countries on displacements indicate that the number of people returning to their former rural dwellings is around 25%-30% of the total displaced"

Permanent Mission of Turkey to the UN letter to OHCHR, 7 November 2003:

Official figures for June 2000 to January 2003: Approximately 82,000 returnees

The number of returnees from June 2000 to January 2003 is around 82 thousand."

See also, "Emptied villages renew life", Zaman Online, 1 December 2003

EC, 5 November 2003, p.40:

"According to official sources, 82000 people were authorised to return to their villages in the period between January 2000 to January 2003. There is, however, concern regarding the lack of transparency and adequacy of consultation in the development of this project and disquiet about the absence of a clear strategy that explains the project aims, scope and budgetary implications. The number of areas where access is still prohibited has been reduced, but authorisation to return is still difficult to obtain. Although limited financial assistance has been provided to some returnees, there is a more general lack of financial resources to support return to villages, to compensate villagers for the destruction of houses or dwellings and to develop basic infrastructure in areas previously subject to armed clashes."

Turkish Daily News, 4 April 2002 :

"Some 37,000 people have returned to their villages in the Emergency Rule Region in the last 20 months as part of the "Back to Villages and Rehabilitation Project," carried out by the Interior Ministry....The Interior Ministry provided a total of TL 4.5 trillion financial assistance to these families returning to their villages last year, while allocating a total of TL 5.6 trillion in funds for these families from its budget in 2002. As spring has arrived, more people are expected to return the villages from where they left in fear of terrorism in the past. As houses and barns are being reconstructed, the farmers have started preparing for farming.

U.S. DOS, 4 March 2002:

"According to the Interior Ministry, between June 2000 and December, 35,513 persons had returned to 470 villages or pastures; over 6,000 homes had been constructed and the state had given over \$3 million (4 trillion TL) in construction materials or other supplies. In August the governor of the state of emergency region estimated that since 1999, 18,600 persons had returned to their villages in that region with government assistance, with a total of 5,853 houses constructed for the 'citizens who were forced to abandon their villages due to terrorism.'

U.S. DOS, February 2001, sect. 1g:

"After the middle of the year, there appeared to be an upsurge in the rate of returns and return requests. About 10,000 persons returned to their villages between June and August, according to the state of emergency governor. In July he declared that 65,000 of the 131,000 return requests filed with his office were 'appropriate'. According to the Jandarma, over 28,000 persons returned to the OHAL [State of emergency] region and adjacent provinces during the year. They state that there are an additional 238,900 applications for returns to 621 villages and 461 smaller hamlets, but only about a third of these claims are appropriate (mainly for security reasons) at this time.

HRW, 30 October 2002

USCR, 2001, p. 263

U.S. DOS, 25 February 2004, Sect. 2d

Hacettepe University, 6 December 2006:

"TMIDPS's data show that at least 91.000 and at most 101.200 of the security related migrants of the last twenty years originating from the 14 provinces may have returned to their origins. When the migrants originating from the urbans are taken into account as well, the estimation of the numerical size of the return migrants increases to the interval 112.000-124.00. The numerical size of the return migrant population is estimated to be between 10,9 and 12,1 percent of the population migrated from the 14 provinces in the last twenty years due to security reasons."

Government figures on return by area of return (2005)

Ministry of Interior February 2005, Source: Hacettepe University, 4 May 2005:

PROVINCE	APPLICATIONS FOR RETURN				RETURNEE					
	NUMBER OF APPLICATION	EXAMINATION	ACCEPTED	WAITING	VILLAGE		HAMLET		TOTAL	
					H.HOLD	POP.	H.HOLD	POP.	H.HOLD	POP.
ADIYAMAN	1.023	0	0	1.023	46	261			46	261
AĞRI	621	0	0	621					0	0
BİNGÖL	11.409	0	11.409	0	2.262	12.290	579	3.723	2.841	16.012
BİTLİS	14.334	0	10.958	3.376	1.103	7.297	382	2.299	1.485	9.596
HAKKARİ	6.763	0	6.778	3.355	1.967	17.259	873	5.255	2.840	22.514
MUŞ	4.082	1.144	2.889	7	137	1.040	91	706	228	1.746
TUNCELİ	2.311	0	0	0	1.137	3.676	0	0	1.137	3.676
VAN	5.795	0	4.034	1.761	945	5.855	592	3.517	1.537	9.372
ELAZIĞ	187	0	187	176	0	0	11	56	11	56
BATMAN	0	0	0	0	522	2.900	442	3.294	964	6.194
DİYARBAKIR	3.997	0	3.997	0	1.996	12.162	1.154	7.364	3.150	19.526
MARDİN	4.639	43	7.613	0	2.354	12.532	468	2.868	2.822	15.400
SİİRT	28.143	0	19.788	1.605	2.340	13.536	484	3.180	2.824	16.716
ŞIRNAK	9.484	5.128	4.409	3.221	1.266	10.043	96	829	1.362	10.872
TOPLAM	92.788	6.315	72.072	15.145	16.075	98.851	5.172	33.091	21.247	131.942

Comment on return figures (2005)

- In 2009, there continues to lack of clarity on government endorsement on the figures of displacement and return provided by the Hatteccepe survey issued out in 2006. According to NGOs in 2009, the qualitative data undertaken by the survey are still not available for public.
- In 2005, national and international NGOs have found statistics on return useless in assessing the progress of return because they are inconsistent and contradictory
- In 1999, the government commissioned the Turkish Social Sciences Association to carry out a survey of the displaced which failed to produce any statistics
- The authorities have also hindered the efforts by independent organisations, including the Human Rights Association and Goc-Der, to carry out data collection
- In November 2004, the government provided a list of villages and hamlets indicating the pre and post displacement population figures to HRW however research showed lack of consistency
- HRW found that the statistics under-recorded the number of initially displaced people and over recorded the number of returnees
- HRW concluded in 2005 that either return figures are overestimated or the returns recorded by the government were only temporary

HRW, March 2005, pp.12-14:

For years, government figures have been increasingly upbeat but also contradictory and inconsistent. Moreover, because they never listed the settlements to which villagers returned, the statistics were impossible to verify. In 1999, the government commissioned the Turkish Social Sciences Association to carry out a large survey of the displaced. After four years, the survey failed to produce statistics on the overall scale of displacement or the rate of return. Independent efforts to develop statistics have been unwelcome. In 2001, for example, the central government blocked an attempt by Diyarbakir municipality to collect reliable data about the number, conditions, and aspirations of the displaced. [23] The authorities prosecuted the organization Goc-Der for publishing a similar survey in April 2002, and in January 2004, as publisher of the report, Goc-Der director Sefika Gurbuz was sentenced to ten months' imprisonment (converted to a fine) for 'incitement' under article 312 of the Turkish criminal code. The European Commission's October 6, 2004 Regular Report on Turkey stated that the Turkish government had provided information that 'since January 2003, 124,218 IDPs (approximately one third of the official total of 350,000) have returned to their villages.' [24] Surprised at this unexpectedly brisk rate of return, Human Rights Watch visited the Turkish Embassy in Brussels on October 7, 2004, and requested a breakdown of the statistics provided to the European Commission, in order to evaluate their accuracy. On November 25, 2004, the Turkish Foreign Ministry supplied a list of villages and hamlets to Human Rights Watch with columns for pre- and post-displacement populations. In late November 2004, Human Rights Watch visited a small sample of the villages and hamlets listed, to compare the official numbers of pre-displacement and returned populations with figures given by village inhabitants. Human Rights Watch also looked at returnees' conditions, and the extent of official support to individual returnees and communities. Our evaluation indicated that the government's return figures are not accurate, and identified two particular shortcomings. First, the statistics under-record the number of inhabitants in communities prior to displacement and therefore underestimate the scale of the displacement. Second, the statistics

overstate the number of returnees. In some settlements, the government list reports substantial numbers of returns that were either temporary, or did not take place at all."

HRW, 30 October 2002:

"A cursory reading of government officials' figures on return suggests that villagers are heading home in large numbers, but as more and more upbeat statistics have emerged, the figures have begun to contradict one another. An undated letter sent by the Southeast Anatolia Project (GAP) to the Goc-Der received in May 2001 reported that 220 settlements were being resettled by 26,433 returnees. But Emergency Region Governor Gokhan Aydyner, speaking at a ceremony at Saklat village, Diyarbakyr province, on August 7, 2001, said that only 18,600 villagers had returned. The Interior Ministry stated in November 2001 that 30,224 villagers had returned in the previous seventeen months. Government sources informed the U.S. State Department that 26,481 people had returned by the end of 1999, and 35,513 between June 2000 and December 2001, a total of at least 61,994. On April 3, 2002, Emergency Region Governor Aydyner said that villagers had returned to 406 villages and 164 mezra between June 2000 and December 2001. On March 12, 2002, the Interior Ministry said that inhabitants had returned to 294 villages and 159 mezra in that period. The statistics are useless for the purpose of assessing the progress of return, not only because they are inconsistent, but also because they never list the settlements to which villagers have been able to return. Detailed lists would enable observers to compare government claims with the reality on the ground, and would reveal whether villagers are correct in claiming that most of the returns have been to communities that enrolled in the village guard system. A clear example of how partial information can be confusing or misleading is a letter written by the governor of Bingol to Gog-Der headquarters, dated May 27, 2001, stating that U.S. \$570,000 had been spent on return in that province alone. The expenditure seems to have been mainly on reconstruction of roads, and few villagers have returned in Bingol province. Nongovernmental organizations in close contact with displaced persons such as Gog-Der and the Human Rights Association (HRA) believe that all the government's conflicting figures are exaggerated and that in fact relatively few villagers have been able to return permanently."

Policy

Return and resettlement programmes

The "central villages" or "village-town" relocation scheme (1994-2001)

- The first major plan initiated by the government in 1994 attempted to encourage return to a number of "centralized" villages
- The project aimed to settle people from mountain villages into large centralized villages on state lands under the surveillance of security forces
- Several problems affected the implementation of the project including lack of international support, lack of consultation with the beneficiaries, and deficient planning

- Only 4,000 displaced persons were living in such central villages by the end of 2000. There were reports that villagers were admitted to central villages only if they joined the village guards
- The centralized village approach was also assumed within the successive plan launched in 1995. 'Return to the Village Project of the Southeast Restoration Project' was designed to resettle the displaced population in stages to relieve the pressure on the cities
- It was only with the Van Action Plan launched in 2006, that there seemed genuine efforts of the government to move away from centralized villages, and address different situations of displacement.
- The government's return policy and projects have been overwhelmingly critiqued for being consistently under-funded and ill conceived and falling far short of established international standards
- The return projects have also frequently required displaced people to fill out special applications to return which are subsequently rejected by the government
- In other cases, villagers given permission by the provincial governors to return to their homes, and 'authorised' returnees have often not been allowed to enter their villages by the local military

KHRP/Goc-Der/HRA, September 2003, p.41-43:

"The first major plan was aimed not at enabling the displaced to return to their original villages, but at concentrating them in more easily controllable large settlements. This was the '*Centralised Villages Project*: a plan to settle mountain villagers into large 'centralised' villages near population centres.[...] Announcing the programme in November 1994, Prime Minister Tansu Ciller said that as a first step, the Government would create 'secure areas' in Southeast Turkey for 12,000 displaced families. The Government says the programme is designed to consolidate some of the abandoned hamlets in order to make it easier 'to deliver infrastructure and services and attract jobs'. [...] However, the Turkish authorities will not agree to return to the previous set up of Kurdish communities, particularly those small isolated communities in the mountains, fearing a return to armed struggle.[...]" In order to fund the Centralised Villages Project, Turkey applied for 10 trillion liras (an estimated U.S. \$275 million) from the Council of Europe. In its application, the government avowed that the programme would be entirely voluntary, promising to establish resettlement sites in the provinces of Batman and Diyarbakir. When Turkey's application was rejected, with the Council of Europe expressing concern that the funds would be used to coerce people to resettle, that particular project foundered.[...] Despite this setback, Turkish governments have continued to try to create centralized villages aimed at establishing manageable settlements ancillary to towns and cities in the Southeast as a solution for displaced Kurds. [...] Some centralized villages have indeed been created. By November 2000, the resettlement programme had spent U.S. \$100,000 on a pilot project to rebuild Cetinkol, a village located outside of the provincial capital of Siirt. Other centralized villages have been established at Basagac, Konalga and Bayrakli. By June 2001, the government had established a system of satellite settlements organized around the larger urban centres of Southeastern Turkey. The US State Department Report for 2001 stated that 4,000 people lived in the centralized villages.[...] The centralized village project has encountered considerable criticism from many quarters. [...] The programme was developed without consultation with those affected or any public debate, and was apparently prepared in its entirety (including field research) in only 9 weeks.[...] Crucially, the project has been criticized as inappropriate for the region and inattentive to its people's culture, skills or desires.[...] In some cases, it is village guards that have moved in rather than displaced persons.[...] [T]he government has been accused of a lack of commitment to the

programme and of intentionally delaying the return of displaced villagers by withholding funds from the project; by the spring of 2000, the government had dispensed only 10% of the project's estimated budget of TL 700 million.[.] The military and regional State of Emergency officials also actively opposed the programme.

Gbc-Der has stated that almost 40% of internally displaced persons have never heard of the Centralised Village project. Among the ones who heard about this project only 6% of them agreed to go to the city-village."

USCR, 1999, pp. 20-21:

The Central village project was announced by Prime Minister Tansuiller in November 1994

"The Village Centers (*merkez koy*) Project was intended to settle people from mountain villages into large centralized villages on state lands near major population centers. The state planned to provide housing and arable land based on loans to be paid back within a 15-to-20 year period. Although the general outlines of the plan were not geared specifically to the displaced (or even to southeastern Turkey), in announcing the plan, Prime Minister Tansu iller said that its first beneficiaries would be 12,000 homeless families from Ovacik. The Netherlands Kurdistan Society traced the history of the idea of a centralized villages in Turkey:

Similar projects have been proposed in the 1970s in more peaceful circumstances, both by the left-of-centre Republican People's Party (CHP) of Mr. Ecevit and the right-wing Nationalist Movement Party of Mr. Turkes. Then named 'village-town' (koykent) and 'agricultural town' (tarm kent), the foreseen large settlements were to provide the rural population with better infrastructure and employment opportunities than would be possible in the myriad of existing villages and hamlets. Never implemented, the idea was revived in 1992 or 1993 by the late President Turgut zal, who posthumously published position paper on the Kurdish question recommended the massive resettlement of Kurdish mountain villages in more easily controllable large settlements.

The government requested \$278 million from the European Resettlement Fund of the Council of Europe to implement the Village Centers Project. It reportedly failed to secure the funding, and, therefore, did not move forward with the project."

IHF, 2001, p. 303:

"[T]he Government lacked a clear will to return all displaced villagers to their original homes and was still pressing forward with its projects for 'central villages' (koykent), into which some villagers would be permanently resettled on government land in communities under the eye of the security forces. In any event, returns to villages were slow: the U.S. Department's annual human rights report for 1999 quoted a government figure amounting to no more than 6.59% of the Parliamentary Commission's conservative figure."

HRF, January 2001, sect. 2:

"The victims of forced displacement did not show much interest in officials projects such as the project of central villages or village-town, that were developed by the government in order to present conditions for return. These projects were developed without the wish and intent of the victims and rather than securing an atmosphere of social peace and trust only represented the official ideology. Considering the rural way of productivity they also do not carry much weight for the future. All kinds of criticism and alternative models for solution that either the victims themselves or NGOs developed, were not taken into consideration.

[.] In a speech of 12 December [2000], Diyarbakir Governor Cemil Serhadli accepted the fact that the village-town project had not raised much interest. He pointed out that in Diyarbakir alone, the building of 5,864 houses was still continuing and added that out of 23,000 people who had asked to return to villages in Diyarbakir province only 3,000 had done so. The governor did not deal with the criticism on conditions and permission for a return and claimed that the migrants wanted to stay in town. 'Some are sending their children to school and other have set up their own work. The youth has become used to life in town.' However, the longer necessary steps are not being taken to allow for the return of the migrants and as long as they are forced to move to other settlements the problems of them will only increase.

USCR, 2001, p. 263:

"The government's organized return program appeared toward establishing heavily guarded and controlled 'central villages' in the southeast. About 4,000 displaced persons were living in such central villages at year's end."

HRF, February 2001, sect. 2:

"The only civilian project (even though partly) of the government on the issue of forced displacement presently is the project for building 'City Villages' (Koy Kent) or concentration and urbanisation of groups of villages in pre-determined locations. The implementation of the project has started without any public or political debate. The Chairman of the Chamber of Agricultural Engineers under the TMMOB, Prof. Dr. Gurol Ergin, commented in a speech he made in February that the project had no chance of success even within its own logic. He emphasised that rural development was one of the prerequisites of return to villages, and that people should be able to return on voluntary grounds. In this sense, he said, the State of Emergency regime should be abolished and the land should be cleared of mines. Prof. Ergin also projected that the villagers should be given monetary aid of 18 billion TL for reconstruction. He commented that huge amounts of public funds were spent for the project without any discussion in detail or in general, implementing technically insufficient and badly prepared projects on the basis of commands. He also commented that even the defenders of the 'Koy Kent' were not taking it seriously. He said, the fact that the entire project was prepared within 9 weeks including the field research justified concerns about the quality of the project."

HRW, September 2000, endnote 52:

"It appears that resettlement into central villages may be conditional on security checks. In May 1999 Human Rights Watch was informed that villagers had been told that they would not be admitted to the 'central village' of Konalga village, near Van, unless they agreed to join the village guard corps."

Turkish Daily News, 30 January 2001:

Opinion of the Chairman of the Parliamentary Committee on Displacement in Southeastern Turkey, Mr. Hasim Hasimi, Member of the Turkish Grand National Assembly "TDN: What do you think about Prime Minister Ecevit's Village-Town project? HASIMI: There are two striking examples that put on record that the Village-Town does not work. One of these involve the Dogankent experience in Hakkari in 1994. The Dogankent settlement was built for the inhabitants of the Uzungecit area. However, people did not settle in Dogankent. They migrated to Van. This is because there were no resources in Dogankent which would enable them to earn a living. The second example involves what happened in Sirnak's Basagac Village six months ago. That village [built to serve as a central town to provide basic urban services to the villages in the vicinity]

lacked drinking water. The settlements get constructed in such an unplanned, unprogrammed manner.

Furthermore, the Village-Town project is not in line with the realities of the East and the Southeast. At that time due to security problems villagers were unable to go to their fields or vegetable plots. The project envisages to merge several villages into one. And people would go to their hamlets, fields or vegetable plots in the morning and return in the evening. But there wouldn't be enough time for them to do that. Also, there is another hazard. When you bring together the population of several villages how will you enable them to earn a living? Due to local factors people have blood feuds and some other disputes and, as a result, avoid being together. They go away and set up a hamlet of their own. When even the inhabitants of the same village who know one another and are even related to one another cannot live together, how can people who do not know one another get along? There is no sense in continuing to stubbornly implement a project that has met with failure right from the start. I say that the money to be spent on that project will be wasted."

"Return to Village and Rehabilitation Project" (1994-2009)

- The Return to Village and Rehabilitation Project (RVRP) was launched in 1995, but its implementation would be seen as of 1999. It would be also implemented within the framework of the South East Anatolia Project (GAP). As of 2009, under the RVRP the Turkish government had financed up to in social infrastructure and assistance to returnees.
- In 2005, the European Commission (EC) expressed concern regarding the lack of transparency and adequacy of consultation in the development of the project. The EC had also expressed "disquiet" regarding the absence of a clear strategy.
- According to NGOs, return initiatives since 1995 have been superficial and which have failed due to lack of funding and political drive. IDPs have not received sufficient financial support to return to villages, to fix destroyed properties and to develop basic infrastructure in areas previously subject to armed clashes
- The project has also failed to restore damaged and destroyed infrastructure in villages to which populations are returning. The number of areas where access is still prohibited has been reduced but authorisation to return is still difficult to obtain
- In 2003, the International Federation for Human Rights and Human Rights Watch have expressed concern that the return programmes are actually resettlement programmes in the creation of central villages or village townships
- IDPs who have wanted to return to their hamlets have been told by the authorities that they could do so only if their hamlets were regrouped in new "village townships". International organisations have expressed concern that the programmes aim at resettling people in villages dominated by government control, such as the village guards
- In 2001, human rights activists of HRFT criticized government return program for failing to be comprehensive or voluntary. The Human Rights Commission reported how that the military authorities in particular hindered return, and testified to villagers being forced to sign papers to return and the lack of financial and other government support to IDPs

UNDP, Minister Abdulkadir Aksu, 23 February 2006:

"To this end, overall YTL 52.684.513 was spent from both general budget and budgets of the provincial administrations as well as the Foundations of Social Assistance and Solidarity. If the infrastructure expenses of other ministries and public institutions and organizations under the coordination of the offices of governors are added to these figures, it might be seen that the expenses are above YTL 100 million in fact. These

expenditures by our offices of governors are used for the following purposes in the settlements to which people return:

- Infrastructure investments including road, water, electricity, sewerage;
- Repair and maintenance of schools, village clinics and mosques;
- Supply of construction materials to the citizens who return to their villages to build their own houses;
- Creation of employment through projects of agriculture, animal husbandry and handicrafts.

When we compare it to other countries which experience similar problems, despite limited budget opportunities, it is possible to argue that the project has so far been successful taking into account the fact that one third of migrated citizens returned to their villages."

Ministry of Interior Presentation, 23 February 2006:

"Return to Village and Rehabilitation Project has the following objectives: Establishment of sustainable livelihood conditions for the families that departed from their villages in the east and southeast anatolia due to various reasons, top among of which is security, and want to return voluntarily either to their own villages, vicinity of their villages or their villages or another place with suitable fields through construction of required social and economic infrastructure. The full presentation is available in sources below.

EC, 5 November 2003, p.40:

"Implementation of the Return to Village and Rehabilitation Project has continued, though at a very slow pace and inconsistently, some regions progressing quicker than others. According to official sources, 82000 people were authorised to return to their villages in the period between January 2000 to January 2003. There is, however, concern regarding the lack of transparency and adequacy of consultation in the development of this project and disquiet about the absence of a clear strategy that explains the project aims, scope and budgetary implications. The number of areas where access is still prohibited has been reduced, but authorisation to return is still difficult to obtain. Although limited financial assistance has been provided to some returnees, there is a more general lack of financial resources to support return to villages, to compensate villagers for the destruction of houses or dwellings and to develop basic infrastructure in areas previously subject to armed clashes."

HRW, March 2005, pp.21-24:

"The Turkish government's current chosen vehicle for providing assistance to IDPs is the Return to Village and Rehabilitation Project. Successive governments have produced various return initiatives since 1995, all of them hobbled by a lack of funding and insufficient political drive. ^{1j} These initiatives appear largely to have been motivated by a desire to create the impression of government action, in order to deflect questions from petitioning villagers, parliamentary deputies from the southeast, and foreign diplomats. The plans may also have served to relieve pressure on the government from metropolitan populations and municipalities concerned about the influx of peasants squatting on vacant land and erecting *gecekodu* (shanty dwellings). In March 1999, then prime minister Bulent Ecevit launched the Return to Village and Rehabilitation Project with the following description: 'Within the framework of the project, those families who wish to return to their villages will be identified; infrastructure facilities of the villages will be completed; housing developments will be increased with the labor of families; and social facilities will be completed to increase the standard of living of the local people, especially in [the areas of] health and education. Moreover, activities such as

beekeeping, farming, animal husbandry, handicrafts and carpet weaving will be supported so that these families can earn a living.' [...] The Return to Village and Rehabilitation Project has now been running for almost six years. Human Rights Watch has long criticized its poor performance. In 2001 and 2002, Interior Ministry officials said that the government would expand and formalize assistance to returning displaced persons once a survey had been completed and a returns model established. The survey was finished in 2002, but no model for return was ever developed, and governors continue to dole out meagre assistance through the project on an ad hoc basis. Between 1999 and 2002, the state allocated approximately U.S. \$19 million to the scheme, but in the villages visited by Human Rights Watch, there was not much to show for the expenditure..... The Return to Village and Rehabilitation project has also failed to restore damaged and destroyed infrastructure in villages to which populations are returning. ... The Return to Village and Rehabilitation Project is supposed to provide income support to returnees. Yet such support has been sporadic and insufficient. Clearly, the Return to Village and Rehabilitation Project is not doing its job in its current form. The project is under-funded. There are no clear guidelines about what a community or a particular villager can expect. Assistance is distributed in an arbitrary and inconsistent manner. Work in repairing infrastructure has not even kept up with the existing slow rate of return.

Other assistance programs also seem to be missing their target. For example, farmers receive agricultural assistance money from the Ministry of Village and Agricultural Affairs based on the area of their arable land. In Seren village, however, agricultural support for the entire village was stopped on the grounds that some villagers had made claims relating to non-arable areas. The village muhtar pointed out that these areas were arable fields that had returned to scrub because for a decade the villagers had been given no access to farm the land. Other villagers in the province reported that after they had been forced off their lands, inhabitants of neighbouring villages had illicitly claimed agricultural support in respect of the lands left vacant."

KHRP/Goc-Der/HRA September 2003, p.43-44:

The Return to the Village Project of Southeast Restoration Project (1995) "In 1995 the Government proposed the 'Return to the Village Project of the Southeast Restoration Project'. The new programme was designed to resettle the displaced population in stages so as to relieve the pressure on the cities. In order to mitigate the economic burden that would be borne by those who relocated, the programme provided financing to encourage traditional agrarian occupations, such as bee keeping, animal husbandry, and weaving. The government proceeded with the programme and in November 2001 Interior Minister Kazim Yucelen declared that the government had allocated 3.2 trillion liras for the *Return to the Village Project*.[...] But once again, the military and regional State of Emergency officials claimed that the project posed serious security risks.[.] As a result, individuals wishing to return were required to submit special applications. Only a few villagers have been given permission by the provincial governors to return to their homes, and 'authorised' returnees have often not been allowed to enter their villages by the local military.[.] Sharp criticism came from Human Rights Watch, who suggested that the project was largely fictional with most abandoned settlements remaining no-go areas, which in some cases have been occupied by government-armed village guards.[.]"

KHRP/Goc-Der/HRA, September 2003, p.44-45:

East and Southeast Anatolia Action Plan (2000)

"In a further plan announced by the Turkish government, the 'East and Southeast Anatolia Action Plan' began in May 2000.[.] The plan provides assistance to displaced persons to return to their villages or relocate to new, centralized villages in the region. The Turkish Daily News reported in May 2000 that 7.5 trillion Turkish lira had been allocated to the East and Southeast Anatolia Action Plan, whereas according to the Mayor of Diyarbakir, 700 trillion was actually needed to address the problem.[.] In November 2001 Interior Minister Kazim Yucelen announced that programmes relating to health, education and social, economic and cultural fields were underway within the framework of the East and Southeast Anatolia Action Plan. Human Rights Watch has stated that these schemes, 'have consistently been under-funded and ill conceived, falling far short of established international standards. In fact, it is difficult to avoid the conclusion that the government's main goal is to gain time and wear the villagers down to a state of resignation. The Village Return and Rehabilitation Project announced in March 1999, for example has since yielded nothing more than an unpublished feasibility study for return to twelve model villages. A mere twelve, when even according to official statistics it is acknowledged that more than three thousand villages and hamlets were evacuated'".

For more information:

"Turkey fails displaced villagers" and "Displaced and Disregarded" reports by Human Rights Watch , 30 October 2002

HRW, 30 October 2002:

"The Office of the Prime Minister delegated management of the Village Return and Rehabilitation Project to the giant South East Anatolia Project (Guneydogu Anadolu Projesi-GAP). [1] [...] Once tasked with the project of designing a return program, GAP decided that it was necessary to collect further information about the scope of the problem, and to this end put the task of preparing a feasibility study out to competitive tender. The tender was awarded to the Turkish Social Sciences Association (TSBD), a nongovernmental organization that finances and implements a wide variety of social research. the Village Return and Rehabilitation Project is moving so slowly that there must be some doubt whether it will ever bring practical benefit to the displaced. The TSBD planned to finish its initial field study in March 2002 (five years after the Return Project's original conception). It would then provide an assessment of one hundred villages and proposals as to how the return process might be carried out in twelve model villages—no more than 12 percent of the emergency region governor's estimate of evacuated villages (820), or 3 percent of the figure for all evacuated settlements including mezra (2,345).

..... As this report went to press, in October 2002, it is unclear whether this process was in train. Until a comprehensive and fully-funded plan is up and running, villagers will remain cut off from their homes and livelihoods. The Parliamentary Human Rights Commission reported that the Interior Ministry's Village Return and Rehabilitation Project goal for 1999 was to secure the return of 1,017 families. At this rate, the 10,539 families who have petitioned Gog-Der might expect to wait up to a decade before they could return to their homes, unless, as is widely feared, the Village Return and Rehabilitation Project will be limited to only a small number of selected settlements. The Village Return and Rehabilitation Project has taken five years to get twelve model villages onto the drawing board. Those villages, for the reasons given above, are likely to be villages favored by the state because of a history of village guard membership. It would not be surprising if the other villagers, who do not have a special relationship with local

governors and security forces, never benefit from the Village Return and Rehabilitation Project, and never return."

FIDH, July 2003, p.16-17:

"Return to village v. Resettlement: There is an unfortunate tendency to include resettlement operations among so-called 'Return to village' projects whereas 'Return' and 'resettlement' should not be confused. Resettlement, even in the case of people 'resettled' in the region from where they were displaced, means that these people will not go back to their house or village. This is the case when the Turkish authorities count on the creation of 'central villages' and 'village-townships' to implement the return to village projects. In its 2002 reports on displaced persons, Human Rights Watch provided extensive information on these central villages and village townships. The international organisation feared that these initiatives would aim at maintaining control on the people by resettling them in villages dominated, for example, by village guards. It also said that these operations could be seen as means to gather international funds, including World Bank funds, under the legitimacy of the 'return to village' objective. The investigation carried out by the FIDH in May 2003 confirmed fears expressed by HRW. For example, people who want to go back to the hamlets which are situated around Sirnak were reportedly told by public authorities that they could do so only if these hamlets were regrouped in new 'villages-townships'. This perspective is very distressing for these people and do not provide for an incitement to apply for a 'return to village' authorisation. See also "Displaced and Disregarded: Turkey's Failing Village Return Programme" Human Rights Watch, 30 October 2002

See also:

HRFT, August 2001

Van Action Plan to address returnees and urban displaced (2006-2009)

- Van Action Plan was drafted with the technical assistance of UNDP and other numerous stakeholders. It plans to highlight potential strategies to improve living conditions of IDPs in Van.
- It consists of strategic measures at the provincial level, recommendations for national level policies, and framework with indicators to measure progress. If properly implemented it may become an optimal international practice, says W. Kalin
- UNDP has played active technical support in facilitating interactions between government and civil society in developing response to the displacement problem in Turkey. UNDP covered technical support and advice, capacity building and awareness raising and developing appropriate policies and action plans
- The VAP represents the latest response to calls by the international community for a more systematic approach to enabling durable solutions for IDPs. It recognises the need to address urban displacement as well as facilitate returns according to the Guiding Principles.
- The plan is to be replicated in all other 13 provinces affected by displacement in south-eastern Turkey, and form an integral part of a National Action Plan. The National Plan is to be completed by end of 2009. It complements rather than replaces the RVRP
- As of December 2007, 84 planned projects (requiring funding of close to \$72 million) were submitted to relevant national ministries, 44 of which are still being negotiated in 2009
- In 2009, TESEV report would underline how many civil society associations have criticised the discrepancy between the final Plan and the outcomes of initial consultations It has also

been criticised for failing to acknowledge the Kurdish issue, and the issues of landmines, ongoing violence, and the threat presented by the village guard system.

- Furthermore, the provincial action plans from which the National Action Plan is to be developed fails to address the situation of urban displacement outside the south-east.

Governorate of Van, 10 October 2006:

"This Plan of Action has been drafted by the Governorate of Van with the technical assistance of the United Nations Development Program (UNDP) within the framework of the development of international cooperation. It succeeds the 2005 Action Plan developed by the Governorate of Van, within the framework of the KDRP, with regard to priority fields of investment in basic infrastructural concerns such as housing, transportation, water, education and health services as well as income generating activities. This Plan of Action is in line with the GoT's Strategy Document, the *United Nations Guiding Principles on Internal Displacement* and counsel by the Representative of the Secretary-General on the Human Rights of IDPs. The content of the Plan is premised following extensive stakeholder dialogue and documentation review and based on the cumulative experience gained from completed and ongoing activities and the various initiatives such as UNDP-managed *Project for the Support and Development of IDPs* (managed by UNDP). Among the numerous stakeholders consulted with regard to development of the Plan are District Governorates, local administrations including municipalities and mukhtars, non-governmental organizations (NGOs), private sector representatives, business and professional chambers, employer organizations, labor unions, and - perhaps most importantly - IDPs themselves (Annex I). The purpose of the Plan of Action is to highlight potential strategies that will improve the living conditions of IDPs in Van. Given the complexities of IDPs in Turkey, this document serves to provide an introduction to various methodologies (i.e. modes of integration) as well as strategic interventions and actions (i.e. provision of social services) that reflect international standards and the policies of the GoT. The aim is to provide a menu of possible options and recommendations that can be adapted and deployed by the Governorate of Van contingent on dictating socio-economic circumstances and other institutional variables such as the availability of financial and human resources. Moreover, rather than replicate or replace ongoing efforts by both governmental and non-governmental organizations, the Plan of Action has been designed to complement these initiatives." "The Plan of Action comprises three parts: strategic measures undertaken at the provincial level; recommendations for national-level policies that support provincial-level initiatives; and a logical framework with indicators to measure progress." "The Plan of Action proposes an incremental set of strategic measures addressing the following five categories: a) prerequisites for integration and resettlement, b) provision of basic infrastructure and other forms of social assistance and services, c) promotion of social and economic development, d) awareness-raising and communication, e) support for cooperation and partnerships with other actors, including IDP participation."

Turkish Daily News, 15 October 2006:

"The plan, launched last month, is called the Van Province Action Plan for IDPs Services Delivery. If it is fully, equitably and consistently implemented, it will both offer major a contribution to the building of social agreement in the country and will constitute an example of optimal practice for the international community, U.N. Representative on Internally Displaced Persons Walter Kalin believes."

See also Turkey to announce first action plan for IDPs, and Gov't takes step to combat sad legacy of PKK conflict: internally displaced persons, and No other way than social

services to heal the wounds of IDPs, and Efforts for a nationwide plan for IDPs under way, and Van's action plan for IDPs may be key model for reaching social agreement.

UNDP, Progress Report, 23 February-23 June 2006, pp. 3-4:

"In response to a request from the Government of Turkey to provide support for follow-up of the 2002 recommendations by UN Secretary-General Representative Dr. Francis Deng, the UNDP Turkey developed the project entitled "Support to the Development of an IDP Programme in Turkey." The aim of the project has been to support government and civil society initiatives to develop a more comprehensive and robust response in identifying solutions for the IDP population in Turkey. The project comprises four basic components designed to meet the overall project objectives, as follows:

Component 1: Provide technical support and advice to the government-funded qualitative and quantitative survey undertaken by Hacettepe University's Institute of Population Studies.

Component 2: Provide capacity building, awareness-raising and training for civil society partners to enable them to provide more effective support to IDPs and advocate for their rights based on the UN Guiding Principles.

Component 3: Respond to Government and UN Country Team needs for technical and other expertise on a demand basis; provide a flexible funding mechanism to respond to emerging priorities and needs identified by the government, civil society and the UN Working Group on IDPs in order to more effectively support the national response.

Component 4: Initiate and develop a provincial level pilot for a "service delivery" model to ensure that responses by government, NGOs and other relevant stakeholders address the social service needs of IDPs who choose to return to their communities of origin as well as those who choose to integrate into a new community.

The UNDP Project for the Support to the Development of Internally Displaced Persons (IDPs) Program in Turkey was formally signed by the Ministry of Foreign Affairs on 18 January 2006. This event signaled the Government of Turkey's full endorsement of UNDP support for the government's IDP-related efforts and designated the Ministry of the Interior's Strategy Development Board as the UNDP's primary counterpart within the Government. The signing of the project agreement enabled the UNDP to move forward with the implementation of the project, which was formally launched on 23-24 February 2006 with a two-day IDP Conference in Ankara. The aim of the conference was to bring together representatives of government institutions and NGOs to strengthen their work in the area of IDPs; to engage in dialogue on issues of mutual concern, including the Hacettepe University Survey and implementation of the Compensation Law; and to disseminate and learn from global experiences and perspectives surrounding the issue of displacement."

UNDP, Progress Report, 24 June-24 October 2006, pp. 3-5:

"Since the release of the First Progress Report in June 2006, a number of significant policy and project related initiatives have taken place to fulfill the project's specific objectives, and more strategically to further advance Turkey's efforts in developing an IDP response both as part of its own national development/reform agenda and in line with the EU Political Criteria.

- Realization of a "training of trainers" workshop by the Norwegian Refugee Council on September 4-7 for participants from the civil society to develop capacity within Turkey, which previously has been limited to provide awareness and training to NGOs and communities related to human rights and service delivery for IDPs;

- Development of a policy paper outlining critical areas for NGO engagement which underlines possible policy lines for the NGOs, public authorities, and international organizations to increase productive cooperation on IDP related issues;
- Dissemination of the UN Guiding Principles, its Annotations, and a Summary in Turkish to more than 8,000 individuals or organizations throughout Turkey;
- Provision of Technical Support to the Ministry of Interior to develop a "Valuation Matrix" Approach for a more systematic and effective implementation of the Law on Compensation, drawing on concrete international experiences from Bosnia, Iraq, and Germany provided at a UNDP-organized training and benefiting from the technical expertise of the International Organization of Migration and the Brookings Institution-University of Bern Project on Internal Displacement
- Provision of Technical Support and advice to the Ministry of Interior, particularly the General Directorate of Provincial Administration, to establish a Secretariat to review decisions of the Damage Assessment Commissions, again in the context of the Law on Compensation
- Provision of technical support and facilitation of consultative mechanisms for the development of a provincial level "Van Action Plan for Service Delivery" in Van Province, near the border of Iran, to ensure that response by government, NGOs, and other relevant stakeholders address the social service needs of IDPs who choose to return to their communities of origin as well as those who choose to integrate into a new community;
- Support to a high-level, public meeting on September 29th at which the Minister of Interior, Governor of Van, RSG Walter Kalin, and UNDP RR/RC Mahmood Ayub publicly commented on the importance of Turkey's support to IDPs, government ownership, the relevance of the Van Action Plan at a national level, and an overview of strengths and challenges of the Plan by RSG Kalin. The meeting resulted in important media coverage to further disseminate the Government's commitment and plans related to IDPs, and also provided a road-map for additional technical support and services that may be provided by UNDP/Turkey."

See also:

[Turkey to announce first action plan for IDPs](#), and
[Gov't takes step to combat sad legacy of PKK conflict: internally displaced persons](#), and
[No other way than social services to heal the wounds of IDPs](#), and
[Efforts for a nationwide plan for IDPs under way](#), and
[Van's action plan for IDPs may be key model for reaching social agreement](#).

Obstacles to return and resettlement

Obstacles to return and resettlement (2004-2009)

- Security is an issue in some parts of the southeast; The 2004 compensation law has been applied unevenly thereby resulting in some displaced people receiving very low amounts and others being excluded altogether; Many IDPs stay temporarily in their village during the summer and return to urban areas during the winter
- Many villages lack access to electricity and telephone services and are inaccessible by road for up to three months a year. Villages also lack medical facilities and schools MRG reported

that prohibitions on animal husbandry occurs in areas where there are so called security concerns thereby discouraging returns

- Human Rights Watch noted in a 2004 report several attacks on civilians by village guards in areas of return, including in the provinces of Diyarbakir, Mus, Mardin and Hakkari. The discretion of the governor plays a crucial role in the implementation of the legal and administrative provisions regulating return
- In 2006, UN expert identified number of obstacles to return including; precarious and reportedly deteriorating security situation; socio-economic factors such as lack of employment opportunities and inadequate infrastructure; the institution of village guards. This was echoed by Council of Europe Commissioner on Human Rights in his report in 2009.
- The European Commission in successive reports, and most recently in 2008, would note that the overall socio-economic situation in the Southeast remains difficult for returns.
- The east and south east regions of Turkey suffer from a chronic lack of social facilities and infrastructure. Many villages in the former conflict areas do not have telephone connection, electricity supply, schools, health facilities, water and sanitation systems. In many cases, access to villages in former conflict areas is difficult because roads have deteriorated

HRW, January 2007:

"The Turkish government has failed to facilitate the return of the estimated 378,335 internally displaced persons (IDPs) from the southeast who were forced by the army to flee their villages during the armed conflict with the PKK in the 1980s and 1990s. The government has failed to rehabilitate the basic infrastructure of most villages destroyed by the army during the conflict; many villages have no electricity, telephone access, or schools. What is more, the security situation in some regions remains poor; the 58,000 village guards—Kurds armed and paid by the government to fight the PKK—often occupy or use vacated lands, and have killed 18 people, including would-be returnees, in the past four years. IDPs who do return to their villages cannot afford to rebuild their homes or re-establish agriculture. A 2004 compensation law, which could have provided the financial means to support IDPs who want to return to their villages, has been interpreted and applied by some provincial compensation commissions so as to pay derisory sums (often as low as US\$3,000) or exclude eligible IDPs from compensation altogether."

EC, 8 November 2006, p.23:

"Several factors affect negatively the return of IDPs: the absence of basic infrastructure, the lack of capital, limited employment opportunities and the security situation. In particular, large numbers of landmines [...] constitute a strong disincentive to return. Moreover, the discretion of the governor plays a crucial role in the implementation of the legal and administrative provisions regulating return....."The overall socio-economic situation in the Southeast remains difficult and there is no comprehensive plan to address this issue."

MRG, 2006, pp.16-17:

"The prohibition on accessing pastures This prohibition is mainly implemented in rural areas where clashes have occurred. Such bans are a major obstacle for villagers and nomadic groups who make their livelihood from stockbreeding. The clashes themselves are also a disincentive to return, especially for those who work in animal husbandry."

EC, 9 November 2005:

"Several factors hamper the return of IDPs: the continued relative economic underdevelopment of the East and Southeast, the absence of basic infrastructure, the

lack of capital, limited employment opportunities and the security situation. [...] Moreover, the discretion of the governor plays a crucial role in the implementation of the legal and administrative provisions regulating return."

HRW, 15 December 2004:

"In November 2004, Human Rights Watch carried out field research on the current conditions for return in southeast Turkey. It found that government statistics on return overstated the true number of returns and masked the wretched conditions under which returns were taking place. Most returning villagers had received little or no state support or compensation. A large number of internally displaced persons stay temporarily in their village during the long summer school holiday and return to urban areas during the winter, leaving a much smaller number as permanent residents. Villagers made it clear that the main reason for the winter exodus was that village life in winter is unsustainable and dangerous. Many villages lack access to electricity and telephone services and are inaccessible by road for up to three months a year. They also lack medical facilities and, most importantly, schools. That any villagers choose to remain in the villages over the winter reflects the miserable conditions for the displaced in urban areas. Civil servants sometimes cite the extremely primitive conditions in some villages to argue that these remote settlements are not viable but it is important to note that all these villages had electricity and telephone connections fifteen years ago prior to their destruction. In most cases, road access deteriorated as a result of a decade of neglect. Most villages also had ready access to schools before the late 1980s, the turning point when the PKK began its policy of killing teachers, and the state began destroying school buildings and other infrastructure. Return is a risky process. Returnees are not viewed with much sympathy by the security forces, and are under threat by government-sponsored village guard neighbors, who in some cases have occupied their lands. In the last three months Human Rights Watch has noted several attacks on civilians by village guards in areas of return, including in the provinces of Diyarbakir, Mus, Mardin and Hakkari.

HRW, 26 January 2004:

"Lack of progress on the internal displacement of Kurdish villagers remained a key human rights concern. During their bitter armed conflict with the illegal armed Kurdish Workers' Party (PKK) from 1984 to 1999, Turkish armed forces forcibly evacuated hundreds of thousands of Kurdish villagers from their homes in the southeast. Most villagers are still unable to return to their property because of the threat posed by paramilitary village guards and uncleared mines, or because they cannot afford to restore their homes and local infrastructure."

U.S. DOS, 25 February 2004, Sect. 2d:

"Citing security concerns, southeastern provincial authorities continued to deny some villagers access to their fields and high pastures for grazing, but have allowed other villagers access to their lands. Voluntary and assisted resettlements were ongoing. In some cases, persons could return to their old homes; in other cases, centralized villages have been constructed. Only a fraction of the total number of evacuees has returned. The Government claimed that 94,000 persons returned to the region from June 2000 to October. More than 400 villages and hamlets have reportedly been reopened with government assistance. These figures could not be independently verified.

UN, 16 November 2006:

"Obstacles to return still remain, such as the precarious and reportedly deteriorating security situation in the region, exacerbated by landmines in roads to and from villages.

According to non-governmental sources, in 2005, 373 persons lost their lives. There has also been an increase in extrajudicial killings/murders by unknown perpetrators. In 2005, there were 43 extrajudicial killings and 56 were injured. A further 48 persons died because of bombs and explosives, and 72 were injured.

Also, socio-economic factors prevent many people from returning, including the lack of employment opportunities in the South-East and inadequate infrastructure in the villages (electricity, water and sewage systems, the collapse of previous sources of revenues). This in turn affects the right to education, health, housing, freedom of movement, and property.

A further issue complicating the return of internally displaced persons is the institution of village guards, who are appointed for the purpose of assisting the law enforcement authorities in countering terrorist and violent acts pursuant to article 74 of the Village Law No. 442. In accordance with article 16 of the Provisional Village Guards Regulation, village guards are under the instruction and command of the Commander of the Jandarma Headquarters, to which they are affiliated. According to many reports, the village guards hamper the right to return either because they occupy houses and farms of IDPs, or because of the distrust the institution as such nurtures among IDPs. The Special Rapporteur was assured by government authorities that the village guard system is being phased out. The 58,750 village guards active in December 2001, had been reduced to 57,246 by December 2005, which shows that the pace of implementing the phasing-out is quite slow. A clear plan with benchmarks and time limits needs to be established to follow up the policy."

HRW, March 2005, pp.7-8:

"The violence that was used during the forced evacuation of the villages, coupled with a decade of neglect, means that villagers face return to near wilderness punctuated with piles of stones where their homes once stood. Their fields are overgrown, and their pasture turned to ungrazeable scrub. Many villages in the former conflict areas have no telephone connection, no electricity supply, no school, no health centre, no water or sanitation system, and often no passable road. Civil servants sometimes cite the extremely primitive conditions in some villages to argue that the settlements are fundamentally and intrinsically non-viable, but it is important to note that fifteen years ago, prior to their destruction, the villages had electricity and telephone connections. In most cases, road access deteriorated as a result of a decade of neglect. Most villages also had ready access to schools before the late 1980s, when the PKK began its policy of killing teachers, and the state began destroying school buildings and other infrastructure. Most villagers were not rich, even at the beginning of the 1990s. But they were impoverished by the wholesale destruction at the point of evacuation, and grew poorer still during ten years in internal exile. Today, most of the displaced lack the resources to properly resume their previous lives as farmers and stockbreeders. For return to be viable, displaced villagers need the ruined infrastructure of their communities restored, assistance with rebuilding their homes, and support during the transition stage while they are re-establishing their livelihoods..... "Security is a crucial factor in returns. There would be no returns at all if personal security in the rural areas of southeast Turkey had not improved much in recent years. All villagers interviewed by Human Rights Watch affirmed that the atmosphere was much less tense attributable to the decline in political violence, although the degree of improvement varies from province to province, and from district to district. Returning villagers told Human Rights Watch that their villages are no longer being visited by armed militants looking for food and recruits, and that relations with the local gendarmerie have improved. While some mentioned harsh words and threats from the military, most indicated that the routine brutality of the

past had, in general, been replaced by a level of tolerance and respect. It is important to emphasize that the relative improvement in personal security mentioned by returned villagers will evaporate very quickly if there is a return to open conflict in the region. It was the PKK's exploitation of Kurdish villagers for food, money, and recruits that made those villagers, in turn, targets of state persecution. Kongra Gel's return to armed activities in June 2004 risks provoking a heavy-handed government response that may harm Kurds and derail the whole process of return. That risk was identified by the nongovernmental organization Goc-Der7 in an October 2004 report examining the situation of the displaced. The report urged Kongra Gel to renew its unilateral ceasefire and pursue peaceful means in the interests of the displaced. [8]"

Village guard system as obstacle to return (1995-2009)

- The system of "village guards" , armed and paid by the government, was introduced in 1985. There are some 57,000 paid village guards, in addition to an estimated 12,000 volunteers as of 2009.
- Village guards have directly responsible for the original displacement and have opposed the return of IDPs including with threats and murder of returnees. Village guards have also occupied the homes and lands of displaced people. In areas where the village guard system is particularly strong, returns have been minimal
- Several cases of violence continue to be reported, for example in June 2004 Village Guards allegedly killed five villagers near the village of Akpazar, near Diyadin, in Agri province. Village guards have rarely been held accountable for their crimes Some displaced persons were told that they would only be able to return to their homes if they joined the village guards
- Numerous international and regional bodies, like the UN and the EU have called for abolition of the village guards system. A European Commission Report on Turkey describes the village guard system as one of the 'major outstanding obstacles' to the safe return of IDPs (October 2004) This was repeated by the Council of Europe Commissioner of Human Rights in 2009
- At the national level, the Turkish Grand National Assembly's 1995 parliamentary commission also found that the village guard system contributed to social problems and should be abolished. In April 2006, the Human Rights Commission of the Grand National Assembly referred to the village guards as a mistake.
- Although the government announced in 2005 that it was considering the gradual dissolution of the system, and recognised in its national IDP strategy the risk it posed to returnees, it has made no progress in abolishing the village guards (UN CHR, April 2005; GoT, August 2005).
- In May 2007, the government introduced a new law according to which governors may increase the number of village guards in their provinces. There are no clear figures on new recruitments since that date.

HRW, 8 June 2006:

"The Turkish Grand National Assembly's 1995 parliamentary commission on political killings and the Grand National Assembly's 1998 parliamentary commission on internal migration called for an end to village guard service. The Grand National Assembly's 1997 parliamentary commission on the Susurluk affair found that "[t]he existence of the feudal structure in the east and southeast . and the social problems created by the provisional guard system created the circumstances for tribes to get involved in narcotic and weapons smuggling. The Provisional Village Guard System must be abolished, and until that time, it should be reduced and kept under tight control." The April 2006 report on the Pemdinli bombing prepared by the Human Rights Commission of the Grand

National Assembly stated: "The state is responsible for the safety of the citizen. The legitimate security forces of the state are the police and armed forces. By this measure, the village guard system was a mistake. Because under the village guard system, the citizen began to be viewed as either on the side of the state, or as a potential threat to the state, at least among local people. Some village guards seized other people's property and abused their status in disputes between tribes, and thereby increasing tension in the region. It was also observed that some village guards assisted the terrorists."

The United Nations (U.N.) Special Rapporteur on extrajudicial, summary or arbitrary executions said in 2001, "The village guard system, to which a large number of extrajudicial killings have been attributed, should be disarmed and disbanded without delay." The Representative of the U.N. Secretary-General on the human rights of internally displaced persons said in 2002, "The Government should take steps to abolish the village guard system and find alternative employment opportunities for existing guards. Until such time as the system is abolished, the process of disarming village guards should be expedited." The Parliamentary Assembly of the Council of Europe concluded, in 2002, that Turkey should "abolish the village guard system." The European Union has likewise identified the village guard system as an issue that must be resolved if safe returns of displaced persons are to be made possible throughout the region. The European Commission's 2004 Regular Report on Turkey's progress toward accession described the village guard system as one of the "major outstanding obstacles preventing IDPs [Internally Displaced Persons] from returning to their villages." It continued, "Very few Syriac origin citizens have attempted to return from abroad, in particular, because they face harassment from the village guards and the gendarmerie. The issue of the village guards remains unresolved. Notwithstanding the judicial procedures against village guards involved in murders, official figures state that 58 416 village guards are still on duty (as opposed to 58 551 last year [2003]) . In many cases, authorization to return to villages is reportedly conditional on the willingness of the returnees to serve as village guards." The European Court of Human Rights has made numerous judgments against Turkey with respect to village guard abuses. In May 2005, in *Acar and Others v. Turkey*, the court found the Turkish government responsible for violating the right to life of six villagers from Calpynar near Midyat in Mardin province on April 14, 1992. In December 2004 eight village guards were sentenced to life imprisonment for the killings. Despite the widely-held view that the village guard system must be abolished, fifteen successive Turkish governments have failed to take action to bring an end to the murders and other criminality of the village guards. The village guard system remains in place and virtually unchanged since its foundation. The village guard system combines lethal force with a convenient level of deniability. In some of the cases contained in this letter, individual village guards have been indicted and prosecuted, and in one case convicted and sentenced. But institutional responsibility for their crimes has been completely avoided."For more than eighteen years Human Rights Watch has been receiving reports of violations by village guards—murders, rapes, robberies, house destruction, and illegal property occupation, among others. We have received, from various sources, numerous complaints relating to village guards, not all of which we have confirmed first-hand. Nevertheless, the prevalence of such complaints and incidents suggests that there are serious and unresolved problems.Any returning villager faces the ever present threat of violence from village guards who may carry out reprisals for attacks by forces of the PKK, pursue blood feuds and tribal conflicts, or engage in any of the other forms of prevalent criminal behavior ranging from rape to theft. It is no coincidence that rates of return are particularly low in areas such as Pynak

province, where the village guard system is particularly entrenched. [...] Despite official claims to the contrary, some displaced persons are being told that they may only return to their homes in the southeast if they take up arms for the state. In April 2004 former residents of Ulukoy village near Kyzyltepe in Mardin province, who had been forced out of their homes in 1993 because they refused to join the village guards, were given permission by the local governor to return to their village.

Human Rights Watch is still receiving reports that village guards use their armed force and favored status to confiscate land, or usurp the use of it, from neighboring non-village guard communities. Human Rights Watch has received many reports like the two immediately above of village guard violence ranging from beatings to shootings, some of them fatal. Most attacks arise from disagreements that are common in any rural community—land disputes, grazing problems, and other longstanding resentments—but where village guards are involved, the potential for violence is greatly increased. The village guard system is also implicated in thousands of acts of common criminality, and would deserve to be shut down on those grounds alone. Over 23,000 village guards were dismissed for involvement in crime in the first ten years of the village guard system. Over the first twelve years of the system, 296 village guards were involved in cases of manslaughter and murder, and 78 were involved in the abduction of women.

See also BBC report, "Local guards divide Turkish Kurds", 4 August 2006

EC, 9 November 2005:

"No progress has been made in addressing the problem of *village guards*. Reports indicate that village guards have on occasion attacked returning IDPs. Official figures state that 57 601 village guards are still on duty (as opposed to 58 551 last year). Moreover, although the Turkish authorities state that no village guards have been appointed since 2000, NGOs suggest that new village guards have been recruited in response to the increasing number of clashes between security forces and illegal armed groups. Reportedly, authorisation to return to villages is sometimes only granted if returnees are willing to serve as village guards."

USCR, 16 June 2005:

"In August, soldiers reportedly forced residents out of Ilıcak in Sirnak Province but local officials allowed them to return three days later. In September, provincial officials evicted 20 village guards who were occupying the homes of returning Syriac Christian IDPs in Sarıkoy. The IDPs reportedly paid the authorities 126 billion lira (\$93,700) for their help. The trial of 10 village guards in connection with the 2002 killing of 3 IDPs returning to their homes in Uğrak continued with one defendant in custody."

HRW, March 2005:

"The continuing presence of village guards in some communities constitutes a major impediment to improved security and confidence among displaced villagers. This in turn has a major impact on their willingness to return. In Sirnak province, for example, where the village guard system is particularly strong, the government's own statistics indicate that returns are running at less than half the rate of the best-performing province. Displaced persons are understandably reluctant to return to remote rural areas where their neighbors, sometimes from a rival clan, are licensed to carry arms, as members of the village guard. [...] Many villagers were originally displaced precisely because they refused to become village guards. The October 6, 2004 European Commission Regular Report on Turkey describes the village guard system as one of the 'major outstanding obstacles' to the safe return of IDPs.

FIDH, July 2003, p.15:

"The system of 'temporary village guards' was introduced by amendment of the Village Law n° 442 on 4 April 1985. The temporary system became systematic and permanent in the OHAL region. Armed and paid by the government, village guards became uncontrolled but locally powerful militias. They were found to be responsible for a large number of human rights violations. The Inspection Committee of the Prime Ministry stated in its Susurluk Report in January 1998 that village guards were the part of society that had most intensely been involved in 'dirty jobs'. In 2002, village guards reportedly committed 11 killings[^]...]. Not only do village guards maintain the region in a state of violence, they are also resented as a move backward, the recreation of a feudal society in rural areas. This situation might be the most important obstacle to the return of displaced persons; village guards repeatedly oppose the return despite official authorisation.

UN OHCHR, 27 November 2002:

"The Representative also raised allegations that displaced persons who had obtained permission from provincial governors to return to their villages were subsequently prevented from doing so by the security forces or *jandarma* and by village guards. [...] The Representative referred to reports of expropriations by village guards of property belonging to the displaced and threatening those displaced persons who had returned and tried to reclaim what was rightfully theirs. In this connection, the Representative also noted that the village guard system was considered in various quarters as a major obstacle to the return process and that there had been calls for its abolition, most recently by the Rapporteur of the Committee on Migration, Refugees and Demography of the Parliamentary Assembly of the Council of Europe. The Minister of the Interior acknowledged two incidents of illegal occupation of land by village guards and stated that in both cases, appropriate action had been taken and the property returned to its lawful owners. The Minister told the Representative that the same steps would be taken in any other such cases that were brought to his attention. As for the abolition of the village guard system, the Minister noted that the system had been an instrumental part of the Government's attempts to combat the PKK threat and that while that threat had essentially been contained, the Government could not simply make the guards redundant. However, he assured the Representative that the Government was in the process of disarming village guards and was finding them alternative employment opportunities."

See Also:

USCR 2002

Human Rights Foundation of Turkey January 2001, sect. 2

HRFT, February 2001, sect. 2

HRW March 2003

KHRP/Goc-Der/HRA September 2003

HRW, 30 October 2002

HRFT, April 2004

See also:

[The Human Rights Foundation of Turkey monthly reports on the situation of human rights in the country.](#) A section on abuses committed by the Village Guards is frequently included in the HRFT's reports

A report issued by the Human Rights Association, "[DIYARBAKIR PROVINCE BISMIL DISTRICT UGRAK VILLAGE RURAL GUARD ATTACK OBSERVATION-](#)

INVESTIGATION REPORT” which documents an armed attack of the rural guards on families displaced in 1994, who returned to their villages for settlement in 2002, September 2002

“**Village Guards under the spotlight**” Turkish Daily News, 16 August 2003

Impunity and violations of State actors/Gendarmerie as an obstacle to return (2005-2009)

- Along with security concerns relating to the village guard system, the displaced have also been reluctant to return because of attacks and killings by gendarmerie. In 2002, UN Special Representative on IDPs also received allegations that displaced people were unable to return due to threats from local security forces
- HRW in 2005 reported numerous instances of unlawful killings by security forces of internally displaced people were reported. These crimes have never been investigated by an independent committee, rather, the authorities have relied on a public prosecution service.
- Members of the security forces have not been held accountable for their crimes committed during the 1980s to 1990s and operated with continued impunity.
- Only recently in 2008, have steps been taken at provincial level to investigate some of the many ‘disappeared’ files of the past and to search for those accountable. However such steps remain preliminary though quite unprecedented.
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HRW, March 2005, pp. 11-13:

"In addition to security concerns arising from the village guard system, attacks on civilians by the gendarmerie discourage return. Three unlawful killings by security forces in late 2004, underscored the continued potential for lethal state violence against civilians in general, and IDPs in particular. ... The discovery on November 4, 2004, of a common grave containing the bones of eleven people in the Kepre district of Alaca village has renewed awareness of the region's history of violence and impunity. DNA samples are currently being tested, but clothing and objects indicate that the remains belong to eleven villagers detained by soldiers and 'disappeared' at the time of the forced evacuation and destruction of Alaca in 1993. [...] In 2001, the European Court of Human Rights (ECHR) found the Turkish government responsible for violations of the right to life in respect of the eleven men. In its judgment, the Court was 'struck by the lack of any meaningful effort' by public prosecutors to investigate the 'disappearances' at Alaca.[...] Villagers told the court that commandos from Bolu took the villagers away, but no soldiers from that unit were indicted. According to the U.N. Principles on the Effective Prevention and Investigation of Extra-Legal, Arbitrary and Summary Executions, killings such as those described above should be investigated by independent expert commissions. [...] The Turkish authorities have consistently resisted this route, preferring to leave the job to the public prosecution service that, over the past two decades, has proven itself either unable or unwilling to hold the members of the security forces to account.

Unless the Turkish government radically alters the manner in which allegations of killings by the security services and the village guard are investigated, and the perpetrators brought to account, impunity will continue, and many internally displaced will lack the confidence to return to their homes."

HRW, 30 October 2002:

"The armed forces present a more threatening obstacle to return even than the civilian authorities. Outside the cities, police duties are entirely in the hands of gendarmes, the same military units that carried out the original displacements. Many villagers told Human Rights Watch how they were turned back by gendarmes after receiving official permission to return.[.] Several communities who have resettled their homes have been displaced a second time as a consequence of a divergence of attitude between the civilian and military authorities."

UN CHR, 27 November 2002:

"The Representative also raised allegations that displaced persons who had obtained permission from provincial governors to return to their villages were subsequently prevented from doing so by the security forces or *jandarma* and by village guards. The Minister of the Interior informed the Representative that the role of the *jandarma* in the context of return was limited to giving advice on which villages were suitable for return and on the strategic location of new resettlement areas, noting that with some 4,000-5,000 PKK fighters still present in the border regions, it was not feasible to allow the displaced to settle in vulnerable areas and that they should have an opportunity to resettle elsewhere and begin their lives anew."

Presence of landmines in return areas hinders return (2003-2009)

- In 2003, Turkey signed the Convention on the Prohibition of Anti-Personnel Mines and on their Destruction and in 2005 it cleared 17,886 of the landmines on its own territory. The PKK, also viewed as a contributor to the landmine problem, recently signed a 'Deed of Commitment for Adherence to a Total Ban on Anti-Personnel Mines and for Cooperation in Mine Action'
- NGOs have expressed concern however that landmine clearance remains inadequate and no landmine education campaign has been launched. As a result of 15 years of conflict in the south-east, predominantly rural areas are covered by landmine fields; government estimates in 2002 indicated over 900,000 mines
- Many evacuated villages are mined in the south east. Villagers that had been displaced in Hakkari province were said still to be reluctant in early 2006 to return to their villages due to the threat of landmines. According to the Landmines Committee of the Human Rights Association, the most mined areas include Mardin, Sirnak, Hakkari, Siirt, Diyarbakir, Bitlis, Batman, Van and Bingol provinces
- In 2009, estimates of the number of casualties between 1993 and 2004 ranged from 1,600 to 2,900 victims. The government acknowledged the problem in the national IDP strategy framework in 2005. In 2003, the International Federation for Human Rights expressed concerns about allegations of new landmine fields along the Iraqi border laid by the Turkish army in response to the situation in Northern Iraq

Landmine Monitor Group, July 2006:

"It has been claimed that in the east and southeast of the country, mines in and around evacuated villages have impeded the return and settlement of displaced people. Mines were reportedly laid around villages, military installations, border areas, water springs, feeding grounds, pathways and mountain caves, posing a serious threat to returnees.[...] For example, in Hakkari province and its surroundings, which are believed to have

experienced some of the most intense fighting, the government evacuated population centers and relocated people to more central villages or to camps. Villagers that had been displaced were said still to be reluctant in early 2006 to return to their villages due to the threat of landmines. [...] The Hakkari Anti-Landmine Awareness Campaign (the Hakkari Group), a civil society entity made up of legal professionals, has undertaken a survey of injuries caused by explosive devices. During a survey, they stated that Hakkari town and Yenimahalle district were severely contaminated with both mines and UXO, especially near Turkish military installations, and that livestock were killed by these. [...] Casualties reported in the media indicate that, in addition to mines, UXO pose a significant threat in some parts of Turkey, and that the number of mine/UXO incidents has increased over the last few years. At least 220 military and civilian casualties from mines and UXO were reported in 2005, a significant increase from previous years (see section Landmine/UXO Casualties in this report)."

MRG, 2006, pp.16-17:

"The landmine problem, briefly touched on above as a factor in displacement, is a deterrent to return because of the threat to life it presents. There have been some positive developments in recent years. In 1996 Turkey announced that it had ceased the production, sale and transfer of landmines, and in 2001 the Landmine Monitor (LM) removed Turkey from its list of countries that produce landmines. On 25 September 2003, Turkey signed the Convention on the Prohibition of Anti-Personnel Mines and on their Destruction and in 2005 it cleared 17,886 of the landmines on its own territory. However, Turkey has never instigated or sponsored an educational campaign about landmine hazards, and landmine clearance remains inadequate. No national structure to implement the policy on landmines has yet been developed.[.] The PKK, also seen as a contributor to the landmine problem, recently signed, through the organization Geneva Call, a 'Deed of Commitment for Adherence to a Total Ban on Anti-Personnel Mines and for Cooperation in Mine Action', for which the government of the Canton of Geneva acts as guardian.[.]"

EC, 9 November 2005:

"In particular, the existence of a large number of landmines constitutes a strong disincentive to return. Reports suggest that landmines killed 20 people and injured 20 in the first seven months of 2005."

Landmine Monitor Group, October 2004:

"The Landmines Committee of the Human Rights Association reported in November 2002 that in the southeast a number of evacuated villages are mined, which is an important obstacle to the return of displaced people. The most mined areas were in the provinces of Mardin, Sirnak, Hakkari, Siirt, Diyarbakir, Bitlis, Batman, Van, and Bingol."

HRW, 4 October 2004, p.5:

"Unexploded mines and ammunition present an additional risk for returning villagers. Thirty people were accidentally killed by mines and other explosives in the southeast during the first eight months of 2004. To date, however, the government has provided no guarantee that villages due for return will be cleared of unexploded ordinance."

FIDH, July 2003, p.16:

"The 15 years conflict in the Southeast resulted in a large amount of rural areas covered by landmines fields. Here is a major problem that has to be faced by the government,

regardless of the question of who is responsible for the placement of these engines. The idea of freedom of circulation tends to be sadly ironic in many areas of the South East, where casualties caused by landmines regularly take place..... "[T]he FIDH is also very much preoccupied by allegations that new landmines fields are being established near the Iraqi Border. In February and March 2003, in relation with the situation in Northern Iraq, the Turkish Army increased its presence in the region around Cizreh and Sirnak; since then, between 2 and 3 accidents take place every month due to landmines explosions in the fields and mountains around Cizre, which leads the people the FIDH's delegation interrogated think that the Army has installed new landmines fields without telling the population. This average of casualties is likely to increase dramatically during spring and summer, as the weather will allow more people to go out of the city. A delegation reportedly went to the Gendarmerie and the municipality to ask information on these events and, at the very least, communication on the places where the new mines were inserted. The authorities responded in saying that the PKK-KADEK is responsible for these new landmines fields, which seems hard to believe as one can legitimately wonder what would be the interest of the PKK-KADEK in doing so.

Landmine Monitor Group, August 2003:

"In May and June 2002, Turkish officials declared that 900,000 to 935,000 mines were laid between 1956 and 1959 to prevent 'illegal border trespassing;' these were said to be 'all marked, monitored and covered by fencing or other means to ensure the effective protection of civilians.'[...] There were reports of continuing casualties from mines and UXO, especially to children, in 2003.

Lack of reconciliation as an obstacle to addressing internal displacement (2004-2009)

- The Compensation Law's Preamble, launched in 2004, makes an allusion to the need for reconciliation in the Preamble which states among the law's aims "bolstering trust towards the state, rapprochement between the state and its citizens and contributing to social peace" however this has not been addressed.
- EC progress reports in 2006 notes that the issue of "reconciliation" is not addressed in the compensation approach in relation to past human rights violations committed against internally displaced persons.
- NGOs have called for the need for addressing past abuses and reconciliation efforts. Those who committed abuses, including security forces, village guards and the PKK during the original process of displacement have rarely been prosecuted. As HRW in 2008 would report there persists to impunity of state actors.
- In late 2008 and through 2009, there have been several steps undertaken albeit at provincial level to address issues of violations committed by village guards and state actors. In second half of 2009, there has been several initiatives undertaken to raise the question of missing.
- In 2008-2009, the ruling Turkish government has taken unprecedented steps to open the Kurdish issue in national debate. This may have a positive bearing in raising the issue of displacement, and a step towards eventual reconciliation.

EC, 8 November 2006:

"The issue of "reconciliation" is not addressed in the compensation approach in relation to past human rights violations committed against internally displaced persons - such as the burning and destruction of property, killings, disappearances and torture."

IDMC/TESEV, Special Report, June 2006:

"The issue of "reconciliation" was not addressed by the RSG in his recommendations to the Turkish government. The government's Framework Document does not address the issue of past human rights violations committed against IDPs - such as the burning and destruction of property, killings, disappearances and torture - committed by security forces, village guards and PKK members in the process of displacement. However, the TESEV Working Group's fieldwork shows that there is a genuine and urgent need for the government to take steps towards answering the need for reconciliation between the parties to the conflict. It should be noted that the Compensation Law's Preamble makes an allusion to the need for reconciliation. The Preamble states among the law's aims, "bolstering trust towards the state, rapprochement between the state and its citizens and contributing to social peace".[...] The Compensation Law, however, is limited to providing reparation for material damages, and precludes compensation for pain and suffering (see "Compensation Law" above). However, reconciliation and durable peace require confronting past human rights abuses and establishing restorative justice. The Compensation Law has raised expectations among IDPs, civil society organisations and lawyers that it would open the way for the public admission of forced evictions by security forces as well as other human rights violations, and lead to either bringing the perpetrators before courts or at least paying reparation for pain and suffering.[...] The law does not require proof of fault on the part of the administration, but rests on the "doctrine of social risk based on the objective responsibility of the state".[...] However, in order for justice to be achieved it is essential that those responsible for violations are identified and brought before the court...

Those who committed abuses, including security forces, village guards and the PKK during the original process of displacement have rarely been prosecuted.[...] A recent development well-covered in the national media - the discovery of a mass grave near a village whose population was evicted in the Kulp district of Diyarbakir - triggered a wave of demands for bringing to justice the killers of 11 villagers. ... The emerging public debate about this case and several others on violations committed during the emergency rule suggests that the time may be ripe for initiating a candid discussion about setting up a mechanism of reconciliation to address issues of impunity."

Displaced people face problems returning due to administrative procedures (2002-2005)

- Displaced persons have faced problems returning to their villages of origin due to the practice employed by the government of requiring returnees to complete "return" forms. The forms request the applicant to provide a reason for his or her displacement yet provide no option for those evacuated by government security forces
- Another reported problem with the forms is the inclusion of a declaration on the form which states that the applicant will not seek compensation from the state. The government denied the existence of the clause on compensation, though NGOs were able to produce copies of the form
- IDPs who refused to sign the declaration were withheld permission to return. Most reports of such cases date occurring date to before 2002 with the exception of a report by USCR in June 2005

USCR, 16 June 2005:

"The Government reportedly did not allow some IDPs to return to the southeast unless they signed a statement that they had been displaced by terrorism, rather than by government actions, and that they would not seek government assistance."

UN OHCHR, 27 November 2002:

"In discussing the return issue, the Representative referred to reports of problems confronting displaced persons who wished to return. Reference was made to the practice of requiring persons who wished to return to complete printed application forms, including stating the reason for their displacement. While there is nothing inherently wrong in requiring the displaced to apply formally for return, as this would provide the authorities with an indication of the numbers involved and the resources required to facilitate the exercise, concerns were raised about the need to indicate on the form the reason for the original displacement. A number of possible options were given, including 'employment', 'health' and 'terror'. There was, however, no option for those evacuated by the security forces, and it was alleged that only those persons who stated that they had been displaced as a result of 'terror' were allowed to return. Reports also suggested that the reverse side of some forms bore a printed declaration which the applicant had to sign and which stated that they would not seek damages from the State. Refusal to sign this declaration reportedly resulted in being denied permission to return. These problems were raised with the Minister of the Interior, who explained that knowing the reason for flight was required for statistical purposes. This nevertheless raised the question of why there was no express option regarding evacuation by the security forces.

HRW, 30 October 2002:

"Villagers are reluctant to collude in the official cover-up of the illegal forced displacement by signing such declarations. They also know that by signing, they will probably lose any chance of making a claim against the state for compensation for the abuses they have suffered. At the same time, the temptation to sign is strong. If they do sign it may open the way to their early return; if they do not, they know that they may be struck off any central register of the displaced, forfeit the chance to get even the most meager state assistance to return, and perhaps never be permitted to go home."

CoE, 22 March 2002:

"Human rights organisations informed the Rapporteur that the application form for those willing to return includes a question concerning the reason for leaving the village. According to their evidence the only 'acceptable' answer for the authorities evokes the actions of the PKK as a reason for leaving. Any other reply implies a negative decision concerning the authorisation for return and financial assistance. Furthermore, reportedly only villages within the village guard system are likely to be given authorisation for return."

B. Peker, April 2002, in *Turkey and Refugees*, p.3:

"Moreover, consistent allegations and reports by villagers and human rights groups, most significantly by the IDP organization Goc-Der, suggest that returned villagers are constantly intimidated by the Jandarma and other paramilitary forces. [...] Furthermore, when the government authorities accepted applications for relocation by the IDPs, authorities forced the IDPs to sign forms where they indirectly declared that they "left their villages due to terrorism", and excluded those who were unwilling to sign such forms. Under Article 14 of the Bill, families entitled to be relocated, including those to be relocated for concerns of national security, *"shall lose their entitlements for resettlement, and shall not apply for resettlement again"*."

NATIONAL AND INTERNATIONAL RESPONSES

National and international response

Overview: International and national response to internal displacement in Turkey (2007-2009)

**IDMC, 26 July 2007:
Towards a national action plan**

While the government response in the 1990s was generally inadequate, there was a significant shift in national policy following the visit of the Representative of the UN Secretary-General on the human rights of IDPs (the RSG on IDPs) in 2002, which perhaps more importantly coincided with Turkey's bid to meet the conditions of EU membership after being recognised in 1999 as an EU candidate country. The government has since made important progress towards improving the overall national policy and legal frameworks and identifying and facilitating durable solutions for IDPs.

The RVRP was launched in 1994 to establish the necessary social and economic infrastructure to provide sustainable livelihoods for returnees. Between 1999 and 2008 the government invested \$54 million on infrastructure, social projects and assistance to returnees. A further \$10 million was allocated to the RVRP for 2009 (GoT, October 2009).

Nevertheless the RVRP had been extensively criticised on many grounds, including an overall lack of transparency or clear strategy and a lack of consultation with IDPs. The return policy was also found to be inconsistent, underfinanced and discriminatory (HRW, January 2004; EC, November 2003; TESEV, May 2009). The national survey in 2005 revealed that 88 per cent of returnees surveyed had returned without assistance from the government and that nearly half of them were not aware of the assistance provided (HUNEE, December 2006).

In 2004, the Law on Compensation was enacted, and in subsequent years amendments and procedural guidelines were adopted to improve its implementation. In 2005 the government adopted a national IDP strategy in which it committed to address the IDP situation in line with the international standards contained in the Guiding Principles on Internal Displacement. In September 2006, Van Province launched a pilot strategic policy framework for IDPs, the Van Action Plan (VAP), based on broad consultation with civil society. The plan is to be replicated in all other 13 provinces affected by displacement in south-eastern Turkey, and form an integral part of a National Action Plan. The National Plan is to be completed by end of 2009 once all 13 provincial plans are finalised. Finally, a national legislative framework to address displacement is to be finalised in 2010 (UNDP, September 2009).

The VAP represents the latest response to calls by the international community for a more systematic approach to enabling durable solutions for IDPs. It recognises the need to address urban displacement as well as facilitate returns according to the Guiding

Principles. Developed with UNDP technical support, it is a blueprint to be replicated subject to the requirements of each province, and complements rather than replaces the RVRP (TESEV, May 2009). As of December 2007, 84 planned projects (requiring funding of close to \$72 million) were submitted to relevant national ministries, 44 of which are still being negotiated in 2009 (GoT/UN Mission, June 2007; TESEV May 2009).

Despite the VAP's emphasis on a participatory approach, many civil society associations have criticised the discrepancy between the final Plan and the outcomes of initial consultations (TESEV May 2009). It has also been criticised for failing to acknowledge the Kurdish issue, and the issues of landmines, ongoing violence, and the threat presented by the village guard system. Furthermore, the provincial action plans from which the National Action Plan is to be developed fails to address the situation of urban displacement outside the south-east.

Though their relations with the government have improved, civil society associations continue to call for wider transparency and cooperation, and the opportunity to participate more meaningfully and systematically in the development of national and provincial plans of action (IDMC/TESEV, June 2006; TESEV May 2009). Although the Ministry of the Interior in February 2007 designated its General Directorate of Provincial Administration as responsible for all IDP-related policies and programmes, civil society associations have continued to call for clear focal points within the government to exclusively address displacement. The European Commission has echoed these calls in underlining the government's insufficient institutional capacity to address displacement (EC, November 2008).

Extension of the Compensation Law

In 2004, the government adopted Law 5233 on "the Compensation of Losses Resulting from Terrorist Acts and the Measures Taken Against Terrorism" in favour of those who had suffered loss or damage as a result of "action by terrorist organisations and measures taken by the government to combat it" since 1987 (GoT, July 2004). Compensation is provided for three types of damage: (i) loss of immovable and moveable properties; (ii) physical injuries, disabilities and death; (iii) access to property which has been restricted or hindered due to counter-terrorism measures. The law is implemented by 105 Damage Assessment Commissions (DACs) established in 75 provinces (GoT, October 2009; GoT/UN Mission, 2009). From 2004 to August 2009, slightly over 360,000 applications were made to the DACs, of which over 190,000 were decided, with 120,000 awarded compensation and the remaining 70,000 denied. Around \$1.4 billion of compensation had been awarded of which close to \$1.07 billion had been paid (GoT, October 2009).

Experts have drawn attention to a number of problems in the law and its implementation. These include the lack of independence of DACs; the absence of effective appeals procedures; the unwarranted burden of proof on applicants; the lack of a witness protection programme or of legal aid provision; and inconsistent and inequitable application of the law resulting in uneven results and levels of compensation (HRW, December 2006; IDMC/TESEV, June 2006; RSG on IDPs, March 2006). The law also does not address non-pecuniary damages and does not apply to people displaced prior to 1987 (HRW, March 2005; TESEV August 2007). Critics have also noted the failure of

the government in raising awareness of the law – the 2006 survey had revealed that close to half of IDPs were unaware of the law

The government has made successive amendments to respond to some of these shortcomings. The timescale for implementing the law has been extended annually, most recently in September 2009 for a period of one year to allow DACs to process remaining applications (GoT, October 2009). In September 2005 the government issued procedural guidelines to alleviate the burden of proof on applicants in line with the European Court of Human Rights (ECtHR) ruling in the case of *Doğan and others v. Turkey* (ECtHR, August 2005). In 2007, the Ministry of Interior issued guidance on award levels to the DACs to address the problem of inequitable application of the law. The Ministry also sought legal advice from international experts, provided training to the DACs, and developed a database to standardise and harmonise their decisions (GoT/Mission, June 2007). A monitoring and oversight mechanism was established within the Ministry of Interior to oversee implementation of these measures.

However, difficulties persist in the implementation of the law. In 2006, the ECtHR ruled in *Yçyer v. Turkey* that the existing law provided adequate domestic remedy, leading to the dismissal of 1,500 pending cases relevant to compensation (ECtHR, February 2006; EC, November 2006). A report by Human Rights Watch noted that the ECtHR's decision was followed by a noticeable deterioration in the implementation of the compensation law. The report found that the DAC increasingly appeared to apply "arbitrary and unjust" criteria in calculating compensation, resulting in low compensation awards in numerous cases (HRW, December 2006). In its annual progress report, the European Commission noted continued shortcomings in the law in particular uneven and inequitable calculation of compensation between provinces, as well as delays in assessment and payment of compensation due to a lack of capacity of DACs (EC, November 2008).

Challenges of addressing the Kurdish question

The vast majority of IDPs are Kurdish, and their displacement and current situation is tied to the lack of recognition of the Kurdish identity. In the last few years, the government has taken a number of unprecedented steps towards a "democratic opening" to address the Kurdish issue which could have significant bearing on the response to displacement (Hurriet, August 2009; ICG, December 2008). Tensions however persist. Following the electoral gains in March 2009 of the Kurdish Democratic Society Party (*Demokratik Toplum Partisi*, or DTP) in south-eastern Turkey, the harassment and arrest of party members and elected officials was reported (KHRP, September 2009). Human rights associations have also condemned continued discrimination, and use of existing legislation in stifling freedoms. This includes disproportionate measures adopted to quell and prosecute pro-Kurdish demonstrators, including children, under anti-terror legislation (HRA, April 2009).

This is in a context of repeated calls from civil society to address the issue of past human rights violations against Kurds including IDPs, and to end the current impunity of state actors including village guards (IDMC/TESEV, June 2006; HRW, December 2008). In late 2008, several unprecedented steps were taken at provincial level, albeit limited, to investigate the remains of some of the many people who "disappeared" at the height of the conflict and bring to account those responsible (ICG, November 2008; KHRP, August 2009; BBC September 2009).

Response of the international community

The government's progress in addressing internal displacement has been heavily influenced by regional and international actors. The 2002 visit of the RSG on IDPs brought national attention to the issue and resulted in a series of recommendations to the government (UN CHR, November 2002). The current RSG has maintained this dialogue, visiting Turkey on four occasions between 2005 and 2006; he has both applauded the progress made and called on the government to address outstanding gaps in the response.

Turkey was recognised as an EU candidate country in 1999. In successive reports assessing Turkey's progress in fulfilling the Copenhagen criteria, the EU has called on the government to address the situation of IDPs, drawing attention to obstacles to return and calling for the improvement of socio-economic conditions in the south-east (EC, November 2008). The EU has also been pivotal in putting the issue of minority rights, including the rights of the Kurdish displaced population, on the political agenda (BBC, September 2004).

The ECtHR has drawn on the Guiding Principles to underline the government's primary duty and responsibility to provide durable solutions (ECtHR, June 2004). It has ruled against the Turkish state in a large number of cases for its involvement in the forced displacement, particularly regarding property destruction and disappearances, including where perpetrated by village guards (HRW, 8 June 2006; Juristras, Fall 2008). The Council of Europe's Committee of Ministers and the EU have both repeated the call for Turkey to comply with the ECtHR judgments on a wide range of human rights abuses and have called for numerous steps to widen freedoms, particularly that of expression and minorities, in compliance with international standards (EC, November 2008, ICG, December 2008; CoE, June 2005; CoE, October 2009).

The Council of Europe's Parliamentary Assembly has issued recommendations and reports relating specifically to internal displacement. Most recently, the Commissioner on Human Rights, following a visit in July 2009, underlined his concerns over the situation of large number of IDPs who remained trapped in a situation of protracted displacement, and urged Turkey to make more efforts to effectively protect and promote IDPs' right to return to their homes or provide them with other durable solutions such as local integration or resettlement (CoE, October 2009). While noting Turkey's efforts to date, the Commissioner underlined the need to accelerate the implementation of action plans, and address key issues such as the village guard system, limitations of the compensation law, and social and economic needs.

The United Nations country team response to displacement is represented by the United Nations Development Programme's (UNDP) project entitled "Support to the development of an IDP programme in Turkey" (May 2005 - December 2006). The project was subsequently extended to help the government formulate a coherent and comprehensive National Action Plan for IDPs and develop a national legislative framework (UNDP, August 2008 and August 2009). UNDP has provided technical advice to the government, and facilitated participatory consultation with IDPs and civil society in the development of the Van Action Plan. It is currently replicating this process for subsequent provincial action plans. Other UN agencies such as UNICEF address situations of displacement indirectly through general development programmes (UNICEF, 2009).

Several non-governmental bodies address the situation of IDPs and attempt to facilitate durable solutions. However, Turkish civil society remains has struggled to operate in a highly charged political environment (IDMC interview, October 2009). Civil society associations, while supporting the role of the UN in addressing displacement, have raised concerns that the UN has confined itself to a technical role and not sufficiently advocated on pivotal issues, undermining the effectiveness of the VAP and subsequent provincial plans (Interview IDMC, October 2009; TESEV, May 2009). Several NGOs have underlined that the role of UNDP should be rather in monitoring the effectiveness of the government's response and its compliance with international standards, and advocating on behalf of the displaced community (Interview IDMC, October 2009; TESEV, May 2009).

Major initiatives undertaken by the Turkish government include:

A significant step is the adoption of the “Law on the Compensation of Losses Resulting from Terrorist Acts and the Measures Taken Against Terrorism” (Law 5233), in July 2004, which constitutes an important step towards reparation for those who suffered loss or damage as a result of “action by terrorist organisations and measures taken by the government to combat it” during the period 1987-July 2004 (COE/PA March 2004, p.45; Permanent Mission of Turkey to the UN Geneva, 18 March 2004). In response to concerns expressed by the international community and national NGOs that many displaced did not have adequate time to put together applications, the authorities have extended the deadline twice.

In addition to the adoption of the Compensation Law, the government funded a comprehensive survey to determine the size and needs of the displaced population. The survey aimed at documenting the situation of IDPs with quantitative and qualitative data is being carried out by an independent body, the [Institute of Population Studies at Hacettepe University](#). The quantitative results of the survey were released in December 2006.

National authorities have also strengthened cooperation with international agencies. See section on international response below.

The government adopted a new national strategy on internal displacement in Turkey and notes that the UN Guiding Principles on Internal Displacement are the basis of the document. It has also said that the Strategy will include a blueprint for dealing with the issue of the village guards (GoT/UN Mission, 27 September 2005).

In February 2007, the Ministry of Interior designated its General Directorate of Provincial Administration as responsible for all IDP-related policies and programmes. The Directorate is responsible for overseeing overall national IDP policy as well as the compensation law and the national RVRP return programme (GoT/UN Mission, 27 June 2007; UNDP, 18 July 2007). The establishment of such an office could facilitate a more coordinated response and facilitate the continued development of relationships with civil society organisations working with displaced people, though some of them have reportedly not yet been informed of the creation of this new role. Relations between NGOs and the authorities in relation to internal displacement in Turkey have improved generally, but interaction is often *ad hoc* and difficult (IDMC, October 2006; Ayata,

December 2006). Human Rights Watch reported the detention of one of its researchers in 2006.

The government has stated that it is willing to cooperate with NGOs working with IDPs. There has been some consultation with NGOs in the preparation of the IDP survey. The central government sends circular to provincial governors instructing the governors to involve NGOs in the government's return programme (Turkish Daily News, 29 August 2005). Civil society organisations have called for more transparency and the opportunity to participate meaningfully and systematically in the development and implementation of IDP policy and programmes (IDMC/TESEV, June 2006).

The government has stated its intention to formulate a national IDP plan of action, but it has not yet produced it. The current UN Representative on the Human Rights of IDPs has called for the plan of action to be developed in consultation with civil society and IDPs; and it should be based on the extensive new data on the displaced population provided by the IDP survey. The Van Action Plan provides a concrete model for addressing IDP needs at the provincial level, based on which the government plans to develop further action plans for the other provinces. Implementation of the Van Action Plan began in September 2006, and the government says that 84 planned projects (requiring funding of close to 92 million Turkish lira or \$72m) have been submitted to relevant national ministries (GoT/UN Mission, 26 June 2007; UNDP, 18 July 2007). Some NGOs report however that implementation of projects has progressed slowly due to factors including insufficient resources

Prime Minister Erdogan recognised the Kurdish issue publically (Aljazeera, 30 August 2005).

Non-governmental organisations and IDP lobby groups

Local organisations have provided a range of support services to the internally displaced for many years, including humanitarian assistance, legal, medical and psychological support. Local organisations have also undertaken surveys and assessments documenting the needs of the displaced.

The key organisations assisting and advocating for the rights of the internally displaced include the [Human Rights Association](#) (IHD), the [Immigrants Association for Social Co-operation and Culture](#) (Göc-Der), Organisation of Human Rights and Solidarity for Oppressed People (Mazlum-Der), Union of Chambers of Architects and Engineers of Turkey (TMMOB), the [Human Rights Foundation of Turkey](#) (HRFT), the Turkish Medical Association (TTB), [Foundation for Society and Legal Studies](#) (TOHAV) and the Diyarbakir Bar Association

Research and public discussion relating to IDPs has increased. In 2006, the Turkish Economic and Social Studies Foundation (TESEV) organised a conference, entitled [“Internal Displacement in Turkey and Abroad: International Principles, Examples and Policy Proposals”](#) to foster public debate and solutions on the IDP issue in Turkey.

Major international organisations and actors

This includes the UN Representatives on IDPs, Francis Deng and Walter Kalin, who, brought national attention to the issue and resulted in a series of recommendations to the government. The current Representative has maintained this dialogue over several visits to the country and has made subsequent recommendations to the government.

The issue has also been raised a number of times by the UN human rights treaty monitoring committees in evaluations of Turkey's commitments under the international human rights treaties to which it is party (UN CAT, 27 May 2003; UN CRC, 9 June 2001 forexample). Regional inter-governmental structures have likewise issued extensive recommendations and reports on the situation (COE/PA, 3 June 1998, 29 May 2002; 3 March 2004). In its latest resolution, the Council of Europe's (COE) Parliamentary Assembly found that Turkey has demonstrated its commitment and ability to fulfil its obligations as a COE member state; however it called on the government to "move from a dialogue to a formal partnership with United Nations agencies to work for a return, in safety and dignity, of those internally displaced by the conflict in the 1990s" (Resolution 1380 (2004)).

The European Court of Human Rights (ECtHR) has held the Turkish state responsible in a large volume of cases for its involvement in the forced displacement of its citizens, particularly in judgments regarding property destruction and disappearances. In June 2005, the Council of Europe's Committee of Ministers adopted an Interim Resolution assessing Turkey's compliance with more than 70 judgments of the ECtHR relating to a wide range of human rights abuses committed by the security forces, handed down between 1996 and 2004 (COE, 7 June 2005).

The EU has also been pivotal in putting the issue of minority rights, including the rights of the Kurdish displaced population, on the political agenda (BBC, September 2004). Turkey was recognised as an EU candidate country in 1999. In successive reports assessing Turkey's progress in fulfilling the Copenhagen criteria, the EU has called on the government to address the situation of IDPs, drawing attention to obstacles to return and calling for the improvement of socio-economic conditions in the south-east (EC, November 2008).

Until the visit of the UN Representative on IDPs, Francis Deng in 2002 the UN largely avoided "open discussion of the problem with the authorities and refrained from providing protection and assistance to those displaced by the conflict" because of the "alleged sensitivity of the Government to the issue" (UN 5 June 2002). Some UN agencies however carried out programmes in areas of the country in which the displaced were located but no programmes specifically targeted IDPs (UN, 5 June 2002; USCR 1999, pp. 33-34). Following RSG Deng's visit in 2002, the government requested the UN in Turkey, in collaboration with the World Bank and the EU, to support its efforts and initiatives related to the follow-up on his recommendations.

No UN agency is currently systematically monitoring return movements in the country nor is the UN providing assistance to IDPs. However, A formal agreement was reached in February 2006 between the UN country team and the government to implement a project entitled "[Support to the development of an IDP Programme in Turkey](#)". The UN country team has established an IDP working group, through which it provides advice to the government. In the framework of the project, the United Nations Development Programme has translated the Guiding Principles on Internal Displacement into Turkish to increase the awareness and knowledge of international standards relating to internal

displacement among the government and civil society. UNDP has also coordinated training to government and civil society organisations and worked with the local authorities of Van province on a pilot return and reintegration strategy which can be replicated in other provinces.

See also

[From Denial to Dialogue - An Analysis of Recent International and National Policies on the Problem of Internal Displacement in Turkey](#), Ayata, Bilgin, December 2006

[A belated awakening: National and international responses to the internal displacement of Kurds in Turkey](#), *New Perspectives on Turkey*, no. 32, *New Perspectives on Turkey*, Ayata Bilgin and Yüksek, Deniz, December 2005

["Asylum, Immigration, Irregular Migration and Internal Displacement in Turkey: Institutions and Policies"](#) Kirisci, Kemal (2004) for further information

Legal framework and national policy

Parliament revises Law to Fight Terrorism (2007)

AI, 23 May 2007:

"In June, Parliament revised the Law to Fight Terrorism, greatly widening the scope and number of crimes punishable as terrorist offences, introducing articles liable to further restrict freedom of expression, and failing to restrict the use of lethal force by law enforcement officials. In July the President approved the Law but applied to the Constitutional Court for the annulment of two articles relating to sanctions against the press."

Steps taken to combat violence against women and children (2007)

AI, 23 May 2007:

"There was little progress in implementing the provision in the 2004 Law on Municipalities, which stipulated the need for shelters for women victims of domestic violence in towns with a population of more than 50,000. Women's organizations called for additional funds from the government to implement the law. A circular from the Prime Minister in July, outlining measures to combat violence against women and children, and to prevent so-called "honour killings", represented a step towards acknowledging an entrenched and endemic problem. In December, Parliament passed revisions to the Law on the Protection of the Family, widening its scope."

Human rights conventions ratified by Turkey (2007)

- Turkey is party to most international human rights instruments

AI, 23 May 2007:

"During the year, Turkey ratified both the (first) Optional Protocol to the International Covenant on Civil and Political Rights (ICCPR) and the Second Optional Protocol to the ICCPR, aiming at the abolition of the death penalty."

EC, 6 November 2006:

“Concerning the *ratification of human rights instruments*, the Second Optional Protocol to the International Covenant on Civil and Political Rights (ICCPR) on the abolishment of the death penalty was ratified in March 2006. Protocol No 13 of the ECHR, on the abolishment of the death penalty at all times was ratified in February 2006. Protocol No 14 of the ECHR, amending the control system of the Convention entered into force in May 2006. The UN Convention against corruption entered into force in June 2006. Turkey ratified the revised European Social Charter on 27 September 2006. The European Social Charter was accepted with reservations on Article 5 (right to organise) and Article 6 (right to bargain collectively) as well as on paragraph 3 of Article 2 (minimum annual holidays) and paragraph 1 of Article 4 (remuneration and decent standard of living). Turkey has lifted previous reservations on the European Social Charter's provisions, namely the right of children and young persons to protection and the right of disabled persons.”

OHCHR, August 2005:

<u>CAT-Convention Against Torture and Other Cruel Inhuman or Degrading Treatment or Punishment</u>	Ratification 25/01/88 01/09/88 02/08/88
<u>CCPR-International Covenant on Civil and Political Rights</u>	Ratification 15/08/2000 23/12/2003 23/10/2003
<u>CEDAW-Convention on the Elimination of All Forms of Discrimination against Women</u>	Accession 19/01/86 20/12/85
<u>CEDAW-OP-Optional Protocol to the Convention on the Elimination of All Forms of Discrimination against Women</u>	Ratification 08/09/2000 29/01/2003 29/10/2002
<u>CERD-International Convention on the Elimination of All Forms of Racial Discrimination</u>	Ratification 13/10/72 16/10/2002 16/09/2002
<u>CESCR-International Covenant on Economic, Social and Cultural Rights</u>	Ratification 15/08/2000 23/12/2003 23/09/2003
<u>CMW-International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families</u>	Ratification 13/01/99 01/01/2005 27/09/2004
<u>CRC-Convention on the Rights of the Child</u>	Ratification 14/09/90 04/05/95 04/04/95
<u>CRC-OP-AC-Optional Protocol to the Convention on the Rights of the Child on the involvement of children in armed conflict</u>	Ratification 08/09/2000 04/06/2004 04/05/2004
<u>CRC-OP-SC-Optional Protocol to the Convention on the Rights of the Child on the sale of children child prostitution and child pornography</u>	Ratification 08/09/2000 19/09/2002 19/08/2002

EC, 6 October 2004:

(as at end of September 2004)

Adherence to following conventions and protocols	Turkey
ECHR (European Convention on Human Rights)	✓
Protocol 1 (right of property)	✓
Protocol 4 (freedom movement et al.)	
Protocol 6 (death penalty)	✓
Protocol 7 (ne bis in idem)	
European Convention for the Prevention of Torture	✓
European Social Charter	✓
Revised European Social Charter	
Framework Convention for National Minorities	

HRW, 26 January 2004:

“In 2002 Turkey made a substantial contribution to the international movement for abolition of the death penalty by removing capital punishment for all peacetime offences, and in November 2003

made permanent this commitment by ratifying the sixth optional protocol to the European Human Rights Convention. In January 2004 Turkey completed abolition of the death penalty by ratifying article 13, which covers wartime executions”

HRW, 26 January 2004:

“In 2002 Turkey made a substantial contribution to the international movement for abolition of the death penalty by removing capital punishment for all peacetime offences, and in November 2003 made permanent this commitment by ratifying the sixth optional protocol to the European Human Rights Convention. In January 2004 Turkey completed abolition of the death penalty by ratifying article 13, which covers wartime executions”

OHCHR, November 2003:

On 23 September 2003, Turkey ratified the United Nations International Covenant on Civil and Political Rights and the UN International Covenant on Economic Social and Cultural Rights. Both conventions entered into force in December 2003.

Permanent Mission of Turkey to the UN observations on report of the UN Special Representative on IDPs (2003)

- The letter of the Permanent Mission of Turkey to the UN (August 2003) outlines observations by the government in response to the visit of Mr. Deng, Special Representative on IDPs in 2002
- The government claims two decades of terrorism as the root cause of internal displacement in Turkey
- The government notes that it is incorrect to portray the cause of displacement as the equal responsibility of the authorities and the terrorist organisation (the former PKK, presently KADEK)
- The government claims that activities of the former PKK displaced the majority of citizens whereas a small number of settlements were evacuated by state authorities as a safety measure
- The importance of the Government’s return/resettlement programme is highlighted, noting a key factor of the programme is providing suitable conditions for return/resettlement
- The document indicates that 82,000 people have been able to return between June 2000 and January 2003

UN OHCHR, 7 August 2003:

“OBSERVATIONS OF THE GOVERNMENT OF TURKEY REGARDING THE REPORT OF THE REPRESENTATIVE OF THE SECRETARY GENERAL ON INTERNALLY DISPLACED PERSONS

At the invitation of the Government of Turkey, Mr. Francis Deng, Representative of the Secretary General on internally displaced persons, visited Turkey from 26 May to 2 June 2002. The visit of Mr. Deng falls within the scope of a series of visits to Turkey by the thematic procedures of the Commission on Human Rights. Turkey is among the countries which have extended a standing invitation to the thematic procedures of the Commission on Human Rights and is committed to closely cooperating with these procedures. Mr. Deng’s visit to Turkey was another example of such cooperation. Like other mandate holders who visited Turkey, he enjoyed full cooperation of the Turkish authorities. It is noted with satisfaction that Mr. Deng recognized the Government’s contribution to the success of the visit and that the visit took place in an atmosphere of openness, transparency and cooperation.

Mr. Deng's report regarding his visit to Turkey (E/CN.4/2003/86/Add.2) has been carefully examined by the relevant Turkish authorities with a view to benefiting from its findings and conclusions. This document aims to outline the observations of the Turkish Government on the said report.

The root cause of internal displacement in Turkey has been the scourge of terrorism that Turkey has suffered for two decades. Large number of our citizens were compelled to leave their homes due to the terrorist organization PKK's intimidation, harassment and attacks. A small number of settlements had to be evacuated by the relevant authorities to ensure the safety of our people as a precaution. This being the case, it is indeed incorrect to portray the cause of displacement as the equal responsibility of the terrorist organisation and the authorities.

PKK (alias KADEK today) is a terrorist organization responsible for the death of over 30,000 Turkish citizens particularly in the south-east of Turkey. It is internationally labeled as such. Therefore, lack of reference to the PKK as a terrorist organisation in the report constitutes a serious shortcoming.

The Turkish Government attaches great importance to the successful return of our displaced citizens on a voluntary basis. In that regard, Back to Village and Rehabilitation Project has been launched with the purpose of enabling return and resettlement as well as the establishment of necessary social and economic infrastructure and sustainable living standards. The ongoing efforts within the project also aim to increase the productivity capacity of the people as well as their education level. With this perception in mind, the project comprises measures to promote activities such as agriculture, animal husbandry and handicrafts. A campaign to promote education is stipulated under the coordination of governors.

The project aims not only to enable voluntary return to original settlements but also to create a more balanced and effective settlement pattern with a view to enabling a more rational and effective distribution of public investments and public services. To this end, centralization of settlements will be encouraged and supported. In that regard, one model village in every province covered by the project is chosen, areas for resettlement are identified, and their construction and development plans are prepared accordingly.

A significant dimension of the voluntary return process is to maintain the economic, social and cultural development in the region and to eradicate terrorism, which are interlinked. The state of emergency was completely lifted as of 30 November 2002. Maintaining the security situation in the region remains significant in the realization of regional development and the voluntary return process.

Due to the complex and multi-dimensional nature of the process, close coordination and cooperation among various Ministries and public institutions as well as allocation of necessary financial resources is essential. The progress achieved so far has been positive and encouraging. In this regard, tens of thousands of people have returned to hundreds of villages and other rural settlements and necessary assistance has been provided to these people. The number of returnees from June 2000 to January 2003 is around 82 thousand. In spite of the budgetary restraints and serious economic difficulties, the Government continues to allocate increasing amount of resources for the effective implementation of the project. However, availability of resources remains a dominant factor affecting the pace of the realisation of the project.

Turkey will continue to take all feasible measures for the success of the voluntary return process and stands ready to maintain the ongoing cooperation with the Representative."

Call for a paradigm shift to solve the problem of displacement in Turkey (2006)

- Dialogue between government and international community results in a problem of language and further alienates IDPs
- Lack of public discussion on displacement
- New international development discourse does not give justice to the circumstances of the displaced
- Lack of necessary paradigm shift to the displacement problem in Turkey
- Stronger participation of the displaced indispensable to help tackle the problem from the inside

Bilgin Ayata, "From denial to dialogue," International Symposium: Internal Displacement in Turkey and Abroad: International Principles, Examples, Policy Proposals, 5 December 2006:

"For one, the dialogue between the government and international community has resulted in a significant problem of language which alienates IDPs and the public from international and national policy makers. In an effort to streamline the national responses to displacement the international community has been pushing Turkey to adopt a literal translation of the term internally displaced persons into Turkish. Since 2004 the terms "yerinden olmus" and "yerinden edilmis" have been alternately appearing in the public. So the government the UNDP and other intergovernmental organizations are using the term "yerinden olmus" which is a passive interpretation of the term while civil society organizations such as TESEV, scholars and Human Rights Watch are using the term "yerinden edilmis," an active interpretation of the term. Well with respect to the first "yerinden olmus" term I just want to point out that abbreviation for "yerinden olmus kisiler" is "yok" y-o-k which means non-existent in Turkish. So I invite you to think what establishment of the term would mean in practical manners, somehow we are soon going to talk about "yoklar" non-existing. This polite fight between officials and policy makers about the acronym's translation is in my view not only unnecessary since the phenomenon of internal displacement has been commonly referred in the Turkish society as "zorunlu göç" forced migration for many years now in Turkey. I also think that both versions of the translation are alienating since the displaced persons in the domestic public are confronted with a new vocabulary without any public discussion on how this new vocabulary came even about.

So far neither the Compensation Law nor the dialogue at the diplomatic level has led the government to facilitate public discussion on displacement. Instead it seems to me that there is a dual policy of dialogue and openness on an international level while domestically there is great discomfort for the state to even name the issue. There is no dialogue so far of the government with the displaced persons themselves or with the society at large in this respect. I'm sure that participants of this conference who come from the affected regions can elaborate further on their experiences.

The imposition of a new vocabulary suggests a new beginning and the international community might be patient enough to give the government a chance for incremental adjustment and change. For millions of Kurds however who has been suffering over a decade from the consequences of displacement under conditions that have led to lasting effects in the social structure of the Kurdish population in Turkey such patience is hard to grant. They will need more than promises and weak prospects after almost sixteen years of neglect. They deserve an apology, a sincere acknowledgement and a home. And with home I don't just mean a house with running water which is very important but also the restoration of the feeling of a rightful and equal belonging. Now I am aware that the international framework on the protection of the human rights of IDPs aims to facilitate these goals. However my observations on the emerging IDP regime in the course of the dialogue have cast serious doubts on the implementation and effectiveness of

the international framework. I am worried that the international community is so concerned with maintaining its dialogue with Turkey that it accommodates the sensitivities of the Turkish government on the expense of the displaced Kurds. Now let me explain this. The emerging regime on internal displacement in Turkey has resulted in a policy process of regulation which effectively disentangles the Kurdish conflict from the forced displacement. Basically the dialogue is solely built on the consequences of displacement by sidelining the causes and the politics of displacement. Instead of discussing this displacement as part of the Kurdish conflict it has been framed in a developmental paradigm where the efforts are concentrated on the socio-economic reconstruction of the region and on material compensation. Since the state denies the existence of a political conflict vis-à-vis its Kurds at this course of modernization and development has been a crucial element of the state to control and shape that contentious regions. I see also Mesut Yegen in the audience who has written extensively on this issue.

Important partners of the present dialogue such as the UN and the UNDP nourish now this regulatory and developmental discourse due to their own institutional interest. As a result the problem of displacement has been presented as a temporary isolated phenomenon which could be undone with the cooperation of the state and international aid expertise. Well I am very doubtful of this process and I would just like to exemplify this approach by also looking at the program of this conference which is my only criticism of otherwise an excellent conference but I would like to point out that the word Kurd or Kurdish does not appear anywhere in the program. Is the displacement in Turkey a problem of a number of individuals or is it a collective problem of a distinct population? Nor is there a panel unfortunately on the causes of displacement or to put it more concretely on the Kurdish conflict in Turkey. I hope that these aspects will be addressed in later panels. If we don't regard it as a miracle incidence that the internal displaced are overwhelmingly Kurds and as long as we do not assume that they have been accidentally displaced we have to inquire the rationale behind the massive displacement. We do need to ask why and how the Kurds have been displaced. A single focus on the socio-economic and the psychological consequences of displacement strips the underlying deeper political issues from the problem and reduces it to a matter of policy rather than politics.

[...]

The refusal by the government to acknowledge its involvement in the displacement along with the concerted effort to disentangle the Kurdish issue from the displacement does not indicate a paradigm shift. Rather it seems that while talking about the future of the displaced in effect the recent past is getting rewritten and suppressed. How can these aspects of a dialogue be all reversed into a process of durable and sustainable piece on reconciliation? Well I believe that this is possible with a much stronger participation of those who are either critical to or even unaware - of this dialogue and you know this would mean first informing also the displaced themselves. The displaced Kurds or their representatives have to seize the moment and take a strong position towards the ongoing diplomatic dialogue between the government and the UN and the other international bodies. This dialogue has been too much shaped by the sensitivities of states so far. Both Kurdish representatives as well as human rights organizations in Turkey have so far remained rather passive in this process. Some were trapped between the mistrust towards the state and the sudden interest of the international community. They did not really claim their position in this dialogue and have become observers rather than participants. One reason for this is that the Kurdish parties and NGOs have blatantly failed to make the issues of displacement to the top agenda by prioritizing other aspects of the Kurdish conflict. Another reason for not claiming their position yet is certainly also the new vocabulary in the new form of politics which the international community is always bringing into such a dialogue I mean the humanitarian language and the toolbox. So those who the displaced Kurds regard as a representatives (and that question is also still up in the air), should either become versatile with the humanitarian toolkits and the language and participate actively in this process or they should demonstratively stay out of it. But no matter which option they embarked on I believe that a strong sense in either direction needs to be taken up urgently. We might see then the tough nut actually will be best cracked from inside out."

See also the report of [International Symposium Report: "Internal Displacement in Turkey and Abroad: International Principles, Examples and Policy Proposals - Conference Report.](#)

Government adopts legislation for accession to Mine Ban Treaty (2003)

- On 12 March 2003, the Grand National Assembly unanimously adopted legislation for accession to the Mine Ban Treaty, which was also signed by the President

Landmine Monitor Group, August 2003:

"On 12 March 2003, the Grand National Assembly unanimously adopted legislation for accession to the Mine Ban Treaty, which was subsequently signed by the President. On 3 May 2003, the foreign ministers of Greece and Turkey issued a joint statement that they would proceed to adhere to the treaty simultaneously. Also in May 2003, Turkey announced that its armed forces had started planning the destruction of the stockpile of antipersonnel mines. Turkey announced that mine clearance along the Turkish side of the border with Bulgaria was completed in mid-2002. Clearance elsewhere is ongoing. The government reported 21 new mine casualties in 2002, as compared to 58 new casualties in 2001. On 26 April 2003, Turkey without Mines organized the first national conference on antipersonnel mines, held in Istanbul."

Turkey continues legislative reform process in its bid to join EU (2003)

- The first reform package came into effect in January 2003, addressing a number of issues including provisions addressing torture, the right of minority communities to acquire property
- A second 'reform package' came into effect in February 2003 granted the right to automatic retrial for those who the European Court of Human Rights ruled had suffered a violation of the ECHR
- A 'sixth reform package' includes: the abolition of article 8 of the Anti-Terror Law (crime of spreading separatist propaganda); lifting restrictions on Kurdish broadcasting on private television and radio stations
- The sixth reform package also includes lifting of prohibition on non-Turkish (Kurdish) names; and upholding the right of all detainees to have immediate access to legal counsel
- A 'seventh adjustment package' envisaged, among other measures, changes in the organization and status of the National Security Council.

AI, 1 October 2003:

"The first 'adjustment package' this year came into effect on 11 January and included a number of important provisions. Among these was the stipulation that sentences for the crimes of torture and ill-treatment could no longer be converted to fines, suspensions on probation or postponement. The requirement to secure permission from the relevant senior official in order to proceed with investigation and prosecution of an official accused of acts of torture or ill-treatment was lifted. Medical examinations of prisoners on being transferred to and from prison were made obligatory. Detainees other than those detained for offences under the remit of the State Security Courts were given the right to meet with a lawyer immediately after being detained. The Press Law was amended to uphold the right of journalists not to disclose their sources. Foundations connected with the religious minority communities of Turkey were granted permission to acquire property. The process of initiating the closure of a political party was changed to become more formalized and extended. However, the People's Democracy Party (HADEP) was closed down by a Constitutional Court ruling on 13 March.

A second 'adjustment package' that came into effect on 4 February granted the right to automatic retrial for those who the European Court of Human Rights (ECHR) had ruled had suffered a violation of the European Convention of Human Rights as a result of a court judgment in Turkey. This opened the way for a retrial of the four imprisoned Democracy Party (DEP) deputies – Leyla Zana, Hatip Dicle, Orhan Dogan and Selim Sadak – who, according to an ECHR ruling, had been found not to have received a fair trial in 1994.

Further legislation in the form of the reforms known as the 'sixth adjustment package' had been fully agreed upon but not implemented by June. Reforms included: the abolition of article 8 of the Anti-Terror Law (the crime of spreading separatist propaganda); lifting of restrictions on non-Turkish-language (thus Kurdish) broadcasting on private television and radio stations; lifting of prohibition on non-Turkish (thus Kurdish) names; and upholding the right of *all* detainees (including those detained for offences falling under the remit of the State Security Courts) to have immediate access to legal counsel. A 'seventh adjustment package' envisaged, among other measures, changes in the organization and status of the National Security Council."

For more information on political developments since 2001 see also Section B of the report by the COE Parliamentary Monitoring Committee, "[Turkey: Explanatory memorandum](#)", by the co-rapporteurs, Mrs. Mady Delvaux-Stehres and Mr. Luc Van den Brande (Co-rapporteurs) March 2004

For information on the "Seventh reform package", see "[Turkey reform targets army power](#)" BBC News, 30 July 2003

Turkish government passes Amnesty Bill (July 2003)

- Parliament adopted a law offering reduced prison sentences to PKK/KADEK/KHK members and other "terrorist" organisations who agree disarm and to provide information to the authorities
- The government reported that as of December 19, 2003, over 2,400 prisoners had applied for benefits under the law and over 580 active militants had surrendered

US DOS, 25 February 2004, Sect.2d:

"In July, Parliament adopted a 'Reintegration Law' offering reduced prison sentences to combatants belonging to the PKK/KADEK/KHK and other terrorist organizations as identified by the Government who agreed to lay down their weapons and provide information to authorities. The law offered full amnesty to those guilty of providing non-lethal support to terrorist organizations. At year's end, most of those who had applied for benefits under the law were already serving prison sentences; the Government reported that, as of December 19, 2,486 prisoners had applied for benefits under the law and 586 active militants had turned themselves in."

Significant legislative reform in preparation for EU accession (2002)

- Four legislative reform packages were ratified in 2002 in preparation for EU Accession, including the removal of several restrictions on minority language education and broadcasting
- The death penalty in peace time was abolished and steps were taken to prevent the use of torture
- The state of emergency was lifted in the remaining two provinces where it had remained in force (Diyarbakir and Sirnak)
- Despite the reform packages, Turkey must fulfill a number of other conditions to adhere to European human rights, economic, and political standards

- Among the human rights issues which remained unaddressed is support for the return of thousands of internally displaced people

IHF, 8 May 2003:

"In 2002, many positive human rights developments took place in Turkey: the death penalty was abolished; several restrictions on minority language education and broadcasting were removed; and some necessary but not yet sufficient formal steps were taken to prevent the use of torture. On November 30, the 15-year-long state of emergency was lifted in the two provinces (Diyarbakir and Sirnak) where it had remained in force. The state of emergency had seriously restricted some basic human rights, particularly those related to arrest, detention and investigation of criminal suspects.

Three legislative reform packages were ratified in February, March, and August 2002, and a fourth one was announced in December 2002. The changes were mainly intended to meet European Union (EU) human rights accession standards in advance of the EU Copenhagen Summit in December 2002, which concluded the membership negotiations with ten countries, reinforced the candidate status of two others and decided on the candidate status of Turkey.

Despite the reform packages, many of the steps detailed in the EU document *Accession Partnership - 2000*, as necessary for Turkey to take in the economic and political spheres in order to qualify for membership negotiations, remained outstanding. Restrictions on freedom of expression persisted, exacerbated by the courts' failure to adhere to the European Convention for the Protection of Human Rights and Fundamental Freedoms (ECHR). Turkish police and gendarmes still commonly tortured or ill-treated detainees. The recommendation of the European Committee for the Prevention of Torture (CPT) to guarantee immediate access to all detainees was not followed in respect to detainees subject to state security court jurisdiction.

Former Kurdish parliamentarians remained imprisoned; thorough reform of the Law on Associations was long overdue; and problems in the prison system needed urgent solution. Human rights defenders continued to be persecuted, and there was insufficient support for the return of hundreds of thousands internally displaced people (IDPs).

[...]

The fourth harmonization package in December included a major improvement in the field of freedom of expression: editors-in-chief and news journalists no longer needed to reveal their sources to authorities. But serious concerns remained. As of the end of 2002, Turkish legislation still included hundreds of provisions, which inhibited free expression. Serious moves to abolish any of these provisions were met with accusations of willingness to compromise with 'separatism,' 'religious extremism,' 'betrayal of the state' and even 'treason.' Despite a large number of independent media outlets and active debate in the media, certain topics remained forbidden: criticism of the power of the military and the plight of the Kurdish minority as well as dissenting views about the role of Islam frequently resulted in judicial proceedings and prison sentences. This was frequently done under the pretext of incitement to racial, ethnic or religious enmity, punishable under article 312 of the Criminal Code. Criticism of authorities or, for example, the introduction of the F-type prison system, were often interpreted as insulting the state and its officials under article 159 of the Penal Code. Both articles were amended under EU pressure but were still used to restrict freedom of expression.

The prison term under article 159 was reduced from the maximum of six years to three years (the minimum length remained one year) and fines were abolished. Later a clause was added to the article specifying that speech intended to criticize, but not insult, state institutions shall no longer constitute a reason for punishment."

UK Home Office, April 2003:

"On 3 August 2002 the Turkish Parliament formally approved a package of key democratic reforms, designed to improve Turkey's chances of EU membership. The package consisted of the following measures:

- i. An end to the death penalty in peacetime and its replacement with life imprisonment without the possibility of parole. Capital punishment will, however, remain on the statute books for wartime.
- ii. TV and radio broadcasts allowed in languages other than Turkish but not in contravention of principles of national sovereignty laid out in the Constitution. This change allows broadcasts in Kurdish. The Turkish Radio and Television Supreme Council will act as regulator.
- iii. Kurdish dialects to be taught in special courses at private schools, under the regulation of the Ministry of Education.
- iv. An end to penalties for written, vocal or pictorial criticism of state institutions, including the armed forces.
- v. The easing of restrictions on public demonstrations and association, allowing 48 hour notification to the authorities.
- vi. The easing of restrictions on both foreign and local non-governmental organisations working in Turkey.
- vii. Tougher penalties for people- and organ-smugglers, and those who help them, especially if the lives of immigrants are endangered.
- viii. Greater freedom for non-Muslim minority religions.
- ix. Revision of press laws and regulations.
- x. Changes to laws and regulations defining the duties of the police.
- xi. Prison sentences of up to 10 years for persons found to be profiting from forced labour.

The European Commission welcomed the package as an important signal of the determination of the majority of Turkey's political leaders to align Turkey further with the values and standards of the European Union. The EC's statement said that these reforms were significant steps towards better protection of human rights and the rights of minorities in Turkey. Stressing that the overall reform package needed to be carefully analysed in order to assess fully its impact, the EC said that this would be done in the regular report to be presented in the autumn. It added that much would depend on the package's practical implementation, which would be closely monitored in the months to come. Commissioner Günter Verheugen, responsible for EU enlargement, said 'I welcome the courageous decision of the Turkish Parliament. This decision would not have been possible without a clear European perspective that the EU has developed for Turkey since the European Council of Helsinki in 1999. The Turkish decision also shows that the EU is right in being firm as regards human rights and the protection of minorities... Not to give in on these issues makes our partners better understand why we so strongly defend our values, and that they are precious to us.'

One Turkish human rights activist described the reforms as 'the most positive changes made during the history of the Turkish Republic'. Another, Osman Baydemir, who leads the Diyarbakır branch of Turkey's Human Rights Association, said, in referring to the Kurdish role in Turkey, 'For the first time the differences were accepted - a denial has stopped - they actually acknowledged that cultural differences exist.' [...] Human Rights Watch commented 'During the past year we have seen more substantial human rights improvements than any year since the 1980 coup. Instead of the previous tiny grudging steps, we have seen two major strides and the promise of further improvements.' HRW added, however, that there were two areas in particular where Turkey must still act in order to demonstrate that it has broken with its history of human rights abuses: torture and freedom of expression.

The European Commission's October 2002 'Regular Report on Turkey's Progress Towards Accession' welcomed the fundamental reforms which Turkey has introduced since the decision in 1999 on candidate status for European Union membership. (The political criteria for membership are that countries must have achieved 'stability of institutions guaranteeing democracy, the rule of law, human rights and respect for and protection of minorities.') The report noted the major

constitutional reform of October 2001, which strengthened guarantees in the field of human rights and fundamental freedoms, and restricted the grounds for capital punishment. A new Civil Code was adopted in November 2001. Three sets of reform packages were adopted in February, March and August 2002. The death penalty had been lifted in peacetime. The state of emergency had been lifted in two provinces on the southeast, and the decision had been taken to lift it by the end of 2002 in the two provinces where it still applied. The building of political consensus around these major changes (which were adopted under difficult political and economic circumstances) was prepared by an intensive public debate about EYU accession, a debate which took place with the participation of political parties, civil society, business as well as academic circles. The report concluded that, overall, Turkey had made noticeable progress towards meeting the political criteria for EU membership since 1998, and in particular in the course of the year ending October 2002. The August 2002 reforms were particularly far-reaching. Taken together, the reforms provide much of the groundwork for strengthening democracy and the protection of human rights in Turkey. They open the way for further changes which should enable Turks progressively to enjoy rights and freedoms commensurate with those prevailing in the EU.

Nonetheless, the Commission concluded that Turkey does not fully meet the political criteria for EU membership for the following reasons:

- (i) The reforms contain a number of significant limitations on the full enjoyment of fundamental rights and freedoms. Important restrictions remain, notably to freedom of expression, including in particular the written press and broadcasting, freedom of peaceful assembly, freedom of association, freedom of religion and the right to legal redress.
- (ii) Many of the reforms require the adoption of regulations or other administrative measures, which should be in line with European standards. Some of these measures have already been introduced and others are being drawn up. To be effective, the reforms will need to be implemented in practice by executive and judicial bodies at different levels throughout the country. The Commission considers that the decision of the High Electoral Board to prevent Mr Erdogan, the leader of a major political party, from participating in the November 3 general election did not reflect the spirit of the reforms.
- (iii) A number of important issues arising under the political criteria have yet to be adequately addressed. These include the fight against torture and ill-treatment, civilian control of the military, the situation of persons imprisoned for expressing non-violent opinions, and compliance with the decisions of the European Court of Human Rights.

In the light of the noticeable progress made in recent years and of the remaining areas requiring further attention, the Commission encouraged Turkey to pursue the reform process to strengthen democracy and the protection of human rights, in law and in practice. This will enable Turkey to overcome the remaining obstacles to full compliance with the political criteria.

It emerged in late October 2002 that Europe's leaders might make, at the Copenhagen summit in December 2002, a firm pledge on membership talks with Turkey. Many EU states had come under pressure from USA to make concessions to Turkey, which the USA sees as a reliable NATO ally and a friend in the campaign against terrorism. Plans to give new encouragement to the Turks were urged by Greece and the UK; the British Foreign Secretary said that UK was 'extremely positive about helping Turkey's accession to the EU'.

[...]The European Union summit in Copenhagen on 12 and 13 December 2002 decided that Turkey would have to wait until December 2004 before a review that could lead to negotiations for Turkey to join the EU. The review would decide whether Turkey met human rights criteria."

EU monitors Turkey's ability to assume obligations of membership (2000)

- EU recognized Turkey as a candidate for membership in the union in December 1999

- "Copenhagen criteria" for membership include the stability of institutions guaranteeing human rights and respect for and protection of minorities
- In 2000, Turkish State released proposals for reforms for a better protection of fundamental rights but failed to indicate precise timeline for implementation
- European Parliament proposed the linking of aid package to progress on Kurdish cultural rights and the economy in the southeast (September 2000)
- EU Partnership Draft Agreement with Turkey did not address the issue of internal displacement (November 2000)

IHF, 2000, pp. 296-297:

"At its Helsinki Summit in December 1999, the EU recognized Turkey as a candidate for membership in the union. It decided that prior to actual negotiations for membership Turkey must meet the political criteria for EU membership established in Copenhagen in 1993. The necessary steps include 'stability of institutions guaranteeing democracy, the rule of law, human rights, and respect for and protection of minorities.'

Turkey's first real indication of its readiness for the Accession Partnership appeared in the 28 February 2000 *Report on the Political Criteria of the Special Committee on Turkey - E.U. Relations* prepared by the Special Committee on Turkey–EU relations attached to the Turkish Prime Minister's Office. Another indication was the document entitled *Calendar for Democracy, the Rule of Law and Human Rights*, produced by the Secretariat of the High Coordinating Council for Human Rights of the Office of the Prime Minister in mid-2000, after the above-mentioned report was published. Both documents contained a large number of proposals for constitutional, legal and administrative reform in the direction of better protection of fundamental rights, including, for example, measures for reshaping the National Security Council (a powerful semi-military body established under the Constitution to advise the state leadership on national security matters); abolishing the death penalty; redrafting laws in order to ensure freedom of expression; establishing judicial police; abolishing incommunicado police detention and combating domestic violence. The documents also proposed the signing and ratification of the ICCPR and the ICESCR, both of which were signed by Turkey on 15 August 2000. However, the omissions and the lack of precision regarding the final shape of such reforms, as well as the time line for reforms indicated in the Calendar (by the end of 2001 or 2002), left room for concern because numerous changes were already long overdue, for example those regarding freedom of expression and torture, incommunicado detention, language rights, and asylum issues."

HRW, 2000, p. 329:

"The particular emphasis that the European Union places on minority rights in Turkey was a cause of friction. In September [2000], the Turkish Foreign Ministry expressed irritation that the European Parliament on releasing an aid package of 135 million euros (U.S.\$117 million) to Turkey had proposed linking the funds to progress on Kurdish cultural rights and the economy in the southeast."

KHRP, Summer/Autumn 2000, p. 1:

"On 8 November [2000], just under a year since Turkey acquired its EU candidacy status, the European Commission publicly announced its EU Accession Partnership Draft Agreement with Turkey. Although there is much to commend within the document, there are a number of glaring omissions to the agreement which include the absence of the words 'Kurd' and 'Kurdish' throughout. Equally worrying is the fact that the crucial issue of internally displaced peoples in Turkey is not specifically addressed in the criteria to be met by Turkey for EU membership. In addition, most of the agreement's criteria are general with no specific deadlines or benchmarks in place to mark Turkey's progress in cleaning up its appalling human rights record."

See also the Turkish National Programme for the adoption of the *acquis communautaire* (Introduction and Political Criteria), Appendix IV of the Report of the PACE Monitoring Committee "Honouring of obligations and commitments by Turkey", Doc. 9120, 13 June 2001 [[Internet](#)]
Consult the website of the European Commission for more EU documents regarding Turkey's accession [[Internet](#)]
For background information on EU accession criteria and the Copenhagen Criteria, see website of the European Union [[Internet](#)]

Policy and recommendations from international actors

Kurdish Human Rights Project and Bar Human Rights Committee of England and Wales recommendations (2006)

KHRP/BHRC, December 2006, pp. 49-50:

"KHRP and BHRC have the following recommendations regarding the Return to Village and Rehabilitation Project and Law 5233:

We urge the Turkish Government:

- To address the issues highlighted within this report, including the introduction of necessary legal reforms, in particular the provision of non-pecuniary damage for suffering and trauma;
- Within this legislative drafting process, to consult local NGOs, human rights organisations and civil society groups, and invite their input into the reforms;
- To release the data collected by the Hacettepe survey so that accurate information regarding the actual situation of IDPs is imparted to NGOs and other bodies, in order for their living conditions to be improved and appropriately addressed;
- To adequately investigate and punish the perpetrators of the violence towards IDPs, both in the past and on an ongoing basis;
- To abolish the village guard system and initiate an anti-landmine campaign, to include the safe removal and disposal of landmines and an educational programme about their dangers for the local community;
- To create viable conditions for IDPs to return to their villages and rehabilitate themselves.

We encourage local NGOs, human rights organisations and civil society groups:

- To request that the Turkish Government engage with civil society organisations and lawyers to improve the situation of IDPs, including in the context of legislative reform;
- To place pressure on the Turkish Government to comply with the above recommendations.

We urge the international community:

- To monitor the operation and working methods of both of Turkey's IDP programmes: this applies in particular the UN Special Representative on the Rights of Displaced Persons;
- To produce regular reports on the ongoing situation and to continue to place pressure on the Turkish Government to introduce the necessary reforms;
- To enter into dialogue with the Turkish Government regarding the potential of international actors to address the situation of IDPs, and further to encourage Turkey to engage in this respect.

We request the European Commission:

- In relation to the European Commission Delegation to Ankara, to monitor the working methods of the two programmes detailed in this report and to provide a concrete and accurate evaluation for inclusion in the next regular report on Turkey;
- Given that the return and resettlement of Turkey's vast number of IDPs may be too large a logistical and financial burden for the Turkish Government to bear alone, we urge the EU to enter

into dialogue with the Turkish Government regarding its potential to address the situation of IDPs, and further to encourage Turkey to engage in this respect;

- To make Turkey's EU accession conditional upon the Turkish Government's acceptance of the involvement of EU and other international actors in the return and resettlement of Turkey's IDPs, through the provision of reconstructive, logistical and financial assistance rebuild their villages and livelihoods."

IDMC recommendations to improve partnership and dialogue between government and civil society (2006)

IDMC, October 2006, pp.7-11:

"The relations between NGOs and the Turkish authorities in general, and in relation to internal displacement in particular, have considerably improved in recent years, thanks to the process of EU accession engaged in by Turkey. These positive developments should enable the authorities to use more constructively the vast experience and knowledge available within the NGO community with regard to the protection of IDPs in the country. However, the relations between NGOs and the national authorities in Turkey remain difficult and ad-hoc....

Recommendations to the national authorities

1. All arbitrary restrictions on the freedom of expression and association of NGOs should be ended. Legislative and regulatory provisions limiting the ability of NGOs to voice their concerns publicly should be removed. The right of civil society organisations to conduct non-violent advocacy on behalf of minorities, including the Kurdish minority, should be protected. Furthermore, the government of Turkey should encourage all state organs and officials to develop open and constructive relations with NGOs, and regard them as essential resources and partners.
2. All efforts should be done to ensure that all the recent initiatives taken to address conflict-induced displacement in Turkey are followed through, and lead to concrete changes on the ground. This is essential to restore the confidence of the NGO community in the authorities. The action plan developed in the province of Van, under the leadership of UNDP and with the participation of all relevant actors, should be adequately funded and implemented by the Turkish state, with external support where necessary.
3. Authorities should replicate the consultation process, as conducted in Van province, with the objective of developing action plans in all provinces concerned. National authorities should support the setting up of mechanisms at the national, provincial and local levels, comprising representatives of key NGOs involved in the protection of IDPs, with the mandate of steering the development, implementation and evaluation of the action plans, in line with the government's Framework Document.
4. Where dormant or ineffective, existing structures of dialogue between authorities and NGOs should be revitalised at the local and provincial levels. The relevant authorities should be instructed to reactivate such forums, while the necessary reforms should be undertaken to restore their credibility (in particular with regard to their independence).
5. The authorities should strengthen their efforts to raise awareness of the situation of IDPs among the general public, with the objective of widening space for a peaceful and constructive dialogue with civil society actors on the displacement issue. The survey conducted by the Hacettepe University's Institute of Population Studies should be made public as soon as possible. Events to discuss the finding of the survey should be organised jointly with NGOs and other relevant stakeholders and the media.
6. The authorities should ensure a more systematic participation of NGOs in the formulation of policies relating to IDPs in Turkey. In line with the *Framework for National Responsibility*, the mandate of the IDP focal point within the Ministry of the Interior should include the responsibility to liaise with NGOs at the national level on a regular basis, to share information on government initiatives, plans and policies, collect the views and inputs of NGOs and channel them to relevant

officials. The focal point should also promote and monitor the development of partnerships between authorities at the provincial and local level and NGOs.

Recommendations to the NGO community in Turkey

7. NGOs who participated in the training of trainers on the protection of IDPs, organised by UNDP Turkey and the IDMC, should organise and conduct training events to continue the dissemination of the Guiding Principles and train other NGOs on the protection of IDPs. Where possible, NGOs should also encourage authorities at the local and provincial level to support the development of workshops and invite relevant officials as resource persons or participants. As much as possible, training workshops should be used by NGOs as a tool to reinforce the dialogue between them and the authorities in a non-confrontational environment.
8. Cooperation among NGOs should be reinforced, with the objective of strengthening their position towards the authorities and reinforcing the impact of their advocacy work. The creation of a consortium of NGOs interested in the protection of IDPs should be envisaged, for instance with a secretariat rotating among consortium members. One mandate of such a consortium, at the national level, could be to coordinate advocacy activities in international and regional forums (Human Rights Council, Council of Europe, OSCE, EU, treaty bodies). Consortia at the provincial level could also play a role in monitoring the return process and the implementation of the authorities' commitments in support of local integration. Exchange of information and consultation between NGOs from different provinces should also be facilitated.
9. NGOs should join forces to continue raising awareness of the situation of IDPs among the public. For instance, NGOs could organise annual events (conferences) at the national and provincial levels to discuss the situation of IDPs and the progress made regarding the implementation of durable solutions. Representatives of the relevant national authorities should be invited to co-organise and take part in such events.
10. Bar association members of the damage assessment commissions should be encouraged to liaise with the NGO community at the provincial level. Bar associations should request their members to report about their activities and consult about policies relating to the application of the Compensation law. As the only members of the Commissions originating from civil society, bar associations should also organise consultations with other interested NGOs on the role of the civil society member of the Commission. NGOs should also advocate for change in the structure of the commissions in favour of a more balanced representation of civil society and the public sector.

Recommendations to the United Nations actors

11. Access of NGOs to relevant training opportunities should continue to be promoted. Any training project developed to strengthen the capacity of authorities to better respond to the protection needs of IDPs should also be opened to the relevant NGOs. In particular, training on housing, land and property issues organised for members of the damage assessment commissions should also be extended to bar associations in general and NGOs which have shown an interest in the issue. More training opportunities for NGOs should be developed, in particular with regard to communication with the public and the media, and negotiations skills.
12. Access of NGOs to key documents and materials related to IDPs in general, and in Turkey in particular, should be reinforced. All relevant reports, resolutions, recommendations, policy documents, from regional (EU, Council of Europe, for example) and international bodies (the UN system, Brookings) should be translated systematically, and made available to the NGO community in Turkey. UNDP could support the systematic translation of these documents and use its webpages in Turkish to make them available.

Recommendations to the European Union

13. The European Union should continue to closely monitor the response of the national authorities to the displacement caused by the violence in Southeastern Turkey. In doing so, due attention should be paid to whether NGOs are meaningfully involved by the authorities in the planning, implementation and monitoring of IDP-related policies and action plans.

14. EU funds should be directed to the implementation of IDP action plans developed after meaningful consultation with the Turkish NGOs. The EU should also ensure that Turkish NGOs can directly contribute to the implementation of the action plans, through the development of field-based projects and advocacy initiatives. This requires that NGOs have access to EU funding, in accordance with their expertise and contact with IDPs.”

Recommendations of RSG on the human rights of IDPs after his working visit to Turkey in September 2006

UNDP, 23 February 2006:

“The Representative of the Secretary General on the Human Rights of Internally Displaced Persons (RSG), Mr. Walter Kälin, carried out a working visit to Turkey from 28 September to 1 October 2006 on the invitation of the Governor of Van Province, Mr. Niyazi Tanirli. In Ankara, he met with representatives of the State Planning Office (SPO) and the Hacettepe University Institute of Population Studies on their Migration and Displacement Survey and TESEV (Turkish Economic and Social Studies Foundation). On 29 September he spoke at a conference in Van convened to launch the “Van Provincial Action Plan for Responding to IDP Needs” (Action Plan) in the presence of Mr. Abdulkadir Aksu, Minister of Interior, the governors of the fourteen South-Eastern Anatolian provinces, local authorities, representatives of the international community and of civil society, as well as the media. On 30 September, he visited a returnee village in Gürpınar District and social projects assisting internally displaced persons (IDPs) in Van. The visit concluded with a debriefing meeting with Governor Tanirli on 1 October.

At the end of this visit the RSG draws the following *conclusions*:

During the last two years, significant progress has been made in Turkey, both in terms of the adoption of laws and policies addressing internal displacement, and more generally in the commitment demonstrated by the Turkish Government to find solutions for the displaced in open cooperation with civil society and the international community. The adoption of the Van Provincial IDP Action Plan and the political support provided to it by the Government of Turkey provide a unique window of opportunity to find durable solutions for many of the IDPs and a momentum that must be seized as a matter of urgency.

The Van Action plan elaborated within a short time is comprehensive and holistic. It provides an important and adequate instrument to address displacement with a view to find durable solutions. Its strengths include: (i) the reflection of the Guiding Principles on Internal Displacement and the human rights principles they are based upon, in particular the principle that IDPs can freely choose between return to their places of origin, local integration where they presently live, or resettlement to another part of the country; (ii) the consultative and participatory process involving a wide range of stakeholders; (iii) the focus on displaced persons as active citizens, rather than only passive beneficiaries, whose needs are at the center both of the process and the envisaged outcomes of the plan; and (iv) its comprehensive and holistic nature, as demonstrated by the combination of, on the one hand, activities aimed at the physical reconstruction of infrastructure and homes and the safeguarding of property rights for those wishing to return, with, on the other hand, numerous measures aimed at the social and economic reintegration of IDPs and the provision of public service. The integration of the reconstruction of rural settlements into the South Van Rural Development Plan not only benefits IDPs and returnees themselves, but also other affected groups such as host communities.

The implementation of the Action Plan might be faced with the following challenges and obstacles: (1) insufficient resources; (2) weak coordination of implementation activities; and (3) lack of security in rural areas of return, including landmines and the presence of village guards that are, or might be perceived as, a threat by returnees.

The RSG recommends:

1. *To the Governorate of Van:*

To use a phased approach when implementing the Action Plan and in this regard to identify – in close cooperation with UNDP – priorities of certain objectives and activities whose realization is more urgent than that of others.

To ensure, at the provincial level, strong coordination between all relevant actors and implementing partners to regularly assess progress and identify obstacles as well as agree on next steps.

To continue emphasizing transparency of the process as well as consultation with and active participation of IDPs and other relevant stakeholders at each stage of the Action Plan's implementation in order to create the necessary degree of ownership.

To continue close cooperation with civil society as implementing partners.

To place equal importance on the facilitation of urban integration as is given to return to rural areas, for those persons among the displaced who choose to re-build their lives in urban areas.

2. *To the Government of Turkey:*

To dedicate, in its next budget, additional resources beyond the considerable means already provided, and to seek the support of the international community for further funding.

To encourage and facilitate the elaboration and adoption of similar IDP action plans in the other provinces of Southeastern Turkey.

To establish, at the national level, an IDP unit with sufficient staff and resources to ensure coordination of displacement related activities.

To elaborate a national IDP action plan that builds upon and complements the provincial plans in order to ensure that comprehensive and coordinated activities are undertaken in all affected provinces.

To continue to improve the process of compensating victims on the basis of Law No. 5233 by further capacity building and, where necessary, through amendments to the law, including by giving consideration to the suggestions made by the RSG to the Turkish Government in a letter dated 31 March 2006.

To proactively address security problems that might constitute obstacles to return, including through the removal of landmines and a review of the village guard system, as recommended by the RSG in the same letter.

To make public, without any further delay, the quantitative as well as the qualitative results of the Hacettepe IDP survey in order to assist all relevant actors in basing their planning and implementation activities on a realistic assessment of the situation of IDPs in Turkey.

3. *To Civil Society:*

To actively participate in the implementation of the Action Plan and, at the same time, to continue to play the role of constructive but critical observers of the process.

4. *To the Donor Community:*

To support and assist the Governorate of Van Province as well as the national authorities in the implementation of the Van Action plan and similar plans that might be adopted in the future, and to complement the resources assigned by the State as needed.

Experience from other countries shows that three elements must be in place for making solutions durable: (i) safety at the place of return or local integration/resettlement, (2) restitution of or compensation for lost property and reconstruction/upgrading of homes; (3) social and economic conditions guaranteeing the sustainability of return, such as availability of and access non-discriminatory access to livelihoods and public services."

See also [UN Expert on internally displaced persons travels to Turkey](#).

HRW recommendations regarding the village guards (2006)

- Village guards perpetrators of human rights violations and criminal acts and an obstacle to returns of displaced villagers
- HRW recommends abolishing the village guards system, restitution of confiscated property and bringing perpetrators to justice

HRW, 8 June 2006:

"The Turkish government must take immediate steps to abolish the system of village guards, which has given rise to some of the most serious human rights violations in southeast Turkey, and continues to present an obstacle to the return of displaced villagers in that area.

[...]

Human Rights Watch urges you to act upon the 2002 recommendation of the Representative of the U.N. Secretary-General on the human rights of internally displaced persons by abolishing the village guard system, commencing with immediate disarmament, and continuing with the provision of alternative employment opportunities for existing guards.

In addition, Human Rights Watch urges that all property confiscated or occupied by village guards as a result of the forcible evacuation of villagers since the 1980s is returned to its pre-conflict owners.

Human Rights Watch also urges that the perpetrators in the above cases be brought to trial. In addition to this, the gendarmerie command must respond to the pattern of violations with internal investigation of gendarmerie officers responsible for village guards who have committed grievous violations while acting under their authority and control. Disciplinary proceedings and judicial proceedings should be initiated against officers found responsible for negligence or collusion in such acts. These investigations should begin with violations of the right to life identified in rulings at the European Court of Human Rights such as the killings at Kutlubey village.

Gendarmerie General Command should publicly account for its failure to restrain the abuses of village guards over the past two decades. Investigations should be made in respect of gendarmerie officers who were responsible for village guards convicted of murder and other serious crimes, and disciplinary or criminal sanctions applied where appropriate.

Most observers agree that abruptly shutting off government funding to the village guard communities would be counterproductive, and several have suggested that the money that has previously been spent on the village guards might continue to go to the southeast region in the form of a rural support program. These are constructive proposals provided, firstly, that village guards are swiftly disarmed, and secondly, that any system of rural support is non-discriminatory, in accordance with the U.N. Guiding Principles on Internal Displacement and should be used to support village guard and returning displaced persons alike in the encouragement of industry, agriculture, and a return to peace."

Recommendations of RSG on Integrated Strategy Document, Compensation Law and Hecettepe study (2006)

- Adoption of Integrated Strategy Document commendable
- Need to publicise the strategy, in particular towards civil society and the internally displaced themselves
- Necessity of working out a concrete Plan of Action built on the principle of voluntariness and recognition of the freedom of movement and choice of residence

- Setting up an office within the Ministry of Justice to deal with the issues of displacement valuable
- Full, equitable and consistent implementation of Compensation Law a step in implementing Integrated Strategy Document
- Hacettepe study to be finalized should provide springboard for the Action Plan and should be benefit from civil society feedback

Recommendations from the RSG, March 2006, pp.1-2:

"Progress has been made in Turkey, both in substantive terms of specific law and policy and more generally in the willingness to engage with interested parties ranging from the United Nations Country Team to civil society on issues of internal displacement in an open, constructive fashion. I was encouraged in this respect by the candid dialogue between Government officials and civil society that took place in the course of the multi-stakeholder meeting on Thursday, 23 February, followed by the clear political commitment demonstrated by H.E. the Minister of the Interior Mr. Abdulkadir Aksu to the Colloquium of Governors on Friday, 24 February to address the issue of internal displacement. This approach bodes well for future positive progress towards durable solutions for internally displaced persons in Turkey. In particular, continued, structured consultations with civil society would be important. In this context, I also welcome the agreement reached between your Government and the United Nations Country Team with respect to the execution of a project on "Support to the Development of an IDP Program in Turkey," which should strengthen the partnership between the Government and the local United Nations representation on internal displacement issues. I further emphasise my satisfaction with the wide range of Governors able to attend Friday's policy session, and the openness shown by them and officials of the Ministry of the Interior towards my exploration of the way forward in dealing with displacement issues, from the point of view of the standards of the United Nations Guiding Principles on Internal Displacement.

Turning to substantive matters, the period of time since May 2005 has been marked by two major issues. The first is the substantial experience gained of the July 2004 adoption and subsequent initial implementation of the Law No. 5233 on the Compensation of Damages that Occurred due to Terror and the Fight against Terror, as well as subsequent amendments and implementing regulations. The second development is the adoption at Cabinet level of the national strategy on internal displacement. I welcome both these developments as important steps forward, which demonstrate Turkey's commitment to make concrete progress on issues of internal displacement. I valued the opportunity in the course of my visit to become more familiar with each of these steps and how their implementation has played out on the ground.

Integrated Strategy Document on Internal Displacement

The adoption by the Council of Ministers on 17 August 2005 of the Integrated Strategy Document on internal displacement entitled "Measures on the Issue of Internally Displaced Persons and the Return to Village and Rehabilitation Project in Turkey", responds to an earlier recommendation I had made and is a statement of signal importance for future steps. I appreciate in particular the focus on the guidance provided by the United Nations Guiding Principles on Internal Displacement. As an initial matter, I would strongly recommend that your Government take measures to publicise widely and in accessible fashion the Integrated Strategy Document, in particular towards civil society and internally displaced persons, in order that there is general awareness of the policy decisions taken at highest Executive level and consciousness of the foundation upon which next steps will build.

As an overarching strategy, the Integrated Strategy Document is necessarily composed in relatively general and abstracted terms of principle. The next step forward, which is my primary recommendation emerging from this working visit, would be for the Ministry of the Interior, in conjunction with other pertinent parts of Government and in consultation with civil society and

internally displaced persons themselves, to develop a specific Plan of Action in order to turn the framework of the Integrated Strategy Document into concrete, practical measures of implementation. In doing so, I would recommend continued use of the Guiding Principles on Internal Displacement to inform the formulation of the elements of the Plan of Action. The Guiding Principles serve in this respect as a useful reference tool to ensure that the Plan of Action is consistent with the international human rights obligations entered into by Turkey, and contribute strongly to the likelihood that the results achieved by the Plan of Action will be durable, long-term outcomes rather than of a transitory nature.

As a pillar of this Plan of Action, I would recommend that the Plan build on the recognition of the principle of voluntariness set out in the Integrated Strategy Document and explicitly recognise the major implications of the right to freedom of movement and to choice of residence; that is, internally displaced persons must have a real and genuine choice between (i) integrating themselves locally in the generally urban environments to where they have moved, (ii) returning to the places from which they originally fled; or (iii) moving to another part of the country. For each of these choices to be genuinely open to internally displaced persons, the Plan of Action will need to flesh out a series of measures with respect to each of these environments in order to ensure that each of these choices is realistically open to the displaced persons in question. In particular, the exercise of the right to freedom of movement and to choice of residence depends on substantial measure on the security of affected persons, questions about which were raised by members of civil society with regard to return. Several recommended a review of the village guard system and in this connection, I would note that there is need to reconcile ensuring personal safety for persons wishing to return with the need for ensuring State security; rather than being antithetical to one another, the two should be seen as mutually depending on each other. By assuring genuine exercise of the three solutions outline above, true closure to internal displacement in Turkey can come within reach.

To ensure implementation of the Plan of Action, it would be valuable to have a dedicated office at the Ministry of Justice devoted to the issue of internal displacement. Such a body should have staff specifically focused on promoting solutions to internal displacement and have sufficient authority to provide leadership in implementing the policy and in coordinating and monitoring the activities of the various government offices involved.

Compensation Law and implementation issues

In implementing the Integrated Strategy Document in a manner that facilitates voluntary and durable solutions to internal displacement, implementation of the Compensation Law represents one of the most important concrete steps Turkey has before it. If this legislation is implemented in a manner that is *full, equitable and consistent*, Turkey will have set a significant international precedent for providing remedies to the victims of internal displacement. Initial experiences with the Compensation Law reveal several positive trends: the Damage Assessment Commissions have begun their work and early concerns about the law have been addressed through extension of the claims deadline and broadening of the categories of evidence that can be brought to support claims. Perhaps most important, Turkish civil society organizations and academic institutions have begun monitoring and analyzing the process and providing constructive suggestions on how it could be improved. The multi-stakeholder meeting on 23 February demonstrated how greater formal involvement of civil society in the implementation, monitoring and progressive development of Turkey's compensation program could be of great assistance in ensuring that it provides IDPs with durable solutions.

A good example of the role of civil society could play relates to the need for *full* implementation of the Compensation Law. In order to secure effective remedies for IDPs and legal finality for Turkey, it is in everyone's interest to ensure that all potential claimants under the law have had a full opportunity to make a claim. However, as discussed on 23 February, some IDPs have been so marginalized by their displacement that they may not have access to information about the

claims process, even where it has been published in the mass media. Reports indicate that other IDPs have been traumatized by their experiences and therefore may fear negative consequences for claiming their legal rights. Under these circumstances, many potential claimants remain at risk of losing their opportunity to make a claim despite the extended deadline. These concerns highlight the importance of ensuring that planned public information campaigns include a role for civil society in outreach to the most vulnerable IDPs, including poor families, traumatized individuals, female-headed households, the elderly and the handicapped – those who need assistance finding durable solutions the most but are least likely to be able to access the compensation process on their own. It is vital to ensure that public information on the compensation claims process is clearly endorsed by the state, in order to address any concerns of traumatized IDPs. However, civil society organizations are often best placed to provide information directly to marginalized IDP communities and should be encouraged to do so. A logical extension of this approach would be to encourage qualified civil society organizations – and particularly bar associations – to provide free legal advice and representation to IDPs in filing and pursuing their claims. This would benefit not only claimants but also the Commissions, which should be able to process their caseloads more efficiently if claims have been consistently well prepared prior to filing.

A second issue concerns the *equitability* of the damage calculation process. In order to meet the goal of providing durable solutions to displacement as well as formal legal remedies, the damages awarded by the Commissions should consistently be high enough to allow IDPs to recover some measure of the economic self-sufficiency they would currently enjoy had they never been displaced. Based on initial reports, some damage awards have been low and methods of calculating compensation have varied between the affected Provinces. A leading principle in the application of the law should be the need to preserve a measure of proportionality between the losses IDPs have suffered and the compensation they receive. However, a significant obstacle appears to be presented by the level of discretion the current law and regulations permit the Commissions to exercise, not only in the calculation of damages but also in taking many other decisions during the claims adjudication process. While there is every indication that the Commissions are working in accordance with the law, the law itself does not appear to give the Commissions sufficiently specific guidance to ensure consistently equitable outcomes.

This raises a third general issue related to the overall *consistency* with which the Compensation Law is applied. Ensuring consistent application of the law would help to answer criticisms regarding the perceived independence of the largely government-staffed Commissions. Although proposals to increase the representation of non-civil servants or professionalize the Commissions should be seriously considered, the less room the Law and implementing regulations leave for interpretation, the less of a concern the formal independence of the Commissions is likely to be. Clear legislative guidance that minimizes administrative discretion can protect the Commissions from accusations of partiality or undue influence while they address applicants' concerns that ambiguities in the legal framework could prejudice the resolution of their claims. It is always difficult for legislators to anticipate all possible shortcomings in legal drafts, particularly in an area as novel and untested as the Compensation Law. However, this underscores the importance of considering a formal review of implementation of the law to date, resulting in a new implementing instruction and, if necessary, amendments to the Law, which would comprehensively address concerns raised by the Commissions themselves, as well as claimants and civil society observers of the process. The result would be a process that would provide all parties with consistent, fair and foreseeable outcomes. Areas where concrete concerns have already been raised about discretion in the application of the law include:

Admissibility findings: It should be clarified that claims should not be rejected as inadmissible merely because the applicant has received some form of prior state assistance. Prior assistance may be deducted from compensation awards, but only after consideration of the full merits of each claim including calculation of compensation for other harms not addressed by any prior

assistance. As a general matter, given the widespread nature of displacement during the state of emergency period in Turkey, claims should be presumed admissible unless evidence to the contrary exists, and decisions rejecting claims should be subject to appeal.

Claims processing: The current requirement that claims be processed within six months from their receipt appears likely to be unachievable. Although it is important to ensure that claims are processed without unjustified delay, international experience indicates that the *order* in which claims are processed may be a more decisive factor than speed. Consideration should be given to chronological processing, with claims decided strictly in the order they were filed. This approach would allow lists of claims to be made, updated and published, showing applicants precisely where their claim stood in the order of processing and approximately when they might expect a decision. Strict adherence to chronology will also shield the Commissions from any accusation of manipulation of the order of claims processing for inappropriate reasons.

Damage calculation: Clearer guidance on what types of harms can be claimed and standardized rules on calculating compensation would help to ensure consistency. For example, the legal framework should precisely regulate compensation for typical costs of displacement such as lost revenues from assets that claimants did not hold formal title to but which they possessed and used legally in accordance with local customs and practices. Another example is the cost of living in displacement, and particularly private rental payments. Since such revenue flows and costs can be calculated in general terms, claims proceedings would be far more efficient and outcomes more consistent if standardized compensation awards for different types of lost revenues (e.g. per head of cattle or acre of arable land per year) or costs (e.g. average rent in different regions of Turkey per family member per year) were set out in the law or instructions. This approach would accord with international best practice, replacing burdensome individualized damage calculation with streamlined evidentiary proceedings. Similar procedures can and arguably should allow calculation of standardized non-pecuniary damages in relation to criteria prescribed in the legal framework.

Appeals process: Although it is currently possible for applicants who dispute the Commissions' decisions to seek a judicial remedy, this procedure cannot be thought of as an appeal. Such court proceedings represent an entirely new cause of action and do not give unsuccessful compensation applicants an opportunity to receive a hearing on whether the Compensation Law was correctly applied in their case. Although clearer and more comprehensive rules will help prevent inconsistent application of the Compensation Law, the only way to guarantee consistency would be a centralized administrative appeals procedure, allowing determinations to be made with regard to appeals on both admissibility and damage calculation.

There are many international precedents for legislative review processes resulting in improved remedies for IDPs, and my colleagues and I would be happy to provide further technical advice and discuss comparative international experience in the context of such a process. Indeed, we would be willing to send experts to Turkey to convene appropriate meetings specifically on property and compensation issues. One important general principle is that a review process should include appropriate consultation with persons affected by the law, as well as civil society groups and academic institutions with demonstrated expertise in monitoring the implementation of the Compensation Law. In addition, the resulting changes to the legal framework for compensation should be retroactive, in the sense that claims decided or rejected on the basis of the old rules should be eligible for reconsideration under the new rules. This consideration argues for making any changes sooner rather than later, so as to minimize the potential administrative burden of having to re-open cases and re-examine claims.

Follow-up to the Hacettepe study

At the time of my working visit, the Study by Hacettepe University on "Turkey Migration and Internally Displaced Population Survey" had not yet reached its conclusions, though I understand

that this is now imminent. I reiterate my earlier remarks that a study independently conducted represents an example of best international practice, which I welcome. While the Study should shed a degree of light on the numbers of internally displaced persons in Turkey, it should also be useful for the breakdown of disaggregated data on the internally displaced persons surveyed. Such disaggregation will usefully illuminate the scope of particularly vulnerable groups and their various specific needs, and provide valuable pointers for areas that the Plan of Action will need to particularly address. I would see the Study as providing a springboard for the elaboration of the Plan of Action, based on clearer data than has generally been the case heretofore, and would encourage use of the Study's findings in this fashion. I would also invite the Government to provide an opportunity for public and civil society feedback on the Study as published, in order to set its findings within a wider context before proceeding to an implementation phase by way of the Plan of Action."

Recommendations of UN Representative on the Human Rights of IDPs following his visit to Turkey (2005)

Press release from UNDP, 9 May 2005:

"A planned new strategy of the Turkish government brings new hope to the internally displaced persons in Turkey. This is what the Representative of the UN Secretary General on the Human Rights of Internally Displaced Persons, Prof. Dr. Walter Kälin, concluded at the end of a working visit to Ankara from 4 - 6 May 2005 which he undertook on the invitation of the Turkish Ministry of Foreign Affairs. The Representative held talks with high ranking officials at the Ministries of Foreign Affairs, Interior and Justice, the State Planning Organization and the Southeast Anatolia Project. He also attended a workshop on the 'Turkey Migration and Internally Displaced Population Survey' presently undertaken by Hacettepe University, Institute of Population Studies and participated in a training workshop on the UN Guiding Principles on Internal Displacement for Deputy Governors and other officials conducted by the Norwegian Refugee Council and met with academics working on issues of internal displacement.

The Representative was informed about past and present efforts of the Turkish government to allow for the return, rehabilitation and re-integration of those displaced from their villages in Southeastern Turkey and the progress achieved that far within the framework of the Return to Village and Rehabilitation Project and on the basis of Law No 5233 on Compensation for Damage Arising from Terror and Combating Terror. The Representative was also informed about the on-going preparation of a new strategy document on internally displaced persons in Turkey that would allow addressing the problems faced by the displaced persons in a more efficient way.

The Representative was impressed by the willingness shown by his interlocutors to approach the problem of internal displacement with an open mind, to develop a new strategy on internal displacement that addresses all obstacles to return, including the role of village guards and the problem of landmines, in a comprehensive manner, and to provide the necessary means to make implementation a success. In his discussions he stressed that the notion of internally displaced person as accepted at the international level encompasses all those who left their homes and places of residence involuntarily and expressed his hope that the new governmental strategy on internal displacement would be based on this notion and be in line with the UN Guiding Principles on Internal Displacement. He suggested that the final version of the strategy should be based on and reflect the results of the independent research presently undertaken by Hacettepe University. He also stressed the need to create an institution that would have sufficient authority to provide strong leadership for a timely and effective implementation of the strategy and underlined the importance of consultation with and participation of the displaced and of civil society in this regard in order to achieve tangible results in the near future. Finally, he suggested an extension of the deadline for applications under Law No 5233 on Compensation in order to

allow all those entitled to receive compensation to submit their claims and expressed his concerns about the rather high rate of applications that have been rejected. The Representative welcomed the positive responses given to his suggestions and expressed his hope that Turkey may, in the near future, be able to solve the problem of internal displacement and thus overcome one of the saddest legacies of its recent past.”

HRW recommendations to the Turkish government and the international community (2005)

HRW, March 2005, p.3:

To the Turkish government:

Government Agency for Internally Displaced Persons

Promptly establish the proposed government agency for IDPs. This body should:

- publish a clear statement of government policy vis-à-vis IDPs;
- prepare a timetable for the return process;
- clarify government commitments to provide infrastructure to returnee communities, including electricity, water, sanitation, telephone connection, road access and access to health care and education;
- ensure that adequate resources are available to ensure that all returning families have sufficient building materials to establish warm, and dry accommodation; and,
- publish detailed budget provisions to cover payments under the Compensation Law, infrastructure reconstruction, income support for returning villagers, and support for the integration of IDPs who choose to remain in the cities.

Return to Village and Rehabilitation Project

Begin immediate reform of the Return to Village and Rehabilitation Project. This reform need not await the findings of the Hacettepe University Institute of Population Studies, but may benefit from the data emerging during the course of the study.

Village Guard Corps

Develop a comprehensive plan and timetable for disarming and demobilizing the village guards corps.

UNDP project

Approve the UNDP project for the support of IDPs, and ensure its swift implementation.

Compensation Law

Enhance the independence of Compensation Law assessment commissions, and ensure their work is timely, fair, and consistent.

In order to ensure that those who have relevant information are willing to come forward, Commissions should undertake not to disclose the identity of witnesses or the content of their evidence to other government agencies where witnesses have asked for these details to be withheld, and should make arrangements to safeguard anonymity in commission hearings where witnesses request this.

Commissions should also undertake to investigate thoroughly any reports of intimidation of, or reprisals against, witnesses or proposed witnesses, and refer evidence of any abuses to the judicial authorities.

Create an independent appeals body to review decisions by Compensation Law assessment commissions.

Ensure that sufficient funds are provided to meet payments under the Compensation Law.

Conduct a review of the operation of the law in mid-2005 after provincial assessment commissions have processed an initial group of applications.

Persons who remain displaced

Ensure that those villagers who cannot return due to the continuing risks posed by the armed activities of Kongra Gel, or other illegal armed organizations, receive support, access to medical care and compensation, in accordance with the U.N. Guiding Principles on Internal Displacement

To the European Union and its Member States:

Task the European Commission Delegation to Ankara with monitoring the new government agency for IDPs, to ensure that its work is in conformity with the recommendations of the The United Nations Special Representative of the Secretary General for Internally Displaced Persons (SRSG) on internally displaced persons and the U.N. Guiding Principles on Internal Displacement. The delegation should provide an evaluation of reform to the Return to Village and Rehabilitation Project in mid-2005 for inclusion in the next regular report on Turkey.

Task the European Commission Delegation to Ankara with monitoring the operation and working methods of Compensation Law assessment commissions.

The delegation should provide an evaluation on the work of the assessment commissions in mid-2005 for inclusion in the next regular report on Turkey.

Ensure that the revised Accession Partnership planned for mid-2005 continues

E.U. scrutiny and support for the return and integration of IDPs.

Urge the Turkish government to ensure that the work of the Compensation Law assessment commissions is timely, fair, and consistent.

Consider funding directly projects for return of IDPs and support of the integration of IDPs in cities.

To the United Nations Country Team in Turkey:

Monitor the new government agency for IDPs to ensure that its work is in conformity with the recommendations of the SRSG on internally displaced persons and the UN Guiding Principles, and provide an evaluation in mid-2005 on reform of the Return to Village and Rehabilitation Project to donor governments and the Turkish authorities.”

See also Human Rights Watch’s recommendations in “Displaced and Disregarded, Turkey’s Failing Village Return Program”, 30 October 2002 [[Internet](#)]

UN Committee against Torture requests further information on the internally displaced (2003)**UN Committee Against Torture, 2 May 2003:**

“Serving as Rapporteur on the report of Turkey was Committee Expert FERNANDO MARIÑO-MENENDEZ, who remarked among other things that it had been 13 years since consideration of Turkey’s initial report, and obviously the Turkish State had undergone major changes, including through its participation in the Council of Europe and through the activities and rulings of the European Court of Human Rights. Recent changes had been so rapid, especially after the lifting of the state of emergency, that it was difficult to discern the current situation in Turkey. It was praiseworthy that so many reforms had been carried out by the Government.

[...]

He also queried the Government delegation about standards for the detention of children -- if they were provided with legal counsel from the moment of detention, and if they were protected from maltreatment, including from other children; about minorities and how they were treated, including the Kurdish population, as there had been consistent complaints of a policy of the demolition of dwellings and the forced displacement of Kurdish populations in some locations; about reports of sexual violence against women in custody; about allegations that impunity for acts of torture or maltreatment was a problem, in part because of slow functioning of the judicial system when

State officials had been charged with such offenses; about reports that complaints of ill-treatment were often ignored; and if examples could be cited where prosecutors or judges had been dismissed because of corruption, as there were consistent complaints of judicial corruption.”

The Committee recommends that the State party: Provide in the next periodic report information on the implementation of the ‘Return to Village Programme’ regarding internally displaced persons [...] The State party is invited to submit its next periodic report, which will be considered as the third, by 31 August 2005.”(UNOHCHR/CAT 27 May 2003)

See also the 2nd Periodic Report submitted by Turkey to the Committee, “[Second periodic reports of States parties due in 1993: Turkey](#)” 22 July 2002, CAT/C/20/Add.8 (State Party Report)

For more information, see [the website of the Committee Against Torture](#)

UN Representative on IDPs conclusions and recommendations (2002)

UN Representative on IDPs, 27 November 2002, paras. 33-45:

“On the basis of discussions with government ministers and other officials, the Representative is firmly of the view that an opportunity now exists for the international community, national NGOs and civil society to work with the Government of Turkey in the challenging task of addressing the needs of those still displaced and facilitating the voluntary return, resettlement and reintegration of the displaced population. An open and constructive partnership with all concerned would serve to facilitate the timely and effective implementation of the Government’s return and resettlement policy, while at the same time alleviating the concerns expressed by various sources and improving the perception of the problem and the official response to it, both within and outside the country. With these considerations in mind, the Representative makes the following recommendations.

Clarification and dissemination of government policy on internal displacement: In order to reconcile the disparity between the prevailing negative perceptions of government policy and the positive attitude which the Representative witnessed during his mission, there is an urgent need for the Government to clarify its policy on internal displacement, including return, resettlement and reintegration, to make that policy widely known, to create focal points of responsibility for the displaced at various levels of the government structures, and to facilitate coordination and cooperation among government institutions and with NGOs, civil society and the international community.

Addressing the current conditions of the displaced: While the improved possibilities for return must be welcomed, it should be recognized that the return of the displaced to their original homes and lands may be a lengthy process and that there is a need for the Government, in the meantime, to enhance its efforts to address their current conditions, which are reported to be poor, in cooperation with NGOs and United Nations agencies. It should be acknowledged that many of the social and economic problems affecting the displaced also confront the host communities and that measures to address these are ongoing, including within the context of the South Eastern Anatolia Project (GAP) and in cooperation with local NGOs and United Nations agencies. However, attention should be paid to addressing those problems that are specific to the displaced, such as access to adequate housing, health care and psychosocial care for women and children.

Collection of data on the nature and scale of the problem: In order to gain a more accurate picture of the immediate needs of the displaced vis-à-vis the larger population, and in view of the Government's current efforts to facilitate return and resettlement, there is a need for more comprehensive and reliable data on the number of persons displaced as a result of the actions of both the Kurdistan Workers Party (PKK) and the security forces, on their current whereabouts, conditions and specific needs, and on their intentions with respect to return or resettlement. It is recommended that the Government, in cooperation with local NGOs and civil society organizations which are in daily contact with displaced communities in the south-east and throughout the country, undertake a comprehensive survey of the displaced population to better inform ongoing efforts to meet their needs and to facilitate return and resettlement.

Clarity and consultation on the return issue: In view of the various return initiatives and the apparent lack of clarity about how these initiatives relate to one another, at which segments of the displaced population they are aimed and the concerns to which these issues give rise, the Government is strongly encouraged to facilitate broad consultation with the displaced and the NGOs and civil society organizations working with them. Assuming that the Village Return project remains the Government's principal vehicle for facilitating large-scale return and resettlement in the south-east, the Government should consider producing a document that clearly outlines the objectives, scope and resource implications of the project. Furthermore, the GAP administration should make available, if it has not already done so, the results of the feasibility study undertaken by the Turkish Social Sciences Association and facilitate an open discussion with the displaced and NGOs on the findings of this study and the steps which should be taken to implement them.

Cooperation with international agencies: In its efforts to meet the current needs of the displaced and to facilitate their return and resettlement, it is strongly recommended that the Government examine areas of possible cooperation with the international community. So far, the international community has not contributed to the Government's return efforts, and the Government has not requested any such international assistance. However, the task ahead of the Government is a formidable one for which assistance from international agencies would be a significant asset. The Government might consider convening a meeting with international agencies, including the World Bank, and representatives of the potential partners to explore ways in which the international community could assist the Government in responding to the needs of the displaced.

Enhanced role for United Nations agencies: In connection with the foregoing, it is recommended that United Nations agencies in the country review their activities with a view to identifying ways in which they might enhance their role in supporting the Government in its efforts to assist the displaced. The Representative also recommends that the United Nations Development Assistance Group expressly request the Resident Coordinator to develop, in cooperation with the United Nations Country Team, a strategy to assist the Government, in particular with regard to its efforts to return and resettle the displaced. In addition, and with a view to facilitating cooperation between the Government and United Nations agencies, the Resident Coordinator and Country Team are encouraged to consider the establishment of a thematic group on internally displaced persons to bring together the relevant United Nations and government actors and provide a forum for regular dialogue on this issue.

Ensuring non-discrimination in return: The Government should ensure a non-discriminatory approach to return by investigating and preventing situations in which former village guards are allegedly given preference in the return process over those persons perceived as linked to PKK. In order to avoid such problems, or the perception that such practices are taking place, it is recommended that local authorities review the need for the displaced to indicate the specific reason for their displacement when applying to return or, alternatively, present a single option which clearly applies to displacement as a result of both terrorist activities and evacuation by the security forces. The authorities should also investigate allegations concerning the use of forms

bearing a non-litigation clause. In this connection, the Representative would appreciate receiving information from the Government on the outcome of the administrative inspection of the judicial system in Diyarbakir which provided a context in which, according to officials in the Ministry for Foreign Affairs, this issue might be addressed.

Clarifying the role of the security forces in the return process: The Government should ensure that the role of the security forces, or *jandarma*, in the return process is primarily one of consultation on security matters, as the Government told the Representative was the case. Displaced persons who have been granted permission by the authorities to return to their villages - the decision being based on the advice of the *jandarma* - should be allowed to do so without unjustified or unlawful interference by the *jandarma*.

Disarmament and abolition of the village guards system: The Government should take steps to abolish the village guard system and find alternative employment opportunities for existing guards. Until such time as the system is abolished, the process of disarming village guards should be expedited.

Mine clearance: Given the Government's commitment to accede to the Convention on the Prohibition of the Use, Stockpiling, Production and Transfer of Anti-personnel Mines and on Their Destruction and its expertise and role in demining activities overseas, and in view of the serious obstacle which landmines pose to the safe return of displaced persons, the Government is strongly urged to undertake mine clearance activities in the relevant areas of the south-east to which displaced persons are returning, so as to facilitate that process.

Compensation: The Representative welcomes the steps that are being taken within the Government to develop legislation providing compensation to those affected by the violence in the south-east, including those who were evacuated from their homes by the security forces. While aware of the fiscal pressures under which the Government is currently operating, the Representative encourages the early submission of this legislation to Parliament and in the meantime urges the Government to begin considering the modalities of establishing a system for the efficient handling of claims that will arise under the proposed legislation.

Finally, it should be reiterated that the mission of the Secretary-General's Representative on Internally Displaced Persons provided him with the opportunity for a constructive dialogue with the Government, which, contrary to the general view that had prevailed internationally about its denial of the problem, was remarkably open and receptive to a candid discussion of the situation and expressed interest in exploring positive solutions in cooperation with the international community. A number of factors may account for the perception that had prevailed before the mission that the Government was reluctant to address the issue of internal displacement, whereas the Representative found the climate to be positive. Among these factors, perhaps the most significant was that the violence generated by PKK and the Government's anti-insurgency campaign in the south-east had virtually come to an end and that the situation had gradually returned to normal, which allowed significant numbers of displaced persons to return. Whatever the explanation, the Representative is grateful not only for the invitation extended to him by the Government, but also for all that was done to facilitate the success of the mission. What is important now is for the Government and the international community to provide protection and assistance to those still displaced and to facilitate the voluntary return of the displaced, in safety and with dignity, or to provide opportunities for alternative resettlement to those not wanting to return, and to assist both the returnees and the resettled to integrate into their communities."

UN Committee on the Rights of the Child recommendations regarding internally displaced children (2001)

Committee on the Rights of the Child, 9 July 2001:

"The Committee recommends that the State party continue to develop a system of data collection and indicators consistent with the Convention and provide additional support to the Child Information Network (this system should cover internally displaced children)

[...] The Committee recommends that the State party take appropriate measures to prevent and combat discrimination. It also recommends the collection of appropriate disaggregated data to enable monitoring of discrimination against all children, in particular those belonging to vulnerable groups (such as internally displaced children), with a view to developing comprehensive strategies aimed at ending all forms of discrimination.

In line with the Guiding Principles on Internal Displacement, the Committee recommends that the State party ensure that internally displaced children and their families have access to appropriate health and education services and adequate housing. Further, it invites the State party to collect data and statistics in order to know how many children are displaced and what their needs are, with a view to developing adequate policies and programmes."

USCR recommendations to the OSCE (1999)

USCR 1999, p. 38:

"The High Commissioner on National Minorities (HCNM) should reassess the Kurdish situation in Turkey and determine whether engagement on the Kurdish question fits within the HCNM mandate. The HCNM should take into account the PKK's formal renunciation of terrorism and whether the restriction in the HCNM's mandate against considering the cases of minorities in 'situations involving organized acts of terrorism' still applies to the situation in Turkey.

The OSCE should revisit the HCNM's mandate generically to ensure that the existence of relatively small terrorist groups does not preclude the HCNM from becoming engaged on behalf of an entire minority group, whose members may not identify or support the terrorist group in question.

The Council of Ministers should use the OSCE's human dimension mechanism to initiate good offices missions and dialogue with the Turkish government relating to internal displacement in Turkey. If consensus cannot be reached with the Turkish government, the OSCE should use its 'consensus-minus-one' authority to authorize investigation of Turkish compliance with OSCE commitments without Turkey's consent.

The Office for Democratic Institutions and Human Rights (ODIHR) should work with Turkey for the creation of an ombudsman on human rights for Turkey.

The OSCE ought to consider appointing a contact point within the ODIHR to consider Kurdish issues (comparable to the contact point established with regard to Roma and Sinti issues)."

OSCE, 2004:

"The mandate contains a number of provisions restricting the High Commissioner's activities.

Explicitly excluded from the High Commissioner's mandate are individual cases concerning persons belonging to national minorities. With regard to the High Commissioner's activities in general, and to his information-gathering and fact-finding activities in particular, his mandate does not permit him either to consider national minority issues in situations involving organized acts of

terrorism or to communicate with or acknowledge communications from any person or organization that practices or publicly condones terrorism or violence.”

See also "[Turkey's Foreign Minister Blocks OSCE Visit](#)", in Info-Turk, October 2000
The OSCE website for more information on the [High Commissioner for National Minorities](#)

Policy and Recommendations from european actors

Revised EU Accession Partnership for Turkey names priorities to be addressed (2006)

European Parliament, 10 March 2006, pp. 4-5:

“Based on the assessment by the European Commission in its Progress Report of 9 November 2005 and a relevant Commission proposal for a revised Accession Partnership, the Council, on the basis of the political agreement reached on 12 December 2005, adopted on 17 January 2006 a Decision on the principles, priorities and conditions contained in the revised accession partnership with Turkey (15671/05) [...]2.

The revised Accession Partnership is an important document to focus Turkey's preparations for accession and to adapt priorities to the evolving needs. The revised Accession Partnership includes a set of priorities which relate to Turkey's capacity to meet the criteria defined by the Copenhagen European Council of 1993 and the requirements of the negotiating framework adopted by the Council on 3 October 2005.

This third Accession Partnership (after 2001 and 2003) is based on the provisions of Council Regulation (EC) No 390/2001 which provides that the Council is to decide, by a qualified majority and following a proposal from the Commission, on the principles, priorities, intermediate objectives and conditions contained in the Accession Partnership, as it will be submitted to Turkey, as well as on subsequent significant adjustments applicable to it.

It lists short and medium-term priorities for the country's preparations for further integration with the European Union. The country is expected to respond to the Accession Partnership by preparing a plan, including a timetable and specific measures to address the Accession Partnership's priorities. The progress in implementing the priorities will be monitored through the framework of the mechanisms established under the Association Agreement (i.e. including for example the EU-Turkey Joint Parliamentary Committee) and through the Commission's Progress Reports.

The priorities listed in the Accession Partnership have been explicitly selected on the basis that it is realistic to expect that the country can complete them or take them substantially forward over the next few years. A distinction is made between short-term priorities, which are expected to be accomplished within one to two years, and medium-term priorities, which are expected to be accomplished within three to four years. The priorities concern both legislation and the implementation thereof. The revised Accession Partnership indicates the priority areas for Turkey's membership preparations.

Priorities in the area of human rights are regarded in any event as short term priorities.

Turkey will, in the end, nevertheless have to address all issues identified in the Progress Report.”

pp. 7-8:

“Minority Rights, Cultural Rights and the Protection of Minorities

- Ensure cultural diversity and promote respect for and protection of minorities in accordance with the European Convention on Human Rights and the principles laid down in the Council of Europe's Framework Convention for the Protection of National Minorities and in line with best practice in Member States.
- Guarantee legal protection of minorities, in particular as regards the enjoyment of property rights in line with Protocol No 1 to the European Convention on Human Rights.
- Ensure effective access to radio/TV broadcasting in languages other than Turkish. Remove outstanding obstacles, particularly with regard to local and regional private broadcasters.
- Adopt appropriate measures to support the teaching of languages other than Turkish.

Situation in the East and Southeast

- Abolish the village guard system in the Southeast. Clear the area from landmines.
- Develop a comprehensive approach to reducing regional disparities, and in particular to improve the situation in Southeast Turkey, with a view to enhancing economic, social and cultural opportunities for all citizens.
- Pursue measures to facilitate the return of internally displaced persons to their original settlements in line with the recommendations of the UN Secretary General's Special Representative for Displaced Persons.
- Ensure fair and speedy compensation to those that have suffered loss and damage as a result of the security situation in the Southeast."

Situation of IDPs an issue of concern, EC indicates (2005 and 2006 Progress Reports)

EC, 8 November 2006, p.23:

"There has been no further progress on the establishment of a new governmental body responsible for implementing the "Return to Village and Rehabilitation Programme and to developing policy on IDP return. A study on IDPs carried out by the Hacettepe University should provide a thorough analysis and policy guidance, however its publication has been delayed."

No progress has been made in addressing the problem of village guards[...]. No action was taken to phase them out. A return to normality in the Southeast can only be achieved by opening a dialogue with local counterparts. A comprehensive strategy should be pursued, to achieve the socio-economic development of the region and the establishment of conditions for the Kurdish population to enjoy full rights and freedoms. Issues that need to be addressed include the return of internally displaced persons, compensation for losses incurred by victims of terrorism, landmines as well as the issue of village guards."

EU, 9 November 2005:

"There has been very little progress in dealing with the situation of *internally displaced persons*, and in particular their return to villages in the Southeast. Turkey is encouraged to intensify its efforts to promote safe return, including through the removal of obstacles such as inadequate infrastructure, landmines and village guards."

Multi-faceted policies required to reverse the process of IDPs' social exclusion (2006)

European Commission, Deniz Yüksek, 2 November 2006, pp. 53-55:

"To reverse the processes of IDPs' social exclusion requires multi-faceted policies. First of all, the restitution of their violated rights has to be ensured. Second, there should be specific policies targeting IDPs in order to facilitate their return (if they want to do so) or to improve their lives in urban centres. However, in practice it is unlikely that such policies would be able to reach all IDPs, not only because many families may be outside the scope of the definition of internal displacement used in official documents (the compensation law, the RVRP, etc.), but also

because gender and generational differences may benefit older and male members of extended families at the expense of daughters and younger sons. Third, we also need broadbased economic and social policies in the eastern and south-eastern regions that would reach greater numbers of people.

Legal Measures

Law No. 5233 should be implemented fairly and in a way that would ensure the payment of damages to the largest possible number of eligible IDPs. Although the amount of compensations in individual cases may not provide full retribution for material damages, effective implementation of the law would restore a degree of trust among IDPs towards the state.

The law should be modified so as to give compensation for “pain and suffering” (maneви tazminat) in addition to material damages. This would not only help facilitate a rapprochement between the state and its citizens in the region, but it would also provide some level of retribution to landless IDPs who were evicted from their homes.

Return and Resettlement

Returning to villages or other habitual places of residence should be recognized as a right. Returning to villages should be free and voluntary.

The RVRP should be effectively implemented. Applying for aid through the RVRP should be voluntary and there should be no discrimination at the application procedure.

Infrastructural investments should be undertaken in rural regions to make evacuated villages habitable again. This would include the building of roads and supplying piped water and electricity.

Schools and healthcare clinics should be reopened in rural areas where people are returning to their homes and should be provided with personnel.

Economic Policies

Given that many people are likely to prefer to remain in the urban centres where they have been living for the past decade, policies should be adopted with a view to improving their living conditions. In view of this, cheap loans for small business start-ups and home ownership may be provided to IDPs.

Employment creation in urban centres of the south-eastern and eastern regions: This would require incentives for investments in agricultural industries as well as the commercial, service and industrial sectors. It should also entail cheap loans for small-scale businesses in the region.

Agriculture and animal husbandry in the rural areas should be revitalized. This may require preferential farming credits as well as providing returning families with seeds, animals and agricultural supplies.

Social Policies

Education: Measures have to be taken in order to ensure that all school age children are enrolled in school and that they stay in school. This would also require measures to combat the exploitation of child labour.

Adult education and job training: Free courses should be made more available and accessible for adult IDPs who never went to school. Courses geared towards skill acquisition for income-generating activities should also be made more widespread. Such adult education and training services should especially target women.

Health: The Green Card should be made available to a maximum number of IDP families regardless of whether they own rural property, which, in any case, they have been unable to reach since their eviction from their villages. Healthcare clinics and services in the south-eastern region should be made more widely available.”

European Commission against Racism and Intolerance urges government to address plight of displaced (2005)

ECRI, 15 February 2005:

"ECRI strongly recommends that the Turkish authorities take action to address the plight of the Kurds who have been displaced by armed conflict in the South-East of the country. It recommends in particular that the authorities find ways of helping those living in severe economic and social hardship.

ECRI recommends that the authorities continue and significantly reinforce the voluntary return programmes for displaced persons. In this respect, ECRI strongly encourages the Turkish authorities to seek international assistance and to co-operate fully with the NGOs. It is important to swiftly remove any administrative or other barriers to return. ECRI urges the authorities to rapidly resolve the problems arising from the continued presence of armed guards in the South-East. It emphasises the need for displaced persons to be able to return home, receive compensation and/or recover their property as quickly as possible."

COE Committee of Ministers recommendations regarding actions of security forces (2005)

Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, p. 46:

"On 9 June 1999, the Council of Europe 41-member ministerial committee made an unprecedented criticism of a member state when it criticised Turkey for 'repeated and serious' human rights violations which security forces have committed against Kurds. In the interim resolution (Interim Resolution DH (99) 434) the ministerial committee refers to the European Court of Human Rights condemning Turkey in the previous two years in more than a dozen cases related to the security forces. The committee stated that 'no significant improvement' was evident in the past two years. It called upon the Turkish authorities to take the necessary measures to halt torture, destruction of property, illegal killings and disappearances."

The Committee of Ministers adopted related resolutions in 2002 and 2005.

COE, 7 June 2005:

"The Committee of Ministers of the Council of Europe today adopted a new Interim Resolution regarding progress achieved and outstanding issues in Turkey's compliance with some 74 judgments of the European Court of Human Rights delivered between 1996 and 2004. These judgments relate to numerous breaches of the Convention by the Turkish security forces due notably to homicides, torture and ill-treatment, disappearances and destruction of property. All these cases also highlighted the lack of effective domestic remedies against the State officials responsible for these abuses.

Whilst noting that most of these violations took place against the background of the fight against terrorism in the first half of the 1990s, the Committee recalls that each Contracting State, in combating terrorism, must act in full respect of its obligations under the Convention, as set out in the Court's judgments, and developed in the Council of Europe Guidelines on human rights and the fight against terrorism.

The Committee expresses satisfaction at the results of the numerous reforms adopted in response to the aforementioned Court's judgments and the Committee's two previous Interim Resolutions of 1999 and 2002, which highlighted the need for comprehensive general measures to prevent new similar violations. The Committee welcomes the authorities' 'zero tolerance' policy against torture and ill-treatment, as evidenced in particular by the introduction of additional procedural safeguards and of deterrent minimum prison sentences for torture. The Committee

also welcomes the recent constitutional reform reinforcing the status of the Convention and of the Court's judgments in Turkish law.

The Committee stresses the need for strict implementation of the new legislation and encourages Turkey to adopt further measures to that effect and, in particular: to consolidate their efforts to mainstream human rights into initial and in-service training of the security forces, judges and prosecutors; to ensure that the new constitutional principle of the Convention's supremacy in Turkish law be translated into daily practice of all authorities; to ensure the prompt and efficient implementation of the new Law on Compensation of the Losses Resulting from Terrorism and to reconsider its present limited time-frame; to remove any ambiguity regarding the fact that administrative authorisation is no longer required to prosecute any serious crimes allegedly committed by members of security forces."

COE, 7 June 2005:

On the issue of adequate compensation for damage caused, the Committee notes:

Noting the continuing practice of the administrative courts of ensuring reparation by the state for damage caused as a consequence of actions of the security forces;

Noting with interest that, further to the undertaking in Interim Resolution ResDH(2002)98 (see §§ 16-17), a new Law on Compensation of Losses Resulting from Terrorism and from Measures Taken against Terrorism and the relevant implementing regulations have been adopted.

Noting also that this legislation provides an alternative avenue for obtaining directly from the administration, compensation for pecuniary damages caused by natural or legal persons as a result of terrorist activities and operations carried out in combating terrorism during the period 1987 to 2004, and that judicial review of decisions taken in this respect is available;

Stressing that the authorities must now ensure that this legislation is implemented in an effective and impartial manner so as to provide prompt and adequate compensation to all persons having suffered losses as a result of the fight against terrorism during the period in question;

[...]

Conclusions of the Committee of Ministers

Welcomes the adoption of a number of important reforms as well as the ongoing efforts to ensure full compliance with the Convention in these cases;

Expresses satisfaction with the results obtained so far, while encouraging the authorities:

- to ensure the prompt and efficient implementation of the new "Law on Compensation of the Losses Resulting from Terrorism and from the Measures Taken against Terrorism", to reconsider its limited

time-frame so that all claims can be processed in an impartial manner, and to ensure that individuals do not have to bear a disproportionate burden as a result of lawful actions of the security forces;

- to take the necessary measures to remove any ambiguity regarding the fact that administrative authorisation is no longer required to prosecute any serious crimes allegedly committed by members of security forces"

Click to see full text of the Interim Resolution [[Internet](#)]

See also the full texts of the 1999 [[Internet](#)] and 2002 [[Internet](#)] resolutions

Conclusions and recommendations of the European Commission on Turkey's progress towards accession (October 2004)

EC "Recommendation", 6 October 2004, p.13:

"The state of emergency, which had been in force for 15 years in some provinces of the Southeast, was completely lifted in 2002. Provisions used to restrict pre-trial detention rights under emergency rule were amended. Turkey began a dialogue with a number of international organisations, including the Commission, on the question of internally displaced persons. A Law on Compensation of Losses Resulting from Terrorist Acts was approved. Although work is underway to define a more systematic approach towards the region, no integrated strategy with a view to reducing regional disparities and addressing the economic, social and cultural needs of the local population has yet been adopted. The return of internally displaced persons in the Southeast has been limited and hampered by the village guard system and by a lack of material support. Future measures should address specifically the recommendations of the UN Secretary General's Special Representative for Displaced Persons.

"In conclusion, Turkey has achieved significant legislative progress in many areas, through further reform packages, constitutional changes and the adoption of a new Penal Code, and in particular in those identified as priorities in last year's report and in the Accession Partnership. Important progress was made in the implementation of political reforms, but these need to be further consolidated and broadened. This applies to the strengthening and full implementation of provisions related to the respect of fundamental freedoms and protection of human rights, including women's rights, trade union rights, minority rights and problems faced by non-Muslim religious communities. Civilian control over the military needs to be asserted, and law enforcement and judicial practice aligned with the spirit of the reforms. The fight against corruption should be pursued. The policy of zero tolerance towards torture should be reinforced through determined efforts at all levels of the Turkish state. The normalisation of the situation in the Southeast should be pursued through the return of displaced persons, a strategy for socio-economic development and the establishment of conditions for the full enjoyment of rights and freedoms by the Kurds."

COE Parliamentary Assembly Monitoring Committee recommendations and resolutions (2004)

Resolution 1380, 2004:

"The Assembly therefore invites Turkey, as part of its authorities' current reform process, to:
viii. reform local and regional government and introduce decentralisation in accordance with the principles of the European Charter of Local Self-Government (ETS No. 122); as part of the reform, to give the relevant authorities the necessary institutional and human resources and arrange redistribution of resources to compensate for the underdevelopment of certain regions, particularly south-east Turkey, and move from a dialogue to a formal partnership with United Nations agencies to work for a return, in safety and dignity of those internally displaced by the conflict in the 1990s;"

Recommendation 1563, 2002:

"The Parliamentary Assembly therefore recommends that the Committee of Ministers:

- i. urge Turkey to take the following steps:
 - a. lift the state of emergency in the four remaining provinces as quickly as possible;
 - b. refrain from any further evacuations of villages;
 - c. ensure civilian control over military activity in the region and make security forces more accountable for their actions;
 - d. step up investigations into alleged human rights violations in the region;

- e. properly implement the rulings of the European Court of Human Rights;
- f. abolish the village guard system;
- g. continue its efforts to promote both the economic and social development and the reconstruction of the south-eastern provinces;
- h. involve representatives of the displaced population in the preparation of return programmes and projects;
- i. speed up the process of returns;
- j. allow for individual returns without prior permission;
- k. not to precondition assistance to displaced persons with the obligation to enter the village guard system or the declaration on the cause of their flight;
- l. present reconstruction projects to be financed by the Council of Europe's Development Bank in the framework of return programmes;
- m. adopt measures to integrate those displaced persons who wish to settle in other parts of Turkey and provide them with compensation for damaged property;
- n. grant full access to the region for international humanitarian organisations, and provide them with support from local authorities;
- ii. urge the member states to step up financial assistance with a view to fostering economic development in the south-eastern part of Turkey;
- iii. invite the Council of Europe Development Bank to consider positively the projects related to the returns of displaced persons in the south-eastern regions of Turkey."

Recommendation 1377, 1998:

"The Parliamentary Assembly therefore recommends that the Committee of Ministers:

- i. invite Turkey to take steps to dialogue and reconciliation in the provinces of south-eastern Turkey inhabited mainly by Kurdish people through appropriate action and a programme of confidence-building measures including full protection of the civil population and care in the deployment of armed forces;
- ii. instruct its appropriate committees to intensify their efforts to remedy the concrete problems connected with migration movements of Kurds;
- iii. draw up a series of measures designed to combat the conditions which foster clandestine migration in all its forms, with provision for penalties for traffickers and employers who exploit illegal immigrants, in consultation with the Budapest Group;
- iv. invite Turkey:
 - a. to find a non-military solution for the existing problems in the south-eastern provinces;
 - b. to protect the civilian population of the regions concerned against any kind of armed violence;
 - c. to expedite and intensify its efforts to promote the economic and social development and reconstruction of the south-eastern provinces;
 - d. to sign and ratify the Framework Convention for the Protection of National Minorities and the European Charter for Regional and Minority Languages and apply its provisions to the Kurds;
 - e. to bring to light the fate of the missing persons;
 - f. to adopt policies and take adequate measures to enable Turkish citizens of Kurdish origin to exercise their cultural and political rights;
 - g. to restore the rule of law in the south-east of the country, and in particular to lift emergency rule in the south-eastern provinces, to ensure effective protection of villages, to exercise civilian control over military activity in the region, including the keeping of records and observance of human rights, and to prosecute anyone who violates human rights;
 - h. to abolish the village guard system;
 - i. to undertake additional effective measures aimed at the reconstruction and revival of the economy in the south-eastern provinces;
 - j. to take further steps to reconstruct schools and hospitals in the area;
 - k. to implement, in co-operation with international humanitarian organisations, a major programme with a view to encouraging those members of the Kurdish population who so desire to return to their homes;

- l. to ensure particular protection for returning women, children and elderly people;
- m. to present reconstruction projects to be financed by the Council of Europe's Social Development Fund, in the framework of return programmes;
- n. to adopt measures to integrate those displaced persons of Kurdish origin who wish to settle in other parts of Turkey, and provide them, as well as returnees, with compensation for damaged property;
- o. to grant access to the region for international humanitarian organisations, and provide them with support from local authorities;
- p. to continue to facilitate the transfer of supplies for humanitarian purposes to Iraq;
- q. to lift the geographical limitation to the 1951 United Nation Convention Relating to the Status of Refugees and its 1967 protocol, and in particular abstain from deportation of asylum-seekers without prior consultation with the Office of the United Nations High Commissioner for Refugees (UNHCR), and abolish the five day limit for making asylum applications;
- r. to refrain from military incursions into northern Iraq"

Links to texts:

Recommendations

Recommendation 1563 (2002) of the Parliamentary Assembly on Humanitarian situation of the displaced Kurdish population in Turkey [\[Internet\]](#)

Recommendation 1377 (1998), Humanitarian situation of the Kurdish refugees and displaced persons in south-eastern Turkey and northern Iraq [\[Internet\]](#)

Resolutions

Resolution 1380 (2004), Honouring of obligations and commitments by Turkey [\[Internet\]](#)

Resolution 1256 (2001), Honouring of obligations and commitments by Turkey [\[Internet\]](#)

Reports

Turkey: Explanatory Memorandum by the co-rapporteurs, Parliamentary Assembly Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe (Monitoring Committee), Co-rapporteurs Mrs Delvaux-Stehres and Mr. Vand den Brande, March 2004 [\[Internet\]](#)

Report of the Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe (Monitoring Committee): Honouring of obligations and commitments by Turkey, Doc. 9120, 13 June 2001 [\[Internet\]](#)

Information report of the Committee on Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe: Honouring of obligations and commitments by Turkey, Doc. 8300, 15 January 1999 [\[Internet\]](#)

Report of the Committee on Migration, Refugees and Demography: Humanitarian situation of the Kurdish refugees and displaced persons in South-east Turkey and North Iraq, Doc. 8131, 3 June 1998 [\[Internet\]](#)

Background

COE, 3 March 2004:

In 1996, the Parliamentary Assembly adopted Recommendation 1298 [\[Internet\]](#) in which it instructed its committees concerned to open the monitoring procedure under Order N° 508 (1995) [\[Internet\]](#). In 1998, the Assembly also adopted Order N° 545 [\[Internet\]](#) on the humanitarian situation of the Kurdish refugees and displaced persons in south-east Turkey and northern Iraq, in which it instructed its Monitoring Committee to study the issue of the Kurdish minority in the framework of the monitoring procedure concerning Turkey. The monitoring process of the Committee of the Parliamentary Assembly was officially ended in June 2004, where the COE found that Turkey had "clearly demonstrated its commitment and ability to fulfil its statutory obligations as a Council of Europe member state and the monitoring procedure under way since 1996 should therefore be closed...". "But the parliamentarians were also in favour of a 'post-monitoring dialogue' with Turkey on a twelve-point list of outstanding issues, including a major

reform of the 1982 constitution, further recognition of national minorities, continued efforts to combat violence against women, the fight against corruption and amendments to the electoral code.”

EU Regular Report: “serious efforts” needed to address problems of IDPs (2003)

EC, 5 November 2003, Sect. C:

Selected issues raised in the 2003 Regular Report on Turkey’s progress towards accession

“Over the past year the Turkish government has shown great determination in accelerating the pace of reforms, which have brought far-reaching changes to the political and legal system. It has also taken important steps to ensure their effective implementation, in order to allow Turkish citizens to enjoy fundamental freedoms and human rights in line with European standards. Four major packages of political reform have been adopted, introducing changes to different areas of legislation. Some of the reforms carry great political significance as they impinge upon sensitive issues in the Turkish context, such as freedom of expression, freedom of demonstration, cultural rights and civilian control of the military. Many priorities under the political criteria in the revised Accession Partnership have been addressed.

Progress is being made in streamlining the functioning of public administration and government. The government has, in particular, started reforms with a view to promoting a more transparent management of human resources in the public service. This also serves to strengthen the fight against corruption.

[...] More efforts are still needed to enhance the efficiency and the independence of the judiciary. Already, the judicial system has been strengthened with the establishment of a new system of family courts. The competence of military courts to try civilians has been abolished. Positive changes have been made to the system of State Security Courts, in particular the abolition of incommunicado detention. However, the functioning of these courts still needs to be brought fully in line with the European standards in particular with the defence rights and the principle of fair trial.

On the ground, implementation of the reforms is uneven. In some cases, executive and judicial bodies entrusted with the implementation of the political reforms relating to fundamental freedoms adopted by Parliament have narrowed the scope of these reforms by establishing restrictive conditions, hindering the objectives initially pursued. The government has recognised that the reforms are not being put into practice systematically and has set up a Reform Monitoring Group in order to ensure their implementation.

Turkey has ratified the Civil Law Convention on Corruption, so that on 1 January 2004 it will become a member of the Council of Europe’s Group of States against corruption (GRECO). However, in spite of several initiatives, corruption remains at a persistently high level and affects many spheres of public life.

Turkey has ratified major international as well as European Conventions such as the International Covenant on Civil and Political Rights, on Social and Economic Rights as well as Protocol 6 of the European Convention on Human Rights.

It is, however, of great concern that Turkey has not executed many judgements of the ECtHR, by means of ensuring payment of just satisfaction or reversing decisions made in contravention of the ECHR. One example is the *Loizidou* case, as it is now five years since the ECtHR ruled on this matter.

The fight against torture and ill-treatment has been strengthened and the Turkish legal system has come closer to European standards in this respect. The scale of torture has declined but there are still reports about specific cases, which continues to cause concern.

The reform of the prison system has continued and rights of detainees have been improved. In practice, the right to access a lawyer is not always ensured.

The possibility of retrial has been introduced but in practice few cases have been subject to retrial. In the case of Zana and others, retrial has so far largely resulted in a repetition of the previous trial, leading to persistent concerns about the respect for the rights of defence.

The adoption of the reform packages has led to the lifting of several legal restrictions on the exercise of freedom of expression. The enforcement of the revised provisions of the Penal Code has led to many acquittals although cases against persons expressing nonviolent opinion continue to occur. A number of persons imprisoned for non-violent expression of opinion, under provisions that have now been abolished, have been released.

Notable progress has been achieved in the area of freedom of demonstration and peaceful assembly where several restrictions have been lifted. Nevertheless, in some cases of peaceful demonstration, the authorities have made a disproportionate use of force.

As regards freedom of association, some restrictions have been eased, but associations still experience cumbersome procedures. Cases of prosecution against associations and particularly human rights defenders continue to occur.

The law on political parties has been amended to make closure of parties more difficult. However, HADEP has been banned by the Constitutional Court and DEHAP is facing proceedings in view of its closure.

Concerning freedom of religion, the changes introduced by the reform packages have not yet produced the desired effects. Executive bodies continue to adopt a very restrictive interpretation of the relevant provisions, so that religious freedom is subject to serious limitations as compared with European standards. This is particularly the case for the absence of legal personality, education and training of ecclesiastic personnel as well as full enjoyment of property rights of religious communities.

Measures have been taken to lift the ban on radio and TV broadcasting and education in languages other than Turkish. So far, the reforms adopted in these areas have produced little practical effect.

The lifting of the state of emergency in the Southeast has in general eased tensions amongst the population. There has been greater tolerance for cultural events. The programme for the return to villages proceeds at a very slow pace. Serious efforts are needed to address the problems of the internally displaced persons and the socioeconomic development of the region in a comprehensive fashion and of cultural rights in general.

[...] Overall, in the past 12 months Turkey has made further impressive legislative efforts which constitute significant progress towards achieving compliance with the Copenhagen political criteria. Turkey should address the outstanding issues highlighted in this report, with particular attention to the strengthening of the independence and the functioning of the judiciary, the overall framework for the exercise of fundamental freedoms (association, expression and religion), the further alignment of civil-military relations with European practice, the situation in the Southeast and cultural rights. Turkey should ensure full and effective implementation of reforms to ensure that Turkish citizens can enjoy human rights and fundamental freedoms in line with European standards.

Furthermore, Turkey should provide determined support for efforts to achieve a comprehensive settlement of the Cyprus problem.”

See also: The full “[2003 Regular Report on Turkey’s progress towards accession](#)” European Commission, 5 November 2003

The 1998 – 2002 regular reports on Turkey’s progress towards accession are available on the [website of the European Commission](#)

Policy and Recommendations from Turkish civil society

IDMC/TESEV Recommendations on the implementation of the recommendations by the RSG to the UN Representative on IDPs (2006)

“[T]his report makes the following recommendations, thematically organised on the basis of the RSG’s report, with the addition of a new recommendation under the heading of “reconciliation.”

Clarifying and Disseminating the National Policy

The government’s acknowledgment of the internal displacement problem, its expression of political will to address the issue in accordance with the Guiding Principles on Internal Displacement (“Guiding Principles”) and its commitment to develop a strategy based on the Framework Document constitute significant progress. However, they are also belated steps, which follow a period of inaction of more than ten years. The lack of transparency and NGO participation are also grounds for concern. In order to facilitate the meaningful participation of civil society and to raise awareness among the affected IDP communities about government policy, the Framework Document should be immediately and widely distributed. The government should systematically consult NGOs on putting together and implementing a strategy based on the Framework Document. As regards establishing a structure for the implementation of its policy, the government should create a focal point of responsibility within the interior ministry, which would coordinate cooperation with government institutions, civil society organisations and the international community, and set aside a transparent and accountable budget with sufficient funds.

Data Collection

The commissioning of Hacettepe University to conduct a comprehensive study on IDPs is a very significant step towards understanding the causes of internal displacement, and identifying the current conditions and needs of the displaced. The initiation of the survey has raised expectations that the findings would facilitate the development of government policy, international cooperation and possible future NGO projects. However, Hacettepe University has not yet shared the findings of the study, the quantitative component of which was completed in November 2005. The findings of both the qualitative and quantitative components of the Hacettepe Survey should be disclosed completely and without further delay. The authorities and the Hacettepe University should take steps to ensure that the academic freedom of scholars studying internal displacement is respected.

Protection

The “village guard” system poses a risk in terms of the protection of human rights and an obstacle to IDP returns in the region. Both provisional and voluntary village guards should be disarmed and the system should be disbanded. As part of their rehabilitation, village guards should be provided with social security coverage and employment opportunities in peaceful sectors. In order to facilitate peace and security, PKK militants need to be reintegrated into society through complete disarmament. The government and NGOs should cooperate in developing policies about the social reintegration of all parties to the conflict. The landmines issue is of great concern

due to the lack of comprehensive statistics on their locations and numbers. Landmines and unexploded ordinance also pose a significant threat to returning IDPs. The government and the armed forces should cooperate with local NGOs and international institutions to effectively and expeditiously tackle this problem. As a first step, the government needs to ensure that all mined and potentially mined areas are fenced off and marked with clear signs. The government should also launch a centrally-coordinated mine risk education programme in Turkish and Kurdish, in cooperation with civil society, local administrations and international institutions.

Current Conditions of the Displaced

The majority of the IDP population in Turkey has been living in urban centres for nearly ten years. Since there are no programmes specifically addressing the current conditions of the displaced, they have had to face enormous problems such as endemic unemployment, abuse of child labour, lack of access to education and health care services, and almost no psychosocial care for women and children. The government, UNDP and civil society organisations urgently need to cooperate in order to develop projects that would specifically target the problems of urban IDPs. These projects should address children's education, adult literacy and skills training as well as employment creation and preferential loans for small business startups. The numbers of community, women's and children's centres should be increased and they should be given capacity building training to serve the particular needs of the displaced.

Return

Security forces no longer hinder returns on the grounds of lack of safety in most areas where original displacement took place with the notable exception of Hakkâri. However, given that PKK assaults and military operations have increased in the past two years, fear for personal safety as well as perceptions of lack of security continue to prevent many IDPs from considering return to their original homes. The government should take further measures to provide security for returnees. Local NGOs and public authorities in the region should cooperate in building trust between IDPs and the state in order to remove perceptions of lack of safety in places where this is not the case. Other obstacles to return are the paucity of aid under the government's Return to Village and Rehabilitation Project (RVRP), lack of infrastructure and public services in the rural areas from which original displacement took place and resistance against centralised settlements. The government should clarify its implementation of the RVRP in line with the Framework Document, and in consultation with NGOs. Concrete steps should be taken to rebuild the rural economy and public infrastructure so that returns may become sustainable.

Property

The shortcomings in the Compensation Law and the problems in its implementation undermine its significance. The time-scale and scope of the law should be extended so as to cover all IDPs who were forcibly evicted or were obliged to flee due to the armed conflict. The law should be amended to provide non-pecuniary damages in accordance with European Court of Human Rights (ECtHR) case law, in order to compensate the pain and suffering of IDPs whose rights to life, liberty and security, and property have been violated. The government should initiate a public information campaign on the law in Turkish and Kurdish, in collaboration with NGOs and local administrations. The Turkish Bar Association and local bar associations should advise their members on codes of professional conduct and monitor their implementation of the law. The commissions should be allowed to determine all types of damages on a case-by-case basis, taking into account the subjective circumstances of each case. The two-year period for evaluating petitions should be extended to a more realistic timeframe. To ensure unity in implementation, the government should develop a clear position on the law; send the commissions binding implementing guidelines and instruct them not to abide by strict formal evidentiary rules in processing claims; and cooperate with civil society to provide training not just to the governors and their deputies, but to all members of the commissions. As a first step, the government should publicly express its political support for the effective and just implementation of the law. The Commissions should not attribute evidentiary weight to the information provided by the *jandarma*

(security forces). An administrative appeal body should be set up to evaluate the decisions of the commissions within a time limit of two-three months. To ensure their access to courts, IDPs should be exempted from legal fees in administrative courts and be provided with legal aid upon need. The structure of the commissions should be changed in favour of a balanced representation of civil society and the public sector. The commissions should be professionalised, their numbers should be increased, and their working conditions should be improved.

Cooperation with International Partners

Since RSG Deng's visit in 2002, an active cooperation has developed between the government and the UN on the IDP issue, culminating in the signing of an agreement in 2005 between the UNDP and the government to support the development of an IDP programme. There is also a need for more systematic cooperation between the UN and NGOs. The UN and the government should encourage NGOs to participate in the implementation of policies targeting IDPs on the issues of return and reintegration. The European Commission has played a significant role in encouraging Turkey to take steps to address its IDP problem since the Helsinki Summit in 1999 when Turkey became a candidate for EU accession. The Commission should be more proactive in providing consultation and guidance to the government on its evolving IDP policy. The government may involve the EU into the policy implementation process through socioeconomic and other projects related to IDPs' return and reintegration.

Reconciliation

IDPs, NGOs and the government express the need for rebuilding "trust towards the state" and "social peace", goals identified in the Compensation Law. Establishing social rehabilitation in the wake of a traumatic period of conflict and ensuing displacement cannot be limited to issues concerning the payment of reparations, return and reintegration, but should also include reconciliation. Although achieving reconciliation may take a long time, the government should take steps to initiate that process. The state's public acknowledgement of responsibility for village evictions, introducing compensation for pain and suffering, and declaration of a will to identify and prosecute – where possible – those who committed human rights violations during displacement and return may be among such measures. However, it is also important to bear in mind that reconciliation would require the PKK to demonstrate a similar will to assume its responsibility for the human rights violations it has committed. A dialogue should be initiated between the civil society and the government to set up a structure for reconciliation, bearing in mind the examples of truth and reconciliation commissions elsewhere in the world."

For more detailed recommendations, [click for the full report](#)

TOHAV and bar associations recommendations on the compensation law (2006)

The government should implement Law 5233 using the standards established by the ECtHR, and especially the ownership criteria indicated in *Dogan and others v Turkey*.

Necessary administrative and legal measures must be promptly taken to halt the arbitrary practices of the Damage Assessment Commissions established under Law 5233, which cannot be reconciled with the state's serious responsibilities in this matter. Otherwise, Law 5233 will inevitably prove ineffective and insufficient, and the consequence of this will be that large numbers of applicants apply to the European court.

The government must show political will to ensure that the Damage Assessment Commissions operate in a more just, effective and transparent manner that is accessible for victims and their legal counsel.

The requests of victims for compensation should not be perceived as unjustified to secure personal gain. Victims actually have quite realistic expectations in terms of justice and compensation. They should not be subject to excessive demands for proof and documentation.

We therefore support the call made by the Special Representative of the U.N. Secretary General Walter Kälin in his September 7, 2005 report for the Turkish government to establish a compensation mechanism that will allow victims of enforced internal displacement to return to their villages in dignity to make a new life, or, if they do not wish to return to the village, to make a new start in the place in which they are currently living.

Signed

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TESEV Working Group Recommendations (2005)

A. Definition and Statistics

The definition of internal displacement which informs Law no. 5233, the Return to Villages and Rehabilitation Project (RVRP), and other policies needs to be brought into conformity with the United Nation's Guiding Principles on Internal Displacement (GPID).

The figures of internally displaced persons (IDPs) cited in official documents and statements should be clarified and brought into conformity with each other.

A large-scale study is necessary to assess the locations, problems, and needs of IDPs as defined by the GPID.

B. Practices Concerning IDPs

The prime minister and state officials should emphasize the problem's multifarious nature and their will to solve the problem.

IDPs should be guaranteed that they can make an informed and voluntary decision about whether to (1) return to their original place of residence; (2) stay where they presently are; or (3) resettle in another part of the country.

In order to facilitate such a choice, socio-economic measures should be taken in addition to Law no. 5233 and the RVRP.

Social policies should be developed separately for the above-mentioned three groups, particularly keeping in mind the special needs of women and children, who have been the biggest victims of internal displacement.

The state should acknowledge physical and psychological healthcare needs caused by forced migration and should ensure the NGOs' more active involvement in this field.

C. How to Ensure Return to the Habitual Places of Residence

The state needs to acknowledge that people have a *right* to return to their places of residence, and it has to ensure that all IDPs can exercise this right.

Return to places of habitual residence should not only mean return to *villages*.

Aid under the RVRP should be given to all IDPs without conditions and in a way that completely covers their losses.

Economic policies for infrastructure, agriculture, and animal husbandry need to be developed and implemented swiftly in order to ensure return. Policy-makers should take measures to alleviate poverty.

In order to facilitate IDPs' return in peace and safety, steps should be taken for solving the animosities among combatants, village guards and villagers once armed clashes cease.

The village guard system must be abolished.

In order to establish mutual trust between citizens and state, the RVRP's aid should be accessible to all victims, without discriminating between village guards and civilians.

Concerning the return to the villages, the state should collaborate with NGOs and international organizations.

The state should increase its support to improve returnees' access to healthcare.

In case IDPs currently residing outside the country want to return to Turkey, they should be able to receive aid from the RVRP.

D. Urban Problems

The state should acknowledge the existence of IDPs living in cities.

The state needs to develop policies that would create employment opportunities for urban IDPs and which would facilitate their integration into urban social life. In this context, funds should be set aside to meet the educational needs of women and working children.

The state needs to develop special policies to solve the IDPs' physical and psychological health problems.

The state should increase its support to improve urban IDPs' access to healthcare.

Effective and productive communication between the state and IDPs needs to be established.

E. The Solution of the Problems in the Content and Implementation of Law no. 5233 I. Recommendations for Publicizing the Law

The government should stand behind the law and inform the public about its significance and purpose by means of mass communication.

In order to calm the fear and mistrust of citizens hesitant to file petitions, the state should ensure the citizens they feel that the state stands behind them. Any attempt to hinder citizens from filing petitions should be prevented.

The Prime Minister and state officials should emphasize that filing a petition under the law is a basic *right*.

The Prime Minister and state officials should emphasize that the law serves the purpose of reconciliation by compensating for past human rights violations.

In order to inform all victims about the law's content and the petition filing process, a large-scale information campaign should be launched with the contribution of local administrations, NGOs, bar associations, and the government.

In order to ensure that displaced persons outside the country can also benefit from these communication campaigns, these persons should be informed and provided with the necessary conditions to file petitions.

II. Recommendations Concerning the Content of the Law

In order to harmonize the law with the GPID and thus to achieve its inclusion of all victims within its scope, the following changes need to be made:

The term "or suffered due to the armed conflict" needs to be added to Articles I and II of the law.

The scope of the law should be extended to start from 1984.

The petition deadline should be extended by one year.

Compensation for pain and suffering should be provided.

The compensation paid for death, bodily harm, and disability should either be allowed to be determined by commissions in the light of the incident's and the victims' circumstances, or should be increased to a morally appropriate and just amount.

The compensation for damages to immovable property should not be made contingent on return, as this contradicts the GPID's principle of voluntary choice; therefore, in-kind compensation should not be given priority.

The present two-year period for evaluating petitions should be extended to a more realistic timeframe, considering the difficulties in the law's implementation.

III. Recommendations Concerning the Implementation of the Law

In order to ensure consistency in the law's implementation, to break the commissions' resistance, and to show that the government firmly stands behind the law, the following measures should be taken:

An "explanatory note" discussing each and every article of the law should be prepared and sent to all commissions.

The commission members should be widely informed and educated on Law no. 5233, the GPID, and the jurisprudence of the ECtHR.

By way of a circular, the commissions should be instructed to implement the recent amendment in the regulation, which alleviates the victims' heavy burden of proof.

A higher administrative body needs to be established in order to re-evaluate the decisions of inadmissibility made by the commissions; the evaluation process should be limited to a time-period of two to three months.

A special legal arrangement specific to this law should ensure that victims who exercise their right to bring their cases to an administrative court can do so free of legal fees.

In order to speed up the petition evaluation process, the following steps should be taken:

The commissions should be given a professional structure. Accordingly, their members should not take on any responsibilities other than serving on these commissions during their appointment, and should receive a salary in return for their services.

The number of commissions should be increased.

An operational fund should be set aside for each commission.

The commissions should receive adequate technical equipment, personnel, and office space.

Sufficient amount of allowance should be set aside in order to pay the compensations awarded by the commissions.

Advance allowances should be made to the commissions so that they can immediately disburse compensation for concluded petitions.

To ensure the citizens' belief and trust in the due course of law, the following steps need to be taken:

The commissions which are currently dominated by public officials should be restructured to reflect a balance between NGOs and public officials. For this purpose, the following persons should be included in the committees:

village headmen (*muhtar*)

legal experts from human rights NGOs

representatives of NGOs working on migration issues

officials of municipalities affected by migration

Furthermore, the inclusion in the commissions of a lawyer specialized in public law as a representative of the public would serve to alleviate the fears of commission members who do not want to take risks.

There should be no discrimination between village guards and civilians in the process of evaluating petitions.

Commissions should not be able to receive information from the gendarmerie, either directly or indirectly, when procuring documentation and information.

GOC-DER recommendations (2004)

Goc Der, 8 December 2004:

Recomandations to Turkey

Great social turmoils and internal conflicts require a general amnesty. In order to reconstitute social reconciliation and stability in Turkey, it is necessary to declare an amnesty without any discrimination.

Before all, military operations and conflicts have to be brought to an end. This would be a significant contribution to social reconciliation.

The unfortunate system of village guardship should be abolished and the destruction created for many years by that system should be compensated. To solve the question of employment for ex-guards, it can be created new employment areas, like foresting again the now burned and

damaged forest areas, or cleaning of stony areas (such as Karacadag) in order to make these areas convenient for cultivation and agricultural production. Hence, the social adaptation problem of village guards will be solved that way.

The state should clear landmines from villages and surrounding farmland, and give villagers documentary evidence that their village has been cleared of mines and munitions before they return.

The laws which come with 12 September military coup should be changed, and a new civilian Constitution should be prepared in line with EU norms.

Because one should not regard the problem of displacement as separate from Kurdish question in general, the problem of displacement should be recognised as part of Kurdish Question, and constitutional guarantee and protection for rights of Kurds should be considered as contribution to the displacement problem.

As part of facilitating the return of the displaced, the state should ensure that infrastructure for villages and hamlets is restored at least to the standard prior to their destruction and evacuation, at state cost. Where villages are inaccessible for security reasons or because they have been mined, state should pay appropriate levels of compensation, including maintenance for the displaced, and ensure their access to health, education, and employment or other basis for an adequate standard of living. Feasible projects with social, economic, health, educational, and cultural aims should be implemented for the solution of the problems of the displaced.

After a conflict of twenty years, state should pay compensations to the damaged, without any prejudice and discrimination. establish an interim program for practical and financial support of villagers before, during, and after return, without prejudice to subsequent litigation they may open in the courts.

For those who do not want to return from big cities, state should develop projects of social adaptation. First of all, the projects for education, language and culture, and health, psychological consultation and rehabilitation centers, shelter units for women, and employment projects should urgently be implemented.

The social developments we are facing today point out that we are proceeding through a process of social reconciliation. So, a commission for investigation of the facts about the displaced will contribute to that process.

Recommendations to KONGRA-GEL

The people who would make sacrifices for peace and democracy are those who most need them. In the name of fraternity of peoples, and of building up a peace and democracy, a cease-fire period is urgent even if it will be a unilateral one.

We support peace against war, and we regard life to be sacred as against death. We believe that no more destruction has to be made against our ecology. The peace should be declared for exalting again high values of humanity in the first centers of humanity, Anatolia and Mesopotamia.

Recommendations to EU

Solving the problem of forced displacement can not be conceived independent of solving the Kurdish question. In order to solve Kurdish question through peaceful and democratic ways, EU should contribute to the solution by naming the problem properly and by considering the Kurds as a side in the solution of displacement problem.

State budget by itself would be insufficient in financing reconstruction of infrastructure, rebuilding destroyed villages, redevelopment of agriculture and stockbreeding as well as providing employment. So, EU countries should contribute to feasible projects for carrying out of these ends.

EU should support national and international projects which aim at psycho-social adaptation – first of all, solving language problem and then health, nutrition, employment, education, and occupational education-, and which treat returnees and those who choose to remain in city centers as two separate groups.

EU countries should start research about urban problems caused by forcible displacement and about living conditions of displaced people. For such a scientific research, EU countries should ask collaboration of universities, migration agencies, and other relevant NGOs in Turkey.

EU should take into consideration that village evacuations and other displacements are part of the assimilation against Kurdish population rather than 'terrorist action.' So, EU should not use the term 'terrorism' as against Kurdish population.

The new legislation with the EU accession process can not be seen to be in practice for certain laws. We consider necessary that the laws should be observed in practice.

In order for examining how it is put in practice 'the law (5233) on compensation for people who suffered loss or damage as a result of action by terrorist organisations and measures taken by the government to combat it,' EU should constitute a monitoring unit.'

References to the Guiding Principles on Internal Displacement

Known references to the Guiding Principles (as of July 2007)

Reference to the Guiding Principles in the national legislation

'[Integrated Strategy Document](#)' adopted by the Council of Ministers on 17 August 2005 - Measures on the Issue of Internally Displaced Persons and the Return to Village and Rehabilitation Project in Turkey

Availability of the Guiding Principle in local languages

The Guiding Principles have been translated into Turkish

Documents:

[Guiding Principles on Internal Displacement in Turkish/ÜLKE İÇİNDE YERİNDEN OLMA KONUSUNDA YOL GÖSTERİCİ](#)

[Guiding Principles on Internal Displacement with their Annotations in Turkish/](#)

[ÜLKE İÇİNDE YERİNDEN OLMA KONUSUNDA YOL GÖSTERİCİ YÖNLENDİRİCİ NOTLAR](#) (2005)

Training on the Guiding Principles

Workshop on the Guiding Principles on Internal Displacement for officials of the Government of Turkey, Global IDP Project - Norwegian Refugee Council, 5-6 May 2005, Ankara, [See workshop report](#)

Workshop on IDP Protection with civil society, June 2006, Ankara, See [workshop report](#)

Training of trainers on IDP Protection, September 2006, Van, See [workshop report](#)

[Click here for training materials in Turkish](#)

LIST OF SOURCES USED

(alphabetical order)

Abdulkerim Sonmez, October 2008, "The Effects of Violence and Internal Displacement on Rural-Agrarian Change in Turkey" in Rural Sociology, vol.73(3)

Agence France-Presse (AFP), October 2006, Turkey's Kurdish rebels declare cease-fire
Internet : <http://www.abc.net.au/news/stories/2006/10/01/1752794.htm> , accessed 20 October 2009

Aljazeera, 17 July 2005, Turmoil revisiting southeastern Turkey
Internet : <http://english.aljazeera.net/NR/exeres/26B810EE-A9CC-4573-9191-4CF7F6108689.htm> , accessed 3 August 2005

Aljazeera, 30 August 2005, Turkish PM addresses Kurdish question
Internet : <http://english.aljazeera.net/NR/exeres/FC453C0E-6FA8-4544-8C48-12EFE5D61A5A.htm> , accessed 13 September 2005

Amnesty International (AI), 23 May 2007, Amnesty International Report 2007 - Turkey
Internet : <http://thereport.amnesty.org/eng/Regions/Europe-and-Central-Asia/Turkey> , accessed 25 June 2007

Amnesty International (AI), April 2009, Annual Report - Turkey 2009
Internet : <http://thereport.amnesty.org/en/regions/europe-central-asia/turkey> , accessed 26 August 2009

Amnesty International (AI), October 1996, Turkey: No Security Without Human Rights, EUR 44/084/1996
Internet : <http://web.amnesty.org/ai.nsf/Index/EUR440841996?OpenDocument&of=COUNTRIES\TURKEY> , accessed 16 August 2001

Amnesty International (AI), October 2003, Concerns in Europe and Central Asia: January to June 2003, EU 01/016/2003
Internet : <http://web.amnesty.org/library/Index/ENGEUR010162003?open&of=ENG-TUR> , accessed 19 March 2004

Amnesty International (AI), 12 February 2004, Turkey: Memorandum to the Turkish Prime Minister on the occasion of the visit to Turkey of a delegation led by Irene Khan, Amnesty International's Secretary General February 2004, From Paper to Practice: Making Change Real, EUR 44/001/2004
Internet : <http://web.amnesty.org/library/Index/ENGEUR440012004?open&of=ENG-TUR> , accessed 19 March 2004

Amnesty International (AI), 2 June 2005, Women confronting family violence
Internet : <http://web.amnesty.org/library/index/ENGEUR440132004> , accessed 6 September 2005

Atreya, Navita, McDowall, David, Ozbolat, Perihan, 28 February 2001, Asylum Seekers from Turkey: the Dangers They Flee (Report of a mission to Turkey, 4-17 October 2000), A Report to Asylum Aid
Internet : <http://freespace.virgin.net/davinder.sidhu/turkey%20report.PDF> , accessed 16 August 2001

Ayata, Bilgin (paper presented at TESEV conference, **Internal Displacement in Turkey and Abroad: International Principles, Examples, Policy Proposals, Istanbul, Turkey**), 5 December 2006, From Denial to Dialogue - An Analysis of Recent International and National Policies on the Problem of Internal Displacement in Turkey"

Internet : http://www.tesev.org.tr/eng/events/conf_0405dec_bayata.php , accessed 25 July 2007

BBC News, 7 September 2004, EU presses Turkey on Kurd rights

Internet : <http://news.bbc.co.uk/1/hi/world/europe/3634024.stm> , accessed 9 May 2005

BBC News, 26 September 2009, Longing for end to 'dirty' war in Turkey

Internet : <http://news.bbc.co.uk/2/hi/8244068.stm> , accessed 19 October 2009

BBC News, 30 July 2003, Turkey reforms targets army power

Internet : <http://news.bbc.co.uk/2/hi/europe/3110173.stm> , accessed 3 August 2003

BBC News, 30 March 2006, Kurd unrest escalates in Turkey

Internet : <http://news.bbc.co.uk/2/hi/europe/4860154.stm> , accessed 7 April 2006

BBC News, 31 March 2006, Payment woes mar Kurds' return

Internet : <http://news.bbc.co.uk/2/hi/europe/4863812.stm> , accessed 7 April 2006

BBC News, 5 April 2006, Two injured in Istanbul explosion

Internet : <http://news.bbc.co.uk/2/hi/europe/4879920.stm> , accessed 7 April 2006

BBC News, 5 August 2006, Turkey dam project back to haunt Kurds

Internet : <http://news.bbc.co.uk/2/hi/europe/5243588.stm> , accessed 25 June 2007

BBC News, 30 May 2007, Turkey-Iraq border tension grows

Internet : <http://news.bbc.co.uk/2/hi/europe/6703581.stm> , accessed 4 June 2007

BBC News, 19 July 2009, Six die in Turkey village attack

Internet : <http://news.bbc.co.uk/2/hi/europe/8161289.stm> , accessed 25 September 2009

Brookings-Bern Project on Internal Displacement, December 2006, Statement of the RSG at the Launch of the Migration and Internally Displaced Population Survey, Hacettepe University, Ankara, 6 December 2006

Internet : http://www.brookings.edu/fp/projects/idp/20061206_stmt_WK_TESEVConference.pdf , accessed 9 January 2007

Brookings-Bern Project on Internal Displacement, December 2006, Conclusions and Recommendations, Working Visit by the RSG to Turkey, 28 September – 1 October 2006

Internet : <http://www.undp.org.tr/Gozlem2.aspx?WebSayfaNo=726> , accessed 9 January 2007

Christian Science Monitor (CSM), 31 August 2005, Turkey's Kurds languish in poverty

Internet : <http://www.csmonitor.com/2005/0831/p06s02-woeu.html> , accessed 23 July 2007

Commission on Security and Cooperation in Europe, 10 June 2003, Hearing: Internally Displaced Persons in the Caucasus Region and Southeastern Anatolia

Internet : http://www.csce.gov/index.cfm?Fuseaction=ContentRecords.ViewDetail&ContentRecord_id=258&Region_id=15&Issue_id=0&ContentType=H&CFID=929232&CFTOKEN=70697758 , accessed 26 June 2003

Council of Europe (COE), 22 March 2002, "Humanitarian situation of the displaced Kurdish population in Turkey" (Doc. 9391)

Internet : <http://assembly.coe.int/Documents/WorkingDocs/Doc02/EDOC9391.htm> , accessed 23 August 2002

Council of Europe (COE), Commissioner for Human Rights, 19 December 2003, Report on the visit to Turkey (11-12 June 2003), CommDH(2003)15

Internet : [http://www.coe.int/T/E/Commissioner_H.R/Communication_Unit/CommDH\(2003\)15_E.doc](http://www.coe.int/T/E/Commissioner_H.R/Communication_Unit/CommDH(2003)15_E.doc) , accessed 19 March 2004

Council of Europe (COE), Commissioner for Human Rights, October 2009, Report by Thomas Hammarberg Commissioner for Human Rights of the Council of Europe Following his visit to Turkey on 28 June – 3 July 2009

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/77A8D15CF778A044C1257643003644FC/\\$file/com.intranet.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/77A8D15CF778A044C1257643003644FC/$file/com.intranet.pdf) ,

Council of Europe (COE), Committee of Ministers, 10 July 2002, Actions of the security forces in Turkey: Progress achieved and outstanding problems (Interim Resolution ResDH(2002)98)

Internet : <http://https://wcd.coe.int/ViewDoc.jsp?id=294871&BackColorInternet=DBDCF2&BackColorIntranet=FDC864&BackColorLogged=FDC864> , accessed 5 August 2005

Council of Europe (COE), Committee of Ministers, 7 June 2005, The Committee of Ministers assess the implementation by Turkey of judgments of the European Court of Human Rights concerning the action of security forces

Internet : <http://https://wcd.coe.int/ViewDoc.jsp?id=866671&Site=COE> , accessed 15 July 2005

Council of Europe (COE), Committee of Ministers, 7 June 2005, Actions of the security forces in Turkey: Progress achieved and outstanding problems (Interim Resolution ResDH(2005)43)

Internet : <http://https://wcd.coe.int/ViewDoc.jsp?Ref=ResDH%282005%2943&Language=lanEnglish&Ver=original&Site=CM&BackColorInternet=9999CC&BackColorIntranet=FFBB55&BackColorLogged=FFAC75> , accessed 15 July 2005

Council of Europe (COE), Committee of Ministers, 9 June 1999, Actions of the security forces in Turkey: Progress achieved and outstanding problems (Interim Resolution ResDH(1999)434)

Internet : <http://hudoc.echr.coe.int/hudoc/ViewRoot.asp?Tname=Heres54&Id=REF00000341%20&Language=en&Item=1&Notice=0&NoticeMode=0&RelatedMode=2> , accessed 5 August 2005

Council of Europe (COE), European Commission Against Racism and Intolerance (ECRI), 15 February 2005, Third Report on Turkey

Internet : http://hudoc.ecri.coe.int/XMLEcri/ENGLISH/Cycle_03/03_CbC_eng/TUR-CbC-III-2005-5-ENG.pdf , accessed 22 April 2005

Council of Europe (COE), Parliamentary Assembly, Committee on Migration, Refugees and Demography, 29 June 1998, Recommendation 1377 (1998) Humanitarian situation of the Kurdish refugees and displaced persons in south-eastern Turkey and northern Iraq

Internet : <http://assembly.coe.int/Documents/AdoptedText/ta98/erec1377.htm> , accessed 19 August 2005

Council of Europe (COE), Parliamentary Assembly, Committee on Migration, Refugees and Demography, 25 June 1998, Order No. 545 (1998): Humanitarian situation of the Kurdish refugees and displaced persons in south-east Turkey and northern Iraq

Internet : <http://assembly.coe.int/documents/adoptedtext/ta98/edir545.htm> , accessed 5 August 2005

Council of Europe (COE), Parliamentary Assembly, Committee on Migration, Refugees and Demography, 3 June 1998, Humanitarian Situation of the Kurdish Refugees and Displaced Persons in South-East Turkey and North Iraq, Doc 8131

Internet : <http://assembly.coe.int/Documents/WorkingDocs/doc98/edoc8131.htm> , accessed 21 August 2002

Council of Europe (COE), Parliamentary Assembly, Committee on Migration, Refugees and Demography, 15 January 1999, Information report of the Committee on Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe: Honouring of obligations and commitments by Turkey, Doc. 8300

Internet : <http://assembly.coe.int/Documents/WorkingDocs/doc99/edoc8300.htm> , accessed 5 August 2005

Council of Europe (COE), Parliamentary Assembly, Committee on Migration, Refugees and Demography, 29 May 2002, Recommendation 1563 (2002) of the Parliamentary Assembly on Humanitarian situation of the Kurdish population in Turkey

Internet : http://www.coe.int/T/E/Legal_Affairs/Legal_co-operation/Foreigners_and_citizens/Asylum_refugees_and_stateless_persons/Texts_and_documents/3Texts_AP.asp , accessed 19 March 2004

Council of Europe (COE), Parliamentary Assembly, Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe, March 2004, Turkey: Explanatory memorandum by the co-rapporteurs, Mrs. Mady Delvaux-Stehres and Mr. Luc Van den Brande (Co-rapporteurs)

Internet : <http://assembly.coe.int/Communication/TemporaryDocs/ASmon/Turkey/TurkeymemorandumE.pdf> accessed 19 March 2004

Council of Europe (COE), Parliamentary Assembly, Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe, 3 March 2004, Honouring of obligations and commitments by Turkey, Draft resolution

Internet : <http://assembly.coe.int/Communication/TemporaryDocs/ASmon/TURmonE.htm> , f , accessed 19 March 2004

Council of Europe (COE), Parliamentary Assembly, Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe, 22 June 2004, Resolution 1380 (2004) Honouring of obligations and commitments by Turkey

Internet : http://assembly.coe.int/Documents/AdoptedText/ta04/ERES1380.htm#_ftn1 , accessed 4 August 2005

Council of Europe (COE), Parliamentary Assembly, Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe, 13 June 2001, Honouring of obligations and commitments by Turkey, Doc. 9120

Internet : <http://assembly.coe.int/Documents/WorkingDocs/doc01/EDOC9120.htm> , accessed 21 August 2002

Council of Europe (COE), Parliamentary Assembly, Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe, 28 June 2001, Resolution 1256 (2001): Honouring of obligations and commitments by Turkey

Internet : <http://assembly.coe.int/Documents/AdoptedText/TA01/ERES1256.htm> , accessed 5 August 2005

Daily Star, 10 April 2006, Lethal clashes continue in Turkey

Internet : http://www.dailystar.com.lb/article.asp?edition_id=10&categ_id=2&article_id=23656 , accessed 10 April 2006

Emin Yaşar Demirci, August 2006, Place of displaceds: choices and preferences of internally displaced persons in Van
Internet : <http://www.undp.org.tr/demGovDocs/a/BASELINESURVEY.doc> , accessed 16 May 2007

EurActiv.com, 23 November 2005, Rehn delivers stark message to Turkey
Internet : <http://www.euractiv.com/Article?tcmuri=tcm:29-149560-16&type=News> , accessed 16 December 2005

European Commission, 8 November 2006, Turkey 2006 Progress Report
Internet : http://ec.europa.eu/enlargement/pdf/key_documents/2006/Nov/tr_sec_1390_en.pdf , accessed 8 November 2006

European Commission, 5 November 2003, Regular Report on Turkey's Progress towards accession
Internet : http://europa.eu.int/comm/enlargement/report_2003/pdf/rr_tk_final.pdf , accessed 19 March 2004

European Commission, 4 October 2005, Declaration of the President of the European Commission José Manuel Barroso on the opening of accession negotiations with Turkey
Internet : <http://europa.eu/rapid/pressReleasesAction.do?reference=IP/05/1219> , accessed 7 October 2005

European Commission, 5 November 2008, Enlargement Strategy and Main Challenges 2008-2009; Communication from the Commission to the Council and the European Parliament
Internet : <http://www.avrupa.info.tr/Files/File/Docs/Enlargement%20Strategy%20and%20Main%20Challenges%202008-2009.pdf> , accessed 26 August 2009

European Commission, 6 November 2007, Turkey 2007 Progress Report; Commission Staff working document
Internet : <http://www.avrupa.info.tr/Files/File/Docs/progress-reports-2007-en.pdf> , accessed 26 August 2009

European Commission, 6 October 2004, Recommendation of the European Commission on Turkey's progress towards accession COM(2004)
Internet : http://www.dtm.gov.tr/dtmadmin/upload/AB/ABKurumsalDb/tr_recommendation_en.pdf , accessed 13 October 2004

European Commission, 6 October 2004, Regular report on Turkey's progress towards accession SEC (2004) 1201
Internet : http://www.gumruk.gov.tr/tr-TR/abdisiliskiler/Documents/ilerlemerap2004_eng.pdf , accessed 13 October 2004

European Commission, 9 November 2005, Turkey 2005 Progress Report
Internet : <http://www.unhcr.org/refworld/docid/43956b6d4.html> , accessed 25 November 2005

European Commission, 5 November 2008, Turkey 2008 Progress Report, Commission Working Staff Document: SEC(2008) 2699 final
Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/A6F127F807FAA30EC125761D0058D1AC/\\$file/4912ed602.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/A6F127F807FAA30EC125761D0058D1AC/$file/4912ed602.pdf) ,

European Commission - Directorate General for Employment, Social Affairs and Equal Opportunities, 2 November 2006, Study on Poverty and Social Exclusion in the Suburbs of Large Turkish Cities

Internet :
http://ec.europa.eu/employment_social/spsi/docs/social_inclusion/2006/study_turkey_en.pdf ,
accessed 8 November 2006

European Court of Human Rights, 9 February 2006, İçyer v. Turkey Case Inadmissible

Internet :
http://www.coe.int/T/d/kommunikation_und_politische_forschung/presse_und_online_info/Presseinfos/2006/20060209-070-GH-E-T.asp , accessed 3 January 2007

European Court of Human Rights, 29 June 2004, Case of Dogan and others v. Turkey - 8803/02

Internet : <http://www.worldlii.org/eu/cases/ECHR/2004/296.html> , accessed 14 December 2005

European Parliament, 10 March 2006, Turkey: Human Rights Note

Internet : http://www.europarl.europa.eu/meetdocs/2004_2009/documents/fd/d-tr20060425_05/d-tr20060425_05en.pdf , accessed 16 May 2007

European Roma Rights Centre, Edirne Roma Association, Helsinki Citizen Assembly, April 2008, We are here! Discriminatory Exclusion and Struggle for Rights of Roma in Turkey

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/73F154C3FCE1FD09C125761E005595E0/\\$file/m00000390.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/73F154C3FCE1FD09C125761E005595E0/$file/m00000390.pdf) ,

Förderverein Niedersächsischer Flüchtlingsrat e.V./ Pro Asyl, April 2002, Turkey and Refugees

Government of Turkey, 13 December 2006, The law amending the law on compensation of losses resulting from terrorist acts and measures taken against terrorism, law no. 5562

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/2FFEE4145979A7ABC125730500420FCE/\\$file/Turkey_Law5562_2006+Extension+Com+Law.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/2FFEE4145979A7ABC125730500420FCE/$file/Turkey_Law5562_2006+Extension+Com+Law.pdf) ,

Government of Turkey, 29 July 2005, Rationale for the Amendment to the Law on Compensation, 2005

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/30D0AD263A3C53EDC125726C0030DADB/\\$file/Turkey_AmmendmentJustification_2005.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/30D0AD263A3C53EDC125726C0030DADB/$file/Turkey_AmmendmentJustification_2005.pdf) ,

Government of Turkey, 2005, Second Regulation on Compensation of Losses Resulting from Terrorist Acts and Measures Taken against Terrorism, 2005

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/31869C6935A0132CC125726C0030F507/\\$file/Turkey_2005Regulation9329.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/31869C6935A0132CC125726C0030F507/$file/Turkey_2005Regulation9329.pdf) ,

Government of Turkey, 27 July 2004, The Law on the Compensation of Damages that Occurred Due to Terror and the Fight against Terror. Law No 5233

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/3938303A1709218EC12572E4004F4020/\\$file/Turkey_CompensationLaw5233.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/3938303A1709218EC12572E4004F4020/$file/Turkey_CompensationLaw5233.pdf) ,

Government of Turkey, October 2009, Comments of the Republic of Turkey on the Report regarding "Human Rights of Minorities" by Mr. T. Hammarberg, Commissioner for Human Rights of the Council of Europe following his visit to Turkey (28 June - 3 July 2009)

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/7D4A272BC62232EEC1257654005825FF/\\$file/com.instranet.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/7D4A272BC62232EEC1257654005825FF/$file/com.instranet.pdf) ,

Government of Turkey, 17 July 2004, The law on the Compensation of Damages that occurred due to terror and the fight against terror (Law 5233)

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/800AC571E1B555F2C125717100292674/\\$file/Turkey_CompensationLaw5233.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/800AC571E1B555F2C125717100292674/$file/Turkey_CompensationLaw5233.pdf) ,

Government of Turkey, 28 December 2005, Law Amending the Law on Compensation of Losses Resulting from Terrorist Acts and Measures Taken against Terrorism, 2005 (Act No. 5442)

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/8D08ABC52DB16FC1C125726C0030BF57/\\$file/Turkey_ActNo5442_2005.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/8D08ABC52DB16FC1C125726C0030BF57/$file/Turkey_ActNo5442_2005.pdf) ,

Government of Turkey, 2004, First Regulation on Compensation of Losses Resulting from Terrorist Acts and Measures Taken against Terrorism, 2004

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/9C26F8394BDFCCF0C125726C003110D8/\\$file/Turkey_2004Regulation7955.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/9C26F8394BDFCCF0C125726C003110D8/$file/Turkey_2004Regulation7955.pdf) ,

Government of Turkey, 24 May 2007, The Law Amending the law on the Compensation of Damages that occurred due to Terror and the fight against Terror, Law No. 5566

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/F059D2EC6F2910C2C125761F00533E4E/\\$file/Turkey_Law5566_2007.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/F059D2EC6F2910C2C125761F00533E4E/$file/Turkey_Law5566_2007.pdf) ,

Government of Turkey, 27 June 2009, Representative of General Directorate of Provincial Administration question and answer session in Van Conference, held on June 27th, 2009 entitled "Internal Displacement in Turkey: Government Responses."

Government of Turkey, Ministry of Interior (GoT/Mol), 17 August 2005, Measures on the Issue of Internally Displaced Persons and the Return to Village and Rehabilitation Project in Turkey (adopted 17 August 2005)

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/8593EC9CB9D0B6BBC125712A004C12BE/\\$file/Turkey_Framework+Agreement.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/8593EC9CB9D0B6BBC125712A004C12BE/$file/Turkey_Framework+Agreement.pdf) ,

Government of Turkey, Permanent Mission of Turkey to the United Nations, Geneva (GoT/UN Mission), 18 March 2004, Information provided to the NRC from the Permanent Mission of Turkey to the United Nations, Geneva concerning Internally Displaced Persons (IDPs) and "Back to Village and Rehabilitation" Project

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/50B975D2E218A0F9802570B7005A5770/\\$file/Permanent+Mission+of+Turkey+to+the+UN+GENEVA+Response+to+NRC_18+March+04.doc](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/50B975D2E218A0F9802570B7005A5770/$file/Permanent+Mission+of+Turkey+to+the+UN+GENEVA+Response+to+NRC_18+March+04.doc) ,

Government of Turkey, Permanent Mission of Turkey to the United Nations, Geneva (GoT/UN Mission), 17 September 2009, Information note on the IDP issue in Turkey, provided to NRC/IDMC, Government of Turkey,

Government of Turkey, Permanent Mission of Turkey to the United Nations, Geneva (GoT/UN Mission), 27 July 2007, Information Note on developments regarding the situation of

internal displacement provided to the Internal Displacement Monitoring Centre of the Norwegian Refugee Council

Government of Turkey, Permanent Mission of Turkey to the United Nations, Geneva (GoT/UN Mission), 27 September 2005, Information note on the IDP issue in Turkey, provided to NRC/Global IDP Project

Governorate of Van, 10 October 2006, Plan of Action (Background: Measures taken with regard to Internally Displaced Persons in Eastern and Southeastern Anatolia)
Internet : <http://www.undp.org.tr/demGovDocs/idp/VanActionPlanEng10.10.2006.doc> , accessed 8 November 2006

Graham-Brown, Sarah, 30 April 1998, The Kurds - A Regional Issue: Update to April 1998, Writenet
Internet : <http://web.archive.org/web/20000819073632/www.unhcr.ch/refworld/country/writenet/wrikurd02.htm> , accessed 18 December 2002

Haber, 9 September 2009, [Thousands of Kurds hold peace rally in Turkey](http://www.haber27.com/news_detail.php?id=39821)
Internet : http://www.haber27.com/news_detail.php?id=39821 , accessed 10 September 2009

Hacettepe University- Institute of Population Studies (IPS), 4 March 2005, Turkey Migration and Internally Displaced Population Survey (TMIDPS): Qualitative Research Plan, workshop presentation
Internet : http://www.hips.hacettepe.edu.tr/tgyona/idp_english/QualitativeResearchPlan.pdf , accessed 26 August 2005

Hacettepe University- Institute of Population Studies (IPS), 4 March 2005, Turkey Migration and Internally Displaced Population Survey (TMIDPS): Questionnaire Design, workshop presentation
Internet : http://www.hips.hacettepe.edu.tr/tgyona/idp_english/QuestionnaireDesign.pdf , accessed 26 August 2005

Hacettepe University- Institute of Population Studies (IPS), 4 March 2005, Turkey Migration and Internally Displaced Population Survey (TMIDPS): Internally Displaced Persons: Concepts and Situation in the World, workshop presentation
Internet : <http://www.hips.hacettepe.edu.tr/tgyona/InternallyDisplacedPersonsConceptsandSituationintheWorld.pdf> , accessed 26 August 2005

Hacettepe University- Institute of Population Studies (IPS), 4 March 2005, Turkey Migration and Internally Displaced Population Survey (TMIDPS): Internal migration movements and the magnitude of internal displacement in the last 20 years in Turkey, workshop presentation
Internet : <http://www.hips.hacettepe.edu.tr/tgyona/MagnitudeofImmigrationEventsandInternallyDisplacedPopulationinlast20YearsinTurkey.PDF> , accessed 26 August 2005

Hacettepe University- Institute of Population Studies (IPS), 6 December 2006, Findings of the Turkey Migration and Internally Displaced Population Survey - Press Release
Internet : http://www.hips.hacettepe.edu.tr/tgyona/press_release.pdf , accessed 8 December 2006

Hacettepe University- Institute of Population Studies (IPS), 4 March 2005, Turkey Migration and Internally Displaced Population Survey (TMIDPS): Sampling Plan, workshop presentation

Internet :
[http://www.hips.hacettepe.edu.tr/tgyona/Sampling%20Plan%20\(Sinan%20Turkyilmaz\).ppt](http://www.hips.hacettepe.edu.tr/tgyona/Sampling%20Plan%20(Sinan%20Turkyilmaz).ppt) ,
accessed 26 August 2005

Hacettepe University- Institute of Population Studies (IPS), 4 March 2005, Introduction Turkey Migration and Internally Displaced Population Survey (TMIDPS) Survey
Internet :
[http://www.hips.hacettepe.edu.tr/tgyona/TGYONA%20Introduction%20\(Sabahat%20Tezcan\).ppt](http://www.hips.hacettepe.edu.tr/tgyona/TGYONA%20Introduction%20(Sabahat%20Tezcan).ppt) ,
accessed 26 August 2005

Hacettepe University- Institute of Population Studies (IPS), 23 February 2006, Presentation on "Turkey Migration And Internally Displaced Population Survey" at the IDP Stakeholders Conference, Ankara, Turkey
Internet :
http://www.undp.org.tr/undp/Bulletin_Archive/2006/03/Engdownload/TGYONA_PRES%5B1%5D.ppt ,
accessed 20 March 2006

House of Commons Select Committee on International Development, 4 April 2001, ECGD, Developmental Issues and the Ilisu Dam: Further Report
Internet : <http://www.publications.parliament.uk/pa/cm200001/cmselect/cmintdev/395/39503.htm> ,
accessed 16 August 2001

Human Rights Association of Turkey (HRA), 8 April 2009, Human Rights Violations in Adana in January, February, and March 2009: Monitoring Report by The Adana Branch of the Human Rights Association
Internet :
http://www.ihd.org.tr/english/index.php?option=com_content&view=article&id=495:human-rights-violations-in-adana-in-january-february-and-march-2009-monitoring-report-by-the-adana-branch-of-the-human-rights-association&catid=17:special-reports&Itemid=37 ,
accessed 22 September 2009

Human Rights Association of Turkey (HRA), 22 September 2009, Human Rights Violations in Turkey 2008: Human Rights Situation in some Rights Categories between 1999 and 2008
Internet : http://www.ihd.org.tr/images/pdf/IHD_1999_2008_Comparative_Balance_Sheet.pdf ,
accessed 22 September 2009

Human Rights Association of Turkey (HRA), 27 February 2007, Human Rights Violation in Turkey-Summary Table of 2006
Internet : <http://www.ihd.org.tr/press/press20070227.html> ,
accessed 23 July 2007

Human Rights Association of Turkey (HRA), September 2002, DİYARBAKIR PROVINCE BİSMİL DISTRICT UĞRAK Village Rural Guard Attack Observation- Investigation Report
Internet : <http://www.ihd.org.tr/repsec/ugrak/amac.htm> ,
accessed 19 March 2004

Human Rights Association of Turkey (HRA), 23 September 2009, Turkey is going away from the Principle of the Rule of Law rather than getting closer to it
Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/44BF715645B183B3C125763B00515DBE/\\$file/2009_09_23_press_release_Turkey_is_going_away_from_the_principle_of_rule_of_law_rather_than_getting_closer_to_it.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/44BF715645B183B3C125763B00515DBE/$file/2009_09_23_press_release_Turkey_is_going_away_from_the_principle_of_rule_of_law_rather_than_getting_closer_to_it.pdf) ,

Human Rights Association of Turkey (HRA) and the World Organisation Against Torture (OMCT), May 2003, House Demolitions and Forced Evictions Perpetrated by the Turkish Security Forces: A Form of Cruel, Inhuman or Degrading Treatment or Punishment Against the Kurdish Population, Notes presented to the Committee against Torture (CAT) by OMCT and HRA
Internet : <http://www.ihd.org.tr/repsec/omctihd/content.htm> ,
accessed 19 March 2004

Human Rights Foundation of Turkey (HRFT), December 2003, December 2003 Report
Internet : <http://www.tihv.org.tr/eindex.html> , accessed 19 March 2004

Human Rights Foundation of Turkey (HRFT), April 2004, Monthly Human Rights Report (April)
Internet : http://www.tihv.org.tr/report/2004_04/aprkurd.html , accessed 26 August 2005

Human Rights Foundation of Turkey (HRFT), June 2004, Monthly Human Rights Report (June)
Internet : http://www.tihv.org.tr/report/2004_06/junkurd.html , accessed 26 August 2005

Human Rights Foundation of Turkey (HRFT), August 2004, Monthly Human Rights Report (August)
Internet : http://www.tihv.org.tr/report/2004_08/augkurd.html , accessed 26 August 2005

Human Rights Foundation of Turkey (HRFT), October 2004, Monthly Human Rights Report (October)
Internet : http://www.tihv.org.tr/report/2004_10/octkurd.html , accessed 26 August 2005

Human Rights Foundation of Turkey (HRFT), December 2004, Monthly Human Rights Report (November-December)
Internet : http://www.tihv.org.tr/report/2004_11_12/nov-deckurd.html , accessed 26 August 2005

Human Rights Foundation of Turkey (HRFT), 2001, Monthly Report of Human Rights in Turkey . January 2001
Internet : <http://www.tihv.org.tr/report/index.html> , accessed 16 August 2001

Human Rights Foundation of Turkey (HRFT), February 2001, Human Rights Report of Turkey
Internet : <http://www.tihv.org.tr/report/index.html> , accessed 16 August 2001

Human Rights Watch (HRW), December 2006, Unjust, Restrictive, and Inconsistent: The Impact of Turkey's Compensation Law with Respect to Internally Displaced People
Internet : <http://hrw.org/backgrounder/eca/turkey1206/> , accessed 24 July 2007

Human Rights Watch (HRW), 4 October 2004, Last Chance for Turkey's Displaced?
Internet : <http://hrw.org/backgrounder/eca/turkey/2004/10/100404turkey.pdf> , accessed 11 October 2004

Human Rights Watch (HRW), 29 June 2004, Memorandum to the Turkish Government on Human Rights Watch's Concerns with Regard to Academic Freedom in Higher Education, and Access to Higher Education for Women who Wear the Headscarf Human Rights Watch Briefing Paper
Internet : http://hrw.org/backgrounder/eca/turkey/2004/headscarf_memo.pdf , accessed 2 August 2005

Human Rights Watch (HRW), March 2003, Turkey and War in Iraq: Avoiding past patterns of violence.
Internet : http://hrw.org/backgrounder/eca/turkey/turkey_violations.pdf , accessed 15 April 2003

Human Rights Watch (HRW), 2007, World Report 2007. Turkey. Events of 2006.
Internet : <http://hrw.org/englishwr2k7/docs/2007/01/11/turkey14845.htm> , accessed 16 May 2007

Human Rights Watch (HRW), 26 January 2004, Human Rights Overview: Turkey
Internet : <http://hrw.org/english/docs/2003/12/31/turkey7023.htm> , accessed 19 March 2004

Human Rights Watch (HRW), 3 March 2004, Turkey: Rights Progress Marred in Key Year for EU Bid

Internet : <http://hrw.org/english/docs/2004/03/03/turkey7784.htm> , accessed 19 March 2004

Human Rights Watch (HRW), 15 June 2004, Turkey: EU Bid Hinges on Further Rights Reforms

Internet : http://hrw.org/english/docs/2004/06/15/turkey8816_txt.htm , accessed 20 August 2004

Human Rights Watch (HRW), 15 December 2004, A Crossroads for Human Rights? Human Rights Watch's key concerns on Turkey for 2005

Internet : <http://hrw.org/english/docs/2004/12/15/turkey9865.htm> , accessed 22 December 2004

Human Rights Watch (HRW), 7 March 2005, Hollow Promises for Kurds Displaced by Army

Internet : <http://hrw.org/english/docs/2005/03/07/turkey10261.htm> , accessed 15 April 2005

Human Rights Watch (HRW), 8 June 2006, Letter to Minister Aksu calling for the abolition of the village guards

Internet : <http://hrw.org/english/docs/2006/06/08/turkey13578.htm> , accessed 30 June 2006

Human Rights Watch (HRW), 28 April 2004, Turkey: Curbs on Assembly Undermine EU Bid

Internet : <http://www.hrw.org/english/docs/2004/04/28/turkey8501.htm> , accessed 24 May 2004

Human Rights Watch (HRW), 14 December 2006, Displaced Villagers Denied Fair Compensation

Internet : <http://www.hrw.org/english/docs/2006/12/20/turkey14875.htm> , accessed 8 January 2007

Human Rights Watch (HRW), 30 October 2002, Turkey Fails Displaced Villagers; International donors shun government's defective return plans

Internet : <http://www.hrw.org/press/2002/10/turkey1030.htm> , accessed 30 October 2002

Human Rights Watch (HRW), 30 September 2000, Turkey: Human Rights and the European Union Accession Partnership, vol. 12, No. 10 (D)

Internet : <http://www.hrw.org/reports/2000/turkey2/> , accessed 16 August 2001

Human Rights Watch (HRW), 30 October 2002, Turkey: Displaced and Disregarded; Turkey's Failing Village Return Program

Internet : <http://www.hrw.org/reports/2002/turkey/> , accessed 30 October 2002

Human Rights Watch (HRW), 7 March 2005, "Still critical": Prospects in 2005 for Internally Displaced Kurds in Turkey

Internet : <http://www.hrw.org/reports/2005/turkey0305/> , accessed 11 March 2005

Human Rights Watch (HRW), 2000, "Turkey", in: World Report 2001, Events of 2000 (Human Rights Watch: New York, Washington, London, Brussels)

Internet : <http://www.hrw.org/wr2k1/europe/turkey.html> , accessed 16 August 2001

Human Rights Watch (HRW), 14 January 2003, World Report 2003: Turkey

Internet : <http://www.hrw.org/wr2k3/europe13.html> , accessed 22 June 2003

Human Rights Watch (HRW), December 2008, Closing Ranks Against Accountability Barriers to Tackling Police Violence in Turkey

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/30630BA562CB5811C125761D004BEDF5/\\$file/49390d1a31.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/30630BA562CB5811C125761D004BEDF5/$file/49390d1a31.pdf) ,

Hurriyet - Daily News & Economic Review, 11 September 2009, Bureaucracy closes way back to villages

Internet : <http://www.hurriyetdailynews.com/h.php?news=bureaucracy-closes-way-back-to-villages-2008-09-11> , accessed 26 August 2009

Immigrants' Association for Social Cooperation and Culture (Göc-Der), 8 December 2004, GOC-DER declares its recommendations to Turkey ,EU and KONGAR-GEL before the 17 Dec summit

Internet : <http://www.freedom-for-ocalan.com/bulletin/2004/eDecember9.htm#1> , accessed 22 February 2005

Immigrants' Association for Social Cooperation and Culture (Göc-Der), 2002, The Research and Solution Report on the Socio-Economic and Socio-Cultural Conditions of the Kurdish Citizens Living in the Turkish Republic who are Forcibly Displaced due to Armed-Conflict and Tension Politics; the Problems They Encountered due to Migration and their Tendencies to Return back to the Villages

Internet : <http://www.gocder.com/report.doc> , accessed 14 September 2005

Info-Turk, August 2001, "Deux villages kurdes évacués de force"

Internet : <http://www.info-turk.be/276.htm> , accessed 1 February 2002

Internal Displacement Monitoring Centre of the Norwegian Refugee Council (IDMC/NRC) and Turkish Economic and Social Studies Foundation (TESEV), June 2006, Overcoming a Legacy of Mistrust: Toward Reconciliation between the State and the Displaced" Update on the Implementation of the Recommendations Made by the UN Secretary-General's Representative on Internally Displaced Persons following his Visit to Turkey

Internet : [http://www.internal-displacement.org/8025708F004BE3B1/\(httpInfoFiles\)/BAB842B0CF42E64BC1257180003550FD/\\$file/Turkey%20report_1.06.pdf](http://www.internal-displacement.org/8025708F004BE3B1/(httpInfoFiles)/BAB842B0CF42E64BC1257180003550FD/$file/Turkey%20report_1.06.pdf) , accessed 19 July 2007

Internal Displacement Monitoring Centre (IDMC), 28 December 2008, Challenges of forced displacement within Iraq

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/9E130B601EEFB89BC12576540056D816/\\$file/Iraq_Overview_Dec08.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/9E130B601EEFB89BC12576540056D816/$file/Iraq_Overview_Dec08.pdf) ,

Internal Displacement Monitoring Centre (IDMC), October 2006, The engagement of Turkish NGOs: Recommendations on how to improve the dialogue and develop partnerships between NGOs and authorities on IDP issues

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/AA637A9DDF39E272C125727D003B71FC/\\$file/NGOEngagementPaper.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/AA637A9DDF39E272C125727D003B71FC/$file/NGOEngagementPaper.pdf) ,

Internal Displacement Monitoring Centre (IDMC), October 2009, IDMC interview with Turkish civil society associations September-October 2009

International Campaign to Ban Landmines (ICBL), October 2004, Landmine Monitor Report 2004: Turkey

Internet : <http://www.icbl.org/lm/2004/turkey> , accessed 7 September 2005

International Crisis Group (ICG), 17 August 2007, Turkey and Europe: The Way Ahead

Internet : <http://www.crisisgroup.org/home/index.cfm?l=1&id=5947> , accessed 18 September 2007

International Crisis Group (ICG), 26 January 2005, Iraq: Allaying Turkey's Fears Over Kurdish Ambitions (Middle East Report N°35)

Internet : <http://www.icg.org/home/index.cfm?l=1&id=3241> , accessed 26 January 2005

International Crisis Group (ICG), 15 December 2008, Turkey and Europe: The decisive year ahead
Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/78E9FEFF92AB34AEC125761D004BB C29/\\$file/4946740e2.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/78E9FEFF92AB34AEC125761D004BB C29/$file/4946740e2.pdf) ,

International Crisis Group (ICG), 13 November 2008, Turkey and Iraqi Kurds: Conflict or Cooperation?
Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/9362672B384EF232C125761D004C9E50/\\$file/491c353f2.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/9362672B384EF232C125761D004C9E50/$file/491c353f2.pdf) ,

International Federation of Human Rights Leagues (FIDH)
, 30 July 2003, Human Rights in the Kurdish Southeast: Alarming situation despite extensive legal reforms, Release of an international investigative mission report
Internet : <http://www.fidh.org/communiq/2003/tr3007a.htm> , accessed 19 March 2004

International Federation of Human Rights Leagues (FIDH)
, 30 July 2003, Turkey Human Rights in the Kurdish Southeast: Alarming situation despite extensive legal reforms, International Investigative Mission, n° 367/2
Internet : <http://www.fidh.org/europ/rapport/2003/tr367a.pdf> , accessed 19 March 2004

International Federation of the Red Cross (IFRC), 2004, Annual Appeal 2004: Turkey
Internet : http://www.ifrc.org/cgi/pdf_appeals.pl?annual04/017904.pdf , accessed 31 March 2004

International Helsinki Federation for Human Rights (IHF), 27 June 2005, Human Rights in the OSCE Region: Europe, Central Asia and North America, Report 2005 (Events of 2004)
Internet : http://www.ihf-hr.org/documents/doc_summary.php?sec_id=3&d_id=4057 , accessed 2 August 2005

International Helsinki Federation for Human Rights (IHF), 2001, "Turkey" in: Human Rights in the OSCE Region: the Balkans, the Caucasus, Europe, Central Asia and North America, Report 2001 (Events of 2000)
Internet : <http://www.ihf-hr.org/reports/ar01/Country%20issues/Countries/Turkey.pdf> , accessed 16 August 2001

International Herald Tribune (IHT), 6 April 2006, Resurfacing in Turkey: Deadly old hatreds
Internet : <http://www.ihf-hr.org/reports/ar01/Country%20issues/Countries/Turkey.pdf> , accessed 2 May 2006

Kirisci, Kemal, 2004, Asylum, Immigration, Irregular Migration and Internal Displacement in Turkey: Institutions and Policies
Internet : http://www.carim.org/Publications/CARIM-AS04_03-Kirisci.pdf , accessed 14 September 2005

Kirisci, Kemal, 1998, "Turkey", in Janie Hampton, ed., Internally Displaced People: A Global Survey, (London: Earthscan Publications Ltd)

Koç, İsmet and Ünal, Turgay, 23 July 2005, The extent of internal displacement in Turkey and its consequences on the child educational attainment and health in Turkey
Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/2F0503ECCDC9B1F9C12572900059E9B0/\\$file/Koc and Unalan The Extent of Internal Displacement Turkey 2005.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/2F0503ECCDC9B1F9C12572900059E9B0/$file/Koc%20and%20Unalan%20The%20Extent%20of%20Internal%20Displacement%20Turkey%202005.pdf) ,

Kurdish Human Rights Project (KHRP), September 2007, The Internally Displaced Kurds of Turkey: Ongoing Issues of Responsibility, Redress and Resettlement

Internet : <http://www.barhumanrights.org.uk/docs/bhrckhrp/ResponsibilityReport.pdf> , accessed 21 November 2008

Kurdish Human Rights Project (KHRP), November 2004, Turkey's Implementation of Pro-EU Reforms: Fact finding mission report

Internet : http://www.khrp.org/component/option,com_docman/task,doc_view/gid,37/Itemid,47/ , accessed 5 August 2005

Kurdish Human Rights Project (KHRP), November 2004, Turkey's Implementation of Pro-EU Reforms

Internet : http://www.khrp.org/component/option,com_docman/task,doc_view/gid,37/Itemid,47/ , accessed 22 April 2005

Kurdish Human Rights Project (KHRP), 9 July 2009, KHRP Welcomes Collapse of European Funding for Ilisu Dam

Internet : <http://www.khrp.org/content/view/481/2/> , accessed 10 September 2009

Kurdish Human Rights Project (KHRP), 24 July 2003, Displaced villagers obtain justice: ECHR condemns Turkey for village destruction

Internet : <http://www.khrp.org/news/pr2003/24-07-03.htm> , accessed 29 March 2004

Kurdish Human Rights Project (KHRP), 17 February 2004, Turkish Government responsible for 'disappearances' and village destruction, rules European Court

Internet : <http://www.khrp.org/news/pr2004/17-02-04.htm> , accessed 29 March 2004

Kurdish Human Rights Project (KHRP), 19 January 2004, Turkey's Shame: Sexual Violence Without Redress, The Plight of Kurdish Women, Press release

Internet : <http://www.khrp.org/news/pr2004/19-01-04.htm> , accessed 19 March 2004

Kurdish Human Rights Project (KHRP), June 2003, In the Wake of the Lifting of State of Emergency Rule - Report of a Fact-Finding Mission to Southeast Turkey

Internet : <http://www.khrp.org/publish/list03.htm> , accessed 29 March 2004

Kurdish Human Rights Project (KHRP), September 2008, A Children's Choir Face Terrorism Charges: Juveniles in the Turkish Justice System: Trial Observation Report

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/2E3D9E60FEC3EB50C125762D0059CF9C/\\$file/KHRP+CHILDRENS+CHOIR+ONLINE,+FINAL.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/2E3D9E60FEC3EB50C125762D0059CF9C/$file/KHRP+CHILDRENS+CHOIR+ONLINE,+FINAL.pdf) ,

Kurdish Human Rights Project (KHRP), 3 July 2008, The Human Rights Impact of Mass Displacement Caused by the Construction of the Ilisu Dam

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/56F15D571773BA55C125762D005B4E05/\\$file/Zaragoza+Expo+Speech+July+2008.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/56F15D571773BA55C125762D005B4E05/$file/Zaragoza+Expo+Speech+July+2008.pdf) ,

Kurdish Human Rights Project (KHRP), May 2008, The Role of Kurdish Women in Dialogue, Conflict resolution and Reconstruction, and in Their Struggle for Human Rights and Democracy

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/847A891611E93986C125762D005AFC EF/\\$file/The role of Kurdish women in dialogue- The paper.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/847A891611E93986C125762D005AFC EF/$file/The%20role%20of%20Kurdish%20women%20in%20dialogue- The paper.pdf) ,

Kurdish Human Rights Project (KHRP), September 2007, The Internally Displaced Kurds of Turkey: Ongoing Issues of Responsibility, Redress, and Resettlement

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/93483ACA9E28499CC125762D005AA98F/\\$file/ResponsibilityReport.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/93483ACA9E28499CC125762D005AA98F/$file/ResponsibilityReport.pdf) ,

Kurdish Human Rights Project (KHRP), August 2009, Human Rights in the Kurdish Region of Turkey: Three Pressing Concerns, Fact Finding Mission Report

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/A0D14484BF54D12EC125762D005C9D81/\\$file/Human+Rights+in+the+Kurdish+Region+of+Turkey+ONLINE\[1\].pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/A0D14484BF54D12EC125762D005C9D81/$file/Human+Rights+in+the+Kurdish+Region+of+Turkey+ONLINE[1].pdf) ,

Kurdish Human Rights Project (KHRP), 18 June 2007, Education Rights in Turkey

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/A17FD1184D12460CC125762D005A1994/\\$file/KHRP+DRAFT+REPORT+-+EDUCATION+RIGHTS+IN+TURKEY.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/A17FD1184D12460CC125762D005A1994/$file/KHRP+DRAFT+REPORT+-+EDUCATION+RIGHTS+IN+TURKEY.pdf) ,

Kurdish Human Rights Project (KHRP), October 2004, Human Rights Violations Against Kurds in Turkey (A Report Presented to the OSCE Human Dimension Implementation Meeting 4-15 October 2004, Warsaw, Poland)

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/A4EAE62E41B1FAF4802570B7005A57D6/\\$file/OSCE_submission_2004_Warsaw.doc](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/A4EAE62E41B1FAF4802570B7005A57D6/$file/OSCE_submission_2004_Warsaw.doc) ,

Kurdish Human Rights Project (KHRP), 21 March 2009, 'The Impact of Large-scale Dam Construction on Regional Security in the Kurdish Regions of Turkey'

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/AF0E1F92BE86090CC125762D005B9E1F/\\$file/Alternative+Water+Forum+Speech,+March+2009\[1\]+dam.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/AF0E1F92BE86090CC125762D005B9E1F/$file/Alternative+Water+Forum+Speech,+March+2009[1]+dam.pdf) ,

Kurdish Human Rights Project (KHRP), June 2008, Return to a State of Emergency? Fact Finding Mission Report: Protection Human Rights in South-East Turkey

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/E8F406968A10AB29C125762D005A7146/\\$file/RETURN+TO+A+STATE+OF+EMERGENCY+ONLINE.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/E8F406968A10AB29C125762D005A7146/$file/RETURN+TO+A+STATE+OF+EMERGENCY+ONLINE.pdf) ,

Kurdish Human Rights Project/Bar Human Rights Committee of England and Wales, December 2006, The Status of internally displaced Kurds in Turkey: Return and Compensation Rights - an Update.

Internet : <http://www.khrp.org/publish/p2006/IDP%20return%20compesation%20ONLINE.pdf> , accessed 16 May 2007

Kurdish Human Rights Project/Göç-Der/Human Rights Association Diyarbakir, September 2003, Internally Displaced Persons: The Kurds in Turkey (Yildiz, K and Hughes, C, eds.), Great Britain: Kurdish Human Rights Project

Kurdistan Observer, 30 July 2003, Turkey Still Represses Kurds, Despite EU-Oriented Reforms: Rights Group

Internet : <http://home.cogeco.ca/~konuche/31-7-03-tyk-still-represses-kurds.html> , accessed 23 March 2004

Kurdistan Observer, September 2004, Kurdish Villagers Still Far From Home

Internet : <http://home.cogeco.ca/~kurdistan/2-9-04-villagers-far-from-home.htm> , accessed 22 February 2005

Kurdistan Observer, 24 August 2004, Turkish Watchdog Accuses Security Forces Of Forcible Village evacuation

Internet : <http://home.cogeco.ca/~kurdistan/25-8-04-tyk-evacuates-village-force.htm> , accessed 22 February 2005

Landmine Monitor Core Group, 2008, 2008 Annual Report: Turkey

Internet : <http://lm.icbl.org/index.php/publications/display?url=lm/2008/countries/turkey.html#footnote-7610-55-backlink> , accessed 28 September 2009

Landmine Monitor Core Group, August 2003, Landmine Monitor Report 2003: Turkey
Internet : <http://www.icbl.org/lm/2003/turkey.html> , accessed 19 March 2004

Landmine Monitor Core Group, July 2006, Landmine Monitor Report 2006
Internet : <http://www.icbl.org/lm/2006/> , accessed 25 June 2007

Minority Rights Group International (MRG), September 1991, The Kurds, Summary of the MRG Report The Kurds by David McDowall
Internet : <http://web.archive.org/web/20010727093426/www.minorityrights.org/profiles/profileframeset.asp?id=135&colour=green> , accessed 21 August 2002

Minority Rights Group International (MRG), December 2006, The Problem of Turkey's Displaced Persons: An Action Plan for Their Return and Compensation
Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/0BF2B1C40A73D3ECC125726C00350762/\\$file/Turkey_actionplan.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/0BF2B1C40A73D3ECC125726C00350762/$file/Turkey_actionplan.pdf) ,

Minority Rights Group International (MRG), 2009, Forgotten or Assimilated? Minorities in the Education System of Turkey
Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/4C88D8D5508F3E55C1257651005B000A/\\$file/MRGTurkeyRepQ7_26Feb09\[1\].pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/4C88D8D5508F3E55C1257651005B000A/$file/MRGTurkeyRepQ7_26Feb09[1].pdf) ,

New Perspectives on Turkey, Ayata Bilgin and Yüksek, Deniz, December 2005, A belated awakening: National and international responses to the internal displacement of Kurds in Turkey, New Perspectives on Turkey, no. 32
Internet : <http://home.ku.edu.tr/~dyukseker/ayata-yukseker-NPT.pdf> , accessed 21 December 2005

Norwegian Refugee Council-The Global IDP Project, May 2005, Workshop on the Guiding Principles on Internal Displacement for officials of the government of Turkey
Internet : http://www.idpproject.org/training/reports/2005/Report_Ankara_2005.pdf , accessed 6 September 2005

Open Democracy, 28 May 2009, The Mardin massacre and the village guard system in Turkey
Internet : <http://www.opendemocracy.net/article/the-mardin-massacre-and-the-village-guard-system-in-turkey> , accessed 29 September 2009

Organization for Security and Co-Operation in Europe (OSCE), 2004, OSCE High Commissioner on National Minorities website
Internet : <http://www.osce.org/hcnm/> , accessed 25 March 2004

Organization for Security and Cooperation in Europe (OSCE), 4 December 2002, Republic of Turkey Parliamentary Elections
Internet : http://www.osce.org/documents/odihr/2002/12/1463_en.pdf , accessed 19 June 2003

Radio Free Europe/Radio Liberty (RFE/RL), 13 July 2007, Kurdish Region Feels Threat Of Turkish Invasion
Internet : <http://www.rferl.org/featuresarticle/2007/7/51FDDAA6-C31F-4520-8614-C4D12E2E4001.html> , accessed 18 July 2007

Representative of the UN Secretary-General on the Human Rights of Internally Displaced Persons, Mr. Walter Kaelin, March 2006, Mandate of the Representative of the Secretary-General on the Human Rights of Internally Displaced Persons. Recommendations March 2006
Internet : <http://www.undp.org.tr/demGovDocs/RecommendationoRepresentativeMarch2006.doc> , accessed 23 May 2007

Southeast European Times, 18 May 2006, Rehn urges Turkey to step up reforms
Internet : http://www.setimes.com/cocoon/setimes/xhtml/en_GB/features/setimes/features/2006/05/18/feature-01 , accessed 1 June 2006

The Brookings Institution-SAIS Project on Internal Displacement, March 2004, Guiding Principles on Internal Displacement in Turkish
Internet : <http://www.brookings.edu/fp/projects/idp/resources/GPTurkish.pdf> , accessed 22 March 2004

The Guardian, 20 May 2003, Amnesty calls for action on Caspian
Internet : <http://www.guardian.co.uk/business/story/0,3604,959516,00.html> , accessed 2 July 2003

The Guardian, June 2007, Turkey deploys extra troops to Iraq border as tension with Kurds grows
Internet : <http://www.guardian.co.uk/Iraq/Story/0,,2092954,00.html> , accessed 1 June 2007

The Guardian, 22 January 2004, Turkey promises to compensate Kurds after years of terror, press release
Internet : <http://www.guardian.co.uk/turkey/story/0,12700,1128182,00.html> , accessed 19 March 2004

The Guardian, September 2005, Turks attack Kurdish rebels
Internet : <http://www.guardian.co.uk/turkey/story/0,12700,1294594,00.html> , accessed 2 August 2005

The World Organisation Against Torture (OMCT), 26 March 2003, Turkey's increased violence along a pipeline's route, Case TUR 260303.ESCR
Internet : <http://www.omct.org/base.cfm?page=article&num=3017&consol=close&kwrd=ADV&cfid=896389&cftoken=83077326> , accessed 19 March 2004

The World Organisation Against Torture (OMCT), 6 June 2001, Rights of the Child in Turkey
Internet : [http://www.omct.org/pdf/CC/TurkeyCC\(06.01\).PDF](http://www.omct.org/pdf/CC/TurkeyCC(06.01).PDF) , accessed 25 March 2004

Turkish Daily News, 6 May 2005, Victims of terrorism compensated
Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=12568> , accessed 10 May 2005

Turkish Daily News, 7 May 2005, UN envoy hopeful of new Turkish plan for displaced persons
Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=12716> , accessed 9 May 2005

Turkish Daily News, 15 May 2005, Turkey's displaced persons key for its social peace
Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=13298> , accessed 20 July 2005

Turkish Daily News, 15 May 2005, Internally displaced persons count for Turkey's image
Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=13304> , accessed 20 July 2005

Turkish Daily News, 18 June 2005, Terror compensation period to be extended

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=16133> , accessed 23 August 2005

Turkish Daily News, 28 June 2005, First compensation paid to victims of terrorism

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=16911> , accessed 23 August 2005

Turkish Daily News, 6 July 2005, One-third of internally displaced people return home

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=17544> , accessed 20 July 2005

Turkish Daily News, 6 July 2005, Returning to villages

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=17575> , accessed 20 July 2005

Turkish Daily News, 10 July 2005, Legacy of strife haunts Kurdish villagers in Turkey

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=17610> , accessed 20 July 2005

Turkish Daily News, 27 July 2005, Cabinet extends terrorism compensation claim deadline

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=19189> , accessed 23 August 2005

Turkish Daily News, 28 July 2005, Village withdraws European court lawsuit

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=19331> , accessed 23 August 2005

Turkish Daily News, 27 August 2005, Nine terror victims provided with compensation in Mardin

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=21887> , accessed 2 September 2005

Turkish Daily News, 29 August 2005, Aksu pledges more democracy for Southeast

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=21994> , accessed 2 September 2005

Turkish Daily News, 29 August 2005, Aksu meets with governors in the Southeast

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=22021> , accessed 2 September 2005

Turkish Daily News, 7 October 2005, Rehn warns Turkey's reforms will come under closer EU scrutiny

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=25261> , accessed 7 October 2005

Turkish Daily News, 31 October 2005, Displaced persons issue may become a headache for Turkey

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=27161> , accessed 25 November 2005

Turkish Daily News, 13 March 2006, Baydemir says Kurdish problem has socioeconomic aspects

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=38021> , accessed 19 April 2006

Turkish Daily News, 21 May 2006, 'Alternative solutions needed to solve the Kurdish problem'

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=43989> , accessed 1 June 2006

Turkish Daily News, 11 July 2006, Lagendijk urges visible progress on Kurdish issue before elections

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=48577> , accessed 2 August 2006

Turkish Daily News, 25 July 2006, Research reveals huge population of IDPs

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=49735> , accessed 2 August 2006

Turkish Daily News, 29 September 2006, Turkey to announce first action plan for IDPs

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=55354> , accessed 3 October 2006

Turkish Daily News, October 2006, Gov't takes step to combat sad legacy of PKK conflict: internally displaced persons

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=55517> , accessed 3 October 2006

Turkish Daily News, 15 October 2006, Van's action plan for IDPs may be key model for reaching social agreement

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=56710> , accessed 1 November 2006

Turkish Daily News, 15 October 2006, Efforts for a nationwide plan for IDPs underway

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=56724> , accessed 1 November 2006

Turkish Daily News, 15 October 2006, No other way than social services to heal the wounds of IDPs

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=56744> , accessed 1 November 2006

Turkish Daily News, 15 October 2006, Van IDP plan may become global model

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=56764> , accessed 1 November 2006

Turkish Daily News, 7 December 2006, Survey: IDP numbers triple those acknowledged by state

Internet : <http://www.turkishdailynews.com.tr/article.php?enewsid=61133> , accessed 8 December 2006

Turkish Daily News, 30 January 2001, "The Southeast in the slums: TBMM Research Commission's findings about migration", by Mert Gozde

Internet : http://www.turkishdailynews.com/old_editions/01_30_01/feature.htm , accessed 16 August 2001

Turkish Daily News, 5 April 2001, "Women are part of the Southeastern landscape", by Gul Demir

Internet : http://www.turkishdailynews.com/old_editions/04_05_01/feature.htm#f1 , accessed 16 August 2001

Turkish Daily News, 16 August 2003, Village Guards under the spotlight

Internet : http://www.turkishdailynews.com/old_editions/08_16_03/dom2.htm , accessed 23 March 2004

Turkish Daily News, 8 November 2001, "Village guards helping PKK"

Internet : http://www.turkishdailynews.com/old_editions/11_08_01/dom.htm#d3 , accessed 28 January 2002

Turkish Daily News, 21 December 2001, "Report: Village guards serving local landlords rather than state"

Internet : http://www.turkishdailynews.com/old_editions/12_21_01/dom.htm#d4 , accessed 28 January 2002

Turkish Economic and Social Studies Foundation (TESEV), October 2005, A. Tamer Aker, Betül Çelik, Dilek Kurban, Turgay Ünal and Deniz Yüksek, "The Problem of Internal Displacement in Turkey: Assessment and Policy Proposals," TESEV

Internet : http://research.sabanciuniv.edu/876/2/TESEV_IDP_Report.pdf , accessed 25 June 2007

Turkish Economic and Social Studies Foundation (TESEV), 5 December 2006, International Symposium: Internal Displacement in Turkey and Abroad: International Principles, Examples, Policy Proposals - Conference Proceedings

Internet : http://web.archive.org/web/20070812105549/www.tesev.org.tr/eng/events/conf_0405dec_06.php accessed 28 February 2007

Turkish Economic and Social Studies Foundation (TESEV), 6 December 2007, Report of international symposium held in Istanbul on 4-5 December "Internal Displacement in Turkey and Abroad: International Principles, Experiences and Policy Proposals"

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/D42AF7D58FDBAA46C125729000595604/\\$file/conf_0405dec_06_report.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/D42AF7D58FDBAA46C125729000595604/$file/conf_0405dec_06_report.pdf) , , accessed 11 December 2007

Turkish Economic and Social Studies Foundation (TESEV), 30 August 2007, Coming to Terms with Forced Migration: Post Displacement Restitution of Citizenship Rights in Turkey

Internet : http://www.tesev.org.tr/UD_OBJS/PDF/DEMP/ENG/comingtotermswithforcedmigration.pdf , accessed 11 December 2007

Turkish Economic and Social Studies Foundation (TESEV), May 2009, Permanent Solution to Internal Displacement? An Assessment of the Van Action Plan for IDPs

Internet : http://www.tesev.org.tr/UD_OBJS/PDF/DEMP/TESEV_VanActionPlanReport.pdf , accessed 10 September 2009

Turkish Economic and Social Studies Foundation (TESEV), 5 December 2006, International Symposium Report: "Internal Displacement in Turkey and Abroad: International Principles, Examples and Policy Proposals" - Conference Report

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/D42AF7D58FDBAA46C125729000595604/\\$file/conf_0405dec_06_report.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/D42AF7D58FDBAA46C125729000595604/$file/conf_0405dec_06_report.pdf) ,

Turkish Foundation for Society and Legal Studies (TOHAV), 25 February 2006, Law 5233 is unjust

Internet : http://www.tohav.org/zorunlugoc/LAW_5233_IS_UNJUST.pdf , accessed 19 July 2007

Turkish Foundation for Society and Legal Studies (TOHAV), September 2005, The evaluation and implementation progress report of the law on compensation for damage arising from terror and combating terror on grounds

Internet : http://www.tohav.org/zorunlugoc/Monitoring_Report_of_IDPs_in_Turkey.pdf , accessed 19 July 2007

UN Committee on the Elimination of Discrimination against Women (CEDAW), 15 February 2005, Concluding comments: Turkey (CEDAW/C/TUR/CC/4-5)

Internet : <http://www.un.org/womenwatch/daw/cedaw/cedaw32/conclude-comments/Turkey/CEDAW-CC-TUR-0523813E.pdf> , accessed 6 September 2005

United Kingdom Home Office, April 2001, Country Assessment Turkey, Country Information and Policy Unit

Internet : <http://www.ecoi.net/pub/dh697/01377tur.html> , accessed 16 August 2001

United Nations Children's Fund (UNICEF), October 2009, Children First: Children Living and Working on the Streets

Internet : http://www.unicef.org/turkey/dn_2006/cp43.html , accessed 21 October 2009

United Nations Commission on Human Rights (CHR), 27 November 2002, Profiles in Displacement; Turkey

Internet : [http://193.194.138.190/huridocda/huridoca.nsf/AllSymbols/45DAC136128684D7C1256CA200552E3A/\\$File/G0215677.pdf?OpenElement](http://193.194.138.190/huridocda/huridoca.nsf/AllSymbols/45DAC136128684D7C1256CA200552E3A/$File/G0215677.pdf?OpenElement) , accessed 20 June 2003

United Nations Commission on Human Rights (CHR), 27 November 2002, Report of the Representative of the Secretary-General on internally displaced persons, Mr. Francis Deng, submitted pursuant to Commission on Human Rights Resolution 2002/56, Profiles in displacement: Turkey, E/CN.4/2003/86/Add.2

Internet : <http://www.unhchr.ch/Huridocda/Huridoca.nsf/TestFrame/45dac136128684d7c1256ca200552e3a?Opendocument> , accessed 19 March 2004

United Nations Commission on Human Rights (CHR), 7 November 2003, Letter dated 19 August from the Permanent Mission of Turkey to the United Nations Office at Geneva addressing the Acting High Commissioner for Human Rights, E/CN.4/2004/G/15

Internet : <http://www.unhchr.ch/Huridocda/Huridoca.nsf/TestFrame/8254f9aad4a4cfd2c1256e1300502e67?Opendocument> , accessed 19 March 2004

United Nations Commission on Human Rights (CHR), 6 April 2005, Letter dated 5 April 2005 from the Permanent Mission of Turkey to the United Nations Office at Geneva addressed to the United Nations High Commissioner for Human Rights (E/CN.4/2005/G/33)

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/44371CCC6CFD863D802570B7005A585C/\\$file/Letter+from+Turkey+Permanent+Mission+to+the+UN+April+2005.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/44371CCC6CFD863D802570B7005A585C/$file/Letter+from+Turkey+Permanent+Mission+to+the+UN+April+2005.pdf) ,

United Nations Committee Against Torture (CAT), UN Commission on Human Rights, 27 May 2003, Conclusions and recommendations of the Committee against Torture: Turkey, CAT/C/CR/30/5

Internet : [http://www.unhchr.ch/tbs/doc.nsf/\(Symbol\)/c256ecaa3147c1c2c1256da50041d63c?Opendocument](http://www.unhchr.ch/tbs/doc.nsf/(Symbol)/c256ecaa3147c1c2c1256da50041d63c?Opendocument) , accessed 19 March 2004

United Nations Committee on the Rights of the Child, 9 June 2001, Concluding Observations of the Committee on the Rights of the Child: Turkey, CRC/C/15/Add. 152

Internet : [http://www.unhchr.ch/tbs/doc.nsf/\(Symbol\)/CRC.C.15.Add.152.En?Opendocument](http://www.unhchr.ch/tbs/doc.nsf/(Symbol)/CRC.C.15.Add.152.En?Opendocument) , accessed 21 August 2002

United Nations Committee on the Rights of the Child (CRC), 9 June 2006, Concluding Observations under the Optional Protocol to the Convention on the Rights of the Child on the sale of children, child prostitution and child pornography

Internet :
[http://www.unhchr.ch/tbs/doc.nsf/898586b1dc7b4043c1256a450044f331/e71ee1def484622cc12571b600491c0e/\\$FILE/G0642562.doc](http://www.unhchr.ch/tbs/doc.nsf/898586b1dc7b4043c1256a450044f331/e71ee1def484622cc12571b600491c0e/$FILE/G0642562.doc) , accessed 24 July 2007

United Nations Development Programme (UNDP), October 2006, Support to the development of internally displaced persons program in Turkey. Progress report (24 June - 24 October 2006)
Internet : <http://www.undp.org.tr/demGovDocs/a/ProgressReport2.doc> , accessed 16 May 2007

United Nations Development Programme (UNDP), July 2006, Reparation of Damages Arising From Terror and Fight Against Terror, Presentation at the Training Programme for the Members of Damage Assessment Commissions, Ali Fidan
Internet : http://www.undp.org.tr/demGovDocs/idp/Ali%20Fidan%20tr.ppt#256,1,Slide_1 , accessed 3 October 2006

United Nations Development Programme (UNDP), July 2006, Operational Challenges in Large-Scale Reparation Programmes, Presentation at the Training Programme for the Members of Damage Assessment Commissions – June 2006, Peter Van der Auweraert
Internet : http://www.undp.org.tr/demGovDocs/idp/Peter%20Van.ppt#281,1,Slide_1 , accessed 3 October 2006

United Nations Development Programme (UNDP), June 2006, Support to the development of internally displaced persons program in Turkey. Progress report (23 february - 23 June)
Internet : <http://www.undp.org.tr/demGovDocs/idp/Progress%20Report%20FINAL%20w.doc> , accessed 16 May 2007

United Nations Development Programme (UNDP), July 2006, IDP Joint Training Program for Commission Members, Presentation at the Training Programme for the Members of Damage Assessment Commissions – June 2006, Rhodri C. Williams
Internet : <http://www.undp.org.tr/demGovDocs/idp/Rhodri%20Williams.ppt> , accessed 3 October 2006

United Nations Development Programme (UNDP), July 2006, IDP Joint Training Program for Commission Members, Presentation at the Training Programme for the Members of Damage Assessment Commissions – June 2006, Rhodri C. Williams
Internet : <http://www.undp.org.tr/demGovDocs/idp/Rhodri%20Williams.ppt#272,14,2>. Durable solutions for IDPs “Durable solutions” refers to conditions that restore full freedom of movement and choice of residence to IDPs, allowing them a free choice between: -return in safety and dignity to their home of origin; -local integrati , accessed 3 October 2006

United Nations Development Programme (UNDP), 9 May 2005, Representative of the UN Secretary General on the Human Rights of Internally Displaced Persons Sees New Hope for the Internally Displaced Persons in Turkey
Internet : <http://www.undp.org.tr/Gozlem2.aspx?WebSayfaNo=65> , accessed 9 May 2005

United Nations Development Programme (UNDP), 2005, Support to the Development of an Internally Displaced People Programme in Turkey
Internet : <http://www.undp.org.tr/undp/IDP.asp> , accessed 6 October 2005

United Nations Development Programme (UNDP), June 2006, NGO training on IDP protection held in Ankara
Internet : <http://www.undp.org.tr/undp/webIDP.asp> , accessed 30 June 2006

United Nations Development Programme (UNDP), March 2006, "Internally Displaced Persons Conference in Ankara" in New Horizons Issue 3
Internet : http://www.undp.org.tr/undp/Bulletin_Archive/2006/03/eng/idp.htm , accessed 7 March 2006

United Nations Development Programme (UNDP), August 2008, Project No: 00045992 Support to the Development of an IDP Program for Turkey: Additional Component for the Sustainability and Scale-Up of the Pilot Activity Carried Out in Van Province
Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/736DDAD63CE7543C125762D003D4119/\\$file/IDP_Additional_Component+2008.doc](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/736DDAD63CE7543C125762D003D4119/$file/IDP_Additional_Component+2008.doc) ,

United Nations Development Programme (UNDP), 18 July 2007, Information on IDP related developments from UNDP Turkey to the Internal Displacement Monitoring Centre of the Norwegian Refugee Council

United Nations Development Programme (UNDP), September 2009, IDMC-NRC teleconference with United Nations Development Programme senior staff involved in IDP portfolio

United Nations (UN), 23 February 2006, UN Expert on Internally Displaced Persons Travels to Turkey
Internet : <http://www.unhcr.ch/hurricane/hurricane.nsf/view01/8105A9FB10039701C125711E004C5CE4?opendocument> , accessed 6 March 2006

United Nations (UN), 5 June 2002, Press Release; Secretary-General's Representative on Internally Displaced Persons Concludes Visit to Turkey
Internet : <http://www.unhcr.ch/hurricane/hurricane.nsf/view01/9230EA356745E6A1C1256BCF0042A86D?opendocument> , accessed 20 August 2002

U.S. Committee for Refugees and Immigrants (USCRI), 2001, World Refugee Survey 2001: Turkey
Internet : <http://www.refugees.org/countryreports.aspx?VIEWSTATE=dDwtOTMxNDcwOTk7O2w8Q291bnRyeUREOkdvQnV0dG9uOz4%2BUwqzZxiYLI0SfZCZue2XtA0UFEQ%3D&cid=683&subm=&sm=&map=&searchtext=> , accessed 21 August 2002

U.S. Committee for Refugees (USCR), 1999, The Wall of Denial: Internal Displacement in Turkey, (Washington D.C.)
Internet : http://www.refugees.org/news/press_releases/1999/turkey_pdf1199.htm , accessed 16 August 2001

U.S. Committee for Refugees (USCR), 16 June 2005, World Refugee Survey: Turkey
Internet : http://www.refugees.org/uploadedFiles/Investigate/Publications_&Archives/WRS_Archives/2005/syria_zambia.pdf , accessed 27 July 2005

U.S. Committee for Refugees (USCR), 2002, Turkey: Country Report 2002 (on 2001)
Internet : <http://www.refugees.org/world/countryrpt/europe/turkey.htm> , accessed 20 August 2002

U.S. Department of State (U.S. DOS), February 2000, Turkey Country Report on Human Rights Practices, released by the Bureau of Democracy, Human Rights, and Labor
Internet : <http://www.state.gov/g/drl/rls/hrrpt/1999/index.cfm?docid=365> , accessed 16 August 2001

U.S. Department of State (U.S. DOS), February 2001, Turkey Country Report on Human Rights Practices, released by the Bureau of Democracy, Human Rights, and Labor

Internet : <http://www.state.gov/g/drl/rls/hrrpt/2000/eur/index.cfm?docid=844> , accessed 16 August 2001

U.S. Department of State (U.S. DOS), 4 March 2002, Turkey; Country Reports on human Rights Practices - 2001

Internet : <http://www.state.gov/g/drl/rls/hrrpt/2001/eur/8358.htm> , accessed 21 August 2002

U.S. Department of State (U.S. DOS), 31 March 2003, Country Reports on Human Rights Practices - Turkey

Internet : <http://www.state.gov/g/drl/rls/hrrpt/2002/18396.htm> , accessed 25 June 2003

U.S. Department of State (U.S. DOS), 25 February 2004, Turkey: Country Reports on Human Rights Practices 2003, Bureau of Democracy, Human Rights, and Labor

Internet : <http://www.state.gov/g/drl/rls/hrrpt/2003/27869.htm> , accessed 22 March 2004

U.S. Department of State (U.S. DOS), 28 February 2005, Country Reports on Human Rights Practices: Turkey

Internet : <http://www.state.gov/g/drl/rls/hrrpt/2004/41713.htm> , accessed 2 August 2005

U.S. Department of State (U.S. DOS), 6 March 2007, Human Rights Practices 2006 - Turkey

Internet : <http://www.state.gov/g/drl/rls/hrrpt/2006/78844.htm> , accessed 25 June 2007

Williams, Rhodri, 23 February 2006, Property Compensation: Observations on Turkey's Compensation Law No. 5233 in International Context. IDP Stakeholders' Conference, Ankara, Turkey

Internet : http://www.undp.org.tr/undp/Bulletin_Archive/2006/03/Engdownload/Rhodri_William1.doc , accessed 20 March 2006

World Commission on Dams (WCD), November 2000, Turkey Case Study: Aslantas Dam, Ceyhan River Basin

Internet : http://www.dams.org/kbase/studies/tr/tr_exec.htm , accessed 1 July 2003

Zaman Online, December 2003, Emptied villages renew life

Internet : <http://www.zaman.org/?hn=4290&bl=national> , accessed 29 March 2004